GNAMMA RESEARCH

الضَّرُورِيُّ فِي أُصُولِ الْفِقْهِ

Al-Ḍarūrī fī Uṣūl al-Fiqh

Abū al-Walīd Ibn Rushd
أبو الوليد ابن رشد

Bilingual study edition

Arabic and English · translation and interpretive footnotes
Qur’an references · basic subject index

20 October 2026 · Structure and contents revision

GNAMMA RESEARCH · BILINGUAL STUDY EDITION

Guide to this edition

Arabic appears on the physical right and English on the left. Read continuously, follow the recorded chapters, or use the compact editorial section guide to locate a particular discussion.

The reading text derives from the al-ʿAlawī 1994 edition, with comparison to Bou Akl's printed 2015 Arabic edition, French translation and apparatus. The Escorial manuscript has not been independently inspected. English translation and vocalization are editorial.

Numbering. R identifies this edition's 258 reading units; BA identifies Bou Akl's 311 numbered units. These are reference systems, not original chapter numbers. The later copyist's colophon and ownership notice remain separate.

Two complementary contents lists

1. Recorded parts and chapters translates the 46 headings in the Arabic edition and preserves their hierarchy. **2. Editorial section guide** gives our descriptive titles for all 258 numbered reading units. These titles are editorial aids, not headings in Ibn Rushd's text; they are confined to the guide and its detailed bookmarks.

The body gives prominence to the recorded rubrics, with small section references for lookup. The opening discussion has no separately recorded heading. A printed rubric alone does not establish manuscript provenance.

Footnotes and subject index

Translation and interpretive notes appear as numbered page footnotes. Qur'an references share that sequence; corresponding Arabic and English quotations use one note. Wording qualifications identify paraphrases, combined quotations and reported readings where necessary.

A compact subject guide and basic alphabetical index provide further routes into the text.

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Opening discussion

1. Purpose, brevity, and the craft of legal reasoning

R 1 · BA 1

To proceed, after praising God, who teaches articulate expression[1], makes inquiry (النظر) and inference (الاستدلال) obligatory, and singles out the human being for establishing conclusive arguments[2] and setting forth examples; and after invoking blessings upon Muḥammad, the seal of the messengers and the culmination of completeness and perfection: my purpose in this book is to set down for myself, as a reminder, a sufficient account of what is necessary in this craft (الصناعة), drawn from Abū Ḥāmid's book on the principles of jurisprudence entitled al-Mustaṣfā—may God have mercy upon him. In doing so we shall seek the briefest and most concise expression, and what seems to us most technically appropriate to this disciplined art. Before this, let us offer a useful introduction concerning the purpose and benefit of the knowledge sought here. We say:, [3]

أَمَّا بَعْدُ حَمْدًا لِلَّهِ مُعَلِّمِ الْبَيَانِ[1]، وَمُوجِبِ النَّظَرِ وَالِاسْتِدْلَالِ، وَمُخْتَصِّ الْإِنْسَانِ بِإِقَامَةِ الْحُجَجِ الْبَالِغَةِ[2] وَضَرْبِ الْأَمْثَالِ، وَالصَّلَاةُ عَلَى مُحَمَّدٍ خَاتَمِ الرُّسُلِ وَنِهَايَةِ التَّمَامِ وَالْكَمَالِ، فَإِنَّ غَرَضِي فِي هَذَا الْكِتَابِ أَنْ أُثْبِتَ لِنَفْسِي، عَلَى جِهَةِ التَّذْكِرَةِ، مِنْ كِتَابِ أَبِي حَامِدٍ رَحِمَهُ اللَّهُ فِي أُصُولِ الْفِقْهِ الْمُلَقَّبِ بِالْمُسْتَصْفَى، جُمْلَةً كَافِيَةً بِحَسَبِ الْأَمْرِ الضَّرُورِيِّ فِي هَذِهِ الصِّنَاعَةِ، وَنَتَحَرَّى فِي ذَلِكَ أَوْجَزَ الْقَوْلِ وَأَخْصَرَهُ، وَمَا نَظُنُّ بِهِ أَنَّهُ أَكْثَرَ ذَلِكَ صِنَاعِيٌّ. وَقَبْلَ ذَلِكَ فَلْنُقَدِّمْ مُقَدِّمَةً نَافِعَةً فِي غَرَضِ الْعِلْمِ الْمَطْلُوبِ هَا هُنَا وَمَنْفَعَتِهِ فَنَقُولُ:

2. Three kinds of knowledge: belief, action, and rules of inquiry

R 2 · BA 2

إِنَّ الْمَعَارِفَ وَالْعُلُومَ ثَلَاثَةُ أَصْنَافٍ: إِمَّا مَعْرِفَةٌ غَايَتُهَا الِاعْتِقَادُ الْحَاصِلُ عَنْهَا فِي النَّفْسِ فَقَطْ، كَالْعِلْمِ بِحَدَثِ الْعَالَمِ، وَالْقَوْلِ بِالْجُزْءِ الَّذِي لَا يَتَجَزَّأُ وَأَشْبَاهِ ذَلِكَ. وَإِمَّا مَعْرِفَةٌ غَايَتُهَا الْعَمَلُ، وَهَذِهِ مِنْهَا كُلِّيَّةٌ وَبَعِيدَةٌ فِي كَوْنِهَا مُفِيدَةً لِلْعَمَلِ، وَمِنْهَا جُزْئِيَّةٌ وَقَرِيبَةٌ فِي كَوْنِهَا مُفِيدَةً لِلْعَمَلِ. فَالْجُزْئِيَّةُ كَالْعِلْمِ بِأَحْكَامِ الصَّلَاةِ وَالزَّكَاةِ وَمَا أَشْبَهَهُمَا مِنْ جُزْئِيَّاتِ الْفَرَائِضِ وَالسُّنَنِ. وَالْكُلِّيَّةُ كَالْعِلْمِ بِالْأُصُولِ الَّتِي تُبْنَى عَلَيْهَا هَذِهِ الْفُرُوعُ مِنَ الْكِتَابِ وَالسُّنَّةِ وَالْإِجْمَاعِ، وَالْعِلْمِ بِالْأَحْكَامِ الْحَاصِلَةِ عَنْ هَذِهِ الْأُصُولِ عَلَى الْإِطْلَاقِ وَأَقْسَامِهَا، وَمَا يَلْحَقُهَا مِنْ حَيْثُ هِيَ أَحْكَامٌ.

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[1] **1.** Cf. Qurʾān, al-Raḥmān 55:4 ↗ (عَلَّمَهُ ٱلْبَيَانَ). Ibn Rushd's «معلّم البيان» is a possible verbal echo, not a quotation; deliberate allusion is not certain.

[2] **2.** Cf. Qurʾān, al-Anʿām 6:149 ↗ (فَلِلَّهِ ٱلْحُجَّةُ ٱلْبَٰلِغَةُ). The Qurʾān has the singular «الحجة البالغة»; Ibn Rushd writes the plural «الحجج البالغة». This is a possible verbal echo, not a quotation or proven citation.

[3] **3.** Interpretation. Book title and method. The 2015 textual introduction (pp.107–116) documents the historical titles Mukhtaṣar al-Mustaṣfā and al-Ḍarūrī, an Escorial unique manuscript, and a 552 AH authorial colophon. The French introduction pp.3–9 situates this among Ibn Rushd's early compendia; neither "abridgement" nor "necessary" reduces the project to simple summary.

Forms of knowledge and the sciences are of three kinds. There is knowledge whose end is simply the belief it produces in the soul: for example, knowledge that the world has come into being, the doctrine of the indivisible part, and similar matters. There is knowledge whose end is action. Some of this is universal (كلية), and its benefit for action is indirect, while another part is particular (جزئية) and its benefit for action is more direct. Particular knowledge includes knowledge of the rulings governing prayer and almsgiving, and similar particular obligatory and customary observances. Universal knowledge includes knowledge of the principles on which these branches are built—the Book, the Sunna, and consensus—and knowledge of the rulings derived from these principles in general, their divisions, and what attaches to them insofar as they are rulings (أحكام).

There is also knowledge that provides the rules and conditions through which the mind is guided towards correctness in these two forms of knowledge: for example, knowledge of indications (الدلائل) and their divisions, of the conditions under which they are indications and those under which they are not, and of the cases in which the passage from the observed to the unobserved is employed and those in which it is not. Let us call this a probe and a rule. Its relation to the mind is like that of the compass and straightedge to sense perception in matters where error cannot be ruled out.[4]

وَإِمَّا مَعْرِفَةٌ تُعْطِي الْقَوَانِينَ وَالْأَحْوَالَ الَّتِي بِهَا يَتَسَدَّدُ الذِّهْنُ نَحْوَ الصَّوَابِ فِي هَاتَيْنِ الْمَعْرِفَتَيْنِ، كَالْعِلْمِ بِالدَّلَائِلِ وَأَقْسَامِهَا، وَبِأَيِّ أَحْوَالٍ تَكُونُ دَلَائِلَ وَبِأَيِّهَا لَا، وَفِي أَيِّ الْمَوَاضِعِ تُسْتَعْمَلُ النُّقْلَةُ مِنَ الشَّاهِدِ إِلَى الْغَائِبِ وَفِي أَيِّهَا لَا. وَهَذِهِ فَلْنُسَمِّهَا سِبَارًا وَقَانُونًا، فَإِنَّ نِسْبَتَهَا إِلَى الذِّهْنِ كَنِسْبَةِ الْبَرْكَارِ وَالْمِسْطَرَةِ إِلَى الْحِسِّ فِي مَا لَا يُؤْمَنُ أَنْ يُغْلَطَ فِيهِ.

3. Why later jurists need an explicit method

R 3 · BA 3

It is clear that the more ramified the sciences become, and the more those investigating them must resort, in order to apprehend them, to matters to which their predecessors did not have to resort, the greater their need for rules that protect their minds during inquiry.

وَبَيِّنٌ أَنَّ كُلَّمَا كَانَتِ الْعُلُومُ أَكْثَرَ تَشَعُّبًا، وَالنَّاظِرُونَ فِيهَا مُضْطَرُّونَ فِي الْوُقُوفِ عَلَيْهَا إِلَى أُمُورٍ لَمْ يُضْطَرَّ إِلَيْهَا مَنْ تَقَدَّمَهُمْ، كَانَتِ الْحَاجَةُ فِيهَا إِلَى قَوَانِينَ تَحُوطُ أَذْهَانَهُمْ عِنْدَ النَّظَرِ فِيهَا أَكْثَرَ.

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4. Interpretation. Scientific architecture. Bou Akl 2015 intro pp.7–9 distinguishes theoretical, practical-universal, practical-particular and instrumental knowledge. The instrumental third book guides interpretation of already given discourse; it is comparable to logic but is not identical with demonstrative syllogistic.

It is also clear that the craft called jurisprudence (الفقه), both at present and in the past since the death of God's Messenger—God bless him and grant him peace—the dispersal of his Companions through the lands, and the divergence of what was transmitted from him—God bless him and grant him peace—exhibits these two conditions. For this reason the Companions—may God be pleased with them—had no need of this craft, just as the Bedouin Arabs had no need of rules to protect them in their speech or their metres.

وَبَيِّنٌ أَنَّ الصِّنَاعَةَ الْمَوْسُومَةَ بِصِنَاعَةِ الْفِقْهِ فِي هَذَا الزَّمَانِ وَفِي مَا سَلَفَ مِنْ لَدُنْ وَفَاةِ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ وَتَفَرُّقِ أَصْحَابِهِ عَلَى الْبِلَادِ وَاخْتِلَافِ النَّقْلِ عَنْهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ بِهَاتَيْنِ الْحَالَتَيْنِ، وَلِذَلِكَ لَمْ يَحْتَجِ الصَّحَابَةُ رَضِيَ اللَّهُ عَنْهُمْ إِلَى هَذِهِ الصِّنَاعَةِ كَمَا لَمْ تَحْتَجِ الْأَعْرَابُ إِلَى قَوَانِينَ تَحُوطُهُمْ فِي كَلَامِهِمْ وَلَا فِي أَوْزَانِهِمْ.

4. Implicit competence and induction from early legal opinions

R 4 · BA 4

What we have said makes the purpose of this craft intelligible and disposes of the objection that the people of the earliest generation did not investigate it. We do not, however, deny that they employed its capacity: you can discern this from their legal opinions—may God be pleased with them. Indeed, many of the universal notions (المعاني الكلية) laid down in this craft were established only by induction (الاستقراء) from their legal opinions, case by case.

وَبِهَذَا الَّذِي قُلْنَاهُ يَنْفَهِمُ غَرَضُ هَذِهِ الصِّنَاعَةِ، وَيَسْقُطُ الِاعْتِرَاضُ عَلَيْهَا بِأَنْ لَمْ يَكُنْ أَهْلُ الصَّدْرِ الْمُتَقَدِّمِ نَاظِرِينَ فِيهَا، وَإِنْ كُنَّا لَا نُنْكِرُ أَنَّهُمْ كَانُوا يَسْتَعْمِلُونَ قُوَّتَهَا، وَأَنْتَ تَتَبَيَّنُ ذَلِكَ مِنْ فَتَاوَاهُمْ رَضِيَ اللَّهُ عَنْهُمْ، بَلْ كَثِيرٌ مِنَ الْمَعَانِي الْكُلِّيَّةِ الْمَوْضُوعَةِ فِي هَذِهِ الصِّنَاعَةِ إِنَّمَا صُحِّحَتْ بِالِاسْتِقْرَاءِ مِنْ فَتَاوَاهُمْ فِي مَسْأَلَةٍ مَسْأَلَةٍ.

5. The four parts of the discipline

R 5 · BA 5

The parts of this craft, according to its division in this book, are four. The first part comprises inquiry into rulings (الأحكام); the second, into the sources of rulings; the third, into the proofs (الأدلة) employed to derive each ruling from its respective source, and how they are employed. The fourth comprises inquiry into the qualifications of the practitioner of independent judgement (المجتهد), who is the jurist.[5]

فَأَمَّا أَجْزَاءُ هَذِهِ الصِّنَاعَةِ بِحَسَبِ مَا قُسِّمَتْ إِلَيْهِ فِي هَذَا الْكِتَابِ فَأَرْبَعَةُ أَجْزَاءٍ: فَالْجُزْءُ الْأَوَّلُ يَتَضَمَّنُ النَّظَرَ فِي الْأَحْكَامِ، وَالثَّانِي فِي أُصُولِ الْأَحْكَامِ، وَالثَّالِثُ فِي الْأَدِلَّةِ الْمُسْتَعْمَلَةِ فِي اسْتِنْبَاطِ حُكْمٍ حُكْمٍ عَنْ أَصْلٍ أَصْلٍ، وَكَيْفَ اسْتِعْمَالُهَا. وَالرَّابِعُ يَتَضَمَّنُ النَّظَرَ فِي شُرُوطِ الْمُجْتَهِدِ وَهُوَ الْفَقِيهُ.

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5. Translation. ‘This book’ here refers to al-Mustaṣfā, as the editor explains on printed p. 36.

6. The proper subject of uṣūl and a comparative method

R 6 · BA 5–7

From our preceding account of the purpose of this craft and the genus of sciences to which it belongs, you know that its proper inquiry lies only in the third part of this book. The other parts belong to the kind of knowledge whose end is action. Hence they named this craft after some of what they made a part of it, calling it ‘the principles of jurisprudence’ (أصول الفقه). Inquiry conducted according to the requirements of the craft demands that this third part receive a separate treatment, since it differs in genus from those other parts, and that, concerning those, one of two courses alone be adopted. Either they should be posited according to the most widely accepted doctrines concerning them—for example, the views of the People of the Sunna.

وَأَنْتَ تَعْلَمُ مِمَّا تَقَدَّمَ مِنْ قَوْلِنَا فِي غَرَضِ هَذِهِ الصِّنَاعَةِ، وَفِي أَيِّ جِنْسٍ مِنْ أَجْنَاسِ الْعُلُومِ هِيَ دَاخِلَةٌ، أَنَّ النَّظَرَ الْخَاصَّ بِهَا إِنَّمَا هُوَ فِي الْجُزْءِ الثَّالِثِ مِنْ هَذَا الْكِتَابِ، لِأَنَّ الْأَجْزَاءَ الْأُخَرَ مِنْ جِنْسِ الْمَعْرِفَةِ الَّتِي غَايَتُهَا الْعَمَلُ، وَلِذَلِكَ لَقَّبُوا هَذِهِ الصِّنَاعَةَ بِاسْمِ بَعْضِ مَا جَعَلُوهُ جُزْءًا لَهَا، فَدَعَوْهَا بِأُصُولِ الْفِقْهِ. وَالنَّظَرُ الصِّنَاعِيُّ يَقْتَضِي أَنْ يُفْرَدَ الْقَوْلُ فِي هَذَا الْجُزْءِ الثَّالِثِ إِذْ هُوَ مُبَايِنٌ بِالْجِنْسِ لِتِلْكَ الْأَجْزَاءِ الْأُخَرِ، وَيُقْتَصَرَ مِنْ تِلْكَ عَلَى أَحَدِ أَمْرَيْنِ: إِمَّا أَنْ تُوضَعَ بِحَسَبِ أَشْهَرِ الْمَذَاهِبِ فِيهَا، وَهُوَ مَا يَرَاهُ مَثَلًا أَهْلُ السُّنَّةِ.

Or the disagreements concerning them should be outlined and enumerated, and the conditions and rules provided through which rulings are derived according to each opinion about those principles. This would explain, generally, how some of those opinions follow from others and how they correspond to the branches: one would explain, for example, how derivation proceeds according to the Ẓāhirīs (أهل الظاهر, commonly called Literalists) and according to those who affirm analogy (القياس)—in general, according to each of the widely accepted opinions. This course is more useful in this craft. Through such inquiry this kind of knowledge would possess a craft that is complete, universal, and sufficient for the inquiry of all who practise independent judgement (الاجتهاد).

وَإِمَّا أَنْ ترسم وَيُعَدَّدَ الِاخْتِلَافُ الْوَاقِعُ فِيهَا، وَتُعْطَى الْأَحْوَالُ وَالْقَوَانِينُ الَّتِي بِهَا تُسْتَنْبَطُ الْأَحْكَامُ بِحَسَبِ رَأْيٍ رَأْيٍ فِي تِلْكَ الْأُصُولِ. وَبِالْجُمْلَةِ كَيْفَ لُزُومُ بَعْضِ تِلْكَ الْآرَاءِ فِيهَا عَنْ بَعْضٍ، وَمُنَاسَبَتُهَا لِلْفُرُوعِ، حَتَّى يُقَالَ مَثَلًا كَيْفَ يَكُونُ الِاسْتِنْبَاطُ عَلَى رَأْيِ الظَّاهِرِيَّةِ وَعَلَى رَأْيِ الْقَائِلِينَ بِالْقِيَاسِ. وَبِالْجُمْلَةِ بِحَسَبِ رَأْيٍ رَأْيٍ مِنَ الْآرَاءِ الْمَشْهُورَةِ. وَهَذَا الْوَجْهُ هُوَ الْأَنْفَعُ فِي هَذِهِ الصِّنَاعَةِ، وَبِهَذَا النَّظَرِ تَكُونُ لِهَذَا الْجِنْسِ مِنَ الْمَعَارِفِ صِنَاعَةٌ تَامَّةٌ وَكُلِّيَّةٌ وَكَافِيَةٌ فِي نَظَرِ الْجَمِيعِ مِنْ أَهْلِ الِاجْتِهَادِ.

7. Retaining al-Ghazālī’s arrangement

R 7 · BA 8

We have nevertheless decided to follow the customary practice of those who discuss this craft and, in dividing it, to seek the arrangement found in this book, since it is the best considered and the most likely to conform to the requirements of the craft. We shall, however, indicate something of that purpose.[6]

لَكِنْ رَأَيْنَا أَنْ نَجْرِيَ فِي ذَلِكَ عَلَى عَادَةِ الْمُتَكَلِّمِينَ فِي هَذِهِ الصِّنَاعَةِ، وَنَتَحَرَّى فِي تَقْسِيمِهَا التَّرْتِيبَ الْوَاقِعَ فِي هَذَا الْكِتَابِ، إِذْ هُوَ أَحْسَنُهَا نَظَرًا وَأَحْرَى أَنْ يَكُونَ صِنَاعِيًّا، غَيْرَ أنا سَنُشِيرُ إِلَى شَيْءٍ مِنْ ذَلِكَ الْغَرَضِ.

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[6] Translation. ‘This book’ refers to al-Mustaṣfā; printed p. 37, editor's note. المتكلمين here denotes those discussing the discipline, rather than necessarily theologians as a group.

8. The introductory questions a learner needs

R 8 · BA 9

Our preceding account makes clear this book's purpose, its relation to the other sciences, its rank, what its name signifies, and its divisions. These are the general matters that it is useful to present to the learner when beginning the craft. Let us begin where he began.

وَمِمَّا تَقَدَّمَ مِنْ قَوْلِنَا يَتَبَيَّنُ غَرَضُ هَذَا الْكِتَابِ، وَنِسْبَتُهُ إِلَى سَائِرِ الْعُلُومِ، وَمَرْتَبَتُهُ، وَمَا يَدُلُّ عَلَيْهِ اسْمُهُ، وَأَقْسَامُهُ. وَهِيَ الْجُمَلُ النَّافِعُ تَقْدِيمُهَا لِلْمُتَعَلِّمِ عِنْدَ شُرُوعِهِ فِي الصِّنَاعَةِ. وَلْنَبْدَأْ مِنْ حَيْثُ بَدَأَ.

9. Why the logical prolegomenon is omitted

R 9 · BA 10

Before this, Abū Ḥāmid placed a logical introduction. He stated that he was led to discuss it by the inquiry of those treating this craft into certain logical matters, such as their inquiry into the definition of knowledge and other things. For our part, let us leave each thing to its proper place. Anyone who attempts to learn more than one thing at a time will be unable to learn even one of them.

وَأَبُو حَامِدٍ قَدَّمَ قَبْلَ ذَلِكَ مُقَدِّمَةً مَنْطِقِيَّةً زَعَمَ أَنَّهُ أَدَّاهُ إِلَى الْقَوْلِ فِي ذَلِكَ نَظَرُ الْمُتَكَلِّمِينَ فِي هَذِهِ الصِّنَاعَةِ فِي أُمُورٍ مَا مَنْطِقِيَّةٍ، كَنَظَرِهِمْ فِي حَدِّ الْعِلْمِ وَغَيْرِ ذَلِكَ. وَنَحْنُ فَلْنَتْرُكْ كُلَّ شَيْءٍ إِلَى مَوْضِعِهِ، فَإِنَّ مَنْ رَامَ أَنْ يَتَعَلَّمَ أَشْيَاءَ أَكْثَرَ مِنْ وَاحِدٍ فِي وَقْتٍ وَاحِدٍ لَمْ يُمْكِنْهُ أَنْ يَتَعَلَّمَ وَلَا وَاحِدًا مِنْهَا.

Part I

Discussion of the First Part of This Book

الْقَوْلُ فِي الْجُزْءِ الْأَوَّلِ مِنْ هَذَا الْكِتَابِ

10. Definition, divisions, elements, and manifestation of rulings

R 10 · BA 11

This first part is divided into four parts: inquiry into the definition of a ruling (الحكم), its divisions, its constituent elements, and what manifests it.

وَهَذَا الْجُزْءُ الْأَوَّلُ يَنْقَسِمُ إِلَى أَرْبَعَةِ أَجْزَاءٍ: وَهِيَ النَّظَرُ فِي حَدِّ الْحُكْمِ، وَفِي أَقْسَامِهِ، وَفِي أَرْكَانِهِ، وَفِي مُظْهِرِهِ.

First Section

الْقِسْمُ الْأَوَّلُ

11. Revealed judgement and intrinsic or relational goodness

R 11 · BA 12–14

According to the People of the Sunna, a ruling (الحكم) is defined as the address of the Law (خطاب الشرع) when it concerns the acts of legally responsible persons by requiring an act or its omission. Where this address has not occurred, no characterization as good or bad attaches to acts; on this account, goodness and badness are not intrinsic attributes of acts.

أَمَّا حَدُّ الْحُكْمِ عِنْدَ أَهْلِ السُّنَّةِ فَهُوَ عِبَارَةٌ عَنْ خِطَابِ الشَّرْعِ إِذَا تَعَلَّقَ بِأَفْعَالِ الْمُكَلَّفِينَ بِطَلَبٍ أَوْ تَرْكٍ. فَإِذَا لَمْ يَرِدْ هَذَا الْخِطَابُ لَمْ تَتَعَلَّقْ بِالْأَفْعَالِ صِفَةُ تَحْسِينٍ أَوْ تَقْبِيحٍ، فَيَكُونُ الْحُسْنُ وَالْقُبْحُ عَلَى هَذَا لَيْسَ وَصْفًا ذَاتِيًّا لِلْأَفْعَالِ.

The Muʿtazilites held that goodness and badness are intrinsic attributes of acts. Some are apprehended through rational necessity, as with lying and thanking a benefactor; others, with the Law's assistance, as with ritual purification and prayer, because of, for example, the utterance that restrains indecency and the cleanliness they involve. The benefit of knowing this disagreement within this craft becomes apparent when investigating analogy from a suitable, plausible ground (القياس المناسب والمخيل), with all its kinds, and when investigating whether those exercising independent judgement are correct or mistaken.

وَذَهَبَتِ الْمُعْتَزِلَةُ إِلَى أَنَّ الْحُسْنَ وَالْقُبْحَ وَصْفٌ ذَاتِيٌّ لِلْأَفْعَالِ، فَبَعْضُ ذَلِكَ مُدْرَكٌ بِضَرُورَةِ الْعَقْلِ كَالْكَذِبِ وَشُكْرِ الْمُنْعِمِ، وَبَعْضُهُ بِانْضِمَامِ الشَّرْعِ كَالطَّهَارَةِ وَالصَّلَاةِ لِمَا فِيهِمَا مَثَلًا مِنَ اللَّفْظِ الْمَانِعِ مِنَ الْفَحْشَاءِ وَمِنَ النَّظَافَةِ. وَفَائِدَةُ مَعْرِفَةِ هَذَا الِاخْتِلَافِ فِي هَذِهِ الصِّنَاعَةِ تَتَصَوَّرُ عِنْدَ النَّظَرِ فِي الْقِيَاسِ الْمُنَاسِبِ وَالْمُخَيِّلِ وَجَمِيعِ أَنْوَاعِهِ، وَعِنْدَ النَّظَرِ فِي تَصْوِيبِ الْمُجْتَهِدِينَ وَتَخْطِئَتِهِمْ.

The argument of the People of the Sunna is that ‘good’ and ‘bad’ have several meanings in the usage of speakers. The first and most familiar is what accords with or opposes the purpose of the person judging it good: one person, for instance, may find a dark complexion good and another find it bad. This is a relational matter, unlike the blackness and whiteness belonging to things in themselves. The second is what the Law has declared good or bad. The third meaning of ‘good’ is what a person is permitted to do. All these are relational, not intrinsic, attributes. This means that goodness and badness have no existence ‘outside the concrete entity.’[7]

أَمَّا أَهْلُ السُّنَّةِ فَحُجَّتُهُمْ أَنَّ الْحُسْنَ وَالْقُبْحَ يُطْلَقُ فِي عُرْفِ الْمُتَكَلِّمِينَ عَلَى مَعَانٍ: أَوَّلُهَا وَأَشْهَرُهَا مَا يُوَافِقُ غَرَضَ الْمُسْتَحْسِنِ أَوْ يُخَالِفُهُ، حَتَّى يَسْتَحْسِنَ سُمْرَةَ اللَّوْنِ مَثَلًا وَاحِدٌ وَيَسْتَقْبِحَهَا آخَرُ. وَهَذَا أَمْرٌ إِضَافِيٌّ لَا كَالسَّوَادِ وَالْبَيَاضِ الْمَوْجُودَيْنِ لِلْأَشْيَاءِ بِذَاتِهَا. وَالثَّانِي مَا حَسَّنَهُ الشَّرْعُ أَوْ قَبَّحَهُ. وَالثَّالِثُ مِنْ مَعَانِي الْحُسْنِ مَا كَانَ لِلْإِنْسَانِ مُبَاحًا فِعْلُهُ. وَكُلُّ هَذِهِ أَوْصَافٌ إِضَافِيَّةٌ لَا ذَاتِيَّةٌ. وَمَعْنَى ذَلِكَ أَنْ لَيْسَ لِلْحُسْنِ وَالْقُبْحِ وُجُودٌ خَارِجَ الْعَيْنِ.

12. Why general acceptance does not establish rational necessity

R 12 · BA 15

The Muʿtazilites, for their part, argued that goodness and badness are intrinsic attributes of things from the agreement of rational persons in affirming them without qualification by a relation—for example, the goodness of truthfulness and the badness of lying; in general, from these propositions' being widely accepted and agreed upon. It is evident that intelligible matters may also happen to be widely accepted, but that the converse does not hold.

وَأَمَّا الْمُعْتَزِلَةُ فَاسْتَدَلُّوا عَلَى أَنَّ الْحُسْنَ وَالْقُبْحَ وَصْفٌ ذَاتِيٌّ لِلْأَشْيَاءِ باتفاق العقلاء على القول بهما مِنْ غَيْرِ إِضَافَةٍ كَحُسْنِ الصِّدْقِ وَقُبْحِ الْكَذِبِ، وَبِالْجُمْلَةِ مِنْ حَيْثُ هَذِهِ الْقَضَايَا مَشْهُورَةٌ وَمُتَّفَقٌ عَلَيْهَا. وَظَاهِرٌ أَنَّ الْأُمُورَ الْمَعْقُولَةَ قَدْ يَلْحَقُهَا أَنْ تَكُونَ مَشْهُورَةً، وَأَنَّ ذَلِكَ غَيْرُ مُنْعَكِسٍ.

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7. Translation. المناسب والمخيل concern the suitability and apparently purposive rationale of a legal analogy; ‘imaginal’ would obscure the juridical use here. The following argument distinguishes intrinsic from relational evaluation.

13. The obligation to inquire and the challenge to revealed authority

R 13 · BA 16–17

Discussion of this question does not belong to the science with which we are engaged. Neither of these two arguments seems sufficient to settle it. The Muʿtazilites argued that obligation in certain matters—thanking a benefactor and the like—is apprehended by reason. Restricting its apprehension to the Law would leave the messengers unable to answer when they call people to inquiry (النظر). Unless we know that inquiry is obligatory, we shall not inquire; unless we inquire, we shall not establish the Lawgiver's claim concerning that to which he calls us; and unless we establish his claim, there is no way to believe what he calls us to. Whether what we are called to is true in itself or not, on this account there is no way for us to attain knowledge of it.

وَالْقَوْلُ فِي هَذِهِ الْمَسْأَلَةِ لَيْسَ مِنْ هَذَا الْعِلْمِ الَّذِي نَحْنُ بِسَبِيلِهِ. وَيُشْبِهُ أَلَّا يَكُونَ فِي وَاحِدٍ مِنْ هَذَيْنِ الْقَوْلَيْنِ كِفَايَةٌ فِي الْوُقُوفِ عَلَى هَذِهِ الْمَسْأَلَةِ. وَقَدِ احْتَجَّتِ الْمُعْتَزِلَةُ عَلَى أَنَّ مُدْرَكَ الْوُجُوبِ فِي بَعْضِ الْأُمُورِ بِالْعَقْلِ كَشُكْرِ الْمُنْعِمِ وَغَيْرِ ذَلِكَ، فَإِنَّ حَصْرَهَا فِي الشَّرْعِ يُفْضِي إِلَى إِفْحَامِ الرُّسُلِ عِنْدَ دُعَائِهِمْ إِلَى النَّظَرِ، لِأَنَّا مَا لَمْ نَعْلَمْ وُجُوبَ النَّظَرِ لَمْ نَنْظُرْ، وَمَا لَمْ نَنْظُرْ لَمْ نَتَحَقَّقْ دَعْوَى الشَّارِعِ فِيمَا دَعَا إِلَيْهِ، وَمَا لَمْ نَتَحَقَّقْ دَعْوَاهُ فَلَا سَبِيلَ إِلَى الْإِيمَانِ بِمَا دَعَا إِلَيْهِ، سَوَاءٌ كَانَ الْمَدْعُوُّ إِلَيْهِ، فِي نَفْسِهِ حَقًّا أَوْ لَمْ يَكُنْ، لَا سَبِيلَ لَنَا عَلَى هَذَا الْوَجْهِ إِلَى حُصُولِ الْعِلْمِ بِهِ.

14. An objection from infinite regress

R 14 · BA 18

The theologians pressed a difficulty upon the Muʿtazilites concerning their claim that the obligation to inquire is apprehended rationally. If this obligation is rationally apprehended, that must be either necessarily or through acquisition. If necessarily, no one would be heedless of the knowledge of God. If acquired by inquiry, the question turns back upon them: how is the obligation to undertake the inquiry leading to the obligation to inquire into the Law's claim apprehended? And so on without end.

وَقَدْ أَلْزَمَ الْمُتَكَلِّمُونَ الْمُعْتَزِلَةَ فِي كَوْنِ مُدْرَكِ وُجُوبِ النَّظَرِ عَقْلًا شَكًّا مَا، وَهُوَ أَنَّ وُجُوبَ النَّظَرِ إِنْ كَانَ مُدْرَكًا عَقْلًا فَلَا يَخْلُو أَنْ يَكُونَ ذَلِكَ ضَرُورَةً أَوِ اكْتِسَابًا، فَإِنْ كَانَ ضَرُورَةً لَمْ يَغْفُلْ أَحَدٌ عَنْ عِلْمِ اللَّهِ، وَإِنْ كَانَ مُكْتَسَبًا بِنَظَرٍ انْعَكَسَ عَلَيْهِمُ الْقَوْلُ فِي مُدْرَكِ وُجُوبِ النَّظَرِ الْمُؤَدِّي إِلَى وُجُوبِ النَّظَرِ فِي دَعْوَى الشَّرْعِ، وَذَلِكَ إِلَى غَيْرِ نِهَايَةٍ.

15. Miracles, assent, and necessary knowledge

R 15 · BA 19

What should be said here, in my judgement, is that assent (التصديق) to the Lawgiver's claim when a miracle appears in accordance with it belongs to the kind of necessary knowledge. Assent arises necessarily from witnessing this, or through the miracle's being established by recurrent transmission (تواتر). The question whether inquiry is obligatory or not arises only where knowledge is gained through inquiry and inference (النظر والاستدلال). Straining after any further account here merely confuses beliefs or causes needless trouble. If each person called to the Law were to take upon himself such difficulties when considering what the Law calls him to, the faith of many people would never arise, or would arise only rarely.

وَالَّذِي يَنْبَغِي عِنْدِي أَنْ يُقَالَ فِي هَذَا الْمَوْضِعِ فَهُوَ أَنَّ التَّصْدِيقَ بِدَعْوَى الشَّارِعِ عِنْدَ ظُهُورِ الْمُعْجِزَةِ وَفْقَ دَعْوَاهُ هُوَ مِنْ جِنْسِ الْمَعَارِفِ الضَّرُورِيَّةِ، وَأَنَّ التَّصْدِيقَ يَقَعُ بِمُشَاهَدَةِ ذَلِكَ اضْطِرَارًا أَوْ بِوُجُودِهَا تَوَاتُرًا، وَإِنَّمَا يُتَصَوَّرُ وُجُوبُ النَّظَرِ أَوْ لَا وُجُوبُهُ فِي مَعْرِفَتِهِ بِنَظَرٍ وَاسْتِدْلَالٍ. وَتَكَلُّفُ مَا سِوَى هَذَا مِنَ الْقَوْلِ فِي هَذَا الْمَوْضِعِ تَشْوِيشٌ لِلْعَقَائِدِ أَوْ عَنَاءٌ. وَلَوْ أَنَّ وَاحِدًا وَاحِدًا مِنَ الْمَدْعُوِّينَ لِلشَّرْعِ تَكَلَّفَ مِثْلَ هَذِهِ الشُّكُوكِ عِنْدَ النَّظَرِ فِيمَا دَعَا إِلَيْهِ الشَّرْعُ لَكَانَ إِيمَانُ كَثِيرٍ مِنَ النَّاسِ مِمَّا لَا يَقَعُ، وَلَوْ وَقَعَ لَكَانَ فِي النَّادِرِ.

In general, God's calling people to faith in the Law by such paths would, for most people, amount to imposing what is beyond their capacity. That knowledge of this is necessary does not entail that no one can fail to acknowledge it. Just as being necessary is not a condition of what is agreed upon, so being agreed upon is not a condition of what is necessary. None of this belongs to the present science.[8]

وَبِالْجُمْلَةِ فَكَأَنْ يَكُونَ دُعَاءُ اللَّهِ النَّاسَ إِلَى الْإِيمَانِ بِالشَّرْعِ بِمِثْلِ هَذِهِ الطُّرُقِ فِي حَقِّ الْأَكْثَرِ مِنْ بَابِ تَكْلِيفِ مَا لَا يُطَاقُ. وَلَيْسَ يَلْزَمُ مِنْ كَوْنِ الْمَعْرِفَةِ بِذَلِكَ ضَرُورِيَّةً أَلَّا يَنْفَكَّ عَنِ الْإِقْرَارِ بِهَا أَحَدٌ، فَإِنَّهُ كَمَا أَنَّهُ لَيْسَ مِنْ شَرْطِ الْمُتَّفَقِ عَلَيْهِ أَنْ يَكُونَ ضَرُورِيًّا كَذَلِكَ لَيْسَ مِنْ شَرْطِ الضَّرُورِيِّ أَنْ يَكُونَ مُتَّفَقًا عَلَيْهِ. وَهَذَا كُلُّهُ لَيْسَ مِنْ هَذَا الْعِلْمِ.

16. The status of acts before revelation

R 16 · BA 20

Those Muʿtazilites who held that acts are permissible before the advent of the Law intended by this only acts concerning which reason judges neither goodness nor badness. Those among them who spoke of suspension of judgement seem to me to have had in view acts whose goodness or badness is apprehended only when the Law is joined to reason, as previously stated among their opinions. As for those who say that acts are prohibited before the advent of the Law, this assertion has no meaning and is manifestly untenable in itself.

أَمَّا مَنْ ذَهَبَ مِنَ الْمُعْتَزِلَةِ إِلَى أَنَّ الْأَفْعَالَ قَبْلَ وُرُودِ الشَّرْعِ عَلَى الْإِبَاحَةِ فَإِنَّمَا أَرَادُوا بِذَلِكَ مَا لَا يَقْضِي الْعَقْلُ فِيهِ بِحُسْنٍ وَلَا قُبْحٍ. وَمَنْ قَالَ مِنْهُمْ إِنَّهَا عَلَى الْوَقْفِ فَأُرَاهُمْ رَأَوْا ذَلِكَ فِيمَا لَا يُدْرَكُ مِنَ الْأَفْعَالِ الْحُسْنُ وَالْقُبْحُ فِيهِ إِلَّا بِانْضِمَامِ الشَّرْعِ إِلَى الْعَقْلِ، كَمَا تَقَدَّمَ مِنْ آرَائِهِمْ. وَأَمَّا مَنْ قَالَ مِنَ النَّاسِ إِنَّهَا قَبْلَ وُرُودِ الشَّرْعِ عَلَى الْحَظْرِ فَقَوْلٌ لَا مَعْنَى لَهُ، وَهُوَ بَيِّنُ السُّقُوطِ بِنَفْسِهِ.

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[8] **8.** Translation. ضروري here is ‘necessary’ in the epistemic sense, not simply ‘essential’ or ‘important’; the passage distinguishes necessity from universal acknowledgement.

Discussion of the Second Section of the First Part

الْقَوْلُ فِي الْقِسْمِ الثَّانِي مِنَ الْجُزْءِ الْأَوَّلِ

17. The five rulings and the distinction between farḍ and wājib

R 17 · BA 21–24

This section comprises inquiry into the divisions of rulings (الأحكام), their definitions, and questions attaching to them. We say: the ruling whose description was given above is divided into a demand to act, a demand to omit, or a choice between the two; the last is called permissible (مباح). The demand to act is divided into obligation and recommendation; omission, into prohibition and disapproval.

وَهُوَ يَتَضَمَّنُ النَّظَرَ فِي أَقْسَامِ الْأَحْكَامِ وَحُدُودِهَا وَمَسَائِلَ تَلْحَقُهَا فَنَقُولُ: إِنَّ الْحُكْمَ، وَهُوَ الَّذِي تَقَدَّمَ رَسْمُهُ، يَنْقَسِمُ إِلَى طَلَبٍ وَتَرْكٍ أَوْ تَخْيِيرٍ فِيهِمَا وَهُوَ الْمُسَمَّى مُبَاحًا. وَالطَّلَبُ يَنْقَسِمُ إِلَى وَاجِبٍ وَنَدْبٍ، وَالتَّرْكُ يَنْقَسِمُ إِلَى مَحْظُورٍ وَمَكْرُوهٍ.

The obligatory (الواجب) is defined as that whose performance the address of the Law prefers, with a threat of punishment for omitting it insofar as this constitutes its unqualified omission. We added ‘with a threat of punishment for omitting it’ because, according to the People of the Sunna, obligation cannot be conceived apart from harm or benefit. We further added ‘insofar as this constitutes its unqualified omission’ as a precaution concerning an obligation that permits a choice.

وَحَدُّ الْوَاجِبِ أَنَّهُ مَا وَرَدَ خِطَابُ الشَّرْعِ بِتَرْجِيحِ فِعْلِهِ مَعَ تَوَعُّدٍ بِالْعِقَابِ عَلَى تَرْكِهِ مِنْ حَيْثُ هُوَ تَرْكٌ لَهُ بِإِطْلَاقٍ، وَإِنَّمَا زِدْنَا فِي الْحَدِّ قَوْلَنَا: مَعَ تَوَعُّدٍ بِالْعِقَابِ عَلَى تَرْكِهِ، لِأَنَّ الْوَاجِبَ عَلَى مَذْهَبِ أَهْلِ السُّنَّةِ لَا يُتَصَوَّرُ دُونَ الضَّرَرِ أَوِ النَّفْعِ، وَزِيَادَتُنَا فِيهِ أَيْضًا: مِنْ حَيْثُ هُوَ تَرْكٌ لَهُ بِإِطْلَاقٍ، تَحَفُّظًا مِنَ الْوَاجِبِ الْمُخَيَّرِ.

The threat of punishment may be established with certainty or by probable judgement (ظنا). Abū Ḥanīfa's followers reserve the name farḍ for the first and wājib for the second. There is no dispute over names once their meanings are understood.

وَالتَّوَعُّدُ بِالْعِقَابِ رُبَّمَا وَرَدَ قَطْعًا وَرُبَّمَا وَرَدَ ظَنًّا. وَأَصْحَابُ أَبِي حَنِيفَةَ يَخُصُّونَ الْأَوَّلَ بِاسْمِ الْفَرْضِ وَالثَّانِيَ بِاسْمِ الْوَاجِبِ، وَلَا مُشَاحَّةَ فِي الْأَسْمَاءِ إِذَا فُهِمَتِ الْمَعَانِي.

The recommended (الندب) is defined as that whose performance is preferred without a threat of punishment for its omission. From the definition of the obligatory we apprehend that of the prohibited, its opposite; likewise, from that of the recommended we apprehend that of the disapproved. The permissible is that concerning which the Law indicates equality between performance and omission. This occurs either through an address allowing a choice between them, through removal of blame from both, or through a rational indication that original freedom from liability (البراءة الأصلية) remains because there is no legal proof attaching a ruling to it, as will be explained later.

وَحَدُّ النَّدْبِ أَنَّهُ الْمُرَجَّحُ فِعْلُهُ مِنْ غَيْرِ تَوَعُّدٍ بِالْعِقَابِ عَلَى تَرْكِهِ. وَمِنْ حَدِّ الْوَاجِبِ نَقِفُ عَلَى حَدِّ الْمَحْظُورِ لِأَنَّهُ مُقَابِلُهُ، وَكَذَلِكَ مِنْ حَدِّ النَّدْبِ نَقِفُ عَلَى حَدِّ الْمَكْرُوهِ. وَحَدُّ الْمُبَاحِ مَا دَلَّ الشَّرْعُ عَلَى التَّسْوِيَةِ بَيْنَ فِعْلِهِ وَتَرْكِهِ، وَذَلِكَ إِمَّا أَنْ يَرِدَ الْخِطَابُ بِالتَّخْيِيرِ فِيهِمَا، أَوْ بِرَفْعِ الْحَرَجِ عَنْهُمَا، أَوْ يَدُلَّ دَلِيلُ الْعَقْلِ أَنَّهُ عَلَى الْبَرَاءَةِ الْأَصْلِيَّةِ بِعَدَمِ الدَّلِيلِ الشَّرْعِيِّ عَلَى تَعَلُّقِ حُكْمٍ بِهِ، عَلَى مَا سَيَأْتِي بَعْدُ.

Chapter

فَصْلٌ

18. Obligations with alternatives and extended times

R 18 · BA 25

The obligatory is divided into what is determinate and what allows a choice among a limited set of alternatives, either concerning the act or concerning the time. They call an obligation whose act is not fixed, but admits a limited set of alternatives, an obligation allowing a choice (الواجب المخير); one whose time is not fixed, an obligation with an extended time (الواجب الموسع).

وَالْوَاجِبُ يَنْقَسِمُ إِلَى مُعَيَّنٍ وَإِلَى مُخَيَّرٍ بَيْنَ أَقْسَامٍ مَحْدُودَةٍ، وَذَلِكَ إِمَّا فِي الْفِعْلِ وَإِمَّا فِي الزَّمَانِ. وَيُسَمُّونَ الْغَيْرَ مُعَيَّنِ الْفِعْلِ بَيْنَ أَقْسَامٍ مَحْدُودَةٍ الْوَاجِبَ الْمُخَيَّرَ، وَالْغَيْرَ مُعَيَّنِ الزَّمَانِ الْوَاجِبَ الْمُوَسَّعَ.

19. Alternative duties, welfare, and divine foreknowledge

R 19 · BA 26

The Muʿtazilites denied both the rational possibility of such an obligation and its occurrence in the Law. They said: if the three alternatives in expiation are equal in their character with respect to the servant's welfare, all ought to be made obligatory because they are equally conducive to it. This is based on their doctrine of welfare and the best possible welfare.

وَقَدْ أَنْكَرَتِ الْمُعْتَزِلَةُ جَوَازَ مِثْلِ هَذَا الْوَاجِبِ عَقْلًا وَوُقُوعَهُ شَرْعًا، وَقَالُوا إِنْ كَانَتِ الْخِصَالُ الثَّلَاثُ فِي الْكَفَّارَةِ مُسْتَوِيَةً فِي الصِّفَةِ بِالْإِضَافَةِ إِلَى صَلَاحِ الْعَبْدِ، فَيَنْبَغِي أَنْ يُوجِبَ الْجَمِيعَ لِتَسَاوِيهَا فِي صَلَاحِ الْعَبْدِ، وَهَذَا مَبْنِيٌّ عَلَى رَأْيِهِمْ فِي الصَّلَاحِ وَالْأَصْلَحِ.

Yet, even if this principle were granted, the contrary of what they posit would follow: if each alternative equals the others in bringing about welfare, employing all of them is pointless, as is selecting one particular alternative; and they do not allow such purposelessness in God. They appear not to have guarded their own principles in this question. They also argued that God's knowledge concerns the alternative the servant will perform, which is therefore necessarily determinate in itself; no choice is conceivable in such a case.

وَأَيْضًا فَلَوْ سُلِّمَ لَهُمْ هَذِهِ الْقَاعِدَةُ الزمهم نَقِيضُ مَا وَضَعُوا، وَهُوَ أَنَّهُ إِذَا كَانَ كُلُّ وَاحِدٍ منها مُسَاوِيًا لِصَاحِبِهِ فِي وُقُوعِ الصَّلَاحِ بِهِ فَاسْتِعْمَالُ جَمِيعِهَا عَبَثٌ، وَكَذَلِكَ اسْتِعْمَالُ وَاحِدَةٍ مِنْهَا عَلَى التَّعْيِينِ، وَهُمْ لَا يُجَوِّزُونَ مِثْلَ هَذَا عَلَى اللَّهِ، وَكَأَنَّهُمْ لَمْ يَتَحَفَّظُوا بِأُصُولِهِمْ فِي هَذِهِ الْمَسْأَلَةِ، وَاحْتَجُّوا أَيْضًا بِأَنَّ عِلْمَ اللَّهِ مُتَعَلِّقٌ بِالَّذِي يَأْتِي الْعَبْدُ مِنْهَا فَهُوَ مُتَعَيِّنٌ ضَرُورَةً فِي نَفْسِهِ، وَلَا يُتَصَوَّرُ فِي مِثْلِ هَذَا تَخْيِيرٌ.

20. Legal examples suffice without resolving the metaphysics

R 20 · BA 27

Discussion of this question does not belong to the science with which we are engaged. Here it is enough to say that such a thing does occur in the Law, as with the alternatives in expiation and the established consensus that most prayers have extended performance periods. The Muʿtazilites are bound to encounter the same difficulty they raised here in the case of the permissible. In general, this objection attaches to the possible insofar as it is possible.

وَالْكَلَامُ فِي هَذِهِ الْمَسْأَلَةِ لَيْسَ مِنْ هَذَا الْعِلْمِ الَّذِي نَحْنُ بِسَبِيلِهِ، بَلْ يَكْفِي مِنْ ذَلِكَ هَهُنَا أَنْ نَقُولَ: إِنَّ وُقُوعَ مِثْلِ هَذَا شَرْعًا مَوْجُودٌ كَخِصَالِ الْكَفَّارَةِ، وَانْعِقَادِ الْإِجْمَاعِ عَلَى اتِّسَاعِ أَوْقَاتِ أَكْثَرِ الصَّلَوَاتِ. وَالَّذِي أَنْكَرَتِ الْمُعْتَزِلَةُ يَلْزَمُهُمْ مِثْلُ ذَلِكَ فِي الْمُبَاحِ، وَبِالْجُمْلَةِ يَلْحَقُ هَذَا الِاعْتِرَاضُ الْمُمْكِنَ بِمَا هُوَ مُمْكِنٌ.

21. When does an extended-time obligation become binding?

R 21 · BA 28–29

Some jurists rejected calling such a thing obligatory. They said that, with respect to time, it is characterized by obligation only at the end of the period, since punishment attaches to failing to perform the prayer then. At the beginning of the period, however, they call it recommended, since omitting the prayer at that point incurs no penalty. A similar objection applies to an obligation offering a choice: no individual alternative can be considered obligatory, as the final moment of the prayer period can, unless the other two alternatives become unavailable; only then does the obligation of the third become conceivable. What should be said of such a case is that it resembles obligation in one respect and recommendation in another. Its resemblance to obligation lies in the discharge of the duty by praying at the beginning of the period; its resemblance to recommendation is that mentioned in the objection.

وَقَدْ دَفَعَ بَعْضُ الْفُقَهَاءِ تَسْمِيَةَ مِثْلِ هَذَا وَاجِبًا، وَقَالُوا إِنَّمَا يَتَّصِفُ بِالْوُجُوبِ فِي الزَّمَانِ آخِرَ الْوَقْتِ، إِذْ فِيهِ يَقَعُ الْعِقَابُ عَلَى تَرْكِ إِيقَاعِ الصَّلَاةِ فِيهِ. وَأَمَّا أَوَّلُ الْوَقْتِ فَهُوَ نَدْبٌ إِذْ لَيْسَ يَلْحَقُ عِقَابٌ عَنْ تَرْكِ إِيقَاعِ الصَّلَاةِ فِيهِ. وَمِثْلُ هَذَا الِاعْتِرَاضِ يَلْحَقُ الْوَاجِبَ الْمُخَيَّرَ، إِلَّا أَنَّهُ لَا يُتَصَوَّرُ مِنْهَا وُجُوبُ وَاحِدٍ كَمَا تُصُوِّرَ فِي آخِرِ الْوَقْتِ إِلَّا أَنْ تُعْدَمَ الْخَصْلَتَانِ فَحِينَئِذٍ يُتَصَوَّرُ وُجُوبُ الثَّالِثَةِ. وَالَّذِي يَنْبَغِي أَنْ يُقَالَ فِي مِثْلِ هَذَا أَنَّهُ يُشْبِهُ الْوُجُوبَ مِنْ جِهَةٍ، وَالنَّدْبَ مِنْ أُخْرَى. أَمَّا شَبَهُهُ لِلْوُجُوبِ فَلِأَنَّهُ يَرْتَفِعُ الْفَرْضُ بِالصَّلَاةِ فِي أَوَّلِ الْوَقْتِ، وَأَمَّا شَبَهُهُ بِالنَّدْبِ فَمَا ذُكِرَ فِي الِاعْتِرَاضِ.

22. Intention distinguishes postponement from abandonment

R 22 · BA 29

This dispute is verbal; hence it was called an obligation with an extended time. It also differs from recommendation in that its omission is allowed only on condition of resolving to perform it while mindful of it, since resolving to omit it altogether is forbidden.

وَهَذِهِ الْمُنَازَعَةُ لَفْظِيَّةٌ، وَلِذَلِكَ سُمِّيَ الْوَاجِبَ الْمُوَسَّعَ، وَهُوَ أَيْضًا يُفَارِقُ النَّدْبَ مِنْ جِهَةِ أَنَّ تَرْكَهُ إِنَّمَا يَكُونُ بِشَرْطِ الْعَزْمِ عَلَى إِتْيَانِهِ مَعَ الذِّكْرِ، إِذْ كَانَ اعْتِقَادُ التَّرْكِ مُطْلَقًا حَرَامًا.

Chapter

فَصْلٌ

23. Necessary means and the minimum sufficient performance

R 23 · BA 30–31

They likewise disagreed whether that without which an obligation cannot be fulfilled should itself be called obligatory. The proper account is that this is divided into what the servant has no choice in producing—for example, the capacity to walk—which is not characterized as obligatory but is a condition of imposing an obligation; and what the servant can produce by choice, which should be characterized as obligatory, such as the ritual purity required for prayer. The obligation of such a thing seems to be for the sake of something else, not for its own sake. Another division of the obligatory therefore emerges: some things are obligatory for the sake of something else, and some are obligatory in themselves.

وَكَذَلِكَ اخْتَلَفُوا فِيمَا لَا يَتِمُّ الْوَاجِبُ إِلَّا بِهِ هَلْ يُسَمَّى وَاجِبًا. وَوَجْهُ الْقَوْلِ فِيهِ أَنَّ هَذَا يَنْقَسِمُ إِلَى مَا لَيْسَ لِلْعَبْدِ فِي فِعْلِهِ اخْتِيَارٌ كَالْقُدْرَةِ عَلَى الْمَشْيِ مَثَلًا، فَهَذَا لَا يُوصَفُ بِالْوُجُوبِ بَلْ هُوَ مِنْ شَرْطِ تَكْلِيفِ الْوُجُوبِ، أَوْ إِلَى مَا لِلْعَبْدِ فِي فِعْلِهِ اخْتِيَارٌ، وَهَذَا فَيَنْبَغِي أَنْ يَتَّصِفَ بِالْوُجُوبِ كَالطَّهَارَةِ الْمُشْتَرَطَةِ فِي الصَّلَاةِ. وَكَأَنَّ وُجُوبَ مِثْلِ هَذَا إِنَّمَا هُوَ مِنْ أَجْلِ غَيْرِهِ لَا مِنْ أَجْلِ ذَاتِهِ، فَتَنْشَأُ هَهُنَا قِسْمَةٌ أُخْرَى لِلْوَاجِبِ وَهُوَ أَنَّ مِنْهُ مَا هُوَ وَاجِبٌ مِنْ أَجْلِ غَيْرِهِ وَمِنْهُ مَا هُوَ وَاجِبٌ لِذَاتِهِ.

The obligatory is also divided into what is measured by a determinate amount and what is not, such as wiping the head and remaining still in bowing. In the latter case, the obligatory amount is the least to which the name applies; what remains is recommended. This is conceivable only for acts occurring successively or following one upon another—in general, where their parts do not occur simultaneously.

وَالْوَاجِبُ أَيْضًا يَنْقَسِمُ إِلَى مَا يَتَقَدَّرُ بِقَدْرٍ مَحْدُودٍ وَإِلَى مَا لَا يَتَقَدَّرُ بِقَدْرٍ مَحْدُودٍ، كَمَسْحِ الرَّأْسِ وَالطُّمَأْنِينَةِ فِي الرُّكُوعِ، وَالْوَاجِبُ مِنْ هَذَا هُوَ أَقَلُّ مَا يَنْطَلِقُ عَلَيْهِ الِاسْمُ وَيَبْقَى الْبَاقِي نَدْبًا، وَهَذَا إِنَّمَا يُتَصَوَّرُ فِيمَا وَقَعَ مِنَ الْأَفْعَالِ مُتَتَابِعًا أَوْ مُتَشَافِعًا، وَبِالْجُمْلَةِ مَا لَمْ تَقَعْ أَجْزَاؤُهُ مَعًا.

24. From definitions to universal questions

R 24 · BA 32

Such is the account of the definition and division of the kinds of rulings (الأحكام). There remains the discussion of universal questions attaching to them.

فَهَذَا هُوَ الْقَوْلُ فِي تَحْدِيدِ أَنْوَاعِ الْأَحْكَامِ وَتَقْسِيمِهَا، وَقَدْ بَقِيَ الْقَوْلُ فِي مَسَائِلَ كُلِّيَّةٍ تَلْحَقُهَا.

25. Death during the time and reasonable postponement

R 25 · BA 33

The first question is this. If the legally responsible person dies during the allotted period without having discharged the duty, he does not die disobedient: the early generations agreed on this. Whoever declares him sinful is mistaken, for we know with certainty that they did not declare sinful someone who died after enough time had elapsed to perform the prayer.

فَأَوَّلُ مَسْأَلَةٍ مِنْهَا أَنَّا نَقُولُ، إِذَا مَاتَ الْمُكَلَّفُ فِي أَثْنَاءِ الْوَقْتِ وَلَمْ يَقْضِ لَمْ يَمُتْ عَاصِيًا بِإِجْمَاعِ السَّلَفِ عَلَى ذَلِكَ. وَقَوْلُ مَنْ أَثَّمَهُ خَطَأٌ، فَإِنَّا نَعْلَمُ قَطْعًا أَنَّهُمْ كَانُوا لَا يُؤَثِّمُونَ مَنْ مَاتَ وَقَدْ مَضَى مِنَ الْوَقْتِ مِقْدَارُ مَا تَقَعُ فِيهِ الصَّلَاةُ.

If it is asked how omission with a resolve to act can be allowed when he does not know whether the outcome will be safe, we answer: such omission is allowed only until a time he judges it more probable than not that he will survive to, just as one administering discretionary punishment may strike up to a point at which death is not the predominant probability. Hence Abū Ḥanīfa—may God have mercy upon him—said that pilgrimage may not be postponed for a year, since survival until then is not predominantly probable; fasting and almsgiving, however, may be postponed for one or two months. Al-Shāfiʿī—may God have mercy upon him—regards survival for a year as predominantly probable for young people.

فَإِنْ قِيلَ فَكَيْفَ يَجُوزُ التَّرْكُ مَعَ الْعَزْمِ وَهُوَ لَا يَعْرِفُ سَلَامَةَ الْعَاقِبَةِ، قُلْنَا لَا يَجُوزُ التَّرْكُ مَعَ الْعَزْمِ إِلَّا إِلَى مُدَّةٍ يَغْلِبُ عَلَى ظَنِّهِ الْبَقَاءُ إِلَيْهَا، كَمَا يَجُوزُ لِلْمُعَزِّرِ أَنْ يَضْرِبَ إِلَى حَدٍّ لَا يَغْلِبُ عَلَى ظَنِّهِ الْهَلَاكُ. وَلِذَلِكَ قَالَ أَبُو حَنِيفَةَ رَحِمَهُ اللَّهُ لَا يَجُوزُ تَأْخِيرُ الْحَجِّ إِلَى سَنَةٍ لِأَنَّ الْبَقَاءَ إِلَيْهَا لَا يَغْلِبُ عَلَى الظَّنِّ. وَأَمَّا تَأْخِيرُ الصَّوْمِ وَالزَّكَاةِ إِلَى شَهْرٍ أَوْ شَهْرَيْنِ فَجَائِزٌ. وَالشَّافِعِيُّ رَحِمَهُ اللَّهُ يَرَى الْبَقَاءَ إِلَى سَنَةٍ غَالِبًا عَلَى ظَنِّ الشَّبَابِ.

Second Question

مَسْأَلَةٌ ثَانِيَةٌ

26. Abrogation of obligation and the logic of opposites

R 26 · BA 34

Rulings are divided, as previously explained, into the obligatory and, at the opposite extreme, the prohibited, which is the forbidden. Between them lie two intermediates: the recommended and the disapproved. It is clear that where opposites admit an intermediate, removing one does not entail the existence of the other. Whoever claimed that when obligation is abrogated a thing returns to its previous prohibition was therefore mistaken. That would follow only if there were no intermediate between the obligatory and the forbidden. More evident still [is the error of supposing] that it returns to its previous permissibility, since permissibility is not contained within the genus of these opposites, namely demand (الطلب).[9]

الْأَحْكَامُ تَنْقَسِمُ إِلَى وَاجِبٍ كَمَا تَقَدَّمَ، وَمُقَابِلِهِ فِي الطَّرَفِ الْأَقْصَى الْمَحْظُورِ، وَهُوَ الْحَرَامُ، وَبَيْنَهُمَا مُتَوَسِّطَانِ، وَهُمَا النَّدْبُ وَالْمَكْرُوهُ. وَبَيِّنٌ أَنَّ الْمُتَقَابِلَاتِ الَّتِي بَيْنَهَا مُتَوَسِّطٌ لَيْسَ يَلْزَمُ عَنْ رَفْعِ أَحَدِهَا وُجُودُ الْآخَرِ، فَلِذَلِكَ أَخْطَأَ مَنْ زَعَمَ أَنَّ الْوُجُوبَ إِذَا نُسِخَ رَجَعَ إِلَى مَا كَانَ قَبْلُ مِنْ حَظْرٍ. وَإِنَّمَا كَانَ يَكُونُ ذَلِكَ لَوْ لَمْ يَكُنْ بَيْنَ الْوَاجِبِ وَالْحَرَامِ وَاسِطَةٌ. وَأَبْيَنُ مِنْ هَذَا أَنْ يَرْجِعَ إِلَى مَا كَانَ قَبْلُ مِنْ إِبَاحَةٍ، إِذْ لَيْسَ يَتَضَمَّنُهَا جِنْسُ هَذِهِ الْمُتَقَابِلَاتِ الَّذِي هُوَ الطَّلَبُ.

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[9] **9.** Translation. The demonstrative in وأبين من هذا (printed p. 47) is taken to refer to the error just discussed; the explanatory bracket makes that syntactic interpretation visible.

27. Is the permissible commanded or legally burdensome?

R 27 · BA 35

Here the untenability of the claim that the permissible is commanded becomes clear. It is likewise clear that it does not belong to the imposition of legal responsibility (التكليف), since this is the demand for something involving a burden. Whoever calls it an imposition of responsibility, meaning that we are obliged to believe it permissible in the Law or obliged to believe that it belongs to the Law, strains the terminology. In general, this is a linguistic inquiry more suited to another place. The preceding account also makes clear that the recommended is commanded, since it involves a certain demand and requisition. As for the claim that ‘command’ applies only where omission incurs punishment, that is a linguistic claim; its proponent must establish it through either legal usage or linguistic convention.

وَهُنَا يَبِينُ سُقُوطُ قَوْلِ مَنْ قَالَ الْمُبَاحُ مَأْمُورٌ بِهِ.

وَكَذَلِكَ يَتَبَيَّنُ أَنَّهُ لَيْسَ مِنَ التَّكْلِيفِ، إِذِ التَّكْلِيفُ طَلَبُ مَا فِيهِ كُلْفَةٌ. وَمَنْ سَمَّاهُ تَكْلِيفًا وَذَهَبَ فِي ذَلِكَ إِلَى أَنَّهُ الَّذِي كُلِّفْنَا اعْتِقَادَ إِبَاحَتِهِ فِي الشَّرْعِ، أَوْ أَنَّهُ الَّذِي كُلِّفْنَا اعْتِقَادَ كَوْنِهِ مِنَ الشَّرْعِ، فَهُوَ مُسْتَكْرَهٌ فِي التَّسْمِيَةِ.

وَبِالْجُمْلَةِ فَهَذَا النَّظَرُ لُغَوِيٌّ وَهُوَ أَلْيَقُ بِغَيْرِ هَذَا الْمَوْضِعِ، وَمِمَّا تَقَدَّمَ أَيْضًا مِنْ هَذَا الْقَوْلِ تَبَيَّنَ أَنَّ الْمَنْدُوبَ مَأْمُورٌ بِهِ إِذْ هُوَ طَلَبٌ مَا وَاقْتِضَاءٌ. فَأَمَّا مَنْ زَعَمَ أَنَّ الْأَمْرَ إِنَّمَا يُطْلَقُ عَلَى مَا فِي تَرْكِهِ عِقَابٌ، فَهِيَ دَعْوَى لُغَوِيَّةٌ، وَعَلَى مُدَّعِيهَا إِثْبَاتُ ذَلِكَ عُرْفًا شَرْعِيًّا أَوْ وَضْعًا لُغَوِيًّا.

Third Question: The Forbidden Is the Contrary of the Obligatory

مَسْأَلَةٌ ثَالِثَةٌ: الْحَرَامُ ضِدُّ الْوَاجِبِ

28. Can one act be obligatory and forbidden in different respects?

R 28 · BA 36–37

If contraries are defined as two things that cannot coexist in one numerically identical thing, at one time and in one respect, then prohibition and obligation cannot in the Law attach to one thing in one respect at one time. Their attachment to two things or at two times is, however, undisputed; prohibiting one does not invalidate the other, whether the distinction concerns two things or two times. The same must hold when prohibition and obligation attach to one thing in two respects—for example, when something is commanded without qualification, and then that very thing is prohibited as qualified by an attribute or on account of an expressly stated cause.

وَإِذَا كَانَ حَدُّ الْمُتَضَادَّيْنِ أَنَّهُمَا اللَّذَانِ لَا يَجْتَمِعَانِ فِي شَيْءٍ وَاحِدٍ بِالْعَدَدِ فِي وَقْتٍ وَاحِدٍ مِنْ جِهَةٍ وَاحِدَةٍ، فَلَا يَجُوزُ فِي الشَّرْعِ تَعَلُّقُ الْحَظْرِ وَالْإِيجَابِ بِشَيْءٍ وَاحِدٍ مِنْ جِهَةٍ وَاحِدَةٍ فِي وَقْتٍ وَاحِدٍ. فَأَمَّا تَعَلُّقُهُمَا بِشَيْئَيْنِ أَوْ فِي وَقْتَيْنِ فَذَلِكَ مَا لَا خِلَافَ فِيهِ، وَلَا يَرْجِعُ النَّهْيُ عَنْ أَحَدِهِمَا عَلَى الثَّانِي بِالْفَسَادِ، سَوَاءٌ كَانَ ذَلِكَ فِي شَيْئَيْنِ أَوْ فِي زَمَانَيْنِ. وَكَذَلِكَ يَلْزَمُ إِذَا تَعَلَّقَ النَّهْيُ وَالْإِيجَابُ بِشَيْءٍ وَاحِدٍ مِنْ جِهَتَيْنِ مِثْلَ أَنْ يَرِدَ الْأَمْرُ بِشَيْءٍ مُطْلَقًا، ثُمَّ يَرِدَ النَّهْيُ عَنْ ذَلِكَ الشَّيْءِ بِعَيْنِهِ مُقَيَّدًا بِصِفَةٍ أَوْ لِعِلَّةٍ مُصَرَّحٍ بِهَا.

In cases of this kind, however, they disagreed whether the prohibition invalidates the originally obligatory act insofar as it is qualified. Abū Ḥāmid—may God have mercy upon him—stated that they divide this into what concerns something other than the prohibited act, owing to an external cause, and what concerns an attribute of the thing itself. What concerns something other than the prohibited act does not invalidate the original act. Concerning what relates to an attribute of the prohibited act, al-Shāfiʿī held that it invalidates the original act; where he gave effect to divorce during menstruation, he referred the prohibition to the infliction of harm and included it in the first division.

إِلَّا أَنَّهُمُ اخْتَلَفُوا فِي مِثْلِ هَذَا الْجِنْسِ هَلْ يَعُودُ النَّهْيُ بِالْفَسَادِ عَلَى الْأَصْلِ الْمُوجَبِ مِنْ جِهَةِ مَا قُيِّدَ؟ فَزَعَمَ أَبُو حَامِدٍ رَحِمَهُ اللَّهُ أَنَّ هَذَا يَنْقَسِمُ عِنْدَهُمْ إِلَى مَا يَرْجِعُ إِلَى غَيْرِ الْمَنْهِيِّ لِسَبَبٍ مِنْ خَارِجٍ، وَإِلَى مَا يَرْجِعُ إِلَى صِفَةٍ فِي الشَّيْءِ. فَمَا يَرْجِعُ إِلَى غَيْرِ الْمَنْهِيِّ فَلَا يَرْجِعُ عَلَى الْأَصْلِ بِالْفَسَادِ، وَأَمَّا الَّذِي يَرْجِعُ إِلَى صِفَةٍ فِي الْمَنْهِيِّ عَنْهُ فَذَهَبَ الشَّافِعِيُّ إِلَى أَنَّهُ يَعُودُ عَلَى الْأَصْلِ بِالْفَسَادِ، وَحَيْثُ أَوْقَعَ الطَّلَاقَ فِي الْحَيْضِ صَرَفَ ذَلِكَ إِلَى الْإِضْرَارِ وَأَلْحَقَهُ بِالْقِسْمِ الْأَوَّلِ.

Abū Ḥanīfa does not consider the prohibition to invalidate the original act in either case, whether the prohibited act is qualified by an attribute or by an external cause. He held that ritual impurity's invalidation of prayer was established only by the proof of consensus.

وَأَبُو حَنِيفَةَ لَا يَرَى فِي الْمَوْضِعَيْنِ النَّهْيَ يَعُودُ بِفَسَادِ الْأَصْلِ، سَوَاءٌ وَرَدَ الْمَنْهِيُّ عَنْهُ مُقَيَّدًا بِصِفَةٍ أَوْ سَبَبٍ مِنْ خَارِجٍ، وَزَعَمَ أَنَّ كَوْنَ الْحَدَثِ مُبْطِلًا لِلصَّلَاةِ إِنَّمَا ثَبَتَ بِدَلِيلِ الْإِجْمَاعِ.

29. Prohibitive wording versus a qualified prohibition’s meaning

R 29 · BA 38

I consider that inquiry into this question concerns only the verbal form of prohibition. For one who understands the form of prohibition to signify that an act is forbidden, a prohibition applying to that act under a particular qualification, after its unconditional obligation has been established, is a contextual indicator (qarīna) that turns the apparent prohibition from strict forbiddance into disapproval. This is more clearly so if a prohibition attaches to the act on account of some external matter after the act has been enjoined without qualification. We shall discuss this later.

وَأَنَا أَرَى أَنَّ النَّظَرَ فِي هَذِهِ الْمَسْأَلَةِ إِنَّمَا هُوَ مِنْ جِهَةِ صِيغَةِ لَفْظِ النَّهْيِ، فَإِنَّ مَنْ يَدُلُّ عِنْدَهُ لَفْظَةُ ⟨النَّهْيِ عَلَى الْحَظْرِ جَعَلَ وُرُودَهُ فِي شَيْءٍ مُقَيَّدًا بِصِفَةٍ بَعْدَ⟩ إِيجَابِهِ مُطْلَقًا قَرِينَةٌ تُخْرِجُ النَّهْيَ عَنِ الْحَظْرِ إِلَى الْكَرَاهَةِ، وَأَكْثَرُ مِنْ ذَلِكَ وُرُودُهُ فِي شَيْءٍ لِأَمْرٍ مَا مِنْ خَارِجٍ بَعْدَ إِيجَابِ ذَلِكَ الشَّيْءِ مُطْلَقًا، وَسَنَتَكَلَّمُ فِي هَذَا فِيمَا بَعْدُ.

If, however, the question is considered from the standpoint of meaning, prohibiting a thing as qualified by some matter—whether a cause or an attribute—after making it obligatory without qualification invalidates the original act insofar as it is qualified. Precisely what you have understood here concerning a qualified prohibition issued after an unqualified obligation should be understood concerning a qualified obligation issued after an unqualified prohibition.

وَأَمَّا إِذَا نُظِرَ فِيهَا مِنْ حَيْثُ الْمَعْنَى، فَإِنَّ وُرُودَ النَّهْيِ عَنِ الشَّيْءِ مُقَيَّدًا بِأَمْرٍ مَا، سَوَاءٌ كَانَ سَبَبًا أَوْ صِفَةً، بَعْدَ إِيجَابِهِ مُطْلَقًا فَإِنَّهُ يَعُودُ عَلَى الْأَصْلِ بِالْفَسَادِ مِنْ جِهَةِ مَا هُوَ مُقَيَّدٌ. وَالَّذِي فَهِمْتَ هَهُنَا مِنْ وُرُودِ النَّهْيِ عَنِ الشَّيْءِ مُقَيَّدًا بَعْدَ إِيجَابِهِ مُطْلَقًا، هُوَ بِعَيْنِهِ يَنْبَغِي أَنْ تَفْهَمَهُ فِي وُرُودِ الْإِيجَابِ بِشَيْءٍ مَا مُقَيَّدًا بَعْدَ النَّهْيِ عَنْهُ مُطْلَقًا.

30. A methodological objection to the placement of the question

R 30 · BA 38

It is surprising that Abū Ḥāmid treated inquiry into this question as belonging to this part of this book.

وَالْعَجَبُ مِنْ أَبِي حَامِدٍ كَيْفَ جَعَلَ النَّظَرَ فِي هَذِهِ الْمَسْأَلَةِ مِنْ هَذَا الْجُزْءِ مِنْ هَذَا الْكِتَابِ.

31. Forbidden places of prayer and prayer on usurped land

R 31 · BA 39–40

Whoever permits prayer in a valley, a bathhouse, or camels' resting places should interpret the prohibition concerning these as disapproval rather than forbiddance, following the doctrine that prohibiting something as qualified by an external matter, after permitting or commanding it without qualification, supplies a contextual indicator shifting the expression of prohibition from forbiddance to disapproval. This applies if he holds that the form of prohibition entails forbiddance. For someone who does not hold this, the matter is easy.

وَأَمَّا مَنْ أَجَازَ الصَّلَاةَ فِي الْوَادِي وَالْحَمَّامِ وَأَعْطَانِ الْإِبِلِ فَإِنَّمَا يَنْبَغِي لَهُ أَنْ يَصْرِفَ النَّهْيَ الْوَارِدَ فِيهَا عَنِ التَّحْرِيمِ إِلَى الْكَرَاهَةِ، عَلَى مَذْهَبِ مَنْ يَرَى أَنَّ وُرُودَ النَّهْيِ عَنِ الشَّيْءِ مُقَيَّدًا بِأَمْرٍ مَا مِنْ خَارِجٍ بَعْدَ إِبَاحَتِهِ، أَوِ الْأَمْرِ بِهِ مُطْلَقًا، قَرِينَةٌ يُخْرَجُ بِهَا لَفْظُ النَّهْيِ عَنِ التَّحْرِيمِ إِلَى الْكَرَاهَةِ، هَذَا إِذَا كَانَ مِمَّنْ يَرَى أَنَّ صِيغَةَ النَّهْيِ تَقْتَضِي التَّحْرِيمَ، وَأَمَّا مَنْ لَا يَرَى ذَلِكَ فَالْأَمْرُ عَلَيْهِ سَهْلٌ.

Whoever invalidates prayer on usurped land because it consists of prohibited movements and spatial positions does so through ignorance of the definitions of contraries: obligation and prohibition attach to it in two different respects. That is why the Companions—may God be pleased with them—agreed not to command wrongdoers to repeat their prayers upon repentance. These movements and spatial positions are commanded in one respect and prohibited in another. Similarly, prostration before an idol without intending [worship of it] is forbidden in one respect and an act of drawing near [to God] in another.[10]

وَأَمَّا مَنْ أَبْطَلَ الصَّلَاةَ فِي الْأَرْضِ الْمَغْصُوبَةِ لِكَوْنِهَا حَرَكَاتٍ وَأَكْوَانًا مَنْهِيًّا عَنْهَا، فَلِجَهْلِهِ بِحُدُودِ الْمُتَضَادَّةِ، لِأَنَّ الْإِيجَابَ وَالنَّهْيَ تَعَلَّقَ بِهَا مِنْ جِهَتَيْنِ مُخْتَلِفَتَيْنِ. وَلِذَلِكَ مَا وَقَعَ إِجْمَاعُ الصَّحَابَةِ رَضِيَ اللَّهُ عَنْهُمْ عَلَى تَرْكِ أَمْرِ الظَّلَمَةِ بِإِعَادَةِ الصَّلَوَاتِ عِنْدَ التَّوْبَةِ. وَتِلْكَ الْحَرَكَاتُ وَالْأَكْوَانُ هِيَ مِنْ جِهَةٍ مَأْمُورٌ بِهَا، وَمِنْ جِهَةٍ مَنْهِيٌّ عَنْهَا. وَكَذَلِكَ السُّجُودُ بَيْنَ يَدَيِ الصَّنَمِ عَلَى غَيْرِ جِهَةِ الْقَصْدِ هُوَ مِنْ جِهَةٍ حَرَامٌ، وَمِنْ جِهَةٍ مُتَقَرَّبٌ بِهِ.

Fourth Question

مَسْأَلَةٌ رَابِعَةٌ

32. Does a ruling about an act determine its contrary?

R 32 · BA 41

People have disagreed whether making something obligatory prohibits its contrary, and whether prohibiting it makes its contrary obligatory. We say:

اخْتَلَفَ النَّاسُ فِي وُجُوبِ الشَّيْءِ هَلْ هُوَ حَظْرٌ لِضِدِّهِ، وَحَظْرِهِ وُجُوبٌ لِضِدِّهِ، فَنَقُولُ:

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[10] **10.** Translation. The bracketed objects in the final sentence clarify the contrast implied by القصد and متقرب به; the Arabic does not state them expressly (printed p. 50).

33. Legal contrariety versus physical incompatibility

R 33 · BA 41

As for when the two contraries are defined according to their proper definition and the term is not used loosely, making a thing obligatory prohibits its contrary. For, as previously explained, whatever is indispensable to fulfilling an obligation is obligatory, whether it is an act or an omission. This question is conceivable only in legal contrariety (التضاد الشرعي). As for perceptible contrariety, abandoning the contrary is indispensable for the imposition of responsibility to be possible: it belongs to the conditions of the act.

أَمَّا إِذَا حُدَّ الْمُتَضَادَّانِ بِحَسَبِ حَدِّهِمَا، وَلَمْ يُسَامَحْ فِي تَسْمِيَتِهِمَا، فَوُجُوبُ الشَّيْءِ حَظْرٌ لِضِدِّهِ، لِأَنَّ مَا لَا يَتِمُّ الْوَاجِبُ إِلَّا بِهِ فَهُوَ وَاجِبٌ كَمَا تَقَدَّمَ، وَسَوَاءٌ كَانَ ذَلِكَ فِعْلًا أَوْ تَرْكًا. وَهَذِهِ الْمَسْأَلَةُ إِنَّمَا تَتَصَوَّرُ فِي التَّضَادِّ الشَّرْعِيِّ. وَأَمَّا التَّضَادُّ الْمَحْسُوسُ فَهُوَ مِمَّا لَا يصح التَّكْلِيفُ إِلَّا بِتَرْكِهِ، وَهُوَ مِنْ شُرُوطِ الْفِعْلِ.

34. When prohibiting one contrary obliges the other

R 34 · BA 42

As for the prohibited, if it has no contrary, or has a contrary but admits an intermediate between them, prohibiting it does not entail making anything obligatory. If, however, the thing cannot be without one of the two and there is no intermediate between them, prohibiting it makes its contrary obligatory. This too applies where the contrariety is legal; if it is perceptible, it belongs to the conditions of legal responsibility.

وَأَمَّا الْمَحْظُورُ فَإِذَا كَانَ مِمَّا كَانَ لَيْسَ لَهُ ضِدٌّ، أَوْ مِمَّا لَهُ ضِدٌّ إِلَّا أَنَّ بَيْنَهُمَا مُتَوَسِّطًا، فَلَيْسَ يَلْزَمُ عَنْ حَظْرِهِ إِيجَابُ شَيْءٍ مَا. وَأَمَّا إِذَا كَانَ لَا يَخْلُو الشَّيْءُ مِنْ أَحَدِهِمَا، وَلَمْ يَكُنْ بَيْنَهُمَا مُتَوَسِّطٌ، فَحَظْرُهُ إِيجَابٌ لِضِدِّهِ، هَذَا أَيْضًا إِذَا كَانَ التَّضَادُّ شَرْعِيًّا، وَأَمَّا إِذَا كَانَ حِسِّيًّا فَهُوَ مِنْ شَرْطِ التَّكْلِيفِ.

35. Conclusion of the classification of rulings

R 35 · BA 43

This is how the question and its answer should be interpreted. Here the discussion of the second section of this part ends.

فَعَلَى هَذَا يَنْبَغِي أَنْ يتأو ل السُّؤَالُ وَالْجَوَابُ فِي هَذِهِ الْمَسْأَلَةِ. وَهُنَا انْقَضَى الْقَوْلُ فِي الْقِسْمِ الثَّانِي مِنْ هَذَا الْجُزْءِ.

Discussion of the Third Section of the First Part

الْقَوْلُ فِي الْقِسْمِ الثَّالِثِ مِنَ الْجُزْءِ الْأَوَّلِ

36. The three elements of a legal judgement

R 36 · BA 44

This section comprises inquiry into the constituent elements of a ruling (الحكم). They are three: the one who rules, the person subject to the ruling, and that concerning which the ruling is made.

هَذَا الْقِسْمُ يَتَضَمَّنُ النَّظَرَ فِي أَرْكَانِ الْحُكْمِ، وَهِيَ ثَلَاثَةٌ: الْحَاكِمُ، وَالْمَحْكُومُ عَلَيْهِ، وَالْمَحْكُومُ فِيهِ.

37. Divine authority and delegated human obedience

R 37 · BA 45

The one who rules is the speaker whose address imposes obligation. In addition to being a speaker, he must possess unrestricted authority for the ruling to take effect. This holds only between owner and owned, creator and created; the ruler is God Most High. Everyone whose obedience is obligatory—the ruler, the father, and the like—is owed obedience only because God Most High has made it obligatory. He has the power to punish and reward, since obligation or prohibition cannot be conceived as proceeding from one without power over them. This is established in theology (علم الكلام).

أَمَّا الْحَاكِمُ فَهُوَ الْمُخَاطِبُ بِالْإِيجَابِ. وَمِنْ شُرُوطِهِ، مَعَ كَوْنِهِ مُتَكَلِّمًا، نُفُوذُ الْحُكْمِ عَلَى الْإِطْلَاقِ. وَإِنَّمَا يَصِحُّ ذَلِكَ بَيْنَ الْمَالِكِ وَالْمَمْلُوكِ وَالْخَالِقِ وَالْمَخْلُوقِ، وَهُوَ اللَّهُ تَعَالَى. وَكُلُّ مَنْ لَزِمَتْ طَاعَتُهُ فَإِنَّمَا لَزِمَتْ بِإِيجَابِ اللَّهِ تَعَالَى كَالسُّلْطَانِ وَالْأَبِ وَمَا أَشْبَهَهُمَا. وَهُوَ الْقَادِرُ عَلَى الْعِقَابِ وَالثَّوَابِ إِذْ لَا يُتَصَوَّرُ الْإِيجَابُ أَوِ النَّهْيُ مِنْ غَيْرِ قَادِرٍ عَلَيْهِمَا. وَتَثْبِيتُ هَذَا فِي عِلْمِ الْكَلَامِ.

38. Understanding the address: children and impaired reason

R 38 · BA 46–48

Two conditions apply to the addressee; one is understanding the address containing a command or prohibition, since an obligatory demand cannot properly be directed to someone who does not understand the address. If it is objected that alms and financial liabilities have been imposed upon children, we answer: the legally responsible person is the guardian, subject to readiness to receive reason. Likewise, in requiring children to pray before puberty, it is the father who is commanded. For only one who knows the Lawgiver (الشارع) understands the Law's address, and only one who knows God knows the Lawgiver. This condition is apprehended by reason.

وَأَمَّا الْمَحْكُومُ عَلَيْهِ فَلَهُ شَرْطَانِ مِنْهُمَا أَنْ يَفْهَمَ الْخِطَابَ الْوَارِدَ بِأَمْرٍ أَوْ نَهْيٍ، إِذْ مَنْ لَيْسَ يَفْهَمُ الْخِطَابَ لَا يَصِحُّ مِنْهُ اقْتِضَاءُ وُجُوبِ الطَّلَبِ. فَإِنْ قِيلَ فَقَدْ وَجَبَتِ الزَّكَوَاتُ وَالْغَرَامَاتُ عَلَى الصِّبْيَانِ، قُلْنَا الْمُكَلَّفُ هُوَ الْوَلِيُّ بِشَرْطِ الِاسْتِعْدَادِ لِقَبُولِ الْعَقْلِ. وَكَذَلِكَ أَخْذُهُمْ بِالصَّلَاةِ قَبْلَ الْبُلُوغِ، الْأَبُ هُوَ الْمَأْمُورُ بِذَلِكَ، لِأَنَّهُ لَا يَفْهَمُ خِطَابَ الشَّرْعِ إِلَّا مَنْ يَعْرِفُ الشَّارِعَ، وَلَا يَعْرِفُ الشَّارِعَ إِلَّا مَنْ يَعْرِفُ اللَّهَ، وَهَذَا الشَّرْطُ مُدْرَكُهُ الْعَقْلُ.

From this it becomes clear that legal responsibility lapses for the forgetful, the heedless, the insane, and the intoxicated. If it is asked why an intoxicated person's divorce takes effect according to those who allow it, we answer that this is a measure of severity: he has brought the harm upon himself by his own choice, after [possessing] reason, the condition of legal responsibility. Such a case cannot be conceived for an insane person. As for appealing, in support of the possibility of addressing the intoxicated, to His words—blessed and exalted is He—‘Do not approach prayer while you are intoxicated’[11]: even if this apparent meaning is conceded in the verse, apparent meanings (الظواهر) are not set against certainties. The verse admits interpretations:

وَمِنْ هُنَا يَتَبَيَّنُ سُقُوطُ تَكْلِيفِ النَّاسِي وَالْغَافِلِ وَالْمَجْنُونِ وَالسَّكْرَانِ. فَإِنْ قِيلَ فَكَيْفَ يَقَعُ طَلَاقُ السَّكْرَانِ عِنْدَ مَنْ يُجَوِّزُهُ؟ قُلْنَا ذَلِكَ عَلَى جِهَةِ التَّغْلِيظِ، إِذْ كَانَ هُوَ الَّذِي جَنَى عَلَى نَفْسِهِ بِاخْتِيَارِهِ بَعْدَ شَرْطِ التَّكْلِيفِ وَهُوَ الْعَقْلُ. وَلَيْسَ يُتَصَوَّرُ مِثْلُ هَذَا فِي الْمَجْنُونِ، وَتَعَلُّقُ مَنْ تَعَلَّقَ فِي جَوَازِ خِطَابِهِ بِقَوْلِهِ تَبَارَكَ وَتَعَالَى: {لَا تَقْرَبُوا الصَّلَاةَ وَأَنْتُمْ سُكَارَى}[11] فَإِنَّهُ إِنْ سُلِّمَ ظُهُورُ ذَلِكَ فِي الْآيَةِ فَلَيْسَ يُصَادِمُ بِالظَّوَاهِرِ الْقَطْعِيَّاتُ. وَلَهَا تَأْوِيلَاتٌ:

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[11] Qurʾān, al-Nisāʾ 4:43 ↗.

39. A defective reading about partial intoxication

R 39 · BA 48

One interpretation is that the address is directed to a person in the early stages of intoxication.

أَحَدُهَا أَنَّهَا خِطَابٌ مَعَ الْمُنْتَشِي.

40. Addressing the sober about later intoxication

R 40 · BA 48

Another is that what was prohibited was excessive drinking at the times of prayer: the address was issued while the hearers were in a sound state, before wine was prohibited.

وَالْآخَرُ أَنَّهُ إِنَّمَا وَقَعَ الْمَنْعُ مِنْ إِفْرَاطِ الشُّرْبِ فِي أَوْقَاتِ الصَّلَاةِ، وَذَلِكَ خِطَابٌ فِي وَقْتِ الصِّحَّةِ، وَقَبْلَ أَنْ تُحَرَّمَ الْخَمْرُ.

41. Eternal command and the limits of the present discipline

R 41 · BA 49

They append the objection: how can God eternally command His servants, when a condition of commanding is that the commanded person exist? Similarly, how can He command the intoxicated while intoxicated, or the insane and the child, on condition that the first recover consciousness, the second become sound, and the third reach puberty? An answer is not possible in this place, nor is the question peculiar to this inquiry. Discussing it rests on principles requiring lengthy preparation and extensive examination. As we have said, we should not investigate everything, or many things, in a single place; each should receive its own treatment in the place appropriate to it. What prompts this practice is a love of multiplying material that serves no purpose.

فَأَمَّا الِاعْتِرَاضُ الَّذِي يُلْحِقُونَ هَهُنَا وَهُوَ كَيْفَ يَكُونُ اللَّهُ آمِرًا فِي الْأَزَلِ لِعِبَادِهِ وَمِنْ شَرْطِ الْأَمْرِ أَنْ يَكُونَ الْمَأْمُورُ مَوْجُودًا، وَكَذَلِكَ كَوْنُهُ آمِرًا لِلسَّكْرَانِ فِي حَالِ سُكْرِهِ وَلِلْمَجْنُونِ وَالصَّبِيِّ، عَلَى شَرْطِ أَنْ يُفِيقَ ذَلِكَ وَيَصِحَّ ذَلِكَ وَيَبْلُغَ هَذَا، فَالْجَوَابُ عَنْهُ لَيْسَ مِمَّا يُمْكِنُ فِي هَذَا الْمَوْضِعِ، وَلَا هُوَ خَاصٌّ بِهَذَا النَّظَرِ. وَالْقَوْلُ فِيهِ مَبْنِيٌّ عَلَى قَوَاعِدَ تَحْتَاجُ إِلَى تَمْهِيدٍ طَوِيلٍ وَفَحْصٍ كَثِيرٍ. وَكَمَا قُلْنَا أَنَّهُ لَيْسَ يَنْبَغِي أَنْ نَفْحَصَ عَنْ كُلِّ شَيْءٍ وَلَا عَنْ أَشْيَاءَ كَثِيرَةٍ فِي مَوْضِعٍ وَاحِدٍ، بَلْ يَنْبَغِي أَنْ يُفْرَدَ بِالْقَوْلِ كُلُّ وَاحِدٍ مِنْهَا فِي الْمَوْضِعِ اللَّائِقِ بِهِ، وَالَّذِي يَحْمِلُ عَلَى هَذَا حُبُّ التكثر بِمَا لَيْسَ يُفِيدُ شَيْئًا.

42. Puberty as a practical legal sign

R 42 · BA 50

The second condition is puberty, and this condition is apprehended through the Law. If it is asked whether a boy is not rational shortly before his first nocturnal emission, since the emission of semen does not add to his reason, we answer: because the attainment of reason is difficult to discern in each individual and its timing varies, the Law appointed a sign that indicates it in most cases.

وَأَمَّا الشَّرْطُ الثَّانِي فَهُوَ الْبُلُوغُ، وَهَذَا الشَّرْطُ مُدْرَكُهُ الشَّرْعُ. فَإِنْ قِيلَ فَقَبْلَ أَنْ يَحْتَلِمَ الصَّبِيُّ بِزَمَانٍ يَسِيرٍ أَلَيْسَ هُوَ عَاقِلًا؟ فَإِنَّ انْفِصَالَ النُّطْفَةِ عَنْهُ لَا تَزِيدُهُ عَقْلًا؟ قُلْنَا: لَمَّا كَانَ ذَلِكَ مِمَّا يَخْفَى دَرْكُهُ فِي شَخْصٍ شَخْصٍ، وَيَخْتَلِفُ وَقْتُهُ، نَصَبَ الشَّرْعُ لِذَلِكَ عَلَامَةً تُوجَدُ عَلَى الْأَكْثَرِ دَالَّةً عَلَيْهِ.

43. The voluntary act and intention of obedience

R 43 · BA 51

That concerning which the ruling is made, namely the act, is what can be acquired by the servant through his choice, while believing that its acquisition is obedience and compliance.

وَأَمَّا الْمَحْكُومُ فِيهِ وَهُوَ الْفِعْلُ فَإِنَّهُ مَا جَازَ كَوْنُهُ مُكْتَسَبًا لِلْعَبْدِ بِاخْتِيَارِهِ مَعَ اعْتِقَادِ اكْتِسَابِهِ طَاعَةً وَامْتِثَالًا.

44. Choice, necessary assent, and the will to obey

R 44 · BA 51–53

It should be understood that the things a human being acquires are those in which he may perform whichever of two contraries he wishes: standing, for example, is acquired by him, and he may stand or sit. If this is the meaning of acquisition (الاكتساب), there is no point in their purported exception for the obligation of inquiry that leads to knowledge, on the ground that one cannot intend to perform it as obedience before knowing it to be obligatory. For, as we have said, the obligation to inquire arises necessarily because the object of inquiry is necessarily known. A person has no choice in assenting to its obligatoriness when the miracle appears.

وَيَنْبَغِي أَنْ يُعْلَمَ أَنَّ الْأُمُورَ الْمُكْتَسَبَةَ لِلْإِنْسَانِ هِيَ الَّتِي لَهُ أَنْ يَأْتِيَ مِنْهَا أَيَّ الضِّدَّيْنِ شَاءَ، مِثْلَ أَنَّ الْقِيَامَ مُكْتَسَبٌ لَهُ وَلَهُ أَنْ يَقُومَ أَوْ يَقْعُدَ. وَإِذَا كَانَ مَعْنَى الِاكْتِسَابِ هَذَا فَلَا مَعْنَى لِاسْتِثْنَائِهِمْ مِنْ هَذَا، كَمَا زَعَمُوا، وُجُوبَ النَّظَرِ الْمُعَرِّفِ، إِذْ لَا يُمْكِنُ فِيمَا زَعَمُوا قَصْدُ إِيقَاعِهِ طَاعَةً قَبْلَ الْمَعْرِفَةِ بِوُجُوبِهِ، لِأَنَّ وُجُوبَ النَّظَرِ كَمَا سَلَفَ مِنْ قَوْلِنَا يَحْصُلُ ضَرُورَةً لِكَوْنِ الْمَنْظُورِ فِيهِ مَعْلُومًا بِالضَّرُورَةِ. وَلَيْسَ لِإِنْسَانٍ اخْتِيَارٌ فِي وُقُوعِ التَّصْدِيقِ بِوُجُوبِهِ عِنْدَ ظُهُورِ الْمُعْجِزَةِ.

Nor is there any point in their exception for the will to obey, or their saying that if willing required a will, that will would require another will, producing an infinite regress. Will is desire (شوق), and the arising of desire in a human being is something like a necessary occurrence, since its producer is assent involving hope and fear. Thus the condition of a legally prescribed act is, first, that it be acquired; and second, that the cause in acquiring [the act] be belief in the command’s obligatoriness, [rather than] other things he may do.

وَكَذَلِكَ أَيْضًا لَا مَعْنَى لِاسْتِثْنَائِهِمْ مِنْ ذَلِكَ إِرَادَةَ الطَّاعَةِ، وَقَوْلِهِمْ إِنَّ الْإِرَادَةَ لَوِ افْتَقَرَتْ إِلَى إِرَادَةٍ لَافْتَقَرَتِ الْإِرَادَةُ إِلَى إِرَادَةٍ وَتَسَلْسَلَ الْأَمْرُ، فَإِنَّ الْإِرَادَةَ شَوْقٌ، وَحُدُوثُ الشَّوْقِ لِلْإِنْسَانِ كَالضَّرُورِيِّ، إِذْ كَانَ فَاعِلُهُ التَّصْدِيقَ بِالرَّغْبَةِ وَالرَّهْبَةِ، فَشَرْطُ الْفِعْلِ الشَّرْعِيِّ أَنْ يَكُونَ مُكْتَسَبًا أَوَّلًا، ثُمَّ ثَانِيًا أَنْ يَكُونَ السَّبَبُ فِي اكْتِسَابِهِ اعْتِقَادَ وُجُوبِ الْأَمْرِ لِأَشْيَاءَ أُخَرَ مِمَّا يَجُوزُ لَهُ أَنْ يَفْعَلَ.

45. Human agency and the impossibility of burdens beyond capacity

R 45 · BA 54–55

For the shaykh Abū al-Ḥasan, however, being acquired is not a condition of an act. He holds that there is no act acquired by the human being at all: what makes the human being appear to be an agent of something is an accompanying and incidental matter, without the human being being either its proximate or its remote cause. Thus, for example, the relation of someone with two feet to walking would be exactly that of someone without feet. This contradicts sense perception and is a view exceedingly foreign to human nature. Abū al-Maʿālī, in al-Risāla al-Niẓāmiyya, explained the respect in which one may properly say, within the Law, that human beings possess capacity and acquisition (اقتدارا واكتسابا).

وَأَمَّا الشَّيْخُ أَبُو الْحَسَنِ فَلَيْسَ مِنْ شَرْطِ الْفِعْلِ عِنْدَهُ أَنْ يَكُونَ مُكْتَسَبًا، بَلْ يَرَى أَنْ لَيْسَ هَهُنَا فِعْلٌ مُكْتَسَبٌ لِلْإِنْسَانِ أَصْلًا، وَأَنَّ مَا يُظْهِرُ كَوْنَ الْإِنْسَانِ فَاعِلًا لِلشَّيْءِ فَأَمْرٌ مُصَاحِبٌ وَلَاحِقٌ لَا أَنَّ الْإِنْسَانَ لِذَلِكَ الْفِعْلِ سَبَبٌ لَا قَرِيبٌ وَلَا بَعِيدٌ، حَتَّى تَكُونَ نِسْبَةُ ذِي الْقَدَمَيْنِ مَثَلًا إِلَى الْمَشْيِ هِيَ بِعَيْنِهَا نِسْبَةَ الْعَادِمِ لِلْقَدَمَيْنِ. وَهَذِهِ مُخَالَفَةٌ لِلْحِسِّ وَرَأْيٌ غَرِيبٌ جِدًّا عَنْ طِبَاعِ الْإِنْسَانِ. وَقَدْ بَيَّنَ أَبُو الْمَعَالِي فِي «الرِّسَالَةِ النِّظَامِيَّةِ» الْوَجْهَ الَّذِي بِهِ يصح فِي الشَّرْعِ أَنْ يُقَالَ إِنَّ لِلْإِنْسَانِ اقْتِدَارًا وَاكْتِسَابًا.

Whoever denies human beings capacity for anything allows the imposition of what is beyond their capacity; he is right to do so on his own account, since on his view nothing is within their capacity. What we should say here is that imposing what is beyond capacity is impossible both rationally and legally. Legally, because of His saying, ‘God charges no soul beyond its capacity.’[12] Rationally, because the impossible cannot be present in the soul, and because a condition of what is commanded is that it be understood and its possibility conceived by both the commander and the commanded.’[13]

وَمَنْ لَمْ يَكُنْ عِنْدَهُ لِلْإِنْسَانِ اقْتِدَارٌ عَلَى شَيْءٍ مَا، جَازَ عِنْدَهُ تَكْلِيفُ مَا لَا يُطَاقُ، وَبِحَقٍّ مَا فَعَلَ ذَلِكَ لِأَنَّهُ لَيْسَ عَلَى رَأْيِهِ هَهُنَا شَيْءٌ يُطَاقُ. وَالَّذِي يَنْبَغِي أَنْ نَقُولَ هَهُنَا أَنَّ تَكْلِيفَ مَا لَا يُطَاقُ مُمْتَنِعٌ عَقْلًا وَشَرْعًا. أَمَّا شَرْعًا فبقوله: {لَا يُكَلِّفُ اللَّهُ نَفْسًا إِلَّا وُسْعَهَا}[12]. وَأَمَّا عَقْلًا فَلِامْتِنَاعِ قِيَامِ الْمُحَالِ بِالنَّفْسِ، وَأَنَّ مِنَ الشَّرْطِ الْمَأْمُورِ بِهِ أَنْ يَكُونَ مَفْهُومًا وَمُتَصَوَّرًا مَكَانُهُ عِنْدَ الْآمِرِ وَالْمَأْمُورِ.

46. Further questions concerning responsible action

R 46 · BA 56

Several questions may be appended to the end of this part:

وَقَدْ تَلْحَقُ آخِرَ هَذَا الْجُزْءِ مَسَائِلُ:

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[12] Qurʾān, al-Baqarah 2:286 ↗.

[13] Translation. Abū al-Ḥasan is al-Ashʿarī; Abū al-Maʿālī is al-Juwaynī. This paragraph reports and criticizes theological accounts of human agency.

47. Coercion, intention, and degrees of harm

R 47 · BA 57–58

One question is whether someone coerced into compliance with, or violation of, a legal requirement (التكليف) acts by choice, so as to be rewarded for the one and punished for the other. We say: someone coerced into compliance may reasonably be thought to act by choice insofar as he can do otherwise and endure the means of coercion. This varies with the harm inflicted upon him. Yet if he does not perform the act believing it to be obedience and compliance, he receives no reward; if he does believe this, he is rewarded. Even when coercion initially moves him to act, if, upon undertaking the act, he believes its performance to be obedience, he is rewarded.

فَمِنْهَا هَلِ الْمُكْرَهُ عَلَى وَفْقِ التَّكْلِيفِ أَوْ خِلَافِهِ مُخْتَارٌ حَتَّى يُثَابَ عَلَى الْوَاحِدِ وَيُعَاقَبَ عَلَى الْآخَرِ؟ وَنَحْنُ نَقُولُ فِي ذَلِكَ: أَمَّا الْمُكْرَهُ عَلَى وَفْقِ التَّكْلِيفِ فَقَدْ يُشْبِهُ أَنْ يُظَنَّ بِهِ أَنَّهُ مُخْتَارٌ مِنْ جِهَةِ أَنَّ لَهُ أَنْ يَأْتِيَ بِخِلَافِ مَا أُكْرِهَ عَلَيْهِ مُحْتَمِلًا لِمَا بِهِ أُكْرِهَ. وَهَذَا يَتَفَاوَتُ بِحَسَبِ مَا يَلْحَقُ الْمُكْرَهَ مِنَ الْأَذَى. لَكِنْ إِنْ لَمْ يَأْتِ ذَلِكَ مُعْتَقِدًا إِتْيَانَهُ طَاعَةً وَامْتِثَالًا لَمْ يُثَبْ عَلَيْهِ، فَإِنِ اعْتَقَدَ ذَلِكَ أُثِيبَ عَلَيْهِ. وَإِنْ كَانَ سَبَبُ تَحْرِيكِهِ إِلَى الْفِعْلِ الْإِكْرَاهَ، فَإِنَّهُ إِذَا أَخَذَ فِي الْفِعْلِ وَاعْتَقَدَ وُقُوعَهُ طَاعَةً أُثِيبَ عَلَيْهِ.

It is in this respect that coercing unbelievers to faith by [the threat of] killing occurs in the Law. In general, threatening punishment is a kind of coercion in this respect. Such a case is conceivable when obstinacy or some other impediment prevents a person from complying. In general, the soul that commands evil often turns a person away from a duty even while he believes it obligatory.

وَعَلَى هَذَا الْوَجْهِ جَاءَ إِكْرَاهُ الْكُفَّارِ عَلَى الْإِيمَانِ بِالْقَتْلِ فِي الشَّرْعِ. وَبِالْجُمْلَةِ فَالتَّوَعُّدُ بِالْعِقَابِ هُوَ إِكْرَاهٌ مَا عَلَى هَذَا الْوَجْهِ. وَمِثْلُ هَذَا يُتَصَوَّرُ فِي أَنْ يَكُونَ الْإِنْسَانُ يَصُدُّهُ عَنِ الِامْتِثَالِ عِنَادٌ أَوْ غَيْرُ ذَلِكَ مِنَ الْأَسْبَابِ الْمَانِعَةِ. وَبِالْجُمْلَةِ الْأَمَّارَةُ بِالسُّوءِ كَثِيرًا مَا تَصُدُّ الْإِنْسَانَ عَنِ الْوَاجِبِ مَعَ اعْتِقَادِ وُجُوبِهِ.

As for someone coerced into violating the Law—for example, into killing a Muslim or omitting prayer—there are two questions. First, does he sin if he acts as the coercion demands? Second, if he endures the coercion and does not act as it demands, is he rewarded or does he sin, given that a person's own life has a claim upon him?

وَأَمَّا الْمُكْرَهُ عَلَى مُخَالَفَةِ الشَّرْعِ مِثْلِ الْإِكْرَاهِ عَلَى قَتْلِ مُسْلِمٍ، أَوْ تَرْكِ الصَّلَاةِ، فَالسُّؤَالُ فِيهِ فِي مَوْضِعَيْنِ: أَحَدُهُمَا: هَلْ إِذَا فَعَلَ بِمُقْتَضَى الْإِكْرَاهِ أَثِمَ أَمْ لَا؟ وَالثَّانِي: إِنِ احْتَمَلَ الْإِكْرَاهَ وَلَمْ يَفْعَلْ بِمُقْتَضَاهُ هَلْ يُثَابُ أَوْ يَأْثَمُ، فَإِنَّ لِنَفْسِ الْمَرْءِ عَلَيْهِ حَقًّا،

What should be said is that coercion varies in degree according to its means. Apprehending these degrees, comparing them with violation of the command, and preferring one over the other are matters apprehended through the Law, especially when the means of coercion is of the same kind as the act demanded—for example, coercion by killing into killing. In general, this question is a matter of independent judgement (اجتهادية).[14]

وَالَّذِي يَنْبَغِي أَنْ يُقَالَ فِي ذَلِكَ هُوَ أَنَّ الْإِكْرَاهَ تَتَفَاوَتُ مَرَاتِبُهُ لِتَفَاوُتِ مَا بِهِ يَقَعُ الْإِكْرَاهُ، وَمُدْرَكُ مَرَاتِبِ هَذَا التَّفَاوُتِ، وَالْمُقَايَسَةِ بَيْنَهُ وَبَيْنَ مُخَالَفَةِ الْأَمْرِ وَتَرْجِيحِ أَحَدِهِمَا عَلَى الْآخَرِ، مُدْرَكٌ شَرْعِيٌّ، وَلَاسِيَّمَا إِذَا كَانَ مَا بِهِ يَقَعُ الْإِكْرَاهُ مِنْ نَوْعِ الْمُكْرَهِ عَلَيْهِ، مِثْلَ أَنْ يُكْرَهَ بِالْقَتْلِ عَلَى الْقَتْلِ، وَبِالْجُمْلَةِ فَهَذِهِ الْمَسْأَلَةُ اجْتِهَادِيَّةٌ.

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14. Translation. ‘The threat of’ in the second segment makes explicit the coercive context established by التوعد بالعقاب; the Arabic phrase is بالقتل. The passage presents the author's historical legal argument.

48. Active restraint and mere non-performance

R 48 · BA 59

Another question is whether the imposition of legal responsibility (التكليف) requires restraint just as action is required. The answer is that omission is of two kinds. In one, a person, when omitting something, engages in its contrary; this is rewarded, as in fasting. In the other, omitting something does not involve engagement in a contrary; this is not rewarded. Assigning each individual case to one of these two kinds belongs to inquiry into the branches of law.

وَمِنْهَا: هَلِ الْمُقْتَضَى بِالتَّكْلِيفِ الْكَفُّ كَمَا يُقْتَضَى الْفِعْلُ. وَالْجَوَابُ أَنَّ التَّرْكَ صِنْفَانِ: صِنْفٌ يَلْحَقُ الْإِنْسَانَ عِنْدَ تَرْكِهِ التَّلَبُّسُ بِضِدٍّ، فَهَذَا يُثَابُ عَلَيْهِ كَالصِّيَامِ. وَصِنْفٌ لَا يَلْحَقُ الْإِنْسَانَ عِنْدَ تَرْكِهِ التَّلَبُّسُ بِضِدٍّ، فَهَذَا لَا يُثَابُ عَلَيْهِ. وَإِلْحَاقُ مَسْأَلَةٍ مَسْأَلَةٍ بِهَذَيْنِ الصِّنْفَيْنِ نَظَرٌ فُرُوعِيٌّ.

49. Commands before fulfilment of their conditions

R 49 · BA 60–61

Another question is whether the command to do something, such as the command to pray, applies before its condition is fulfilled, so that omission is punishable even without fulfilment of the condition. This concerns a legal condition: for example, commanding a ritually impure person to pray while impure. Or does the command apply only after the condition is fulfilled, as when prayer is commanded in a state of purity?

وَمِنْهَا: هَلْ يَتَوَجَّهُ الْأَمْرُ بِالشَّيْءِ قَبْلَ حُصُولِ شَرْطِهِ، كَالْأَمْرِ بِالصَّلَاةِ، فَيُعَاقَبُ عَلَى تَرْكِهِ مِنْ غَيْرِ حُصُولِ شَرْطِهِ، هَذَا إِذَا كَانَ الشَّرْطُ شَرْعِيًّا كَأَمْرِ الْمُحْدِثِ بِالصَّلَاةِ فِي حِينِ إِحْدَاثِهِ، أَوْ لَا يَتَوَجَّهُ الْأَمْرُ بِالشَّيْءِ إِلَّا بَعْدَ حُصُولِ شَرْطِهِ كَالْأَمْرِ بِالصَّلَاةِ فِي حِينِ الطَّهَارَةِ؟

We say: if a person can acquire the condition by choice, he may be commanded to perform the act on the supposition that its condition is fulfilled and punished for omitting it even if he has not fulfilled the condition. Someone who omits prayer is punished for it even if he has never performed ablution. So the Law has prescribed.

وَنَحْنُ نَقُولُ: إِذَا كَانَ الشَّرْطُ مُكْتَسَبًا لِلْإِنْسَانِ بِاخْتِيَارِهِ فَجَائِزٌ أَنْ يُؤْمَرَ الْإِنْسَانُ بِالشَّيْءِ عَلَى تَقْدِيرِ حُصُولِ شَرْطِهِ وَيُعَاقَبَ عَلَى تَرْكِهِ، وَإِنْ لَمْ يَأْتِ بِشَرْطِهِ كَتَارِكِ الصَّلَاةِ يُعَاقَبُ عَلَيْهَا وَإِنْ لَمْ يَتَوَضَّأْ قَطُّ، وَبِذَلِكَ وَرَدَ الشَّرْعُ.

The proof of consensus indicates that punishment attaches to one who denies the messengers even before knowing God, although such knowledge is a condition of faith in the messengers. Some appealed here to His words—mighty and exalted—‘What brought you into Saqar? They said: We were not among those who pray.’[15] They sought to establish that the verse contains unambiguous wording (نص) on this. Although it is not unambiguous, this is its apparent meaning (ظاهرة), since ‘those who pray’ may here mean believers, as in his saying—peace be upon him—‘I have been forbidden to kill those who pray.’ Anyone who considers such a case rationally impossible interprets the apparent meaning otherwise, as is usual with an apparent expression that admits alternatives.

وَقَدْ دَلَّ دَلِيلُ الْإِجْمَاعِ عَلَى لُحُوقِ الْعِقَابِ لِلْمُكَذِّبِ بِالرُّسُلِ، قَبْلَ الْمَعْرِفَةِ بِاللَّهِ وَإِنْ كَانَتْ شَرْطًا لِلْإِيمَانِ بِالرُّسُلِ، وَقَدْ تَمَسَّكَ قَوْمٌ فِي هَذَا بِقَوْلِهِ عَزَّ وَجَلَّ: {مَا سَلَكَكُمْ فِي سَقَرَ قَالُوا لَمْ نَكُ مِنَ الْمُصَلِّينَ}[15]، وَرَامُوا أَنْ يبي نوا أَنَّهُ نَصٌّ فِي الْآيَةِ، وَهِيَ وَإِنْ لَمْ تَكُنْ نَصًّا فَهِيَ ظَاهِرَةٌ، لِأَنَّهُ مُحْتَمَلٌ أَنْ يراد هَهُنَا بِالْمُصَلِّينَ الْمُؤْمِنِينَ كَمَا قَالَ عَلَيْهِ السَّلَامُ: «نُهِيتُ عَنْ قَتْلِ الْمُصَلِّينَ». وَمَا امْتَنَعَ وُقُوعُ مِثْلِ هَذَا عِنْدَهُ عَقْلًا صَرَفَ الظَّاهِرَ إِلَى التَّأْوِيلِ كَالْعَادَةِ فِي الظَّاهِرِ الْمُحْتَمِلِ.

50. Legal conditions are not conditions of physical possibility

R 50 · BA 62

Those who disallow imposing responsibility in such a case argued that there is no meaning in obliging almsgiving and the discharge of prayer when their occurrence is impossible: how can something be obligatory when it cannot be complied with? These people have confused a legal condition (الشرط الشرعي) with a condition of actual existence (الشرط الوجودي). The matter is otherwise. The command applies to this responsible person before its condition is fulfilled only on the supposition that the condition will be fulfilled; this is within his capacity and can be acquired, unlike a condition of actual existence.

وَقَدِ احْتَجَّ مَنْ مَنَعَ التَّكْلِيفَ بِمِثْلِ هَذَا بِأَنَّهُ لَا مَعْنَى لِوُجُوبِ الزَّكَاةِ وَقَضَاءِ الصَّلَاةِ مَعَ اسْتِحَالَةِ وُقُوعِهِمَا فَكَيْفَ يَجِبُ مَا لَا يُمْكِنُ امْتِثَالُهُ. وَهَؤُلَاءِ الْقَوْمُ اشْتَبَهَ عَلَيْهِمُ الشَّرْطُ الشَّرْعِيُّ بِالشَّرْطِ الْوُجُودِيِّ. وَلَيْسَ الْأَمْرُ كَذَلِكَ فإن الْمُكَلَّفُ إِنَّمَا يَتَوَجَّهُ إِلَيْهِ الْأَمْرُ بِالشَّيْءِ قَبْلَ حُصُولِ شَرْطِهِ عَلَى تَقْدِيرِ حُصُولِ شَرْطِهِ، وَهُوَ مُسْتَطَاعٌ لَهُ وَمُكْتَسَبٌ بِخِلَافِ الشَّرْطِ الْوُجُودِيِّ.

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[15] Qurʾān, al-Muddaththir 74:42–43 ↗.

51. Conversion, apostasy, and a distinct command to make up acts

R 51 · BA 63

Their argument that, when an unbeliever becomes Muslim, the obligation concerning [past] prayer and almsgiving falls away contains no proof. We hold that this obligation lapses upon conversion only on the basis of a legal proof. We require make-up performance (القضاء) from an apostate but not from an unbeliever because make-up performance becomes obligatory only through a separate command; the legal proof must therefore be followed. Thus someone not commanded to perform an act within its time (الأداء) may be commanded to make it up, while someone commanded to perform it within its time may not be commanded to make it up.

وَأَمَّا احْتِجَاجُهُمْ بِأَنَّ الْكَافِرَ إِذَا أَسْلَمَ انْتَفَى وُجُوبُ الصَّلَاةِ وَالزَّكَاةِ عَنْهُ، فَلَا حُجَّةَ فِيهِ، لِأَنَّ مَصِيرَنَا إِلَى سُقُوطِ وُجُوبِهَا بِالْإِسْلَامِ إِنَّمَا هُوَ بِدَلِيلِ الشَّرْعِ وَإِنَّمَا أَوْجَبْنَا الْقَضَاءَ عَلَى الْمُرْتَدِّ دُونَ الْكَافِرِ، لِأَنَّ الْقَضَاءَ إِنَّمَا يَجِبُ بِأَمْرٍ مُجَرَّدٍ فَلْيُتَّبَعْ فِيهِ الدَّلِيلُ الشَّرْعِيُّ، وَلِذَلِكَ قَدْ يُؤْمَرُ بِالْقَضَاءِ مَنْ لَا يُؤْمَرُ بِالْأَدَاءِ، وَقَدْ يُؤْمَرُ بِالْأَدَاءِ مَنْ لَا يُؤْمَرُ بِالْقَضَاءِ.

52. No demand to combine or abandon exhaustive contraries

R 52 · BA 64

They append a fourth question to this topic: just as a command to combine two contraries is inadmissible, so is a command to abstain from both when there is no intermediate between them.

وَمِمَّا يُلْحِقُونَ بِهَذَا الْبَابِ مَسْأَلَةٌ رَابِعَةٌ وَهِيَ: كَمَا أَنَّهُ لَا يَجُوزُ إِتْيَانُ الْأَمْرِ بِالْجَمْعِ بَيْنَ الضِّدَّيْنِ كَذَلِكَ لَا يَجُوزُ إِتْيَانُ الْأَمْرِ بِالتَّخَلِّي عَنْهُمَا، إِذَا لَمْ يَكُنْ بَيْنَهُمَا وَسَطٌ.

53. Hard cases: usurped fields and unavoidable injury

R 53 · BA 64–66

They claim, however, that certain particular cases cast doubt on this universal proposition. One concerns someone in the middle of a usurped cultivated field: both remaining and leaving are forbidden, since each damages another person's crop, and whichever he does he is disobedient. Another concerns someone who falls on the chest of a child surrounded by children, knowing that if he remains he will kill the child beneath him, and if he moves he will kill those around him.

وَلَكِنْ هَا هُنَا فِيمَا زَعَمُوا مَسَائِلُ جُزْئِيَّةٌ تُوقِعُ شَكًّا فِي هَذِهِ الْمَسْأَلَةِ الْكُلِّيَّةِ وَهِيَ: مَنْ تَوَسَّطَ أَرْضًا مُزْدَرَعَةً مَغْصُوبَةً فَيَحْرُمُ عَلَيْهِ الْمَكْثُ وَيَحْرُمُ عَلَيْهِ الْخُرُوجُ، إِذْ فِي كُلِّ وَاحِدٍ فَسَادُ زَرْعِ الْغَيْرِ، فَهُوَ عَاصٍ بِأَيِّهِمَا فَعَلَ. وَكَذَلِكَ مَنْ سَقَطَ عَلَى صَدْرِ صَبِيٍّ مَحْفُوفٍ بِصِبْيَانٍ، وَعَلِمَ إِنَّهُ إِنْ مَكَثَ قَتَلَ مَنْ تَحْتَهُ وَإِنِ انْتَقَلَ قَتَلَ مَنْ حَوَالَيْهِ.

Such questions are matters of independent judgement. They cast no doubt on the inadmissibility of a command to abstain from both contraries. It may plausibly be said that the person is not legally responsible in this condition. Or it may be said that in the first case he should leave to reduce the harm, and in the second remain, since moving is a new act that can proceed only from a living person. It is also possible to say that he has a choice, especially if neither act is preferable to the other in causing less harm. Here the discussion of the act, the third section of this book's first part, ends.

وَمِثْلُ هَذِهِ الْمَسَائِلِ فَهِيَ اجْتِهَادِيَّةٌ، وَلَيْسَتْ مِمَّا يُوقِعُ شَكًّا فِي أَنَّهُ لَا يَجُوزُ وُرُودُ الْأَمْرِ بِالتَّخَلِّي عَنِ الضِّدَّيْنِ. وَيُشْبِهُ أَنْ يُقَالَ فِيهَا هُوَ غَيْرُ مُكَلَّفٍ فِي هَذَا الْحَالِ، وَيُشْبِهُ أَنْ يُقَالَ فِي الْمَسْأَلَةِ الْأُولَى يَخْرُجُ لِتَقْلِيلِ الضَّرَرِ وَفِي الثَّانِيَةِ يَمْكُثُ، فَإِنَّ الِانْتِقَالَ فِعْلٌ مُسْتَأْنَفٌ لَا يَصِحُّ إِلَّا مِنْ حَيٍّ. وَيَحْتَمِلُ أَنْ يُقَالَ يَتَخَيَّرُ، وَلَاسِيَّمَا إِذَا لَمْ يَتَرَجَّحْ أَحَدُ الْفِعْلَيْنِ فِي قِلَّةِ الضَّرَرِ عَلَى الثَّانِي. وَهُنَا انْقَضَى الْقَوْلُ فِي الْفِعْلِ وَهُوَ الْقِسْمُ الثَّالِثُ مِنَ الْجُزْءِ الْأَوَّلِ مِنْ هَذَا الْكِتَابِ.

Discussion of the Fourth Section

الْقَوْلُ فِي الْقِسْمِ الرَّابِعِ

54. Manifesting causes and the attributes of rulings

R 54 · BA 67

This section discusses the existence of causes that manifest both rulings and attributes characterizing rulings (أسبابا مظهرة للأحكام ولصفات), such as validity and invalidity. It also explains what these names signify. It consists of four chapters.

هَذَا الْقِسْمُ يَتَضَمَّنُ الْقَوْلَ فِي أَنَّ هَا هُنَا أَسْبَابًا مُظْهِرَةً لِلْأَحْكَامِ وَلِصِفَاتٍ تَتَّصِفُ بِهَا الْأَحْكَامُ، كَالصِّحَّةِ وَالْفَسَادِ، وَيَتَضَمَّنُ شَرْحَ مَا تَدُلُّ عَلَيْهِ هَذِهِ الْأَسْمَاءُ، وَهُوَ أَرْبَعَةُ فُصُولٍ:

First Chapter: Causes That Manifest Rulings

الْفَصْلُ الْأَوَّلُ: فِي الْأَسْبَابِ الْمُظْهِرَةِ لِلْأَحْكَامِ

55. Legal signs and perceptible causes

R 55 · BA 68

Know that the Law has appointed signs for rulings that entail their occurrence as perceptible causes entail their effects. Through these causes we come to know that rulings obtain; otherwise establishing them would be impossible. The detailed account of the conditions under which they entail rulings belongs to the third part of this book.

اعْلَمْ أَنَّ الشَّرْعَ قَدْ نَصَبَ لِلْأَحْكَامِ عَلَامَاتٍ تَتَضَمَّنُ وُقُوعَهَا كَمَا تَتَضَمَّنُ الْعِلَلُ الْحِسِّيَّةُ مَعْلُولَاتِهَا، وَبِهَذِهِ الْأَسْبَابِ نَتَوَصَّلُ إِلَى مَعْرِفَةِ وُقُوعِ الْأَحْكَامِ، وَإِلَّا كَانَ إِثْبَاتُهَا مُحَالًا. وَالْقَوْلُ فِي تَفْصِيلِ الْأَحْوَالِ الَّتِي بِهَا تَكُونُ مُقْتَضِيَةً لِلْأَحْكَامِ هُوَ فِي الْجُزْءِ الثَّالِثِ مِنْ هَذَا الْكِتَابِ.

Second Chapter: What ‘Validity’ and ‘Nullity’ Signify in Rulings

الْفَصْلُ الثَّانِي: فِيمَا يَدُلُّ عَلَيْهِ اسْمُ الصِّحَّةِ وَالْبُطْلَانِ فِي الْأَحْكَامِ

56. Validity in worship and the validity of contracts

R 56 · BA 69–70

Know that these terms are applied to acts of worship in different ways. For theologians, validity (الصحة) applies to what occurs in conformity with the Law, whether make-up performance is obligatory or not; for jurists, it applies to what suffices and removes the requirement of make-up performance. Thus the prayer of someone who thought himself ritually pure is valid in the theologians' terminology, since make-up performance is required by a renewed command. These are terminological conventions about which there is no dispute once the intended meaning is understood.

اعْلَمْ أَنَّ هَذَا يُطْلَقُ فِي الْعِبَادَاتِ عَلَى أَوْجُهٍ مُخْتَلِفَةٍ، فَالصِّحَّةُ تَنْطَلِقُ عِنْدَ الْمُتَكَلِّمِينَ عَلَى مَا وَقَعَ عَلَى وَفْقِ الشَّرْعِ، وَجَبَ الْقَضَاءُ أَوْ لَمْ يَجِبْ؛ وَعِنْدَ الْفُقَهَاءِ عَمَّا أَجْزَأَ وَأَسْقَطَ الْقَضَاءَ، حَتَّى أَنَّ صَلَاةَ مَنْ ظَنَّ أَنَّهُ مُتَطَهِّرٌ صَحِيحَةٌ فِي اصْطِلَاحِ الْمُتَكَلِّمِينَ، لِأَنَّ الْقَضَاءَ لَازِمٌ بِأَمْرٍ مُتَجَدِّدٍ. وَهَذِهِ الاصطلاحات لَا مُشَاحَّةَ فِيهَا إِذَا فُهِمَ الْغَرَضُ.

In contracts, invalidity (الفساد) applies to every legal determination lacking something indispensable to its completion, whether a condition or a cause; validity is its opposite. Abū Ḥanīfa's followers, however, reserve ‘defective’ (الفاسد) for what is authorized in its foundation but prohibited in its attribute. We have already said that everything prohibited through its attribute is prohibited in its foundation and invalidated insofar as it bears that attribute. In general, rulings are characterized by validity only when carried out with the matters and conditions that the Law requires for their performance; invalidity is the contrary.

وَأَمَّا فِي الْعُقُودِ فَيَنْطَلِقُ الْفَسَادُ عَلَى كُلِّ حُكْمٍ لَمْ يَتَضَمَّنْ أَحَدَ مَا بِهِ يَتِمُّ الْحُكْمُ، سَوَاءٌ كَانَ ذَلِكَ شَرْطًا أَوْ سَبَبًا، وَالصِّحَّةُ مُقَابِلُ هَذَا. اللَّهُمَّ إِلَّا أَنَّ أَصْحَابَ أَبِي حَنِيفَةَ فَإِنَّهُمْ يَخُصُّونَ بِاسْمِ الْفَاسِدِ مَا كَانَ مَشْرُوعًا فِي أَصْلِهِ مَمْنُوعًا فِي وَصْفِهِ. لَكِنْ قَدْ تَقَدَّمَ مِنْ قَوْلِنَا أَنَّ كُلَّ مَمْنُوعٍ بِوَصْفِهِ مَمْنُوعٌ بِأَصْلِهِ وَعَائِدٌ عَلَيْهِ بِالْفَسَادِ مِنْ جِهَةِ مَا هُوَ مُتَّصِفٌ. وَبِالْجُمْلَةِ فَالْأَحْكَامُ إِنَّمَا تَتَّصِفُ بِالصِّحَّةِ إِذَا فُعِلَتْ بِالْأُمُورِ وَالْأَحْوَالِ الَّتِي اشْتَرَطَ الشَّرْعُ فِي فِعْلِهَا، وَالْفَسَادُ بِخِلَافِ ذَلِكَ.

Third Chapter: Describing Worship as Timely Performance, Make-Up Performance, and Repetition

الْفَصْلُ الثَّالِثُ: فِي وَصْفِ الْعِبَادَةِ بِالْأَدَاءِ وَالْقَضَاءِ وَالْإِعَادَةِ

57. Timely performance, repetition, and making up

R 57 · BA 71–72

Know that when an obligation is discharged within its time, it is called timely performance (أداء). If performed once with some defect and then performed again, it is called repetition (إعادة). If discharged after its restricted or extended time has elapsed, having been deliberately omitted, it is called make-up performance (قضاء). The name qaḍāʾ is also applied to other meanings, some closer to this meaning and some more remote. One concerns what is omitted inadvertently until its time elapses. This too is properly called make-up performance, but differs from the first case in that its performer is relieved of sin.

اعْلَمْ أَنَّ الْوَاجِبَ إِذَا أُدِّيَ فِي وَقْتِهِ سُمِّيَ أَدَاءً، وَإِذَا فُعِلَ مَرَّةً عَلَى نَحْوٍ مِنَ الْخَلَلِ ثُمَّ فُعِلَ ثَانِيًا سُمِّيَ إِعَادَةً، وَإِنْ أُدِّيَ بَعْدَ خُرُوجِ وَقْتِهِ الضَّيِّقِ أَوِ الْمُوَسَّعِ مَعَ تَرْكِهِ عَمْدًا سُمِّيَ قَضَاءً. وَقَدْ يُطْلَقُ اسْمُ الْقَضَاءِ عَلَى مَعَانٍ غَيْرِ هَذِهِ بَعْضُهَا أَقْرَبُ إِلَى هَذَا الْمَعْنَى، وَبَعْضُهَا أَبْعَدُ. فَمِنْهَا مَا يُتْرَكُ سَهْوًا حَتَّى يَخْرُجَ وَقْتُهُ فَهَذَا أَيْضًا يُسَمَّى قَضَاءً حَقِيقَةً، لَكِنْ يُفَارِقُ الْأَوَّلَ بِحَطِّ الْإِثْمِ عَنْ فَاعِلِهِ.

Another concerns cases where timely performance is not obligatory, such as fasting for a menstruating woman. This puzzled some people to the point that they inferred an obligation to fast during menstruation from the obligation to make up the fast. Consensus refutes this: if she died before becoming ritually pure, she would not have sinned. Another concerns the sick person and the traveller. Since they are permitted to fast, their duty resembles an obligation with an extended time. This ought not to be called make-up performance, just as praying at the end of the allotted period is not called make-up performance. Such usage is figurative, because the familiar first period has been missed.

وَمِنْهَا أَلَّا يَجِبَ الْأَدَاءُ كَالصِّيَامِ فِي حَقِّ الْحَائِضِ. وَقَدْ أَشْكَلَ هَذَا عَلَى طَائِفَةٍ حَتَّى أَلْزَمُوا وُجُوبَ الصَّوْمِ عَلَى الْحَائِضِ بِدَلِيلِ وُجُوبِ الْقَضَاءِ، وَالْإِجْمَاعُ يَرُدُّ هَذَا فَإِنَّهَا لَوْ مَاتَتْ قَبْلَ أَنْ تَطْهُرَ لَمْ تَأْثَمْ، وَمِنْهَا حَالَةُ الْمَرِيضِ وَالْمُسَافِرِ فَإِنَّهُمَا مِنْ حَيْثُ لَهُمَا أَنْ يَصُومَا أَشْبَهَ فَرْضُهُمَا الْوَاجِبَ الْمُوَسَّعَ. وَقَدْ كَانَ يَنْبَغِي أَلَّا يُسَمَّى هَذَا قَضَاءً، كَمَا لَا يُسَمَّى إِتْيَانُ الصَّلَاةِ فِي آخِرِ الْوَقْتِ قَضَاءً. لَكِنْ تَسْمِيَةُ مِثْلِ هَذَا قَضَاءً مَجَازٌ، لِمَا فِي ذَلِكَ مِنْ فَوَاتِ الْوَقْتِ الْأَوَّلِ الْمَشْهُورِ.

58. The traveller’s fast: concession or an alternative duty?

R 58 · BA 73

There are two other doctrines concerning the traveller and the sick person. The Ẓāhirīs hold that if they fast, their fast is invalid, because of His words—mighty and exalted—‘then a number of other days.’[16] Al-Karkhī holds that the obligation concerns other days, but that fasting during Ramaḍān is valid, like advancing the alms before the year's completion. Both doctrines rest upon declining to recognise an ellipsis in the verse, whose understood wording is ‘and he breaks the fast, then a number of other days,’[16] and to construe it as a concession (رخصة). This question will become clear from the discussion in the third part of this book.

وَفِي الْمُسَافِرِ وَالْمَرِيضِ مَذْهَبَانِ غَيْرُ هَذَا: أَحَدُهُمَا مَذْهَبُ أَهْلِ الظَّاهِرِ أَنَّهُمَا لَوْ صَامَا لَمْ يَصِحَّ صَوْمُهُمَا لِقَوْلِهِ عَزَّ وَجَلَّ: {فَعِدَّةٌ مِنْ أَيَّامٍ أُخَرَ}[16] وَالثَّانِي مَذْهَبُ الْكَرْخِيِّ أَنَّ الْوَاجِبَ أَيَّامٌ أُخَرُ، وَلَكِنْ لَوْ صَامَا رَمَضَانَ صَحَّ، كَمَنْ قدم الزَّكَاةَ عَلَى الْحَوْلِ. وَكِلَا هَذَيْنِ الْقَوْلَيْنِ إِنَّمَا ينبنيان عَلَى مَنْ لَا يَرَى أَنَّ فِي الْآيَةِ حَذْفًا، وَأَنَّ التَّقْدِيرَ: فَأَفْطَرَ فَعِدَّةٌ مِنْ أَيَّامٍ أُخَرَ[16]، وَأَنَّ ذَلِكَ مَحْمُولٌ عَلَى الرُّخْصَةِ. وَسَتَبِينُ هَذِهِ الْمَسْأَلَةُ مِمَّا يُقَالُ فِي الْجُزْءِ الثَّالِثِ مِنْ هَذَا الْكِتَابِ.

Someone who construes it as a concession might be asked about the validity of fasting by a sick person who fears death or severe harm to himself. That is a matter of independent judgement admitting either answer, and lies outside the present purpose.

فَأَمَّا مَا يَحْتَمِلُ أَنْ يُسْأَلَ عَنْهُ مَنْ يَرَى ذَلِكَ مَحْمُولًا عَلَى الرُّخْصَةِ مِنْ جَوَازِ وُقُوعِ صِيَامِ الْمَرِيضِ الَّذِي يَخَافُ عَلَى نَفْسِهِ الْهَلَاكَ وَالضَّرَرَ الْعَظِيمَ، فَتِلْكَ مَسْأَلَةٌ اجْتِهَادِيَّةٌ تَحْتَمِلُ الْوَجْهَيْنِ، وَهِيَ خَارِجَةٌ عَنْ هَذَا الْغَرَضِ.

59. Does an expectation of death shorten the prescribed time?

R 59 · BA 74

The Qāḍī—may God have mercy upon him—applied the name ‘make-up performance’ to what a person deliberately omits while predominantly expecting death before performing it, if events subsequently contradict that expectation. His reason is that the time is assessed according to the predominant probability. This is meaningless, since expecting death does not cause the allotted time itself to elapse.

وَقَدْ أَطْلَقَ الْقَاضِي رَحِمَهُ اللَّهُ اسْمَ الْقَضَاءِ عَلَى مَا يَتْرُكُهُ الْإِنْسَانُ مُتَعَمِّدًا مَعَ غَلَبَةِ ظَنِّهِ بِالِاخْتِرَامِ قَبْلَ أَدَائِهِ الْفِعْلَ إِذَا انْكَشَفَ خِلَافُ مَا ظَنَّ، لِأَنَّهُ يُقَدِّرُ الْوَقْتَ بِحَسَبِ غَلَبَةِ الظَّنِّ. وَهَذَا لَا مَعْنَى لَهُ، لِأَنَّهُ لَيْسَ يَكُونُ ظَنُّهُ بِالِاخْتِرَامِ سَبَبًا لِخُرُوجِ الْوَقْتِ فِي نَفْسِهِ.

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[16] **16.** Qurʾān, al-Baqarah 2:184–185 ↗. The clause occurs in both verses. The later “and he breaks the fast” is an explanatory addition, not Qurʾānic wording.

Fourth Chapter: The Original Requirement and the Concession

الْفَصْلُ الرَّابِعُ: فِي الْعَزِيمَةِ وَالرُّخْصَةِ

60. Original requirements and concessions under necessity

R 60 · BA 75

Know that the original requirement (العزم) in the Law designates what binds servants through God's imposition of obligation. A concession (الرخصة) designates the latitude granted to a legally responsible person in acting because of an excuse or incapacity, while the prohibiting cause remains in place: for example, permitting a draught of wine to someone choking, or carrion to someone compelled by necessity. ‘Concession’ may also be applied to other meanings, some closer to this meaning and some more remote.

اعْلَمْ أَنَّ الْعَزْمَ فِي الشَّرْعِ عِبَارَةٌ عَمَّا لَزِمَ الْعِبَادَ بِإِيجَابِ اللَّهِ تَعَالَى، وَالرُّخْصَةُ عِبَارَةٌ عَمَّا وُسِّعَ لِلْمُكَلَّفِ فِي فِعْلِهِ لِعُذْرٍ أَوْ عَجْزٍ عَنْهُ، مَعَ قِيَامِ السَّبَبِ الْمُحَرِّمِ، كَتَحْلِيلِ جُرْعَةِ خَمْرٍ لِلشَّرِقِ، وَالْمَيْتَةِ لِلْمُضْطَرِّ. وَقَدْ تُطْلَقُ الرُّخْصَةُ عَلَى مَعَانٍ غَيْرِ هَذِهِ بَعْضُهَا أَقْرَبُ إِلَى هَذَا وَبَعْضُهَا أَبْعَدُ.

61. The first part concluded

R 61 · BA 76

Here inquiry into the first part of this abridgement ends. The book on the sources of rulings follows.

وَهُنَا انْتَهَى النَّظَرُ فِي الْجُزْءِ الْأَوَّلِ مِنْ هَذَا الْمُخْتَصَرِ، وَيَتْلُوهُ كِتَابُ أُصُولِ الْأَحْكَامِ.

Part II

Discussion of the Second Part of This Book

الْقَوْلُ فِي الْجُزْءِ الثَّانِي مِنْ هَذَا الْكِتَابِ

62. The four sources and original negation

R 62 · BA 77

This part comprises inquiry into the sources on which these rulings rest and from which they are derived. They are four: the Book, the Sunna, the community's consensus, and reason's indication of original negation (النفي الأصلي). Calling the last a source is figurative, since it indicates the absence of rulings rather than rulings themselves. The status of a Companion's statement and the law of those before us is disputed. Let us begin with the Book, examining first its reality, then what delimits it, then its expressions, and then its rulings.

وَهُوَ يَتَضَمَّنُ النَّظَرَ فِي الْأُصُولِ الَّتِي تَسْتَنِدُ إِلَيْهَا هَذِهِ الْأَحْكَامُ وَعَنْهَا تُسْتَنْبَطُ، وَهِيَ أَرْبَعَةٌ: الْكِتَابُ، وَالسُّنَّةُ، وَإِجْمَاعُ الْأُمَّةِ، وَدَلِيلُ الْعَقْلِ عَلَى النَّفْيِ الْأَصْلِيِّ، وَتَسْمِيَةُ مِثْلِ هَذَا أَصْلًا تَجَوُّزٌ، إِذْ لَيْسَ يَدُلُّ عَلَى الْأَحْكَامِ بَلْ عَلَى نَفْيِهَا. فَأَمَّا قَوْلُ الصَّحَابَةِ وَشَرِيعَةُ مَنْ قَبْلَنَا فَمُخْتَلَفٌ فِيهِ. فَلْنَبْدَأْ مِنْ ذَلِكَ فِي الكتاب، وَنَنْظُرْ أَوَّلًا فِي حَقِيقَتِهِ، ثُمَّ فِيمَا يَحْصُرُهُ، ثُمَّ فِي أَلْفَاظِهِ، ثُمَّ فِي أَحْكَامِهِ.

The First Source

الْأَصْلُ الْأَوَّلُ

63. Divine speech and the bounds of theological inquiry

R 63 · BA 78

As for its reality and meaning, ‘it is the speech subsisting in the essence of God Most High, an eternal attribute among His attributes.’ Establishing this attribute and distinguishing it from the other attributes by what is peculiar to it belongs to theology (علم الكلام).[17]

فَأَمَّا حَقِيقَتُهُ وَمَعْنَاهُ «فَهُوَ الْكَلَامُ الْقَائِمُ بِذَاتِ اللَّهِ تَعَالَى، وَهُوَ صِفَةٌ قَدِيمَةٌ مِنْ صِفَاتِهِ»، وَالْقَوْلُ فِي إِثْبَاتِ هَذِهِ الصِّفَةِ وَتَخْلِيصِهَا بِمَا يَخُصُّهَا مِنْ غَيْرِهَا مِنَ الصِّفَاتِ هُوَ مِنْ عِلْمِ الْكَلَامِ.

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[17] **17.** Translation. The definition in this passage is marked as a quotation. Its formulation is also found in al-Ghazālī's al-Mustaṣfā; compare the wording بِمَا يَخُصُّهَا and the distinction between the source's formulation and the author's discussion.

64. The Qurʾānic corpus, variant additions, and the basmala

R 64 · BA 79–81

Its limits comprise what has been transmitted to us between the two covers of the codex in the seven well-known aḥruf (الأحرف السبعة, modes of recitation), through recurrent transmission (نقلا متواترا, tawātur), also called mass transmission. We specified the codices because the Companions—may God be pleased with them—took the utmost precaution in transmitting it in writing. We required recurrent transmission because it yields certainty. What lies outside this and has not been recurrently transmitted is not part of it. It is impossible according to ordinary experience that any portion should be neglected or transmitted only by isolated reports, despite its wide circulation within a community incapable of such neglect or omission, whose transmission establishes recurrence.

Hence, contrary to Abū Ḥanīfa, most scholars hold that additions not recurrently transmitted do not require action—for example, consecutiveness in expiation[18] and similar matters. These additions do not stand in the position of solitary reports (أخبار الآحاد), since a report has neither a contrary indication nor evidence that it is false. If these additions are not considered Qurʾān, they may represent a Companion's doctrine or may be a report; action may not be based on something hovering between these two possibilities.

For this reason the Qāḍī—may God have mercy upon him—declared al-Shāfiʿī—may God have mercy upon him—definitely mistaken in treating ‘In the name of God, the Merciful, the Compassionate’[19] as a verse of every sūra, although it is a verse of al-Naml. Had that been so, an explicit statement of its being Qurʾān would have been transmitted to us and no disagreement would have arisen. Al-Shāfiʿī can argue that its placement at a sūra's beginning by the command of God's Messenger—God bless him and grant him peace— and its revelation at the beginning of each sūra, are contextual indicators suggesting that it belongs to the Qurʾān; if it did not, this would have been stated expressly.

فَأَمَّا مَا يَحْصُرُهُ فَهُوَ مَا نُقِلَ إِلَيْنَا بَيْنَ دَفَّتَيِ الْمُصْحَفِ عَلَى الْأَحْرُفِ السَّبْعَةِ الْمَشْهُورَةِ نَقْلًا مُتَوَاتِرًا. وَإِنَّمَا قَيَّدْنَاهُ بِالْمَصَاحِفِ لِأَنَّ الصَّحَابَةَ رَضِيَ اللَّهُ عَنْهُمْ بالغوا فِي الِاحْتِيَاطِ فِي نَقْلِهِ بِالْكُتُبِ. وَاشْتَرَطْنَا فِي نَقْلِهِ التَّوَاتُرَ لِأَنَّهُ الْمُفِيدُ لِلْيَقِينِ. وَلْيُعْلَمْ أَيْضًا أَنَّ مَا هُوَ خَارِجٌ عَنْهُ مِمَّا لَمْ يُنْقَلْ نَقْلَ تَوَاتُرٍ فَلَيْسَ مِنْهُ، إِذْ يَسْتَحِيلُ فِي عُرْفِ الْعَادَةِ أَنْ يُهْمَلَ بَعْضُهُ أَوْ يُنْقَلَ نَقْلَ آحَادٍ مَعَ اسْتِفَاضَتِهِ فِي الْجَمَاعَةِ الَّتِي لَا يَصِحُّ عَلَيْهَا الْإِغْفَالُ وَالْإِهْمَالُ وَهُمُ الَّذِينَ يَقَعُ بِنَقْلِهِمُ التَّوَاتُرُ.

وَلِهَذَا مَا كَانَتِ الزِّيَادَاتُ الَّتِي لَمْ تُنْقَلْ نَقْلَ تَوَاتُرٍ لَيْسَتْ تُوجِبُ عِنْدَ الْأَكْثَرِ عَمَلًا، خِلَافًا لِأَبِي حَنِيفَةَ، كَالتَّتَابُعِ فِي الْكَفَّارَةِ[18] وَمَا أَشْبَهَهُ. وَلَيْسَتْ هَذِهِ مُتَنَزِّلَةً مَنْزِلَةَ أَخْبَارِ الْآحَادِ، لِأَنَّ الْخَبَرَ لَا مُعَارِضَ لَهُ وَلَا دَلِيلَ عَلَى كَوْنِهِ كَذِبًا. وَإِذَا لَمْ تُجْعَلْ هَذِهِ الزِّيَادَاتُ مِنَ الْقُرْآنِ احْتَمَلَتْ أَنْ تَكُونَ مَذْهَبًا لِصَاحِبٍ، وَاحْتَمَلَتِ الْخَبَرَ وَمَا يَتَرَدَّدُ بَيْنَ هَذَيْنِ الِاحْتِمَالَيْنِ فَلَا يَجُوزُ الْعَمَلُ بِهِ.

وَلِهَذَا قَطَعَ الْقَاضِي رَحِمَهُ اللَّهُ بِتَخْطِئَةِ الشَّافِعِيِّ رَحِمَهُ اللَّهُ فِي جَعْلِهِ بِاسْمِ اللَّهِ الرَّحْمَانِ الرَّحِيمِ[19] آيَةً مِنْ كُلِّ سُورَةٍ، مَعَ كَوْنِهَا آيَةً مِنَ النَّمْلِ، إِذْ لَوْ كَانَ ذَلِكَ كَذَلِكَ لَنُقِلَ إِلَيْنَا تَصْرِيحًا كَوْنُهَا مِنَ الْقُرْآنِ، وَلَمْ يَقَعْ فِي ذَلِكَ خِلَافٌ. وَلِلشَّافِعِيِّ أَنْ يَتَمَسَّكَ بِأَنَّ جَعْلَهَا فِي أَوَّلِ سُورَةٍ بِأَمْرِ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ وَنُزُولَهَا فِي أَوَّلِ كُلِّ سُورَةٍ قَرَائِنُ تُوهِمُ أَنَّهَا مِنَ الْقُرْآنِ، فَلَوْ لَمْ تَكُنْ مِنْهُ لَصُرِّحَ بِذَلِكَ.

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[18] Cf. Qurʾān, al-Māʾidah 5:89 ↗. The passage concerns a reported reading adding “consecutively”; that addition is not in the verse’s muṣḥaf text.

[19] Qurʾān, al-Naml 27:30 ↗. This is the basmala’s occurrence in al-Naml; the discussion concerns its status at the beginnings of sūras.

The invocation of refuge, the qunūt supplication, and similar expressions whose being outside the Qurʾān was not expressly stated are not in the same position. In general, this is a question for independent judgement, which is why the Qāḍī did not pronounce unbelief on its account. Even so, it has little usefulness for deriving rulings. Al-Shāfiʿī required recitation of ‘In the name of God, the Merciful, the Compassionate’[19] in prayer only because of reports transmitted to that effect.’[20]

وَلَيْسَ كَذَلِكَ التَّعَوُّذُ وَالْقُنُوتُ وَمَا أَشْبَهَ ذَلِكَ مِمَّا لَمْ يُصَرَّحْ بِكَوْنِهِ مِنْ غَيْرِ الْقُرْآنِ. وَبِالْجُمْلَةِ فَهِيَ مَسْأَلَةٌ اجْتِهَادِيَّةٌ وَلِذَلِكَ لَمْ يُكَفِّرِ الْقَاضِي بِهَا وَمَعَ ذَلِكَ فَهِيَ قَلِيلَةُ الْغَنَاءِ فِي الِاسْتِنْبَاطِ عَنْهَا. وَالشَّافِعِيُّ إِنَّمَا أَوْجَبَ قِرَاءَةَ بِسْمِ اللَّهِ الرَّحْمَانِ الرَّحِيمِ[19] فِي الصَّلَاةِ لِلْأَخْبَارِ الْوَارِدَةِ بِذَلِكَ.

65. Literal, figurative, arabicized, and ambiguous expressions

R 65 · BA 82–84

As for its expressions, some are literal (حقيقة) and some figurative (مجاز). Their presence is evident, since it is in the Arabs' language and tongue. In general, I do not think any tongue or language lacks them, though languages differ in this regard. Some deny, and others allow, that its vocabulary contains anything outside Arabic; determining this contributes little to our present undertaking. In general, if Arabic contains an expression originally foreign to it, the Arabs have Arabized and altered it in a manner entitling it to count as part of their language and to be attributed to it.

وَأَمَّا النَّظَرُ فِي أَلْفَاظِهِ فَمِنْهَا حَقِيقَةٌ وَمَجَازٌ، وَوُجُودُ ذَلِكَ فِيهِ بَيِّنٌ مِنْ حَيْثُ هُوَ بِلُغَةِ الْعَرَبِ وَلِسَانِهَا.

وَبِالْجُمْلَةِ فَمَا أَظُنُّ لِسَانًا وَلَا لُغَةً يَعْرَى مِنْ ذَلِكَ، وَإِنْ كَانَتِ الْأَلْسِنَةُ تَتَفَاوَتُ فِي ذَلِكَ. وَأَمَّا نَفْيُ بَعْضِهِمْ مِنْ أَنْ يَكُونَ فِي أَلْفَاظِهِ شَيْءٌ لَيْسَ فِي لُغَةِ الْعَرَبِ وَجَوَّزَهُ بَعْضُهُمْ فَالْوُقُوفُ عَلَى ذَلِكَ قَلِيلُ الْغَنَاءِ فِيمَا نَحْنُ بِسَبِيلِهِ. وَبِالْجُمْلَةِ إِنْ كَانَ فِي لِسَانِ الْعَرَبِ شَيْءٌ مِنْ غَيْرِ أَلْفَاظِهَا فَقَدْ عَرَّبَتْهُ الْعَرَبُ تَعْرِيبًا وَغَيَّرَتْهُ تَغْيِيرًا اسْتَوْجَبَ بِهِ اللَّفْظُ كَوْنَهُ مِنْ لُغَتِهَا وَمَنْسُوبًا إِلَيْهَا.

Its expressions include determinate and ambiguous wording (محكم ومتشابه), as He—mighty and exalted—has said[21]. People have disagreed about the ambiguous. It is preferable to consider ambiguous expressions to be those capable of bearing more than one meaning; or those whose apparent interpretation suggests a contradiction among them; or expressions for whose meanings the Arabs had no prior convention or established usage, such as the letters at the beginnings of sūras; or all of these.

وَفِي أَلْفَاظِهِ مُحْكَمٌ وَمُتَشَابِهٌ كَمَا قَالَ عَزَّ وَجَلَّ[21]، وَقَدِ اخْتَلَفَ النَّاسُ فِي الْمُتَشَابِهِ، وَالْأَوْلَى أَنْ يُظَنَّ أَنَّ الْأَلْفَاظَ الْمُتَشَابِهَةَ هِيَ الَّتِي يُمْكِنُ حَمْلُهَا عَلَى مَعْنًى أَكْثَرَ مِنْ وَاحِدٍ، أَوِ الَّتِي يُوهِمُ حَمْلُهَا عَلَى الظَّاهِرِ تَعَارُضًا فِيهَا، أَوِ الْأَلْفَاظَ الَّتِي لَمْ تَتَقَدَّمْ لِلْعَرَبِ مُوَاضَعَةٌ وَلَا اصْطِلَاحٌ عَلَى مَعَانِيهَا كَالْحُرُوفِ الَّتِي فِي أَوَائِلِ السُّوَرِ، أَوْ جَمِيعَ هَذِهِ.

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19. Qurʾān, al-Naml 27:30 ↗. This is the basmala’s occurrence in al-Naml; the discussion concerns its status at the beginnings of sūras.

20. Translation. The term aḥruf is retained as written (printed p. 63), without silently identifying it with a particular classification of canonical readings.

21. Qurʾān, Āl ʿImrān 3:7 ↗.

Discussion of the Second Source: The Sunna

الْقَوْلُ فِي الْأَصْلِ الثَّانِي وَهُوَ السُّنَّةُ

66. The authority of the Sunna and the routes of transmission

R 66 · BA 85

The saying of God's Messenger—God bless him and grant him peace—is an authoritative proof (حجة), because the miracle indicates his truthfulness. It is a proof in itself for anyone who heard him directly. We, however, receive his sayings—God bless him and grant him peace—only through transmitters, either by recurrent transmission (التواتر) or through solitary reports (الآحاد). The discussion of reports therefore divides into these two sections. Common to both is an explanation of the ranks of the expressions used by the Companions—may God be pleased with them—in transmitting reports from him—God bless him and grant him peace. These ranks are as follows:

وَقَوْلُ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ حُجَّةٌ لِدَلَالَةِ الْمُعْجِزَةِ عَلَى صِدْقِهِ، وَهُوَ حُجَّةٌ بِنَفْسِهِ عَلَى مَنْ سَمِعَهُ مُشَافَهَةً. فَأَمَّا نَحْنُ فَلَمْ يَبْلُغْنَا قَوْلُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ إِلَّا عَلَى لِسَانِ الْمُخْبِرِينَ، إِمَّا بِطَرِيقِ التَّوَاتُرِ، وَإِمَّا بِطَرِيقِ الْآحَادِ. وَلِذَلِكَ يَنْقَسِمُ الْقَوْلُ فِي الْأَخْبَارِ إِلَى هَذَيْنِ الْقِسْمَيْنِ، وَيَعُمُّهُمَا بَيَانُ مَرَاتِبِ أَلْفَاظِ الصَّحَابَةِ رَضِيَ اللَّهُ عَنْهُمْ فِي نَقْلِ الْأَخْبَارِ عَنْهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَهِيَ مَرَاتِبُ:

67. First rank: explicit attestation of direct hearing

R 67 · BA 86

The first is for the Companion to say, ‘I heard God's Messenger—God bless him and grant him peace,’ ‘He related to me,’ ‘He informed me,’ or ‘He spoke to me directly.’ This admits no alternative possibility.

فَأَوَّلُهَا أَنْ يَقُولَ الصَّحَابِيُّ سَمِعْتُ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، أَوْ حَدَّثَنِي، أَوْ أَخْبَرَنِي أَوْ شَافَهَنِي، فَهَذَا لَا يَتَطَرَّقُ إِلَيْهِ احْتِمَالٌ.

68. Second rank: “The Messenger said”

R 68 · BA 87

The second rank is to say, ‘God's Messenger said such-and-such,’ or ‘He related such-and-such.’ When this comes from a Companion, its apparent meaning is direct transmission, but it is not explicit, unambiguous wording (نصا صريحا), since the Companion may have been told it on the authority of God's Messenger—God bless him and grant him peace. Most nevertheless regard acting on such a report as permissible because of the contextual indicators supporting it, especially when it comes from someone whose companionship with him was extensive.

الْمَرْتَبَةُ الثَّانِيَةُ: أَنْ يَقُولَ: قَالَ رَسُولُ اللَّهِ كَذَا أَوْ حَدَّثَ بِكَذَا. فَهَذَا ظَاهِرُهُ النَّقْلُ، إِذَا صَدَرَ عَنِ الصَّحَابِيِّ وَلَيْسَ نَصًّا صَرِيحًا، إِذْ مُمْكِنٌ أَنْ يَكُونَ حُدِّثَ بِهِ عَنْ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ. لَكِنْ رَأَى أَكْثَرُهُمُ الْعَمَلَ بِمِثْلِ هَذَا جَائِزًا لِلْقَرَائِنِ الدَّالَّةِ عَلَى ذَلِكَ، لَاسِيَّمَا إِذَا صَدَرَ ذَلِكَ عَنْ مَنْ كَثُرَتْ صُحْبَتُهُ.

69. Third rank: reporting a command rather than its wording

R 69 · BA 88

The third rank is for the Companion to say, ‘God's Messenger commanded such-and-such,’ ‘prohibited such-and-such,’ ‘prescribed such-and-such,’ or ‘made such-and-such obligatory.’ Two possibilities arise: one concerns whether he heard it, as with the expression ‘he said’ [the printed cross-reference is defective]; the second concerns his understanding the address as command or obligation, since the imperative form is disputed. Hence Dāwūd and those Ẓāhirīs who followed him held that the Companion's statement is no authoritative proof unless he transmits the actual words of the Messenger—God bless him and grant him peace.

الْمَرْتَبَةُ الثَّالِثَةُ: أَنْ يَقُولَ الصَّحَابِيُّ أَمَرَ رَسُولُ اللَّهِ بِكَذَا، وَنَهَى عَنْ كَذَا، أَوْ فَرَضَ كَذَا، وَأَوْجَبَ كَذَا. فَهَذَا يَتَطَرَّقُ إِلَيْهِ احْتِمَالَانِ: أَحَدُهُمَا فِي سَمَاعِهِ كَمَا فِي قَوْلِهِ تَعَالَى، وَالثَّانِي فِي فَهْمِهِ عَنِ الْخِطَابِ الْأَمْرَ أَوِ الْوُجُوبَ، إِذْ صِيغَةُ الْأَمْرِ مُخْتَلَفٌ فِيهَا. وَلِذَلِكَ رَأَى دَاوُودُ وَمَنْ تَبِعَهُ مِنْ أَهْلِ الظَّاهِرِ أَلَّا حُجَّةَ فِي قَوْلِهِ مَا لَمْ يَنْقُلْ لَفْظَهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ.

It has been argued against them that this is an inquiry into understanding expressions. Disagreement about them arises among us because we are neither masters of eloquent Arabic nor authorities for Arabic speech. But since the Companion is an Arab, how could he be suspected of error concerning the imperative form, when his usage itself supplies authoritative evidence in a dispute about it?

وَقَدِ احْتُجَّ عَلَيْهِمْ أَنَّ هَذَا نَظَرٌ مِنْ حَيْثُ فَهْمُ الْأَلْفَاظِ. وَإِنَّمَا وَقَعَ الْخِلَافُ فِيهَا بَيْنَنَا مِنْ حَيْثُ أَنَّا لَسْنَا بِفُصَحَاءَ وَلَا بِحُجَّةٍ عَلَى الْكَلَامِ الْعَرَبِيِّ. وَأَمَّا الصَّحَابِيُّ مِنْ حَيْثُ أَنَّهُ عَرَبِيٌّ فَكَيْفَ يُتَوَهَّمُ عَلَيْهِ الْغَلَطُ فِي صِيغَةِ الْأَمْرِ، مَعَ أَنَّ بِهِ تَقُومُ الْحُجَّةُ عِنْدَ الِاخْتِلَافِ فِيهَا.

70. How linguistic usage is established

R 70 · BA 89

We consider that establishing correct expressions in a language for someone who is not a native speaker occurs in one of two ways: by induction from its speakers' discourse, or by transmission from them where the usage is widespread among them. Accordingly, one person's statement cannot serve as authoritative evidence until it becomes widely circulated. Whether recurrent transmission is required in transmitting a language, or solitary reports suffice, is disputed. It seems that solitary transmission suffices for much of it; otherwise there would be no way to ascertain most verbal significations if recurrent transmission were required for each expression.

وأنا أرى أَنَّ تَصْحِيحَ الْأَلْفَاظِ فِي لِسَانٍ مَا عِنْدَ مَنْ لَمْ يَكُنْ مِنْ أَهْلِ ذَلِكَ اللِّسَانِ إِنَّمَا يَحْصُلُ بِأَحَدِ أَمْرَيْنِ: إِمَّا بِاسْتِقْرَاءِ كَلَامِهِمْ، أَوِ النَّقْلِ عَنْهُمْ إِذَا اسْتَفَاضَ ذَلِكَ فِيهِمْ. وَعَلَى هَذَا لَا يَصِحُّ الِاحْتِجَاجُ بِقَوْلِ الْوَاحِدِ حَتَّى يَسْتَفِيضَ قَوْلُهُ. وَأَمَّا هَلْ يُشْتَرَطُ فِي نَقْلِ اللُّغَةِ التَّوَاتُرُ أَوْ تَكْفِي فِيهِ الْآحَادُ؟ فَذَلِكَ مُخْتَلَفٌ فِيهِ. وَيُشْبِهُ أَنْ يَكْفِيَ فِي كَثِيرٍ مِنْهَا نَقْلُ الْآحَادِ، وَإِلَّا لَمْ يَكُنْ سَبِيلٌ إِلَى الْوُقُوفِ عَلَى أَكْثَرِ دَلَالَاتِ الْأَلْفَاظِ لَوِ اشْتُرِطَ فِي نَقْلِ كُلٍّ وَاحِدَةٍ مِنْهَا التَّوَاتُرُ.

71. Fourth rank: “We were commanded” and “It is Sunna”

R 71 · BA 90

The fourth rank is to say, ‘We were commanded to do such-and-such,’ or ‘We were prohibited from such-and-such.’ Besides the preceding possibilities, this admits another: the person issuing the command may have been someone other than the Prophet—God bless him and grant him peace—among the leaders and rulers. Their expressions ‘Such-and-such belongs to the Sunna’ and ‘The Sunna proceeds in such-and-such a way’ have the same import.

الْمَرْتَبَةُ الرَّابِعَةُ: أَنْ يَقُولَ أُمِرْنَا بِكَذَا أَوْ نُهِينَا عَنْ كَذَا. فَهَذَا يَتَطَرَّقُ إِلَيْهِ، مَعَ مَا سَبَقَ مِنَ الِاحْتِمَالَاتِ، احْتِمَالٌ آخَرُ وَهُوَ أَنَّ الْأَمْرَ بِذَلِكَ عَسَاهُ أَنْ يَكُونَ غَيْرَ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مِنَ الْأَئِمَّةِ وَالْأُمَرَاءِ، وَفِي مَعْنَى هَذَا قَوْلُهُمْ: مِنَ السُّنَّةِ كَذَا، وَالسُّنَّةُ جَارِيَةٌ بِكَذَا.

72. Fifth rank: practices in the Prophet’s lifetime

R 72 · BA 91

The fifth rank is for a Companion to say, ‘They used to do such-and-such,’ relating the practice to the time of God's Messenger—God bless him and grant him peace. This too admits the possibility that the practice reached the notice of God's Messenger—God bless him and grant him peace—and he approved it, which is the more apparent possibility; it also admits the possibility that it did not reach him.

الْمَرْتَبَةُ الْخَامِسَةُ: أَنْ يَقُولَ الصَّحَابِيُّ كَانُوا يَفْعَلُونَ كَذَا، فَأَضَافَ الْفِعْلَ إِلَى عَهْدِ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ. فَهَذَا أَيْضًا يَحْتَمِلُ أَنْ يَكُونَ بَلَغَ ذَلِكَ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَهُوَ الْأَظْهَرُ، فَأَقَرَّهُ. وَيَحْتَمِلُ أَنْ يَكُونَ لَمْ يَبْلُغْهُ.

73. The reporting formulas concluded

R 73 · BA 92

From this it has become clear what constitutes reporting from God's Messenger—God bless him and grant him peace—and what does not.

فَقَدْ ظَهَرَ مِنْ هَذَا مَا هُوَ إِخْبَارٌ عَنْ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَمَا لَيْسَ بِإِخْبَارٍ.

74. The degrees of assent yielded by transmission

R 74 · BA 93

It remains now to explain how reports reach us: either through recurrent transmission or through solitary transmission. Let us discuss both and the rank of the assent (التصديق) arising from each, beginning with recurrent transmission. We say:

وَالْآنَ فَقَدْ بَقِيَ تَبْيِينُ طرق انْتِهَاءِ الْأَخْبَارِ إِلَيْنَا، وَذَلِكَ إِمَّا أَنْ يَكُونَ نَقْلَ تَوَاتُرٍ أَوْ آحَادٍ. وَلْنَقُلْ فِيهِمَا وَفِي مَرْتَبَةِ التَّصْدِيقِ الْحَاصِلِ عَنْهُمَا، وَلْنَبْدَأْ مِنْ ذَلِكَ بِالتَّوَاتُرِ، فَنَقُولُ:

75. Recurrent transmission: certainty without a fixed number

R 75 · BA 94–95

Recurrent transmission (التواتر) is a widely circulated report from which certainty arises about certain matters and under certain conditions, without our knowing whence, how, or when it arose. We said ‘about certain matters’ because it does not arise concerning intelligibles that are not by nature perceptible, or things whose analogues are perceptible but which cannot exist—such as a goat-stag and other things having no existence outside the soul. Nor does it arise concerning something possibly existent that is to be perceived in the future.

Rather, it yields certainty only about what has determinate existence now, or had determinate existence in the past, among things we have not yet ourselves perceived. Recurrent transmission has no use concerning what we have perceived or can apprehend through a certain syllogism (قياس يقيني), such as the world's coming into being and other matters. For if what is recurrently reported accords with what we perceived or established syllogistically, it is superfluous for us; if the contrary is recurrently reported, no assent arises in us from it.

Our phrase ‘under certain conditions’ guards against cases where reports are recurrent but certainty does not arise. On recognising this, some sought to require a number of transmitters from which certainty follows essentially and primarily, so that the number itself causes certainty and necessitates it as causes necessitate their effects. When they could not ascertain such a number, they defined it as that from which certainty arises, supposing that it has a determinate existence in itself even though it remains unknown to us.

إِنَّ التَّوَاتُرَ هُوَ خَبَرٌ مُسْتَفِيضٌ يَحْصُلُ عَنْهُ الْيَقِينُ فِي أُمُورٍ مَا وَعِنْدَ أَحْوَالٍ مَا مِنْ غَيْرِ أَنْ نَدْرِيَ مِنْ أَيْنَ حَصَلَ وَلَا كَيْفَ حَصَلَ وَلَا مَتَى حَصَلَ. وَإِنَّمَا قُلْنَا: فِي أُمُورٍ مَا، لِأَنَّهُ لَيْسَ يَحْصُلُ فِيمَا لَيْسَ شَأْنُهُ أَنْ يُحَسَّ مِمَّا هُوَ مَعْقُولٌ، أَوْ مِمَّا شَأْنُ مُنَاسِبِهِ أَنْ يُحَسَّ، إِلَّا أَنَّهُ غَيْرُ مُمْكِنِ الْوُجُودِ، كَعَنْزِ أَيِّلٍ وَغَيْرِ ذَلِكَ مِمَّا لَيْسَ لَهُ وُجُودٌ خَارِجَ النَّفْسِ، وَلَا فِيمَا شَأْنُهُ أَنْ يُحَسَّ بَعْدُ مِمَّا هُوَ مُمْكِنُ الْوُجُودِ.

بَلْ إِنَّمَا يَحْصُلُ الْيَقِينُ بِهِ فِيمَا هُوَ مُحَصَّلُ الْوُجُودِ فِي الزَّمَانِ الْحَاضِرِ، أَوْ كَانَ مُحَصَّلَ الْوُجُودِ فِي الزَّمَانِ الْمَاضِي مِمَّا لَمْ نُحِسَّهُ بَعْدُ، لِأَنَّ مَا أَحْسَسْنَاهُ أَوْ كَانَ لَنَا سَبِيلٌ إِلَى إِدْرَاكِهِ بِقِيَاسٍ يَقِينِيٍّ، كَحَدَثِ الْعَالَمِ، وَغَيْرِ ذَلِكَ، فَلَا غَنَاءَ لِلتَّوَاتُرِ فِيهِ، لِأَنَّهُ إِمَّا أَنْ يَتَوَاتَرَ عِنْدَنَا بِحَسَبِ مَا أَحْسَسْنَا أَوْ وَقَفْنَا عَلَيْهِ بِالْقِيَاسِ، فَذَلِكَ فِي حَقِّنَا فَضْلٌ، وَأَمَّا إِنْ تَوَاتَرَ خِلَافُهُ، فَلَا يَقَعُ لَنَا بِهِ تَصْدِيقٌ.

وَقَوْلُنَا: وَعِنْدَ أَحْوَالٍ مَا، تَحَفُّظٌ مِمَّا تَوَاتَرَ وَلَمْ يَقَعِ الْيَقِينُ بِهِ، وَلِذَلِكَ رَامَ قَوْمٌ لَمَّا شَعَرُوا بِهَذَا أَنْ يَشْتَرِطُوا فِي التَّوَاتُرِ عَدَدًا يَلْزَمُ عَنْهُ بِالذَّاتِ وَأَوَّلًا الْيَقِينُ، حَتَّى يَكُونَ هُوَ السَّبَبَ فِي وُقُوعِ الْيَقِينِ عَنْهُ، وَمُقْتَضِيًا لَهُ عَلَى جِهَةِ مَا تَقْتَضِي الْأَسْبَابُ مُسَبَّبَاتِهَا. فَلَمَّا لَمْ يَتَحَصَّلْ لَهُمْ حَدُّوهُ بِأَنَّهُ الَّذِي يَحْصُلُ عَنْهُ الْيَقِينُ عَلَى أَنَّهُ مُحَصَّلُ الْوُجُودِ فِي نَفْسِهِ، وَإِنْ كَانَ مَجْهُولًا عِنْدَنَا.

Observation shows otherwise. The number from which certainty arises evidently increases and decreases from one case to another. If there were some number that by nature produced certainty essentially and primarily, we would perceive and identify it. In general, a multiplicity of informants is one of the contextual indicators (القرائن) producing assent. The number must therefore increase or decrease according to the other contextual indicators joined to it.[22]

وَالْمُشَاهَدَةُ بِخِلَافِ ذَلِكَ، فَإِنَّهُ يَظْهَرُ أَنَّ الْعَدَدَ الَّذِي يَحْصُلُ عَنْهُ الْيَقِينُ يَزِيدُ وَيَنْقُصُ فِي نَازِلَةٍ نَازِلَةٍ، وَلَوْ كَانَ هَهُنَا عَدَدٌ مَا بِالطَّبْعِ يَحْصُلُ عَنْهُ الْيَقِينُ بِالذَّاتِ وَأَوَّلًا لَكُنَّا سَنُحِسُّهُ وَنَقِفُ عَلَيْهِ. وَبِالْجُمْلَةِ فَإِنَّ كَثْرَةَ الْمُخْبِرِينَ أَحَدُ الْقَرَائِنِ الَّتِي تُفِيدُ التَّصْدِيقَ، وَلِذَلِكَ يَلْزَمُ أَنْ يَزِيدَ وَيَنْقُصَ بِحَسَبِ مَا تَنْضَافُ إِلَيْهِ مِنَ الْقَرَائِنِ الْأُخَرِ.

76. How premises produce assent, even when unarticulated

R 76 · BA 96–97

If this is so, we cannot say that assent to this conclusion is produced, in the primary sense, by premises; rather, it comes about in the manner in which the first intelligibles are said to arise from sense perception. Anyone who supposes that recurrent transmission is like experiential premises—whose universality becomes certain through deliberately perceiving their particulars—is definitely mistaken. Rather, the assent arising from recurrent transmission is an act of the soul, and its relation to the soul resembles that of ⟨the first intelligibles to sense perception⟩.

وَإِذَا كَانَ هَذَا هَكَذَا، فَلَسْنَا نَقْدِرُ أَنْ نَقُولَ إِنَّ فَاعِلَ ذَلِكَ التَّصْدِيقِ بِالنَّتِيجَةِ يَحْصُلُ عَنِ الْمُقَدِّمَاتِ ⟨أَوَّلًا، بَلْ⟩ عَلَى جِهَةِ مَا نَقُولُ إِنَّ الْمَعْقُولَاتِ الْأُوَلَ تَحْصُلُ عَنِ الْحِسِّ. وَمَنْ ظَنَّ أَنَّ الْحَالَ فِي التَّوَاتُرِ كَالْحَالِ فِي الْمُقَدِّمَاتِ التَّجْرِيبِيَّةِ، وَهِيَ الَّتِي يَحْصُلُ الْيَقِينُ بِكُلِّيَّتِهَا عِنْدَ التَّعَمُّدِ لِإِحْسَاسِ جُزْئِيَّاتِهَا، فَمُخْطِئٌ قَطْعًا. بَلِ التَّصْدِيقُ الْحَاصِلُ عَنِ التَّوَاتُرِ مِنْ فِعْلِ النَّفْسِ، وَكَأَنَّ نِسْبَتَهُ إِلَيْهَا نِسْبَةُ ⟨الْمَعْقُولَاتِ الْأُوَلِ إِلَى الْحِسِّ⟩.

In general, [no one has disputed that recurrent transmission produces certainty except those who deserve no consideration, namely the sophists. Someone who denies it needs punishment, since his tongue lies about what is in his soul. The disagreement concerns only how certainty arises from it: some hold that it arises essentially (بالذات), some incidentally (بالعرض), and some through acquisition.] Such is the view held here by Abū Ḥāmid and those following him: certainty arises only after two premises. The first is that, despite their differing circumstances, nothing unites these informants in falsehood; the second, that they have agreed in reporting this event.

وَبِالْجُمْلَةِ [فَلَمْ يَقَعْ خِلَافٌ فِي التَّوَاتُرِ يُوقِعُ الْيَقِينَ إِلَّا مِمَّنْ لَا يُؤْبَهُ بِهِ، وَهُمُ السُّفَسْطَائِيُّونَ. وَجَاحِدُ ذَلِكَ يَحْتَاجُ إِلَى عُقُوبَةٍ، لِأَنَّهُ كَاذِبٌ بِلِسَانِهِ عَلَى مَا فِي نَفْسِهِ. وَإِنَّمَا الْخِلَافُ فِي جِهَةِ وُقُوعِ الْيَقِينِ عَنْهُ، فَقَوْمٌ رَأَوْهُ بِالذَّاتِ، وَقَوْمٌ رَأَوْهُ بِالْعَرَضِ، وَقَوْمٌ رَأَوْهُ مُكْتَسَبًا] مِثْلَ مَا رَآهُ أَبُو حَامِدٍ هَهُنَا وَمَنْ نَحَا نَحْوَهُ مِنْ أَنَّ الْيَقِينَ بِهِ إِنَّمَا يَحْصُلُ بَعْدَ مُقَدِّمَتَيْنِ: إِحْدَاهُمَا أَنَّ هَؤُلَاءِ مَعَ اخْتِلَافِ أَحْوَالِهِمْ لَا يَجْمَعُهُمْ عَلَى الْكَذِبِ جَامِعٌ. والثانية أَنَّهُمْ قَدِ اتَّفَقُوا عَلَى الْإِخْبَارِ عَنْ هَذِهِ الْوَاقِعَةِ.

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22. Translation. عنز أيل is retained as the traditional composite example 'goat-stag'; قياس يقيني here is logical syllogism, not juristic analogy.

Abū Ḥāmid nevertheless concedes that these two premises were never actually formed in the mind, and that a person did not need to summon them when assent arose through recurrent transmission.[23]

لَكِنْ أَبُو حَامِدٍ يُسَلِّمُ أَنَّ هَاتَيْنِ الْمُقَدِّمَتَيْنِ لَمْ تُشَكَّلَا قَطُّ فِي الذِّهْنِ بِالْفِعْلِ، وَلَا احْتَاجَ الْإِنْسَانُ إِلَى إِحْضَارِهِمَا عِنْدَ وُقُوعِ التَّصْدِيقِ بِالتَّوَاتُرِ.

77. Sensory actuality, contextual evidence, and common legal knowledge

R 77 · BA 97–98

If this is posited—and it is undoubtedly what is observed in recurrent transmission—it is evident that these two premises play no useful part in producing certainty. What does not actually exist in the soul cannot cause what is potential in it to exist by bringing it into actuality. If the major premise in the first figure were not actually present in the soul, it would not cause the conclusion to arise from it, although that conclusion was potentially contained within it.

وَإِذَا وُضِعَ هَذَا، فِيمَا لَا شَكَّ، هُوَ الْمُشَاهَدُ مِنْ أَمْرِ التَّوَاتُرِ، فَمِنَ الْبَيِّنِ أَنَّهُ لَيْسَ لِهَاتَيْنِ الْمُقَدِّمَتَيْنِ فِي إِيقَاعِ الْيَقِينِ غَنَاءٌ، لِأَنَّ مَا لَيْسَ مَوْجُودًا فِي النَّفْسِ بِالْفِعْلِ فَلَيْسَ يَكُونُ سَبَبًا لِوُجُودِ مَا هُوَ فِيهَا بِالْقُوَّةِ حَتَّى تُخْرِجَهُ إِلَى الْفِعْلِ. وَلَوْلَا كَوْنُ حُصُولِ الْمُقَدِّمَةِ الْكُبْرَى فِي الشَّكْلِ الْأَوَّلِ فِي النَّفْسِ بِالْفِعْلِ مَا كَانَتْ سَبَبًا لِحُصُولِ النَّتِيجَةِ عَنْهَا الَّتِي كَانَتْ مُنْطَوِيَةً فِيهَا بِالْقُوَّةِ.

What benefit, then, is there in requiring something that exists in this manner to produce assent? Hence we stipulated in the definition of recurrent transmission that we do not know how or whence it arose. In general, reports and testimonies generally yield only probable judgement (ظنا), varying with the contextual indicators until, in some cases, certainty arises. People therefore differ about the ranks of assent produced by reports according to their accompaniments. For example, some place a single person's report before a group at the level of recurrent transmission if the group refrains from contradicting him, its numbers ordinarily preclude collusion in sanctioning falsehood, and they have apprehended the reported matter through sense perception.

فَأَيُّ فَائِدَةٍ لِاشْتِرَاطِ مَا وُجُودُهُ مِثْلُ هَذَا الْوُجُودِ فِي إِيقَاعِ التَّصْدِيقِ. وَلِهَذَا اشْتَرَطْنَا فِي حَدِّ التَّوَاتُرِ مِنْ غَيْرِ أَنْ نَدْرِيَ كَيْفَ حَصَلَ وَلَا مِنْ أَيْنَ حَصَلَ. وَبِالْجُمْلَةِ فَالْأَخْبَارُ وَالشَّهَادَاتُ عَلَى الْأَكْثَرِ لَا تُفِيدُ إِلَّا ظَنًّا، وَذَلِكَ يَتَفَاوَتُ بِحَسَبِ تَفَاوُتِ الْقَرَائِنِ، حَتَّى يَحْصُلَ فِي بَعْضِهَا الْيَقِينُ. وَلِذَلِكَ اخْتَلَفَ النَّاسُ فِي مَرَاتِبِ التَّصْدِيقَاتِ الْوَاقِعَةِ عَنِ الْأَخْبَارِ بِحَسَبِ مَا يَقْتَرِنُ بِهَا، كَمَنْ يَجْعَلُ خَبَرَ الْوَاحِدِ بَيْنَ يَدَيِ الْجَمَاعَةِ، إِذَا أَمْسَكُوا عَنْ تَكْذِيبِهِ مَعَ أَنَّهُمْ عَدَدٌ يَمْتَنِعُ فِي عُرْفِ الْعَادَةِ تَوَاطُؤُهُمْ عَلَى تَسْوِيغِ الْكَذِبِ، يَتَنَزَّلُ مَنْزِلَةَ التَّوَاتُرِ إِذَا كَانَ مَا أَخْبَرَ عَنْهُ مُدْرَكًا لَهُمْ بِالْحِسِّ.

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[23] **23.** Interpretation. Tawātur and reality. Bou Akl 2015 intro pp.10–40 rejects a reading, associated with Maroun Aouad, under which the epistemic effect of tawātur is illusory. The production of certainty may be accidental in causal mode yet real in its result. Transmission establishes that a report was uttered; prophetic miracle grounds the message’s religious authority, a logically different question.

There are also contextual indicators that weaken the probable judgement arising from reports until, in some cases, their falsehood becomes almost certain. An example is someone reporting that the city's king was killed in the marketplace, after which the people of the market pass by without speaking of it. Of this kind is Abū Ḥanīfa's rejection—may God have mercy upon him—of solitary reports concerning rulings of widespread practical concern: he considers that matters of such concern ought to be widely transmitted. Likewise, Mālik rejected many reports when practice did not accompany them.[24]

وَكَذَلِكَ هَهُنَا قَرَائِنُ تُضْعِفُ الظَّنَّ الْوَاقِعَ بِالْأَخْبَارِ حَتَّى يَكَادَ فِي بَعْضِ الْمَوَاضِعِ يُقْطَعُ بِكَذِبِهَا؛ كَمَنْ أَخْبَرَ بِقَتْلِ مَلِكِ الْبَلْدَةِ فِي السُّوقِ ثُمَّ مَرَّ أَهْلُ السُّوقِ وَلَمْ يَتَحَدَّثُوا بِذَلِكَ. وَمِنْ هَذَا الْجِنْسِ رَدُّ أَبِي حَنِيفَةَ رَحِمَهُ اللَّهُ أَخْبَارَ الْآحَادِ فِيمَا تَعُمُّ بِهِ الْبَلْوَى مِنَ الْأَحْكَامِ، لِأَنَّهُ يَرَى أَنَّ حَقَّ مَا تَعُمُّ بِهِ الْبَلْوَى أَنْ يُنْقَلَ نَقْلًا مُسْتَفِيضًا. وَكَذَلِكَ رَدُّ مَالِكٍ لِكَثِيرٍ مِنَ الْأَحَادِيثِ إِذَا لَمْ يَصْحَبْهَا الْعَمَلُ.

78. The conditions of certainty from mass transmission

R 78 · BA 99

This is what should be said about the rank of assent arising from reports, and about the cases in which they are useful and those in which they are not.

فَهَذَا مَا يَنْبَغِي أَنْ يُقَالَ فِي مَرْتَبَةِ التَّصْدِيقِ الْحَاصِلِ عَنِ الْأَخْبَارِ، وَفِي أَيِّ مَوْضِعٍ غَنَاؤُهَا، وَفِي أَيِّهَا لَا.

79. Can a solitary report ever produce certainty?

R 79 · BA 100

As for a solitary report (خبر الآحاد), according to its definition in this craft, it is what has not reached the point of yielding certainty … [the construction is defective] … in some case through a single person's report, according to the contextual indicators accompanying it. We answer: although this is not impossible, it occurs rarely, perhaps for a particular person in a particular case. Because the probable judgement arising in the soul varies when contextual indicators accompany solitary reports, some held that a single person's report may yield certainty.

فَأَمَّا خَبَرُ الْآحَادِ بِحَسَبِ مَا حُدَّ فِي هَذِهِ الصِّنَاعَةِ فَهُوَ مِمَّا لَمْ يَنْتَهِ أَنْ يُفِيدَ الْيَقِينَ فِي مَوْضِعٍ مَا بِخَبَرِ الْوَاحِدِ بِحَسَبِ مَا تقترن بِذَلِكَ مِنْ قَرَائِنَ، قُلْنَا هَذَا وَإِنْ كَانَ غَيْرَ مُمْتَنِعٍ فَهُوَ مِمَّا يَقِلُّ وُجُودُهُ وَلَعَلَّ ذَلِكَ يَقَعُ فِي حَقِّ شَخْصٍ مَا وَنَازِلَةٍ مَا. وَلِتَفَاوُتِ هَذَا الظَّنِّ الْوَاقِعِ فِي النَّفْسِ عِنْدَ اقْتِرَانِ الْقَرَائِنِ بِأَخْبَارِ الْآحَادِ رَأَى بَعْضُهُمْ أَنَّ خَبَرَ الْوَاحِدِ قَدْ يُفِيدُ الْيَقِينَ.

80. Four questions governing solitary reports

R 80 · BA 101

After defining a solitary report, its discussion also includes whether the Law permits acting upon it, the conditions of its transmitters, criticism and accreditation (الجرح والتعديل), and the manner in which a transmitter reports from his source.

وَيَلْحَقُ بِخَبَرِ الْوَاحِدِ بَعْدَ التَّكَلُّمِ فِي حَدِّهِ التَّكَلُّمُ فِي جَوَازِ الْعَمَلِ بِهِ شَرْعًا، وَالتَّكَلُّمُ فِي شُرُوطِ النَّاقِلِينَ لَهُ، وَالْجَرْحِ وَالتَّعْدِيلِ، وَكَيْفِيَّةِ نَقْلِ الرَّاوِي عَنْ مَرْوِيِّهِ.

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24. Translation. بالفعل and بالقوة are the logical and psychological distinction of actuality and potentiality, retained explicitly in the first segment.

First Chapter: The Legal Admissibility of Acting on a Solitary Report

الْفَصْلُ الْأَوَّلُ: فِي جَوَازِ الْعَمَلِ بِخَبَرِ الْوَاحِدِ شَرْعًا

81. The rational and legal warrant for acting on a solitary report

R 81 · BA 102–104

Acting upon solitary reports is rationally possible and actually occurs in the Law. As for its admissibility in the Law, it is not impossible for God Most High to appoint predominant probability (غلبة الظن) as a sign of a ruling, just as He appoints other things as signs. On this basis one can conceive adjudication through witnesses, judgement by legal opinion, and facing the Kaʿba when it is not visible. Some held that appointing predominant probability as a sign of a legal ruling is rationally necessary; otherwise most rulings would lapse for anyone who had not heard God's Messenger—God bless him and grant him peace—directly.

Abū Ḥāmid says this argument is not strong, since one could say that rulings lapse for those whom recurrent transmission has not reached, just as they lapse for those who have neither heard of the Law nor received it by recurrent transmission. I do not find this satisfactory. The Law's remaining hidden is exceedingly rare, scarcely occurring over a long period; its recurrent transmission to the entire inhabited world has necessarily taken place. Such concealment might plausibly have occurred at the beginning of Islam. Acting on solitary reports is different: not every report must necessarily be recurrently transmitted, and requiring recurrence before acting would suspend most rulings for most legally responsible persons.

أَمَّا الْعَمَلُ بِأَخْبَارِ الْآحَادِ فَهُوَ جَائِزٌ عَقْلًا وَوَاقِعٌ شَرْعًا. أَمَّا جَوَازُ وُقُوعِهِ شَرْعًا، فَإِنَّهُ غَيْرُ مُمْتَنِعٍ أَنْ يَنْصِبَ اللَّهُ تَعَالَى غَلَبَةَ الظَّنِّ عَلَامَةً لِلْحُكْمِ، كَنَصْبِهِ سَائِرَ الْأَشْيَاءِ عَلَامَاتٍ. وَعَلَى هَذَا يُتَصَوَّرُ الْقَضَاءُ بِالشُّهُودِ، وَالْحُكْمُ بِالْفَتْوَى، وَاسْتِقْبَالُ الْكَعْبَةِ إِذَا لَمْ تُعَايَنْ. وَقَدْ رَأَى بَعْضُهُمْ أَنَّ نَصْبَ غَلَبَةِ الظَّنِّ عَلَامَةً لِلْحُكْمِ فِي الشَّرْعِ وَاجِبٌ عَقْلًا، وَلَوْلَا ذَلِكَ لَسَقَطَتْ أَكْثَرُ الْأَحْكَامِ عَنْ مَنْ لَمْ يُشَافِهْ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ.

وَقَوْلُ أَبِي حَامِدٍ إِنَّ هَذَا لَيْسَ بِقَوِيٍّ لِأَنَّ لِقَائِلٍ أَنْ يَقُولَ تَسْقُطُ الْأَحْكَامُ فِي حَقِّ مَنْ لَمْ يَبْلُغْهُ تَوَاتُرُهَا كَمَا تَسْقُطُ فِي حَقِّ مَنْ لَمْ يَسْمَعْ بِالشَّرْعِ وَلَا تَوَاتَرَ عِنْدَهُ، فَلَيْسَ عِنْدِي بِمَرْضِيٍّ. لِأَنَّ انْطِوَاءَ الشَّرْعِ نَادِرٌ وَقَلِيلٌ جِدًّا حَتَّى لَا يَكَادُ يَقَعُ هَذَا مَعَ تَطَاوُلِ الزَّمَانِ، بَلْ بِاضْطِرَارٍ وَقَعَ نَقْلُهُ إِلَى جَمِيعِ الْمَعْمُورَةِ تَوَاتُرًا. وَإِنَّمَا يُشْبِهُ أَنْ يَقَعَ مِثْلُ هَذَا فِي أَوَّلِ الْإِسْلَامِ، وَلَيْسَ كَذَلِكَ الْعَمَلُ بِأَخْبَارِ الْآحَادِ، لِأَنَّهُ لَيْسَ مِنْ ضَرُورَةِ كُلِّ خَبَرٍ أَنْ يُنْقَلَ تَوَاتُرًا، فَلَوِ اشْتُرِطَ فِي الْعَمَلِ بِهِ التَّوَاتُرُ لَأَدَّى ذَلِكَ إِلَى تَعْطِيلِ أَكْثَرِ الْأَحْكَامِ عَنْ أَكْثَرِ الْمُكَلَّفِينَ.

In general, if adjudicating through witnesses and oaths, and judging by independent judgement, were not obligatory, there would be no way to redress wrongs and secure rights. Its occurrence in the Law can also be inferred from the Companions' consensus on acting upon such reports. Their hesitation concerning some reports was merely their independent assessment of the routes of transmission. The fact that God's Messenger—God bless him and grant him peace—sent governors to the provinces and charged people to accept their reports establishes its occurrence in the Law with certainty.

وَبِالْجُمْلَةِ لَوْ لَمْ يَجِبِ الْقَضَاءُ بِالشُّهُودِ وَالْأَيْمَانِ وَالْحُكْمُ بِالِاجْتِهَادِ لَمَا كَانَ سَبِيلٌ إِلَى رَدِّ الْمَظَالِمِ وَالْأَخْذِ بِالْحُقُوقِ. وَقَدْ يُسْتَدَلُّ أَيْضًا عَلَى وُقُوعِهِ شَرْعًا بِإِجْمَاعِ الصَّحَابَةِ عَلَى الْعَمَلِ بِهِ، وَتَوَقُّفُهُمْ فِي بَعْضِ الْأَخْبَارِ إِنَّمَا كَانَ اجْتِهَادًا مِنْهُمْ فِي طُرُقِهَا. وَإِنْفَاذُ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ الْوُلَاةَ إِلَى الْبِلَادِ، وَتَكْلِيفُ النَّاسِ تَصْدِيقَهُمْ، مِمَّا يُقْطَعُ بِهِ عَلَى وُقُوعِهِ شَرْعًا.

82. Does the command to warn establish the duty to accept a report?

R 82 · BA 105–106

Some regard His words—mighty and exalted—‘Why should not a group from every division of them go forth, to gain understanding in religion and warn their people when they return to them?’[25] as decisive concerning acting upon solitary reports. A ‘group’ can mean a few people whose statements do not yield certainty. Abū Ḥāmid considers the verse decisive only concerning the obligation to warn. He says that their obligation to warn does not entail an obligation to act upon it, just as a single witness must testify although his testimony is not acted upon.

فَأَمَّا قَوْلُ اللَّهِ عَزَّ وَجَلَّ: {فَلَوْلَا نَفَرَ مِنْ كُلِّ فِرْقَةٍ مِنْهُمْ طَائِفَةٌ لِيَتَفَقَّهُوا فِي الدِّينِ وَلِيُنْذِرُوا قَوْمَهُمْ إِذَا رَجَعُوا إِلَيْهِمْ}[25] فَرَأَى بَعْضُهُمْ أَنَّهَا قَاطِعَةٌ فِي الْعَمَلِ بِأَخْبَارِ الْآحَادِ، إِذِ الطَّائِفَةُ تَقَعُ عَلَى النَّفَرِ الْيَسِيرِ الَّذِينَ لَا يَحْصُلُ الْيَقِينُ بِقَوْلِهِمْ. وَأَبُو حَامِدٍ يَرَى أَنَّهَا لَيْسَتْ بِقَاطِعَةٍ إِلَّا فِي وُجُوبِ الْإِنْذَارِ. قَالَ: وَلَيْسَ يَلْزَمُ مِنْ وُجُوبِهِ عَلَيْهِمْ وُجُوبُ الْعَمَلِ بِهِ، كَمَا يَجِبُ عَلَى الشَّاهِدِ الْوَاحِدِ، إِذِ الشَّهَادَةُ لَا يُعْمَلُ بِهَا.

He adds that the same objection weakens appeals to His words—mighty and exalted— ‘Those who conceal what We have sent down of clear proofs and guidance,’[26] and to the saying of the Messenger—God bless him and grant him peace— ‘May God make radiant one who hears my words, retains them, and conveys them as he heard them,’ and the rest of the report. This statement of his has no meaning. What is the benefit of requiring warning if acting on their transmission is not obligatory? It is not like a witness's case: he is obliged to testify in the hope that another person with matching testimony will come forward, allowing it to be acted upon.

قَالَ: وَبِمِثْلِ هَذَا الِاعْتِرَاضِ يَضْعُفُ التَّمَسُّكُ بِقَوْلِهِ عَزَّ وَجَلَّ: {إِنَّ الَّذِينَ يَكْتُمُونَ مَا أَنْزَلْنَا مِنَ الْبَيِّنَاتِ وَالْهُدَى}[26]، وَبِقَوْلِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: «نَضَّرَ اللَّهُ امْرَأً سَمِعَ مَقَالَتِي فَوَعَاهَا وَأَدَّاهَا كَمَا سَمِعَهَا» الْحَدِيثَ. وَهَذَا الْقَوْلُ مِنْهُ لَا مَعْنَى لَهُ، لِأَنَّهُ مَا فَائِدَةُ وُجُوبِ الْإِنْذَارِ إِذَا لَمْ يَجِبِ الْعَمَلُ بِنَقْلِهِمْ. وَلَيْسَ يُشْبِهُ هَذَا الشَّاهِدَ فَإِنَّهُ إِنَّمَا وَجَبَ عَلَيْهِ أَدَاءُ الشَّهَادَةِ رَجَاءَ أَنْ يَأْتِيَ مَنْ عِنْدَهُ مِثْلُ شَهَادَتِهِ فَيَقَعَ الْعَمَلُ بِهَا.

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25. Qurʾān, al-Tawbah 9:122 ↗.
26. Qurʾān, al-Baqarah 2:159 ↗.

One might reply that warning was perhaps required of individuals only so that their numbers would increase until their statements produced necessary knowledge. But this is refuted by the preceding point: it would suspend most rulings. It is more plausible to regard the verse as neither decisive nor unambiguous wording (نصا) for acting upon solitary reports because ‘group’ applies both to a few people and to a large number whose statements can yield certainty, as indicated by the saying, ‘A group of my community will continue …’ and the rest of the report. The verse's more apparent meaning, however, is that ‘group’ here does not mean people whose transmission produces knowledge.

اللَّهُمَّ إِلَّا أَنْ يَقُولَ الْقَائِلُ عَسَى إِنْ وُجِدَ الْإِنْذَارُ إِنَّمَا لَزِمَ الْآحَادَ لِيَتَكَثَّرُوا حَتَّى يَقَعَ الْعِلْمُ الضَّرُورِيُّ بِقَوْلِهِمْ، لَكِنْ هَذَا يَنْكَسِرُ مِمَّا تَقَدَّمَ مِنْ أَنَّ ذَلِكَ كَانَ يُؤَدِّي إِلَى تَعْطِيلِ أَكْثَرِ الْأَحْكَامِ. وَإِنَّمَا يُشْبِهُ أَنْ يُظَنَّ أَنَّ الْآيَةَ لَيْسَتْ بِقَاطِعَةٍ وَلَا نَصًّا فِي الْعَمَلِ بِأَخْبَارِ الْآحَادِ مِنْ جِهَةِ أَنَّ الطَّائِفَةَ اسْمٌ يَقَعُ عَلَى النَّفَرِ الْيَسِيرِ وَالْعَدَدِ الْكَثِيرِ الَّذِي يُمْكِنُ أَنْ يَقَعَ الْيَقِينُ بِقَوْلِهِمْ بِدَلِيلِ قَوْلِهِ: «لَا تَزَالُ طَائِفَةٌ مِنْ أُمَّتِي» الْحَدِيثَ. لَكِنِ الْآيَةُ أَظْهَرُ فِي أَنَّهُ لَيْسَ الْمُرَادُ بِالطَّائِفَةِ هَهُنَا مَنْ يَحْصُلُ الْعِلْمُ بِنَقْلِهِمْ.

Second Chapter: The Transmitter's Condition and Character

الْفَصْلُ الثَّانِي: فِي شَرْطِ الرَّاوِي وَصِفَتِهِ

83. One transmitter need not satisfy the numerical rules of testimony

R 83 · BA 107–108

Since acting on a solitary report has been established, the conditions under which it is accepted and must be acted upon must be stated, for not every report requires action. First, a single person's report is acted upon even where his testimony is not. Once acting on such a report is established, whoever requires a plurality must prove that requirement from the Law; it cannot properly be assimilated to testimony by analogy (قياسا). The Companions—may God be pleased with them—sought corroboration through numbers on two or three occasions as their independent judgement in circumstances particular to those cases. In general, we do not require a plurality as a condition.[27]

وَإِذْ قَدْ ثَبَتَ الْعَمَلُ بِخَبَرِ الْوَاحِدِ فَلَا بُدَّ مِنْ ذِكْرِ الشُّرُوطِ الَّتِي يُقْبَلُ بِهَا وَيَجِبُ الْعَمَلُ بِهِ، إِذْ لَيْسَ كُلُّ خَبَرٍ يَجِبُ الْعَمَلُ بِهِ. فَأَوَّلُهَا أَنَّ خَبَرَ الْوَاحِدِ يُعْمَلُ بِهِ وَإِنْ لَمْ يُعْمَلْ بِشَهَادَتِهِ، لِأَنَّ اشْتِرَاطَ الْعَدَدِ إِذَا ثَبَتَ الْعَمَلُ بِهِ مِمَّا يَجِبُ عَلَى مُدَّعِي ذَلِكَ إِثْبَاتُهُ شَرْعًا، وَلَا يَصِحُّ فِي مِثْلِ هَذَا حَمْلُهُ عَلَى الشَّهَادَةِ قِيَاسًا.

وَاسْتِظْهَارُ الصَّحَابَةِ رَضِيَ اللَّهُ عَنْهُمْ بِالْعَدَدِ فِي وَاقِعَتَيْنِ أَوْ ثَلَاثٍ فَذَلِكَ اجْتِهَادٌ مِنْهُمْ لِأَحْوَالٍ خَاصَّةٍ بِتِلْكَ النَّوَازِلِ. وَبِالْجُمْلَةِ فَاشْتِرَاطُ الْعَدَدِ لَيْسَ بِشَرْطٍ عِنْدَنَا.

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[27] **27.** Interpretation. The practical need for probability. Bou Akl 2015 intro pp.77–87 distinguishes possible uncertainty about the reliability of transmission and uncertainty about intended verbal meaning. Acting on strongly probable evidence in law is not claiming probable information has become theoretically certain.

84. Hearing in childhood and transmitting after puberty

R 84 · BA 109

The first condition is that we do not accept a child's report, because he does not fear God and we cannot be assured against his lying. If, however, he was a child when he heard the report and transmits it after puberty, it is accepted. The proof is the Companions' consensus on acting upon reports without distinguishing whether they were heard in childhood or after puberty. Those who accept children's testimony concerning injuries occurring among them are led to do so by inference from contextual indicators arising from their numbers; hence they require their testimony to be given before they disperse.

وَأَوَّلُ الشُّرُوطِ أَنَّا لَا نَقْبَلُ خَبَرَ الصَّبِيِّ، لِأَنَّهُ لَا يَخَافُ اللَّهَ، فَلَا نَأْمَنُ عَلَيْهِ الْكَذِبَ. وَأَمَّا إِذَا كَانَ طِفْلًا عِنْدَ السَّمَاعِ، ثُمَّ نَقَلَ الْحَدِيثَ بَعْدَ بُلُوغِهِ، فَهُوَ مَقْبُولٌ بِدَلِيلِ إِجْمَاعِ الصَّحَابَةِ عَلَى الْعَمَلِ بِالْأَحَادِيثِ مِنْ غَيْرِ فَرْقٍ بَيْنَ مَنْ سَمِعَ فِي الصِّغَرِ أَوْ بَعْدَ الْبُلُوغِ. وَقَوْلُ مَنْ قَالَ تُقْبَلُ شَهَادَةُ الصِّبْيَانِ فِي الْجِنَايَاتِ الَّتِي تَقَعُ بَيْنَهُمْ، فَإِنَّمَا حَمَلَهُ عَلَى ذَلِكَ الِاسْتِدْلَالُ بِالْقَرَائِنِ لِكَثْرَتِهِمْ، وَلِذَلِكَ اشْتَرَطَ فِي شَهَادَتِهِمْ قَبْلَ أَنْ يَتَفَرَّقُوا.

85. Accurate retention, religious identity, and transmission

R 85 · BA 110–111

Another condition is accurate retention (ضابطا), since someone inattentive will usually fall into error. There is no disagreement about requiring the transmitter to be Muslim: an unbeliever's transmission is not accepted because he is suspect concerning religion. Although Abū Ḥanīfa accepts unbelievers' testimony concerning one another, there is no dissent from rejecting their transmission. In general, the basis for rejecting it is consensus.

وَمِنَ الشُّرُوطِ أَنْ يَكُونَ ضَابِطًا، فَإِنَّ مَنْ كَانَ مُغَفَّلًا يَقَعُ مِنْهُ فِي الْأَكْثَرِ الْغَلَطُ. وَأَمَّا كَوْنُهُ مُسْلِمًا فَلَا خِلَافَ فِي اشْتِرَاطِ ذَلِكَ، لِأَنَّ الْكَافِرَ لَا تُقْبَلُ رِوَايَتُهُ لِأَنَّهُ مُتَّهَمٌ فِي الدِّينِ. وَإِنْ كَانَتْ تُقْبَلُ شَهَادَةُ بَعْضِهِمْ عَلَى بَعْضٍ عِنْدَ أَبِي حَنِيفَةَ، فَلَا مُخَالِفَ فِي رَدِّ رِوَايَتِهِ، وَبِالْجُمْلَةِ فَالِاعْتِمَادُ فِي رَدِّهَا عَلَى الْإِجْمَاعِ.

86. Probity as a disposition rather than a mere label

R 86 · BA 112

The requirement of probity (العدالة) is undisputed, but what its name signifies is disputed. Some, who are the majority, hold that probity is a state of the soul (حالة في النفس) from which follows avoidance of what the Law prohibits, whether by forbiddance or disapproval, and performance of what the Law commands, whether by obligation or recommendation, without falling short in this.

وَأَمَّا اشْتِرَاطُ الْعَدَالَةِ فَغَيْرُ مُخْتَلَفٍ فِيهِ، لَكِنْ مَا يَدُلُّ عَلَيْهِ اسْمُهَا مُخْتَلَفٌ فِيهِ فَذَهَبَ قَوْمٌ، وَهُمُ الْأَكْثَرُونَ، أَنَّ الْعَدَالَةَ حَالَةٌ فِي النَّفْسِ يَلْزَمُ عَنْهَا اجْتِنَابُ مَا نُهِيَ عَنْهُ فِي الشَّرْعِ نَهْيَ تَحْرِيمٍ أَوْ نَهْيَ كَرَاهَةٍ وَإِتْيَانُ مَا أُمِرَ بِهِ فِي الشَّرْعِ أَمْرَ وُجُوبٍ أَوْ أَمْرَ نَدْبٍ مِنْ غَيْرِ أَنْ يُخِلَّ بِذَلِكَ.

87. How much moral integrity must a transmitter possess?

R 87 · BA 112

In general, he must avoid everything that impugns his religion and whose commission leaves lying open to him. This varies according to the assessments of those exercising independent judgement. There is, however, no disagreement that sinlessness is not required, just as avoiding grave sins is not sufficient. Some hold that probity consists in manifesting Islam while not being known as morally transgressive, without investigation into one's conduct or inward condition.

وَبِالْجُمْلَةِ فَيُشْتَرَطُ فِيهِ تَجَنُّبُ كُلِّ مَا يَقْدَحُ فِي دِينِهِ مِمَّا لَا يَمْتَنِعُ عَلَيْهِ الْكَذِبُ مَعَ إِتْيَانِهِ وَهَذَا يَخْتَلِفُ بِحَسَبِ نَظَرِ الْمُجْتَهِدِينَ. وَلَكِنْ لَا خِلَافَ فِي أَنَّهُ لَا تُشْتَرَطُ فِيهِ الْعِصْمَةُ، كَمَا لَا يَكْفِي فِي ذَلِكَ اجْتِنَابُ الْكَبَائِرِ. وَذَهَبَ قَوْمٌ إِلَى أَنَّ الْعَدَالَةَ عِبَارَةٌ عَنْ إِظْهَارِ الْإِسْلَامِ مَعَ أَنَّهُ لَا يُعْلَمُ فَاسِقًا دُونَ بَحْثٍ عَنْ سِيرَتِهِ وَسَرِيرَتِهِ.

88. Unknown character and the presumption of trustworthiness

R 88 · BA 113

The proponents of the first doctrine argued: just as transmission is inadmissible from someone whose status concerning unbelief is unknown, so it is from someone whose status concerning moral transgression is unknown. Their opponents may reply that, in the former case, no state is known that produces predominant confidence in his trustworthiness, whereas a person known to manifest Islam is different. The first group also appealed to the Companions' rejection of reports from unknown persons—ʿUmar's rejection—may God be pleased with him—of Fāṭima bt. Qays's report and ʿAlī's rejection of al-Ashjaʿī's statement—and to the evident demand of God's Messenger—God bless him and grant him peace—for probity and trustworthiness in those he sent to the provinces.

أَمَّا أَصْحَابُ الْمَذْهَبِ الْأَوَّلِ فَاحْتَجُّوا بِأَنْ قَالُوا: كَمَا أَنَّ الْمَجْهُولَ الْكُفْرِ لَا يَجُوزُ نَقْلُهُ، كَذَلِكَ الْمَجْهُولُ الْفِسْقِ. وَلِأُولَئِكَ أَنْ يَقُولُوا إِنَّ الْمَجْهُولَ الْكُفْرِ لَيْسَ تُعْرَفُ مِنْهُ حَالَةٌ يَغْلِبُ بِهَا عَلَى الظَّنِّ حُسْنُ الثِّقَةِ بِهِ، وَلَيْسَ كَذَلِكَ الْمَعْرُوفُ مِنْهُ إِظْهَارُ الْإِسْلَامِ. وَقَدِ احْتَجُّوا أَيْضًا لِذَلِكَ بِرَدِّ الصَّحَابَةِ أَخْبَارَ الْمَجَاهِيلِ كَرَدِّ عُمَرَ رَضِيَ اللَّهُ عَنْهُ خَبَرَ فَاطِمَةَ بِنْتِ قَيْسٍ، وَرَدِّ عَلِيٍّ قَوْلَ الْأَشْجَعِيِّ، وَمَا ظَهَرَ مِنْ طَلَبِ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ الْعَدَالَةَ وَالثِّقَةَ فِيمَنْ كَانَ يُنْفِذُهُ إِلَى الْبِلَادِ.

89. The Bedouin’s crescent testimony and an uncertain printed reading

R 89 · BA 113

The second group appealed to the fact that the Messenger—God bless him and grant him peace—accepted a Bedouin's testimony that he had seen the crescent, although nothing was known of him except his Islam. Their opponents need not concede that he was unknown to the Prophet himself. They also argued that the Companions accepted the statements of people whom they knew as Muslims and did not know to be morally transgressive.

وَأَمَّا مَا احْتَجَّ بِهِ أَهْلُ الْفِرْقَةِ الثَّانِيَةِ فَقَبُولُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ شَهَادَةَ الْأَعْرَابِيِّ فِي رُؤْيَةِ الْهِلَالِ، مَعَ أَنَّهُ لَمْ يُعْرَفْ مِنْهُ إِلَّا الْإِسْلَامُ، وَلِأُولَئِكَ أَلَّا يُسَلِّمُوا أَنَّهُ كَانَ مَجْهُولًا عِنْدَهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَاحْتَجُّوا أَيْضًا بِأَنَّ الصَّحَابَةَ قَبِلُوا قَوْلَ مَنْ لَمْ يَعْرِفُوهُمْ بِالْفِسْقِ وَعَرَفُوهُمْ بِالْإِسْلَامِ.

90. Probity aims at probable truthfulness, not an arbitrary threshold

R 90 · BA 114

In general, each group has advanced arguments that, although apparently supporting its claim, still admit interpretation. The question concerns independent judgement, not certainty. What is intended by probity, it appears, is simply a predominant probability of truthfulness; this varies with the contextual indicators supplied by the circumstances.

وَبِالْجُمْلَةِ فَقَدِ احْتَجَّ كُلُّ فَرِيقٍ مِنْهُمْ بِحُجَجٍ، وَهِيَ وَإِنْ كَانَتْ ظَاهِرَةً بِحَسَبِ دَعْوَاهُ فَهِيَ مَعَ هَذَا مُحْتَمِلَةٌ لِلتَّأْوِيلِ، وَالْمَسْأَلَةُ اجْتِهَادِيَّةٌ لَا قَطْعِيَّةٌ. وَبِالْجُمْلَةِ فَالْمَقْصُودُ فِيمَا يَظْهَرُ مِنَ الْعَدَالَةِ إِنَّمَا هُوَ غَلَبَةُ الظَّنِّ بِالصِّدْقِ، وَذَلِكَ يَخْتَلِفُ بِحَسَبِ اخْتِلَافِ قَرَائِنِ الْأَحْوَالِ.

Where the Law has not established with certainty a determinate sign of predominant probability concerning truthfulness, we should therefore impose no fixed limit. The matter should be entrusted to the inquiry of those exercising independent judgement. Contextual indicators may come together for one such jurist that make a person's truthfulness predominantly probable to him, while they do not come together for another.

فَيَنْبَغِي إِذَنْ فِيمَا لَمْ يَنْصِبِ الشَّرْعُ فِيهِ عَلَامَةً مَحْدُودَةً بِطَرِيقٍ قَطْعِيٍّ لِغَلَبَةِ الظَّنِّ بِالصِّدْقِ أَلَّا نَحُدَّ فِيهَا حَدًّا، بَلْ يُوكَلُ ذَلِكَ إِلَى نَظَرِ الْمُجْتَهِدِينَ، فَإِنَّهُ رُبَّ مُجْتَهِدٍ تَجْتَمِعُ عِنْدَهُ قَرَائِنُ يَغْلِبُ بِهَا عَلَى ظَنِّهِ صِدْقُ إِنْسَانٍ مَا لَيْسَ تَجْتَمِعُ لِإِنْسَانٍ آخَرَ.

91. Wrongdoing based on interpretation and the acceptance of reports

R 91 · BA 115

They have disagreed about a morally transgressive person who acts on an interpretation (الفاسق المتأول), meaning someone who does not recognise his own transgression. Whoever holds that transgression prevents acceptance only because it arouses suspicion cannot conceive rejecting him unless his transgression consists in permitting lying. Whoever holds that transgression in itself defeats acceptance, ⟨not⟩ because it arouses suspicion, permits their testimony concerning one another. The first is al-Shāfiʿī's doctrine; the second, the Qāḍī's. Al-Shāfiʿī's doctrine seems more consistent with the reasoning, and is supported by the Companions' acceptance—may God be pleased with them—of reports from the Khārijites.

وَأَمَّا الْفَاسِقُ الْمُتَأَوِّلُ، وَهُوَ الَّذِي لَا يَعْرِفُ فِسْقَ نَفْسِهِ، فَقَدِ اخْتَلَفُوا فِيهِ. فَمَنْ رَأَى أَنَّ الْفِسْقَ إِنَّمَا يَمْنَعُ الْقَبُولَ لِلتُّهْمَةِ، فَلَا يُتَصَوَّرُ عِنْدَهُ رَدُّهُ، إِلَّا أَنْ يَكُونُوا فِسْقُهُ فِي إِجَازَةِ الْكَذِبِ. وَمَنْ رَأَى أَنَّ الْفِسْقَ بِنَفْسِهِ هَادِمٌ لِلْقَبُولِ ⟨لَا⟩ لِمَوْضِعِ التُّهْمَةِ أَجَازَ شَهَادَةَ بَعْضِهِمْ عَلَى بَعْضٍ. وَالْأَوَّلُ مَذْهَبُ الشَّافِعِيِّ وَالثَّانِي مَذْهَبُ الْقَاضِي. وَيُشْبِهُ أَنْ يَكُونَ مَذْهَبُ الشَّافِعِيِّ أَقْيَسَ، وَيَشْهَدُ لَهُ قَبُولُ الصَّحَابَةِ رَضِيَ اللَّهُ عَنْهُمْ أَخْبَارَ الْخَوَارِجِ.

92. Probable wrongdoing: the example of disputed nabīdh

R 92 · BA 115

The transgression of someone acting on an interpretation may be known through a certain proof or through a probable proof. Acceptance of the transmission of someone whose transgression is established by a probable proof should be more appropriate. Hence al-Shāfiʿī says: ‘I judge the Ḥanafī who drinks nabīdh morally transgressive, but I do not reject his testimony.’[28]

وَالْفَاسِقُ الْمُتَأَوِّلُ رُبَّمَا عُلِمَ فِسْقُهُ بِدَلِيلٍ قَطْعِيٍّ وَرُبَّمَا عُلِمَ فِسْقُهُ بِدَلِيلٍ ظَنِّيٍّ. وَيَنْبَغِي أَنْ يَكُونَ قَبُولُ رِوَايَةِ مَنْ عُلِمَ فِسْقُهُ بِدَلِيلٍ ظَنِّيٍّ أَوْلَى، وَلِذَلِكَ يَقُولُ الشَّافِعِيُّ أُفَسِّقُ الْحَنَفِيَّ الشَّارِبَ لِلنَّبِيذِ وَلَا أَرُدُّ شَهَادَتَهُ.

93. Minimum conditions differ from grounds of preference

R 93 · BA 116

These are the conditions required in a transmitter. As for the considerations through which preference (الترجيح) is established, they are almost without limit.

فَهَذِهِ هِيَ الْأَشْيَاءُ الَّتِي تُشْتَرَطُ فِي الرَّاوِي وَأَمَّا الْأَشْيَاءُ الَّتِي يَقَعُ بِهَا التَّرْجِيحُ فَتَكَادُ لَا تَتَنَاهَى.

Third Chapter: Criticism of Transmitters and Attestation of Their Probity

الْفَصْلُ الثَّالِثُ: فِي الْجَرْحِ وَالتَّعْدِيلِ

94. Four questions about criticism and attestation

R 94 · BA 117

This comprises four sections.

فِيهِ أَرْبَعَةُ فُصُولٍ:

First Section

الْفَصْلُ الْأَوَّلُ

95. How many people must attest a narrator’s probity?

R 95 · BA 117

Some require more than one person to attest a transmitter’s probity, by analogy with testimony; others do not, by analogy with the acceptance of a report transmitted by a person of probity. The latter is the more evident view.

اشْتَرَطَ قَوْمٌ الْعَدَدَ فِي الْمُزَكِّي قِيَاسًا عَلَى الشَّهَادَةِ، وَبَعْضٌ لَمْ يَشْتَرِطْهُ قِيَاسًا عَلَى قَبُولِ رِوَايَةِ الْعَدْلِ، وَهُوَ الْأَظْهَرُ.

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[28] Translation. Nabīdh is left as the specific disputed beverage named by the author rather than assimilated to every alcoholic drink.

Second Section: Stating the Grounds for Criticism and Attestation of Probity

الْفَصْلُ الثَّانِي: فِي ذِكْرِ سَبَبِ الْجَرْحِ وَالتَّعْدِيلِ

96. Stating grounds and resolving conflicting evaluations

R 96 · BA 118

Al-Shāfiʿī says that the grounds for criticism must be stated, whereas the grounds for attesting probity need not be: one person may regard as a fault something that another does not, while probity has only one basis. Some hold the reverse, because people are quick to praise on the strength of appearances. The Qāḍī says that the grounds need not be stated in either case, reliance being placed on the person giving the attestation. Others say that the grounds must be stated in both cases. This is, in my view, the more cautious course, since assessments of probity and the weighing of evidence are both disputed, as was explained earlier.

قَالَ الشَّافِعِيُّ يَجِبُ ذِكْرُ سَبَبِ الْجَرْحِ دُونَ التَّعْدِيلِ. إِذْ قَدْ يَرَى وَاحِدٌ جَرْحَةً مَا لَا يَرَاهُ الْآخَرُ. وَأَمَّا الْعَدَالَةُ فَلَيْسَ لَهَا إِلَّا سَبَبٌ وَاحِدٌ. وَرَأَى قَوْمٌ نَقِيضَ هَذَا لِتَسَارُعِ النَّاسِ إِلَى الثَّنَاءِ عَلَى الظَّاهِرِ. وَقَالَ الْقَاضِي لَا يَجِبُ ذِكْرُ السَّبَبِ فِيهِمَا تَعْوِيلًا عَلَى الْمُزَكِّي. وَقَالَ قَوْمٌ لَا بُدَّ مِنْ ذِكْرِ السَّبَبِ فِيهِمَا جَمِيعًا، وَهُوَ الْأَحْوَطُ عِنْدِي، إِذِ الْعَدَالَةُ وَوالترجيح مُخْتَلَفٌ فِيهِمَا كَمَا تَقَدَّمَ.

When criticism conflicts with an attestation of probity, criticism takes precedence, because it discloses additional information unknown to the person attesting probity—unless the latter specifically addresses the very matter asserted by the critic. In that case, criticism and attestation stand in conflict.

وَأَمَّا إِذَا تَعَارَضَ الْجَرْحُ وَالتَّعْدِيلُ فَالْجَرْحُ هُوَ الْمُقَدَّمُ لِأَنَّهُ اطِّلَاعٌ عَلَى زِيَادَةٍ لَمْ يَطَّلِعْ عَلَيْهَا الْمُعَدِّلُ، إِلَّا أَنْ يَكُونَ يَعْنِي تَشْخِيصَ مَا أَثْبَتَهُ الْجَارِحُ فَحِينَئِذٍ يَتَعَارَضُ الْجَرْحُ وَالتَّعْدِيلُ.

Third Section: Attestation and Confirmation of Probity Themselves

الْفَصْلُ الثَّالِثُ: فِي نَفْسِ التَّزْكِيَةِ وَالتَّعْدِيلِ

97. What conduct counts as an attestation of probity?

R 97 · BA 119

وَذَلِكَ يُتَصَوَّرُ وُقُوعُهُ عَلَى أَرْبَعَةِ أَنْحَاءٍ: إِمَّا بالقول، أَوْ بِالرِّوَايَةِ عَنْهُ، أَوْ بِالْعَمَلِ بِخَبَرِهِ، أَوْ بِالْحُكْمِ بِشَهَادَتِهِ. وَأَعْلَاهَا صَرِيحُ الْقَوْلِ بِتَعْرِيفِ وَجْهِ عَدَالَتِهِ، وَدُونَ ذَلِكَ أَنْ يَرْوِيَ عَنْهُ خَبَرًا. وَهَذَا إِنَّمَا يَصِحُّ عَلَى رَأْيِ مَنْ يَكْفِي عِنْدَهُ فِي التَّعْدِيلِ نَفْسُ التَّزْكِيَةِ، هَذَا إِذَا فُهِمَ مِنْ حَالِهِ التَّصْرِيحُ عَنِ الثِّقَاتِ عِنْدَهُ. وَأَمَّا الْعَمَلُ بِالْخَبَرِ فَلَيْسَ بِتَعْدِيلٍ، إِذْ قَدْ يُمْكِنُ أَنْ يَعْمَلَ بِدَلِيلٍ آخَرَ، إِلَّا إِنْ عَلِمْنَا أَنَّهُ عَمِلَ بِذَلِكَ الْخَبَرِ مِنْ طَرِيقِ ذَلِكَ النَّاقِلِ. وَهَذَا أَيْضًا عَلَى رَأْيِ مَنْ لَا يَشْتَرِطُ ذِكْرَ سَبَبِ الْجَرْحِ وَالتَّعْدِيلِ.

This can take four forms: through an explicit statement, through transmitting a report from someone, through acting upon his report, or through giving judgement on his testimony. The highest is an explicit statement explaining the basis of his probity; below this is transmitting a report from him. The latter is valid only on the view that an attestation by itself suffices to establish probity, and only when the transmission is understood as an explicit declaration of the narrator's confidence in the person from whom he reports. Acting upon a report, however, does not attest the transmitter's probity, since the action may rest on another proof—unless we know that he acted on that report as received through that particular transmitter. This, too, follows the view that the grounds for criticism and attestation need not be stated.

Giving judgement on someone's testimony is stronger than merely attesting his probity. Declining to give judgement on his testimony or report is not, however, a criticism of him: one may withhold acceptance of an upright person's testimony or report for reasons other than an objection to his probity. In general, when no other reason presents itself for rejecting his testimony and transmission, the rejection is equivalent to an unspecified criticism.

وَأَمَّا الْحُكْمُ بِشَهَادَتِهِ فَذَلِكَ أَقْوَى مِنْ تَزْكِيَتِهِ. وَأَمَّا تَرْكُهُ الْحُكْمَ بِشَهَادَتِهِ أَوْ خَبَرِهِ، فَلَيْسَ جَرْحًا، إِذْ قَدْ يَتَوَقَّفُ فِي شَهَادَةِ الْعَدْلِ أَوْ رِوَايَتِهِ لِأَسْبَابٍ سِوَى الْجَرْحِ. وَبِالْجُمْلَةِ مَتَى لَمْ يَنْقَدِحْ لِرَدِّ شَهَادَتِهِ وَرِوَايَتِهِ سَبَبٌ آخَرُ، فَهُوَ كَالْجَرْحِ الْمُطْلَقِ.

Fourth Section: Attestation of the Companions' Probity, May God Be Pleased with Them

الْفَصْلُ الرَّابِعُ: فِي تَعْدِيلِ الصَّحَابَةِ رَضِيَ اللَّهُ عَنْهُمْ

98. The majority position on the Companions' probity

R 98 · BA 120

The position of the great majority of the community and its acknowledged authorities is that the Companions' probity is established with certainty, through God's attestation of it—majestic and mighty is He—and that of His Messenger, in numerous verses of the Book of God, majestic and mighty, and numerous reports from the Messenger, God bless him and grant him peace.

وَالَّذِي عَلَيْهِ جَمَاهِيرُ الْأُمَّةِ وَالْمُعْتَمَدُ عَلَيْهِمْ أَنَّ عَدَالَتَهُمْ مَقْطُوعٌ بِهَا بِتَعْدِيلِ اللَّهِ جَلَّ وَعَزَّ لَهُمْ وَتَعْدِيلِ رَسُولِهِ، فِي غَيْرِ مَا آيَةٍ مِنْ كِتَابِ اللَّهِ جَلَّ وَعَزَّ وَغَيْرِ مَا حَدِيثٍ عَنْهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ.

99. The civil wars and interpretive error

R 99 · BA 121

Groups among the Khārijites, Muʿtazilites, and Qadarites—in general, the people of innovation and deviation—have rejected the Companions' testimony and transmission after dissension arose among them and wars and disputes broke out. The people of the Sunna understand these events on the basis that every practitioner of independent judgement is either free of sin or correct, according to the two respective positions. Some of the people of the Sunna maintain that ʿUthmān's killers were certainly mistaken, but did not recognise their error and were acting on an interpretation. According to the majority, the testimony of a wrongdoer acting on an interpretation is not rejected.

وَقَدْ ذَهَبَتْ طَوَائِفُ مِنَ الْخَوَارِجِ وَالْمُعْتَزِلَةِ وَالْقَدَرِيَّةِ، وَبِالْجُمْلَةِ أَهْلِ الْبِدَعِ وَالزَّيْغِ، إِلَى رَدِّ شَهَادَتِهِمْ وَرِوَايَتِهِمْ بَعْدَ مَا شَجَرَ بَيْنَهُمُ الشَّتَاتُ وَظَهَرَتِ الْحُرُوبُ بَيْنَهُمْ وَالْخُصُومَاتُ، وَذَلِكَ عِنْدَ أَهْلِ السُّنَّةِ مَحْمُولٌ عَلَى أَنَّ كُلَّ مُجْتَهِدٍ إِمَّا غَيْرُ مَأْثُومٍ وَإِمَّا مُصِيبٌ بِحَسَبِ الرَّأْيَيْنِ. وَذَهَبَ قَوْمٌ مِنْ أَهْلِ السُّنَّةِ أَنَّ قَتَلَةَ عُثْمَانَ مُخْطِئُونَ قَطْعًا، لَكِنْ جَهِلُوا خَطَأَهُمْ، وَكَانُوا مُتَأَوِّلِينَ. وَالْفَاسِقُ الْمُتَأَوِّلُ لَا تُرَدُّ شَهَادَتُهُ عَلَى رَأْيِ الْأَكْثَرِ.

100. Five levels of receiving a report

R 100 · BA 122

Our account of the solitary report still requires a discussion of the manner in which a transmitter reports from the person who is his source. This can occur at five levels.

وَقَدْ بَقِيَ عَلَيْنَا مِنَ الْقَوْلِ فِي الْخَبَرِ الْوَاحِدِ الْقَوْلُ فِي كَيْفِيَّةِ نَقْلِ الرَّاوِي عَنْ مَرْوِيِّهِ، وَذَلِكَ يُتَصَوَّرُ وُقُوعُهُ عَلَى خَمْسِ مَرَاتِبَ:

The First Level

الْمَرْتَبَةُ الْأُولَى

101. Hearing the teacher read

R 101 · BA 123

The teacher reads to him so that he may transmit from the teacher. He may then truthfully say, in the literal sense, 'He related to us,' 'He informed us,' and 'I heard him.' This is the highest level.

قِرَاءَةُ الشَّيْخِ عَلَيْهِ لِيُحَدِّثَ عَنْهُ، وَبِذَلِكَ يَصِحُّ قَوْلُهُ عَلَى الْحَقِيقَةِ حَدَّثَنَا وَأَخْبَرَنَا وَسَمِعْتُهُ، وَهِيَ أَعْلَى الْمَرَاتِبِ.

The Second Level

الْمَرْتَبَةُ الثَّانِيَةُ

102. Reading before a silent teacher

R 102 · BA 124

The report is read to the teacher while he remains silent. Some Literalists dispute this, but the majority consider his silence and approval equivalent to his speaking, provided there is no reason to suppose that his silence results from inattention, coercion, or the like. They disagree, however, about whether the transmitter may say without qualification, ‘He related to us,’ or ‘I heard so-and-so.’ The correct position is that he may not, since this is plainly false—unless a contextual indication (قرينة حال) or an explicit statement makes it known that he means a reading before the teacher.

أَنْ يُقْرَأَ عَلَى الشَّيْخِ وَهُوَ سَاكِتٌ. فَهَذَا خَالَفَ فِيهِ بَعْضُ أَهْلِ الظَّاهِرِ، لَكِنْ عِنْدَ الْأَكْثَرِ سُكُوتُهُ وَإِقْرَارُهُ إِيَّاهُ يَتَنَزَّلُ مَنْزِلَةَ قَوْلِهِ. هَذَا إِن كَانَ بِحَيْثُ لَا يُخَالُ سُكُوتُهُ لِغَفْلَةٍ أَوْ إِكْرَاهٍ أَوْ مَا أَشْبَهَ ذَلِكَ. إِلَّا أَنَّهُمُ اخْتَلَفُوا هَلْ يَقُولُ حَدَّثَنَا مُطْلَقًا، أَوْ سَمِعْتُ فُلَانًا. وَالصَّحِيحُ أَنَّهُ لَا يَجُوزُ، لِأَنَّ ذَلِكَ كَذِبٌ مَحْضٌ، إِلَّا أَنْ يُعْلَمَ بِقَرِينَةِ حَالٍ مِنْهُ أَوْ تَصْرِيحٍ أَنَّهُ يُرِيدُ بِذَلِكَ الْقِرَاءَةَ عَلَى الشَّيْخِ.

The Third Level: Authorization

الْمَرْتَبَةُ الثَّالِثَةُ: الْإِجَازَةُ

103. Authorization without a reading

R 103 · BA 125

This is for the teacher to say, ‘I authorize you to transmit from me such-and-such a book,’ or ‘Whatever you have reliably identified among the reports I have heard.’ In such a case, ‘He related to us’ or ‘He informed us’ may be used without qualification only in an extended sense.

وَهُوَ أَنْ يَقُولَ أُجِيزُ لَكَ أَنْ تَرْوِيَ عَنِّي الْكِتَابَ الْفُلَانِيَّ، أَوْ مَا صَحَّ عِنْدَكَ مِنْ تَعْيِينِ مَسْمُوعَاتِي. وَلَا يَجُوزُ فِي مِثْلِ هَذَا إِطْلَاقُ الْقَوْلِ بِحَدَّثَنَا أَوْ أَخْبَرَنَا إِلَّا تَجَوُّزًا.

The Fourth Level: Handing Over a Written Text

الْمَرْتَبَةُ الرَّابِعَةُ: الْمُنَاوَلَةُ

104. Handing over a book with permission to transmit it

R 104 · BA 126

Its form is for the teacher to say, ‘Take this book and transmit it from me.’ Merely handing it over without speaking has no significance; the physical handing over is therefore an additional formality, and the transaction is in reality an authorization. Although it does not yield knowledge of the precise route of transmission, it does yield knowledge of the report’s authenticity.

وَصُورَتُهَا أَنْ يَقُولَ الشَّيْخُ خُذْ هَذَا الْكِتَابَ وَحَدِّثْ بِهِ عَنِّي. وَمُجَرَّدُ الْمُنَاوَلَةِ دُونَ اللَّفْظِ لَا مَعْنَى لَهُ، فَهِيَ زِيَادَةُ تَكَلُّفٍ، وَهِيَ فِي الْحَقِيقَةِ إِجَازَةٌ. وَهِيَ وَإِنْ لَمْ تُفِدْ مَعْرِفَةَ عَيْنِ الطَّرِيقِ الْمُوصِلِ، فَهِيَ تُفِيدُ مَعْرِفَةَ صِحَّةِ الْخَبَرِ.

The Fifth Level: Reliance on Handwriting

الْمَرْتَبَةُ الْخَامِسَةُ: الِاعْتِمَادُ عَلَى الْخَطِّ

105. Handwriting, accurate copies, and acting without direct hearing

R 105 · BA 127

He finds a statement in the teacher’s handwriting: ‘I transmitted such-and-such from so-and-so.’ He may not transmit it from the teacher, because handwriting can be confused with other handwriting. If the teacher says, ‘This is my handwriting,’ his statement is accepted, but one may not transmit from him unless he gives permission verbally or by a contextual indication.

بِأَنْ يَجِدَ بِخَطِّهِ مَكْتُوبًا إِنِّي رَوَيْتُ عَنْ فُلَانٍ كَذَا وَكَذَا. فَهَذَا لَا يَجُوزُ أَنْ يُرْوَى عَنْهُ لِأَنَّ الْخَطَّ يَشْتَبِهُ. وَأَمَّا إِذَا قَالَ الشَّيْخُ: هَذَا خَطِّي، قُبِلَ قَوْلُهُ، وَلَكِنْ لَا يَرْوِي عَنْهُ مَا لَمْ يَأْذَنْ لَهُ بِالْقَوْلِ أَوْ بِقَرِينَةِ حَالٍ.

If a person of probity says, ‘This is an accurate copy of al-Bukhārī’s book,’ and one sees in it ‘He related to us,’ one still may not transmit from its author. But must one act upon it? If one follows another’s judgement, one must ask a practitioner of independent judgement; this is undisputed. If one exercises independent judgement oneself, some say that one may not act upon it without having heard it. Others say that one may act upon it once the copy’s accuracy is known, since the Messenger’s Companions, God bless him and grant him peace, carried written sheets to the provinces, and people relied upon them on the testimony of their bearers.

وَأَمَّا إِذَا قَالَ عَدْلٌ: هَذِهِ نُسْخَةٌ صَحِيحَةٌ مِنْ كِتَابِ الْبُخَارِيِّ فَرَأَى فِيهَا حَدَّثَنَا، فَلَيْسَ لَهُ أَنْ يَرْوِيَ عَنْهُ. وَلَكِنْ هَلْ يَلْزَمُهُ الْعَمَلُ بِهِ؟ أَمَّا إِذَا كَانَ مُقَلِّدًا فَعَلَيْهِ أَنْ يَسْأَلَ الْمُجْتَهِدَ فلا خِلَافَ، وَإِنْ كَانَ مُجْتَهِدًا فَقَالَ قَوْمٌ لَا يَجُوزُ الْعَمَلُ لَهُ بِهِ مَا لَمْ يَسْمَعْهُ. وَقَالَ قَوْمٌ إِذَا عُلِمَ صِحَّةُ النُّسْخَةِ جَازَ الْعَمَلُ بِهِ، لِأَنَّ أَصْحَابَ الرَّسُولِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ كَانُوا يَحْمِلُونَ الصُّحُفَ إِلَى الْبِلَادِ، وَكَانَ النَّاسُ يَعْتَمِدُونَ عَلَيْهَا بِشَهَادَةِ حَامِلِ الصُّحُفِ.

In general, however, one should transmit only what one has heard and ascertained: the person who transmitted to them entertained no doubt about anything they received from him. If he doubted anything, its transmission was abandoned.[29]

وَلَكِنْ عَلَى الْجُمْلَةِ فَلَا يَنْبَغِي أَنْ يَرْوِيَ إِلَّا مَا سَمِعَ بَعْدَ الْمَعْرِفَةِ، فَإِنَّ الَّذِي رَوَّاهُمْ لَمْ يَشُكَّ فِي شَيْءٍ مِمَّا أَخَذُوهُ عَنْهُ، فَإِنْ شَكَّ فِي شَيْءٍ تُرِكَتْ رِوَايَتُهُ.

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[29] **29.** Translation. Two reported positions must be distinguished: one denies reliance on what the recipient has not heard; another permits acting upon a written copy once its authenticity is established (إِذَا عَلِمَ صِحَّةَ النُّسْخَةِ جَازَ الْعَمَلُ بِهِ). This is not an unqualified permission asserted by Ibn Rushd.

106. The narrator’s certainty is not the recipient’s probability

R 106 · BA 128–129

Several questions branch from this. Suppose that among the reports recorded as having been heard by a transmitter there is one that he strongly believes he heard: may he transmit it? If he is in doubt, there is no disagreement that he may not. If he strongly believes that he heard it, some say that it may be received from him, since this field rests on predominant probability. This is implausible: predominant probability concerns the teacher’s truthfulness. Likewise, in testimony, predominant probability concerns the judge; the witness, however, should testify with certainty wherever certainty is possible. The same applies to a transmitter.

وَقَدْ تتفرع عَنْ هَذَا مَسَائِلُ مِنْهَا: إِذَا كَانَ فِي مَسْمُوعَاتِهِ حَدِيثٌ يَغْلِبُ عَلَى ظَنِّهِ أَنَّهُ سَمِعَهُ هَلْ يَجُوزُ لَهُ أَنْ يَرْوِيَهُ؟ أَمَّا إِذَا شَكَّ فَلَا خِلَافَ فِي أَنَّهُ لَا يَجُوزُ لَهُ، وَأَمَّا إِذَا غَلَبَ عَلَى ظَنِّهِ أَنَّهُ سَمِعَهُ فَقَدْ قَالَ قَوْمٌ يَجُوزُ أَخْذُهُ عَنْهُ، لِأَنَّ الِاعْتِمَادَ فِي هَذَا الْبَابِ عَلَى غَلَبَةِ الظَّنِّ، وَهُوَ بَعِيدٌ، لِأَنَّ غَلَبَةَ الظَّنِّ إِنَّمَا تَتَصَوَّرُ فِي كَوْنِ الشَّيْخِ صَادِقًا. وَكَذَلِكَ غَلَبَةُ الظَّنِّ فِي الشَّهَادَةِ إِنَّمَا تَتَصَوَّرُ فِي حَقِّ الْحَاكِمِ، وَأَمَّا الشَّاهِدُ فَيَنْبَغِي أَنْ يَشْهَدَ عَلَى الْقَطْعِ فِيمَا الْقَطْعُ فِيهِ مُمْكِنٌ، وَكَذَلِكَ الرَّاوِي.

107. When a teacher denies or forgets a report

R 107 · BA 130

Another question arises when the teacher denies the report categorically, affirming that the transmitter has spoken falsely. The report is then not acted upon, but the transmitter is not thereby discredited, because they are two persons of probity whose statements conflict. If, however, the teacher’s denial expresses uncertainty, the report is acted upon: the transmitter is certain that he heard it, while the teacher does not categorically declare him false, and both possess probity.

وَمِنْهَا إِذَا أَنْكَرَ الشَّيْخُ الْحَدِيثَ إِنْكَارَ جَاحِدٍ قَاطِعٍ بِكَذِبِ الرَّاوِي فَإِنَّهُ لَا يُعْمَلُ بِهِ، وَلَكِنْ لَا يَصِيرُ الرَّاوِي مُجَرَّحًا، لِأَنَّهُمَا عَدْلَانِ تَعَارَضَ قَوْلُهُمَا. وَأَمَّا إِذَا أَنْكَرَ إِنْكَارَ مُتَوَقِّفٍ فَيُعْمَلُ بِالْخَبَرِ، لِأَنَّ الرَّاوِيَ جَازِمٌ فِي أَنَّهُ سَمِعَهُ، وَالشَّيْخُ لَيْسَ هُوَ قَاطِعًا بِتَكْذِيبِهِ وَهُمَا عَدْلَانِ.

Al-Karkhī holds that the teacher’s forgetting the report invalidates it. He argues that the teacher is not obliged to act upon it when a person of probity transmits it back to him from him and he does not remember it. The transmitter cannot be in this position, since he is certain; the position of someone other than these two lies between theirs.

وَذَهَبَ الْكَرْخِيُّ إِلَى أَنَّ نِسْيَانَ الشَّيْخِ الْحَدِيثَ يُبْطِلُهُ، وَاحْتَجَّ بِأَنَّ الشَّيْخَ لَيْسَ يَجِبُ عَلَيْهِ الْعَمَلُ إِذَا رَوَاهُ لَهُ الْعَدْلُ عَنْهُ وَهُوَ لَا يَذْكُرُهُ، وَهَذَا لَا يَتَصَوَّرُ فِي الرَّاوِي، لِأَنَّهُ قَاطِعٌ، وَأَمَّا غَيْرُهُمَا فَحَالَتُهُ بَيْنَ حَالَتَيْهِمَا.

It seems that the report’s recipient is more likely to believe the transmitter truthful, given how commonly people forget and the fact that the teacher does not categorically declare him false. This is the position of Mālik, al-Shāfiʿī, and the great majority of the theologians. In their view, it resembles the teacher’s uncertainty about an addition to a report or its grammatical inflection.

وَيُشْبِهُ أَنْ يَكُونَ أَغْلَبَ عَلَى ظَنِّهِ صِدْقُ الرَّاوِي لِلنِّسْيَانِ الْغَالِبِ عَلَى الْإِنْسَانِ، مَعَ أَنَّ الشَّيْخَ لَيْسَ بِقَاطِعٍ بِكَذِبِهِ. وَإِلَى هَذَا ذَهَبَ مَالِكٌ وَالشَّافِعِيُّ وَجَمَاهِيرُ الْمُتَكَلِّمِينَ، وَهُوَ يُشْبِهُ عِنْدَهُمْ شَكَّ الشَّيْخِ فِي زِيَادَةٍ فِي الْحَدِيثِ أَوْ إِعْرَابٍ فِيهِ.

108. An addition reported by one reliable narrator

R 108 · BA 131

Another question concerns a trustworthy transmitter who alone reports an addition to a report transmitted by a group of trustworthy persons with exact memories. Some say that the addition is accepted: if he alone had transmitted an entire report, it would have been accepted, and the addition is no different. You know that this is not so. His being alone in reporting an addition to a report they have also transmitted, despite their exact memories, is an indication (قرينة) weakening the probability of the addition's authenticity. This does not apply when he alone transmits an entire report.

وَمِنْهَا إِذَا انْفَرَدَ ثِقَةٌ بِزِيَادَةٍ فِي الْحَدِيثِ عَنْ جَمَاعَةٍ ثِقَاتٍ حُفَّاظٍ فَقِيلَ: تُقْبَلُ الزِّيَادَةُ، لِأَنَّهُ لَوِ انْفَرَدَ دُونَهُمْ بِحَدِيثٍ قُبِلَ. وَكَذَلِكَ الزِّيَادَةُ. وَأَنْتَ تَعْلَمُ أَنَّ الْأَمْرَ لَيْسَ كَذَلِكَ، لِأَنَّ انْفِرَادَهُ دُونَهُمْ بِزِيَادَةٍ، فِي حَدِيثٍ رَوَوْهُ، مَعَ أَنَّهُمْ حُفَّاظٌ قَرِينَةٌ تُضْعِفُ الظَّنَّ الْوَاقِعَ بِالزِّيَادَةِ، وَلَيْسَ كَذَلِكَ إِذَا انْفَرَدَ بِحَدِيثٍ دُونَهُمْ،

Accordingly, some reject the addition; others accept it, though not for the reason just given. Their reason is that the others do not categorically deny the addition. They may have entered the gathering after part of the report had already been related, or they may have been present but failed to hear it because of some distraction or accident. In general, this is a matter for independent judgement, and its probability varies from case to case and report to report.

فَلِذَلِكَ رَأَى بَعْضُهُمْ أَلَّا تُقْبَلَ الزِّيَادَةُ، وَرَأَى بَعْضُهُمْ أَنْ تُقْبَلَ، لَكِنْ لَيْسَ لِهَذِهِ الْعِلَّةِ الَّتِي تَقَدَّمَتْ بَلْ لِأَنَّ أُولَئِكَ لَيْسُوا بِقَاطِعِينَ عَلَى نَفْيِ الزِّيَادَةِ، وَيُمْكِنُ أَنْ يَكُونُوا دَخَلُوا فِي الْمَجْلِسِ وَقَدْ مَضَى مِنَ الْحَدِيثِ شَيْءٌ، وَيُمْكِنُ أَنْ يَكُونُوا حَاضِرِينَ وَيَفُوتَ أَسْمَاعَهُمْ لِشَاغِلٍ أَوْ عَارِضٍ. وَبِالْجُمْلَةِ فَهِيَ مَسْأَلَةٌ اجْتِهَادِيَّةٌ، وَيَتَفَاوَتُ الظَّنُّ فِيهَا بِحَسَبِ نَازِلَةٍ نَازِلَةٍ وَحَدِيثٍ حَدِيثٍ.

109. Reporting meaning: synonymy and translation

R 109 · BA 132

Another question is the transmission of a report's meaning without its wording. Some permit this for a learned person who understands the applications of speech. Others allow only the substitution (الإبدال) of an expression synonymous with and equal in meaning to the original: for example, replacing quʿūd with julūs, both meaning 'sitting,' where their synonymy is beyond doubt, and not where establishing it requires inference.

وَمِنْهَا نَقْلُ الْحَدِيثِ بِالْمَعْنَى دُونَ اللَّفْظِ، فَقَوْمٌ أَجَازُوهُ لِلْعَالِمِ الْعَارِفِ بِمَوَاقِعِ الْخِطَابِ، وَقَالَ قَوْمٌ لَا يَجُوزُ لَهُ إِلَّا بِإِبْدَالِ الْقَوْلِ بِمَا يُرَادِفُهُ وَيُسَاوِيهِ فِي الْمَعْنَى، كَمَا نُبْدِلُ الْقُعُودَ مَثَلًا بِالْجُلُوسِ مِمَّا لَا يُشَكُّ فِي تَرَادُفِهِمَا لَا فِيمَا يُحْتَاجُ فِي ذَلِكَ إِلَى اسْتِدْلَالٍ.

The first group appeals to the consensus permitting the meanings contained in the Law to be explained to non-Arabs in their own languages. They say that if Arabic may be replaced by synonymous non-Arabic wording, replacing it with Arabic wording is all the more permissible. They do not distinguish between a substitution whose validity is self-evident and one requiring inference. They add that the Messenger of God's emissaries, God bless him and grant him peace, likewise conveyed his commands to non-Arabs.

وَقَدِ احْتَجَّ الْفَرِيقُ الْأَوَّلُ بِالْإِجْمَاعِ عَلَى جَوَازِ شَرْحِ الْمَعَانِي الَّتِي فِي الشَّرْعِ لِلْعَجَمِ بِلِسَانِهِمْ، قَالُوا فَإِذَا جَازَ إِبْدَالُ الْعَرَبِيَّةِ بِعَجَمِيَّةٍ تُرَادِفُهَا فَلَأَنْ يَجُوزَ بِالْعَرَبِيَّةِ أَوْلَى وَأَحْرَى، وَلَمْ يُفَصِّلُوا بَيْنَ مَا كَانَ إِبْدَالُ اللَّفْظِ بِغَيْرِهِ بَيِّنًا بِنَفْسِهِ وَبَيْنَ مَا يُحْتَاجُ فِي ذَلِكَ إِلَى اسْتِدْلَالٍ. قَالُوا وَكَذَلِكَ كَانَ سُفَرَاءُ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ يُبَلِّغُونَ أَوَامِرَهُ إِلَى غَيْرِ الْعَرَبِ.

110. Why an independent jurist needs the Lawgiver’s wording

R 110 · BA 133–134

I hold that when understanding what expressions signify is a matter for independent judgement, a practitioner of independent judgement may not act upon a reported meaning until the Lawgiver’s wording has been transmitted to him. Otherwise, in the very capacity in which he exercises independent judgement, he becomes a follower of someone else’s judgement. An exception might be made where that meaning is stated by a Companion; discussion of this returns to the disagreement mentioned earlier. A practitioner of independent judgement whose judgement others follow may, in my view, substitute one expression for another for those who follow him, since this itself is a kind of independent judgement. Consequently, explaining Arabic expressions and rendering them in another language are permissible.

وَأَنَا أَرَى أَنَّ فَهْمَ مَا تَدُلُّ عَلَيْهِ الْأَلْفَاظُ إِذَا كَانَ فِي مَحَلِّ الِاجْتِهَادِ فَلَا يَجُوزُ لِلْمُجْتَهِدِ الْعَمَلُ بِهِ حَتَّى يُنْقَلَ إِلَيْهِ لَفْظُ الشَّارِعِ، وَإِلَّا عَادَ الْمُجْتَهِدُ مِنْ حَيْثُ هُوَ مُجْتَهِدٌ مُقَلِّدًا، اللَّهُمَّ إِلَّا أَنْ يَقُولَ ذَلِكَ الْمَعْنَى صَحَابِيٌّ فَهَذَا يَرْجِعُ الْقَوْلُ فِيهِ إِلَى مَا تَقَدَّمَ مِنَ الْخِلَافِ الْمَذْكُورِ فِي ذَلِكَ. وَأَمَّا الْمُجْتَهِدُ الْمُقَلَّدُ فَيَجُوزُ لَهُ عِنْدِي إِبْدَالُ اللَّفْظِ بِلَفْظٍ غَيْرِهِ عِنْدَ مَنْ يُقَلِّدُهُ لِأَنَّ ذَلِكَ اجْتِهَادٌ مَا، وَعَلَى هَذَا جَازَ شَرْحُ الْعَرَبِيَّةِ وَتَبْدِيلِهَا بِالْعَجَمِيَّةِ.

As for permitting the transmission of only part of a report, [I consider this permissible if that part conveys a meaning, is self-sufficient, and does not require what precedes it in order to be understood, or if omitting the excised portion does not leave what remains susceptible to two or more meanings. This applies equally whether [we permit] the procedure on the view of those who allow transmission of a report’s meaning without its wording, or of those who do not].[30]

وَأَمَّا تَجْوِيزُ نَقْلِ بَعْضِ الْخَبَرِ فَهُوَ [عِنْدِي جَائِزٌ، إِذَا كَانَ مُفِيدًا وَمُكْتَفِيًا بِنَفْسِهِ وَغَيْرَ مُحْتَاجٍ فِي فَهْمِهِ إِلَى مَا قَبْلَهُ، أَوْ كَانَ لَيْسَ يُوجِبُ حَذْفُ مَا حُذِفَ مِنْهُ تَرَدُّدَ الْمَفْهُومِ عَنْهُ بَيْنَ مَعْنَيَيْنِ أَوْ أَكْثَرَ مِنْ ذَلِكَ، وَسَوَاءٌ [جَوَّزْنَا] الْأَمْرَ فِي هَذَا عِنْدَ مَنْ أَجَازَ نَقْلَ الْحَدِيثِ بِالْمَعْنَى دُونَ اللَّفْظِ أَوْ لَمْ يُجِزْهُ].

111. Omitted links, connected chains, and “from” formulae

R 111 · BA 135

Another question concerns transmission with an omitted link and transmission with a connected chain. Opinions differ: Mālik, Abū Ḥanīfa, and the majority accept and act upon a report with an omitted link, whereas al-Shāfiʿī and the Qāḍī reject it. Its form is for someone who was not his contemporary to say, ‘The Messenger of God said’—God bless him and grant him peace—or for someone who was not Abū Hurayra’s contemporary to say, ‘Abū Hurayra said.’

وَمِنْهَا النَّقْلُ الْمُرْسَلُ وَالْمُسْنَدُ. وَهَذَا قَدِ اخْتَلَفُوا فِيهِ، فَذَهَبَ مَالِكٌ وَأَبُو حَنِيفَةَ وَالْجَمَاهِيرُ إِلَى أَنَّ الْمُرْسَلَ مَقْبُولٌ وَمَعْمُولٌ بِهِ، وَذَهَبَ الشَّافِعِيُّ وَالْقَاضِي إِلَى أَنَّهُ غَيْرُ مَقْبُولٍ. وَصُورَتُهُ أَنْ يَقُولَ: قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مَنْ لَمْ يُعَاصِرْهُ، أَوْ قَالَ أَبُو هُرَيْرَةَ مَنْ لَمْ يُعَاصِرْهُ.

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30. Translation. المجتهد المقلد is read al-mujtahid al-muqallad, ‘the practitioner of independent judgement whom others follow,’ as confirmed by عند من يقلده later in the sentence; reading al-muqallid would reverse the point.

The first group argues that transmission by a person of probity attests his source's probity, especially when he states this explicitly, as in 'from a trustworthy person,' in their usage. The reply is that his transmission does not attest probity unless his circumstances indicate that he transmits only from persons of probity, or he expressly attests his source's probity; and even then it does not establish probity unless he states what probity means to him. In my view, this last requirement does not follow from the positions of al-Shāfiʿī and the Qāḍī, as explained earlier. Perhaps, however, they concede unspecified attestation only where the person is identified: an unidentified person might, if named, be someone we know to be morally unreliable.

The first group also argues for accepting reports with omitted links from the consensus of the Companions and Successors permitting action upon them. But the alleged consensus itself is disputed, because this position has not been transmitted from all of them, and the silence of those who said nothing does not have the standing of an express statement, especially in matters open to independent judgement, as will be explained later.

Some who reject reports with omitted links nevertheless accept such a report from a Companion, because he generally relates only from another Companion, and all of them possess probity. The same is said of the Successors' reports with omitted links, since they generally transmit from a Companion. The preferred position among those who reject such reports, however, is to accept one from neither a Companion nor a Successor until his explicit wording or a contextual indication makes it known that he transmits only from a Companion.

أَمَّا الْفَرِيقُ الْأَوَّلُ فَاحْتَجُّوا بِأَنَّ رِوَايَةَ الْعَدْلِ تَعْدِيلٌ، لَا سِيَّمَا فِيمَا يُصَرِّحُ بِهِ، كَقَوْلِهِ عَنِ الثِّقَةِ عنده، فَرُوجِعُوا بِأَنَّ رِوَايَةَ الْعَدْلِ لَيْسَتْ بِتَعْدِيلٍ إِلَّا أَنْ يُعْلَمَ مِنْ قَرِينَةِ حَالِهِ أَنَّهُ لَا يَجْرَحُ إِلَّا عَنْ عَدْلٍ أَوْ يُصَرِّحَ بِعَدَالَتِهِ، ثُمَّ إِذَا عُلِمَ مِنْ قَرِينَةِ حَالِهِ أَنَّهُ لَا يَجْرَحُ إِلَّا عَنْ عَدْلٍ أَوْ صَرَّحَ بِعَدَالَتِهِ فَلَيْسَ بِتَعْدِيلٍ مَا لَمْ يَذْكُرْ مَا الْعَدَالَةُ عِنْدَهُ. وَهَذَا عِنْدِي غَيْرُ لَازِمٍ عَلَى مَذْهَبِ الشَّافِعِيِّ وَالْقَاضِي عَلَى مَا تَقَدَّمَ لَكِنْ عَسَاهُمْ لَا يُسَلِّمُونَ التَّعْدِيلَ الْمُطْلَقَ إِلَّا فِيمَنْ عُرِفَتْ عَيْنُهُ، إِذْ مَنْ لَمْ تُعْرَفْ عَيْنُهُ مُمْكِنٌ أَنْ لَوْ سُمِّيَ عَرَفْنَاهُ بِفِسْقٍ.

وَقَدِ احْتَجَّ الْفَرِيقُ الْأَوَّلُ أَيْضًا فِي قَبُولِ الْمَرَاسِلِ بِإِجْمَاعِ الصَّحَابَةِ وَالتَّابِعِينَ عَلَى جَوَازِ الْعَمَلِ بِالْمَرَاسِلِ. لَكِنْ نُوزِعُوا فِي نَفْسِ الْإِجْمَاعِ، إِذْ لَمْ يَتَّصِلْ ذَلِكَ عَنْ جَمِيعِهِمْ، وَسُكُوتُ مَنْ سَكَتَ مِنْهُمْ لَيْسَ يَتَنَزَّلُ مَنْزِلَةَ مَنْ قَالَ، لَا سِيَّمَا فِيمَا كَانَ فِي مَحَلِّ الِاجْتِهَادِ كَمَا سَيَأْتِي مِنْ بَعْدُ.

وَأَيْضًا فَإِنَّ مِنَ الْمُنْكِرِينَ لِلْمُرْسَلِ مَنْ قَبِلَ مُرْسَلَ الصَّحَابِيِّ لِأَنَّهُ فِي الْأَكْثَرِ لَا يُحَدِّثُ إِلَّا عَنْ صَحَابِيٍّ، وَكُلُّهُمْ عَدْلٌ، وَكَذَلِكَ مَرَاسِلُ التَّابِعِينَ إِذْ فِي الْأَكْثَرِ إِنَّمَا يَرْوُونَ عَنْ صَحَابِيٍّ. لَكِنَّ الْمُخْتَارَ عِنْدَ مَنْ لَا يَقْبَلُ الْمَرَاسِلَ أَنْ لَا يَقْبَلَ مُرْسَلَ الصَّحَابِيِّ أَوِ التَّابِعِيِّ حَتَّى يَعْلَمَ بِصَرِيحِ لَفْظِهِ أَوْ قَرِينَةِ حَالٍ أَنَّهُ لَا يَرْوِي إِلَّا عَنْ صَحَابِيٍّ.

An argument might be brought against those who refuse such reports from chains expressed simply by ‘from,’ which are treated as connected despite the possibility of an intermediary between the transmitter and his source. They may reply that a chain expressed by ‘from’ is treated as connected only where accompanying indications show that the transmitter heard directly from his source, or where he explicitly says so. In the absence of either an explicit statement or such indications, the report remains uncertain between an omitted-link report and a connected report.[31]

وَأَمَّا مَا يُمْكِنُ أَنْ يُحْتَجَّ بِهِ عَلَى مَنْ مَنَعَ قَبُولَ الْمَرَاسِلِ مِنَ الْعَنْعَنَةِ وَإِجْرَائِهَا مَجْرَى الْمُسْنَدِ مَعَ إِمْكَانِ أَنْ يَكُونَ بَيْنَ الرَّاوِي وَالْمَرْوِيِّ غَيْرُهُ، فَلَهُمْ أَنْ يُجِيبُوا عَنْ ذَلِكَ بِأَنَّ الْعَنْعَنَةَ إِنَّمَا أُجْرِيَتْ مَجْرَى الْمُسْنَدِ حَيْثُ تَقْتَرِنُ قَرَائِنُ تَدُلُّ عَلَى أَنَّهُ سَمِعَ مِنْهُ، أَوْ يُصَرِّحُ بِذَلِكَ، وَمَتَى لَمْ يُصَرِّحْ بِذَلِكَ وَلَا دَلَّتْ عَلَى ذَلِكَ قَرَائِنُ فَهُوَ مُتَرَدِّدٌ بَيْنَ الْمُرْسَلِ وَالْمُسْنَدِ.

112. Solitary reports concerning matters of widespread need

R 112 · BA 136

As for accepting a solitary report about something of widespread occurrence, such as the report concerning touching the penis and similar reports, the grounds for suspecting it have already been explained: what commonly affects people normally becomes widely circulated and known. Those who permit acting on solitary reports in such matters reject this indication. They say that widespread transmission is required only for what the Messenger of God, God bless him and grant him peace, was charged to disseminate among everyone; it is not required for what he was charged to convey to individuals while referring others to their reports.

وَأَمَّا قَبُولُ خَبَرِ الْوَاحِدِ فِيمَا تَعُمُّ بِهِ الْبَلْوَى كَحَدِيثِ مَسِّ الذَّكَرِ وَمَا أَشْبَهَهُ فَقَدْ تَقَدَّمَ الْقَوْلُ فِي وَجْهِ الِاسْتِرَابَةِ بِهِ، لِأَنَّ مَا تَعُمُّ بِهِ الْبَلْوَى يَنْتَشِرُ وَيَسْتَفِيضُ بِحَسَبِ عُرْفِ الْعَادَةِ. وَقَدْ رَدَّ هَذِهِ الْقَرِينَةَ مَنْ أَجَازَ الْعَمَلَ بِأَخْبَارِ الْآحَادِ فِيمَا تَعُمُّ بِهِ الْبَلْوَى بِأَنَّ الِاسْتِفَاضَةَ إِنَّمَا تَلْزَمُ فِيمَا تَعَبَّدَ فِيهِ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ بِإِشَاعَتِهِ فِي الْجَمِيعِ، وَأَمَّا مَا تَعَبَّدَ بِهِ بِاتِّصَالِهِ إِلَى الْآحَادِ وَرَدِّ الْخَلْقِ إِلَى أَخْبَارِهِمْ فَلَا يَلْزَمُ ذَلِكَ فِيهِ.

To justify referring people to solitary reports in some cases even though widespread transmission would be possible, they invoke the permissibility of referring them to analogy where an express ruling could have been given, as in the question of usury and similar matters. They say that widespread occurrence is not the cause of dissemination and wide transmission; the cause is the manner in which the duty is imposed.

وَيَحْتَجُّونَ لِتَجْوِيزِ رَدِّهِمْ إِلَى أَخْبَارِ الْآحَادِ فِي بَعْضِ النَّوَازِلِ مَعَ إِمْكَانِ اسْتِفَاضَةِ ذَلِكَ بِتَجْوِيزِ رَدِّهِمْ إِلَى الْقِيَاسِ فِيمَا يُمْكِنُ أَنْ يَنُصَّ عَلَيْهِ كَمَسْأَلَةِ الرِّبَا وَأَشْبَاهِهَا. قَالُوا وَلَيْسَ عُمُومُ الْبَلْوَى عِلَّةَ الْإِشَاعَةِ وَالِاسْتِفَاضَةِ، بَلْ عِلَّةُ ذَلِكَ جِهَةُ التَّكْلِيفِ.

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[31] Translation. Mursal and musnad are rendered according to Ibn Rushd’s own broad definition here: a report with an omitted intermediary versus a report with a connected chain, rather than imposing a narrower later definition of mursal.

113. Neither universal acceptance nor universal rejection is justified

R 113 · BA 137

I hold that his conveying, God bless him and grant him peace, one of God’s individually binding obligations to a single person, while refraining from conveying it to the Companions who attended him morning and evening—may God bless them and grant them peace—would involve his relying, God bless him and grant him peace, on their acting upon the report if it reached them and on the obligation’s lapsing for them if it did not. Nothing in his circumstances, God bless him and grant him peace, indicates this, given his eagerness to teach and explain.

وَأَنَا أَرَى أَنَّ تَبْلِيغَهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَرْضًا مِنْ فُرُوضِ اللَّهِ مِمَّا هُوَ وَاجِبٌ عَلَى الْأَعْيَانِ وَاحِدًا، وَسُكُوتَهُ عَنْ تَبْلِيغِهِ لِمَنْ يُرَاوِحُهُ وَيُغَادِيهِ مِنْ أَصْحَابِهِ صَلَّى اللَّهُ عَلَيْهِمْ وَسَلَّمَ اتِّكَالًا مِنْهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ عَلَى أَنَّهُ إِنْ وَصَلَهُمْ ذَلِكَ الْخَبَرُ عَمِلُوا بِهِ، وَإِنْ لَمْ يَصِلْهُمْ فَهُوَ سَاقِطٌ فِي حَقِّهِمْ غَيْرُ مَعْلُومٍ مِنْ قَرَائِنِ أَحْوَالِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مَعَ حِرْصِهِ عَلَى التَّعْلِيمِ وَالتَّبْيِينِ.

Whether or not such a thing is rationally possible, examining his conduct, God bless him and grant him peace, in explaining and clarifying the Law brings one close to certainty that it could not have occurred in the revealed dispensation.

وَسَوَاءٌ جَازَ وُقُوعُ مِثْلِ هَذَا عَقْلًا أَوْ لَمْ يَجُزْ هُوَ مِمَّا يَكَادُ يُقْطَعُ بِامْتِنَاعِ وُقُوعِهِ شَرْعًا عِنْدَ تَصَفُّحِ أَحْوَالِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فِي الْبَيَانِ وَالتَّبْيِينِ.

The truth is that some reports can reach us only through solitary routes, even if their subject was formerly widespread and the reports widely circulated. Others can reach us by either route, and still others cannot reach us except through mass transmission. This varies from case to case and issue to issue, according to time, place, and other obstacles.

وَإِنَّمَا الْحَقُّ أَنَّ بَعْضَ الْأَخْبَارِ لَيْسَ يُمْكِنُ فِيهَا أَنْ تَصِلَ إِلَيْنَا إِلَّا بِطُرُقِ الْآحَادِ، وَإِنْ عَمَّتْ بِهَا الْبَلْوَى فِيمَا سَلَفَ وَاسْتَفَاضَتْ، وَبَعْضَهَا يُمْكِنُ أَنْ تَصِلَ بِهَذَا وَهَذَا، وَبَعْضَهَا مُمْتَنِعٌ أَنْ تَصِلَ بِغَيْرِ التَّوَاتُرِ، وَذَلِكَ يَخْتَلِفُ فِي نَازِلَةٍ نَازِلَةٍ وَقَضِيَّةٍ قَضِيَّةٍ، وَذَلِكَ بِحَسَبِ الزَّمَانِ وَالْمَكَانِ وَغَيْرِ ذَلِكَ مِنَ الْعَوَائِقِ.

Accordingly, in some reports a practitioner of independent judgement may find grounds for rejection because of widespread occurrence, while in others he may find no such grounds, especially in collective obligations. In each instance one should judge according to what the matter under discussion admits. Rejecting solitary routes in every case of widespread occurrence is incorrect, since the matter varies with the accompanying indications; acting upon them without qualification is likewise incorrect.

وَلِذَلِكَ رُبَّمَا انْقَدَحَ لِلْمُجْتَهِدِ فِي بَعْضِ الْأَخْبَارِ الْقَوْلُ بِرَدِّهِ لِعُمُومِ الْبَلْوَى، وَرُبَّمَا لَمْ يَنْقَدِحْ لَهُ رَدُّهُ، وَلَا سِيَّمَا فِي فُرُوضِ الْكِفَايَاتِ. وَيَنْبَغِي أَنْ يُقَالَ فِي كُلِّ مَوْضِعٍ بِحَسَبِ مَا يَحْتَمِلُ الْأَمْرُ الْمَقُولُ فِيهِ، فَإِنَّ رَدَّ الْإِنْسَانِ طُرُقَ الْآحَادِ فِيمَا تَعُمُّ بِهِ الْبَلْوَى فِي كُلِّ مَوْضِعٍ غَيْرُ صَوَابٍ، إِذْ يَتَفَاوَتُ ذَلِكَ بِحَسَبِ الْقَرَائِنِ وَكَذَلِكَ الْعَمَلُ بِهَا عَلَى الْإِطْلَاقِ.

This division does not have the nature of logical opposition, so that its two sides could be made contradictories and each party discuss them as though truth were confined to one side. You know how often they proceed in this way in many of these questions.

وَلَيْسَ لِهَذَا التَّقْسِيمِ طَبِيعَةُ التَّقَابُلِ حَتَّى يُجْعَلَ طَرَفَيْ نَقِيضٍ وَيَتَكَلَّمَ عَلَيْهَا كُلُّ وَاحِدٍ مِنَ الْفَرِيقَيْنِ عَلَى أَنَّ الصِّدْقَ مُنْحَصِرٌ فِي أَحَدِهِمَا. وَأَنْتَ تَعْلَمُ أَنَّ كَثِيرًا مَا يَفْعَلُونَ هَذَا فِي كَثِيرٍ مِنْ هَذِهِ الْمَسَائِلِ.

114. Both Qurʾān and Sunna are subject to abrogation

R 114 · BA 138

Here the examination of the second source, the Sunna, comes to an end. You should know that both these sources are subject to abrogation; let us now discuss it.

وَهُنَا انْتَهَى النَّظَرُ فِي الْأَصْلِ الثَّانِي وَهُوَ السُّنَّةُ، وَيَنْبَغِي أَنْ تَعْلَمَ أَنَّ هَذَيْنِ الْأَصْلَيْنِ يَلْحَقُهُمَا النَّسْخُ، وَلْنَقُلْ فِي ذَلِكَ.

On the Abrogating and the Abrogated

الْقَوْلُ فِي النَّاسِخِ وَالْمَنْسُوخِ

115. Does abrogation remove a ruling or reveal its time limit?

R 115 · BA 139

There is disagreement over the definition of abrogation. The theologians define it as discourse indicating the removal of a ruling established by earlier discourse, such that the ruling would remain in force without it, with the discourse indicating its removal occurring later. They include these qualifications because they allow that God Most High may remove a ruling at some time after, for example, commanding it in perpetuity. In general, they allow abrogation before performance has become possible. Others define it as discourse disclosing when the term of an act of worship expires, because they believe that abrogation merely clarifies a prescription that was never intended from the outset to apply generally to, or encompass, all time.

Still others define it as discourse indicating that a ruling like the one established by the text ceases to hold, such that it would remain in force without that discourse. This definition is somewhat clumsy, because it makes what is removed a ruling like the original rather than the ruling itself. They were driven to this formulation only because they do not allow that God Most High may prohibit the very same thing after commanding it.

وَقَدِ اخْتُلِفَ فِي حَدِّ النَّسْخِ فَحَدَّهُ الْمُتَكَلِّمُونَ بِأَنَّهُ الْخِطَابُ الدَّالُّ عَلَى رَفْعِ الْحُكْمِ الثَّابِتِ بِالْخِطَابِ الْمُتَقَدِّمِ عَلَى وَجْهٍ لَوْلَاهُ كَانَ الْحُكْمُ ثَابِتًا مَعَ تَرَاخِي الْخِطَابِ الدَّالِّ عَلَى ارْتِفَاعِهِ. وَإِنَّمَا اشْتَرَطُوا فِيهِ هَذِهِ الْفُصُولَ لِأَنَّهُمْ يُجَوِّزُونَ عَلَى اللَّهِ تَعَالَى رَفْعَ الْحُكْمِ فِي وَقْتٍ مَا بَعْدَ الْأَمْرِ بِهِ عَلَى التَّأْبِيدِ مَثَلًا، وَبِالْجُمْلَةِ فَيَجُوزُ عِنْدَهُمُ النَّسْخُ قَبْلَ التَّمَكُّنِ مِنَ الْفِعْلِ. وَحَدَّهُ آخَرُونَ بِأَنَّهُ الْخِطَابُ الْكَاشِفُ عَنْ مُدَّةِ انْقِضَاءِ الْعِبَادَةِ، اعْتِقَادًا مِنْهُمْ أَنَّ النَّسْخَ إِنَّمَا يَرِدُ مُبَيِّنًا فِيمَا لَمْ يُقْصَدْ بِهِ مِنْ أَوَّلِ الْأَمْرِ عُمُومُ جَمِيعِ الزَّمَانِ وَلَا اسْتِغْرَاقُهُ.

وَحَدَّهُ أَيْضًا آخَرُونَ بِأَنَّهُ الْخِطَابُ الدَّالُّ عَلَى أَنَّ مِثْلَ الْحُكْمِ الثَّابِتِ بِالنَّصِّ زَائِلٌ عَلَى وَجْهٍ لَوْلَاهُ لَكَانَ ثَابِتًا. وَهَذَا الْحَدُّ وَإِنْ كَانَ فِيهِ تَشْبِيجٌ، لِأَنَّهُمْ جَعَلُوا الْمَرْفُوعَ مِثْلَ الْحُكْمِ وَلَمْ يَجْعَلُوهُ الْحُكْمَ نَفْسَهُ، فَإِنَّمَا اضْطَرَّهُمْ إِلَى ذَلِكَ أَنَّهُمْ لَا يُجَوِّزُونَ عَلَى اللَّهِ تَعَالَى النَّهْيَ عَنِ الشَّيْءِ الْوَاحِدِ بِعَيْنِهِ بَعْدَ الْأَمْرِ بِهِ.

116. What the jurist needs to know about abrogation

R 116 · BA 140–141

In general, inquiry into which of these things may or may not be attributed to God Most High does not belong to the jurist as jurist. It is sufficient for the jurist to concede and believe that the Law contains rulings removed after they had been commanded, whether or not this removal disclosed the expiry of the term of an act of worship, and that the occurrence of such abrogation in the Law is established by mass transmission. Inquiry into its rational possibility, or the manner of that possibility, does not belong specifically to him. Let us therefore begin with what is necessary in this discipline. The discussion comprises several questions.

وَبِالْجُمْلَةِ فَالنَّظَرُ فِيمَا يَجُوزُ مِنْ هَذَا عَلَى اللَّهِ تَعَالَى وَمَا لَا يَجُوزُ لَا يَخُصُّ الْفَقِيهَ بِمَا هُوَ فَقِيهٌ. وَالَّذِي يَكْفِي الْفَقِيهَ مِنْ هَذَا أَنْ يُسَلِّمَ أَنَّ فِي الشَّرْعِ أَحْكَامًا رُفِعَتْ بَعْدَ الْأَمْرِ بِهَا وَيَعْتَقِدَ ذَلِكَ سَوَاءٌ كَانَ ذَلِكَ كَشْفًا عَنِ انْقِضَاءِ مُدَّةِ الْعِبَادَةِ أَوْ لَمْ يَكُنْ، وَأَنَّ وُقُوعَ مِثْلِ هَذَا شَرْعًا مِمَّا ثَبَتَ تَوَاتُرًا. وَأَمَّا تَجْوِيزُ وُقُوعِهِ عَقْلًا فَلَيْسَ يَخُصُّهُ النَّظَرُ فِيهِ وَلَا فِي جِهَةِ جَوَازِهِ، فَلْنَبْدَأْ مِنْ ذَلِكَ بِالضَّرُورِيِّ فِي هَذِهِ الصِّنَاعَةِ، وَالْقَوْلُ فِي ذَلِكَ يَشْتَمِلُ عَلَى مَسَائِلَ:

117. Removing a part, a condition, or a recommended observance

R 117 · BA 142

If part of an act of worship, one of its conditions, or one of its recommended observances is abrogated, does this abrogate the act of worship itself? Opinions differ. The truth is that removing a part removes the whole, because a whole is a whole through its parts, and an act of worship is commanded insofar as it comprises all its parts. In general, removing a part removes the whole, since it no longer remains a whole; this applies to what cannot be divided into independent parts. Removing a condition seems to have the same effect, since it is through that condition that the act of worship is complete. Removing a recommended observance, however, does not entail removing the act’s obligatory character.

إِذَا نُسِخَ بَعْضُ الْعِبَادَةِ أَوْ شَرْطٌ مِنْ شُرُوطِهَا أَوْ سُنَّةٌ مِنْ سُنَنِهَا هَلْ هُوَ نَسْخٌ لِأَصْلِ الْعِبَادَةِ أَمْ لَا؟ وَهَذِهِ الْمَسْأَلَةُ قَدِ اخْتَلَفُوا فِيهَا، وَالْحَقُّ أَنَّ رَفْعَ الْبَعْضِ رَفْعٌ لِلْكُلِّ، لِأَنَّ الْكُلَّ إِنَّمَا هُوَ كُلٌّ بِبَعْضِهِ، وَالْعِبَادَةُ إِنَّمَا هِيَ مَأْمُورٌ بِهَا مِنْ جِهَةِ مَا تَحْتَوِي عَلَى جَمِيعِ أَجْزَائِهَا. وَبِالْجُمْلَةِ فَرَفْعُ الْجُزْءِ رَفْعٌ لِلْكُلِّ، لِأَنَّهُ لَا يَبْقَى كُلًّا وَذَلِكَ فِيمَا لَا يَتَبَعَّضُ. وَيُشْبِهُ أَنْ يَكُونَ كَذَلِكَ رَفْعُ الشَّرْطِ، لِأَنَّهُ الَّذِي بِهِ تَتِمُّ الْعِبَادَةُ. وَأَمَّا رَفْعُ السُّنَّةِ فَلَيْسَ يَلْزَمُ عَنْهَا رَفْعُ وُجُوبِ الْعِبَادَةِ.

118. When an addition changes the identity of an obligation

R 118 · BA 143

Question. Some regard an addition to a text as abrogation; others do not. The preferred position is that an addition constitutes abrogation when it makes what receives the addition different from what it was before and numerically a second thing. An example is prayer, if it is correct that two cycles were originally prescribed and further cycles were then added.

مَسْأَلَةٌ: الزِّيَادَةُ عَلَى النَّصِّ نَسْخٌ عِنْدَ قَوْمٍ، وَلَيْسَتْ بِنَسْخٍ عِنْدَ قَوْمٍ. وَالْمُخْتَارُ أَنَّ الزِّيَادَةَ إِذَا صَارَ بِهَا الْمَزِيدُ غَيْرَ مَا كَانَ قَبْلُ وَثَانِيًا بِالْعَدَدِ فَهِيَ نَسْخٌ، مِثْلَ الصَّلَاةِ إِنْ صَحَّ فِيهَا أَنَّهَا فُرِضَتْ أَوَّلًا رَكْعَتَيْنِ ثُمَّ زِيدَ فِيهَا.

If, however, the addition differs in kind from the act of worship to which it is added, it clearly is not abrogation—for example, prescribing prayer and then prescribing almsgiving. Likewise, if the addition and what receives it are one in kind, but the addition does not make the latter a different individual thing, it is not abrogation: for example, adding twenty lashes to a prescribed punishment of eighty. Abū Ḥanīfa, God have mercy on him, nevertheless regards such a case as abrogation.

فَأَمَّا إِذَا كَانَتِ الزِّيَادَةُ مُبَايِنَةً لِلْعِبَادَةِ الْمَزِيدِ عَلَيْهَا بِالنَّوْعِ فَبَيِّنٌ أَنَّهَا لَيْسَتْ بِنَسْخٍ، كَإِيجَابِ الصَّلَاةِ مَثَلًا، ثُمَّ إِيجَابِ الزَّكَاةِ. وَكَذَلِكَ إِنْ كَانَتِ الزِّيَادَةُ مَعَ الْمَزِيدِ عَلَيْهِ وَاحِدَةً بِالنَّوْعِ وَلَمْ يَصِرِ الْمَزِيدُ عَلَيْهِ بِهَا غَيْرًا بِالشَّخْصِ فَلَيْسَتْ أَيْضًا بِنَسْخٍ، كَزِيَادَةِ عِشْرِينَ جَلْدَةً فِي الْحَدِّ مَثَلًا عَلَى ثَمَانِينَ، وَإِنْ كَانَ أَبُو حَنِيفَةَ رَحِمَهُ اللَّهُ يَرَى مِثْلَ هَذَا نَسْخًا.

119. Abrogation without a substitute

R 119 · BA 144

Question. Abrogation does not require establishing a substitute for the abrogated ruling to take its place and occupy its position. Abrogation without such a substitute is permissible according to the people of the Sunna and has occurred in the Law, as in the abrogation concerning storing sacrificial meat and giving charity before private consultation[32].

مَسْأَلَةٌ: لَيْسَ مِنْ شَرْطِ النَّسْخِ إِثْبَاتُ بَدَلٍ لِلْمَنْسُوخِ يَقُومُ مَقَامَهُ وَيَتَنَزَّلُ مَنْزِلَتَهُ، وَذَلِكَ جَائِزٌ عَلَى مَذْهَبِ أَهْلِ السُّنَّةِ، وَوَاقِعٌ شَرْعًا، كَنَسْخِ ادِّخَارِ لُحُومِ الْأَضَاحِيِّ، وَتَقْدِمَةِ الصَّدَقَةِ أَمَامَ الْمُنَاجَاةِ[32].

As for God’s saying, mighty and majestic, ‘Whatever verse We abrogate or cause to be forgotten, We bring one better than it,’[33] although its apparent meaning establishes a substitute taking the abrogated verse’s place, ‘We bring one better than it’[33] may be interpreted to mean ‘We bring another verse,’ even if this does not contain a replacement for the abrogated verse in respect of its ruling, but instead contains another ruling that is not a substitute for the one removed.’ [34]

وَأَمَّا قَوْلُ اللَّهِ عَزَّ وَجَلَّ: {مَا نَنْسَخْ مِنْ آيَةٍ أَوْ نُنْسِهَا نَأْتِ بِخَيْرٍ مِنْهَا}[33] فَإِنَّهَا وَإِنْ كَانَتْ ظَاهِرَةً فِي إِثْبَاتِ بَدَلٍ لِلْمَنْسُوخِ الْمُتَنَزِّلِ مَنْزِلَتَهُ فَيُمْكِنُ أَنْ يُتَأَوَّلَ قَوْلُهُ عَزَّ وَجَلَّ: {نَأْتِ بِخَيْرٍ مِنْهَا}[33] أَيْ نَأْتِي بِآيَةٍ أُخْرَى، وَإِنْ لَمْ تَتَضَمَّنْ بَدَلَهَا الْآيَةُ الْمَنْسُوخَةُ فِي الْحُكْمِ، بَلْ تَتَضَمَّنُ حُكْمًا آخَرَ لَيْسَ بِبَدَلٍ لِلْحُكْمِ الْمَرْفُوعِ.

120. Replacing a lighter duty with a heavier one

R 120 · BA 145

Question. Abrogation may replace a ruling with a lighter or a heavier one. This is rationally possible and has occurred in the Law. Examples of replacing a lighter requirement with a heavier one are replacing the choice between fasting and feeding others as compensation with fasting alone[35]; prohibiting wine and temporary marriage; and replacing the fast of ʿĀshūrāʾ with the obligation to fast Ramaḍān.

مَسْأَلَةٌ: يَجُوزُ النَّسْخُ بِالْأَخَفِّ وَالْأَثْقَلِ، وَذَلِكَ جَائِزٌ عَقْلًا وَوَاقِعٌ شَرْعًا. مِثَالُ نَسْخِ الْأَخَفِّ بِالْأَثْقَلِ نَسْخُ التَّخْيِيرِ بَيْنَ الصَّوْمِ وَالْفِدْيَةِ بِالْإِطْعَامِ بِتَعْيِينِ الصِّيَامِ[35]، وَتَحْرِيمُ الْخَمْرِ وَنِكَاحِ الْمُتْعَةِ، وَنَسْخُ صَوْمِ عَاشُورَاءَ بِإِيجَابِ رَمَضَانَ.

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32. Qurʾān, al-Mujādilah 58:12–13 ↗.
33. Qurʾān, al-Baqarah 2:106 ↗.
34. Translation. The elliptical example نسخ ادخار لحوم الأضاحي is retained as ‘the abrogation concerning storing sacrificial meat’; the Arabic does not expressly repeat ‘the prohibition of’ storing it.
35. Qurʾān, al-Baqarah 2:184–185 ↗. These are the verses invoked in the author’s abrogation example.

121. Abrogating recitation, ruling, or both—and the demand for proof

R 121 · BA 146

Question. When a verse contains a ruling, its recitation may be abrogated while its ruling remains, its ruling may be abrogated while its recitation remains, or both may be abrogated. This is rationally possible and has occurred in the Law. Its rational possibility follows because recitation comprises two aspects: first, reading the verse, writing it in the codex, and reciting it in prayer; second, the rulings it contains. A person may be charged with either aspect without the other, and both may be removed together, according to what the doctrines of the people of the Sunna entail.

مَسْأَلَةٌ: الْآيَةُ إِذَا تَضَمَّنَتْ حُكْمًا يَجُوزُ نَسْخُ تِلَاوَتِهَا دُونَ حُكْمِهَا وَنَسْخُ حُكْمِهَا دُونَ تِلَاوَتِهَا وَنَسْخُهُمَا جَمِيعًا، وَذَلِكَ جَائِزٌ عَقْلًا وَوَاقِعٌ شَرْعًا. أَمَّا جَوَازُهُ عَقْلًا فَإِنَّ التِّلَاوَةَ تَتَضَمَّنُ مَعْنَيَيْنِ: أَحَدُهُمَا قِرَاءَتُهَا وَكَتْبُهَا فِي الْمُصْحَفِ وَالصَّلَاةُ بِهَا. وَالثَّانِي مَا فِيهَا مِنَ الْأَحْكَامِ. وَكُلُّ وَاحِدٍ مِنْ هَذَيْنِ الْمَعْنَيَيْنِ جَائِزٌ أَنْ يُكَلَّفَهُ الْإِنْسَانُ دُونَ الثَّانِي، وَجَائِزٌ أَنْ يُرْفَعَا مَعًا بِحَسَبِ مَا تَقْتَضِيهِ مَذَاهِبُ أَهْلِ السُّنَّةِ.

Evidence from revelation that this has occurred is God's saying, 'For those who are able to bear it, a compensation: food for needy people,'[36] and the rest of the verse. Its ruling was abrogated by making fasting the sole requirement, while its recitation remained[37]. Likewise, 'A bequest for parents and close relatives'[38] is abrogated by his saying, peace be upon him, 'No bequest for an heir.' This requires examination, however, because some do not permit the Qurʾān to be abrogated by the Sunna.

وَأَمَّا الَّذِي يَدُلُّ عَلَى وُقُوعِهِ سَمْعًا فَقَوْلُهُ تَعَالَى: {وَعَلَى الَّذِينَ يُطِيقُونَهُ فِدْيَةُ طَعَامِ مَسَاكِينَ}[36] الْآيَةَ. وَقَدْ نُسِخَ حُكْمُهَا بِتَعْيِينِ الصَّوْمِ وَبَقِيَتْ تِلَاوَتُهَا[37]. وَكَذَلِكَ قَوْلُهُ عَزَّ وَجَلَّ: {الْوَصِيَّةُ لِلْوَالِدَيْنِ وَالْأَقْرَبِينَ}[38] مَنْسُوخٌ بِقَوْلِهِ عَلَيْهِ السَّلَامُ: «لَا وَصِيَّةَ لِوَارِثٍ» لَكِنْ فِي هَذَا نَظَرٌ، لِأَنَّ مِنَ النَّاسِ مَنْ لَا يُجَوِّزُ نَسْخَ الْقُرْآنِ بِالسُّنَّةِ.

As for abrogating recitation while retaining the ruling, reports corroborate one another that the recitation of the stoning verse was abrogated while its ruling remained. Yet this, too, requires examination in my view: it should not be accepted that such wording was once part of the Qurʾān until it is established by mass transmission, and this should not be accepted through solitary routes.[39]

وَأَمَّا نَسْخُ التِّلَاوَةِ وَبَقَاءُ الْحُكْمِ فَقَدْ تَظَاهَرَتِ الْأَخْبَارُ بِنَسْخِ تِلَاوَةِ آيَةِ الرَّجْمِ مَعَ بَقَاءِ حُكْمِهَا، لَكِنْ عِنْدِي فِي هَذَا نَظَرٌ، لِأَنَّهُ يَنْبَغِي أَلَّا يُقْبَلَ أَنَّ مِثْلَ هَذَا كَانَ مِنَ الْقُرْآنِ حَتَّى يَتَوَاتَرَ وَلَا يُقْبَلُ ذَلِكَ بِطُرُقِ الْآحَادِ.

122. Consensus reveals earlier abrogation but cannot itself abrogate

R 122 · BA 147

Question. Consensus (الإجماع) does not abrogate, because there is no abrogation after revelation has ceased. If something is supposed to have been abrogated by consensus, that consensus is evidence of an earlier abrogating text that has not reached us.

مَسْأَلَةٌ: الْإِجْمَاعُ لَا يُنْسَخُ بِهِ، إِذْ لَا نَسْخَ بَعْدَ انْقِطَاعِ الْوَحْيِ، فَإِنْ تُوُهِّمَ أَنَّ شَيْئًا مَا مَنْسُوخٌ بِالْإِجْمَاعِ فَذَلِكَ دَلِيلٌ عَلَى نَاسِخٍ سَبَقَ لَمْ يَبْلُغْنَا.

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36. Qurʾān, al-Baqarah 2:184 ↗. "Food for needy people" follows a transmitted construct/plural reading; the printed wording is retained.
37. Qurʾān, al-Baqarah 2:185 ↗. This identifies the fasting command invoked here; the account of abrogation is the author's.
38. Qurʾān, al-Baqarah 2:180 ↗.
39. Translation. The plural مساكين in the edition's first quotation is retained as 'needy people.'

123. The unequal force of reports during and after the Prophet’s life

R 123 · BA 148

Question. There is no disagreement over abrogating a Sunna established by mass transmission through another such Sunna, solitary reports through solitary reports, or solitary reports through mass transmission. Opinions differ about abrogating what is established by mass transmission through solitary reports. The preferred position is that this is rationally possible and occurred in the Law during the Prophet’s lifetime, God bless him and grant him peace: the people of the mosque at Qubāʾ turned toward the Kaʿba on a solitary report, although their facing Jerusalem had been established by a decisive route. In general, the Messenger of God’s sending emissaries to the outlying regions with abrogating and abrogated rulings, God bless him and grant him peace, is itself established by mass transmission.

مَسْأَلَةٌ: نَسْخُ السُّنَّةِ الْمُتَوَاتِرَةِ بِالسُّنَّةِ الْمُتَوَاتِرَةِ، وَالْآحَادِ بِالْآحَادِ، وَالْآحَادِ بِالْمُتَوَاتِرِ، مِمَّا لَا خِلَافَ فِيهِ. فَأَمَّا نَسْخُ الْمُتَوَاتِرِ بِالْآحَادِ فَقَدِ اخْتَلَفُوا فِيهِ، وَالْمُخْتَارُ أَنَّهُ جَائِزٌ عَقْلًا وَوَاقِعٌ شَرْعًا فِي زَمَنِ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ بِتَحَوُّلِ أَهْلِ مَسْجِدِ قُبَاءَ إِلَى الْكَعْبَةِ بِخَبَرِ الْوَاحِدِ، وَقَدْ كَانَ ثَابِتًا عَنْهُمُ التَّوَجُّهُ إِلَى بَيْتِ الْمَقْدِسِ بِطَرِيقٍ قَطْعِيٍّ، وَبِالْجُمْلَةِ فَإِنْفَاذُ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ رُسُلَهُ إِلَى الْأَطْرَافِ بِالنَّاسِخِ وَالْمَنْسُوخِ مِمَّا تَوَاتَرَ.

Its occurrence after his death, God bless him and grant him peace, is excluded by the Companions’ consensus that the Qurʾān—and, in general, what is established by mass transmission—is not set aside by a solitary report. The reason seems to be indications accompanying reports from the Messenger of God during his lifetime, God bless him and grant him peace, which do not accompany reports from him after his death, God bless him and grant him peace: the possibility of going back to him, questioning him, and the like.

فَأَمَّا وُقُوعُ ذَلِكَ بَعْدَهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَمُمْتَنِعٌ بِإِجْمَاعِ الصَّحَابَةِ عَلَى أَنَّ الْقُرْآنَ لَا يُرْفَعُ بِخَبَرِ الْوَاحِدِ، وَبِالْجُمْلَةِ التَّوَاتُرُ. وَيُشْبِهُ أَنْ تَكُونَ الْعِلَّةُ فِي ذَلِكَ قَرَائِنَ تَقْتَرِنُ بِخَبَرِ الْمُخْبِرِينَ عَنْ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فِي حَيَاتِهِ لَيْسَ تَقْتَرِنُ بِالْمُخْبِرِينَ عَنْهُ بَعْدَ مَوْتِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مِنْ إِمْكَانِ مُرَاجَعَتِهِ وَاسْتِفْهَامِهِ وَغَيْرِ ذَلِكَ.

124. May mass-transmitted Sunna abrogate the Qurʾān?

R 124 · BA 149

As for abrogating the mass-transmitted Qurʾān through a mass-transmitted Sunna, it is reported that al-Shāfiʿī and some Ẓāhirīs did not permit this, on the evidence of God’s saying, mighty and majestic, ‘Whatever verse We abrogate or cause to be forgotten, We bring one better than it or like it.’[40] Although the apparent meaning of this verse supports their view, we have already said that the new verse may contain no replacement for the abrogated verse’s ruling, while the Sunna supplies the replacement for that ruling.

وَأَمَّا نَسْخُ الْمُتَوَاتِرِ مِنَ الْقُرْآنِ بِالْمُتَوَاتِرِ مِنَ السُّنَّةِ فَإِنَّهُ قَدْ نُقِلَ عَنِ الشَّافِعِيِّ وَعَنْ قَوْمٍ مِنْ أَهْلِ الظَّاهِرِ أَنَّهُمْ كَانُوا لَا يُجَوِّزُونَ ذَلِكَ بِدَلِيلِ قَوْلِهِ عَزَّ وَجَلَّ: {مَا نَنْسَخْ مِنْ آيَةٍ أَوْ نُنْسِهَا نَأْتِ بِخَيْرٍ مِنْهَا أَوْ مِثْلِهَا}[40]. وَهَذِهِ الْآيَةُ وَإِنْ كَانَتْ ظَاهِرَةً فِيمَا رَأَوْا فَقَدْ قُلْنَا فِيمَا سَلَفَ إِنَّهُ يُمْكِنُ أَنْ لَا تَتَضَمَّنَ الْآيَةُ الْوَارِدَةُ بَدَلَ الْآيَةِ الْمَنْسُوخَةِ فِي الْحُكْمِ، وَتَكُونَ السُّنَّةُ هِيَ الْمُتَضَمِّنَةَ بَدَلَ حُكْمِ الْمَنْسُوخَةِ.

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[40] Qurʾān, al-Baqarah 2:106 ↗.

Those who permit this invoke the abrogation of God’s saying, ‘A bequest for parents and close relatives,’[41] by the Prophet’s saying, peace be upon him, ‘No bequest for an heir.’ They also invoke his saying, peace be upon him, ‘God has now appointed a way for them: for the never-married with the never-married, a hundred lashes and a year’s banishment; and for the previously married with the previously married, a hundred lashes and stoning.’ This abrogates ‘Confine them in the houses.’[42] These arguments admit possible alternative interpretations and are not decisive.’[43]

وَمَنْ يُجَوِّزُ ذَلِكَ فَقَدِ احْتَجَّ بِنَسْخِ قَوْلِهِ تَعَالَى: {الْوَصِيَّةُ لِلْوَالِدَيْنِ وَالْأَقْرَبِينَ}[41] بِقَوْلِهِ عَلَيْهِ السَّلَامُ: «لَا وَصِيَّةَ لِوَارِثٍ». وَكَذَلِكَ احْتَجُّوا بِقَوْلِهِ عَلَيْهِ السَّلَامُ أَيْضًا: «قَدْ جَعَلَ اللَّهُ لَهُنَّ سَبِيلًا الْبِكْرُ بِالْبِكْرِ جَلْدُ مِائَةٍ وَتَغْرِيبُ عَامٍ. وَالثَّيِّبُ بِالثَّيِّبِ جَلْدُ مِائَةٍ وَالرَّجْمُ» وَهُوَ نَسْخُ {لإمساكهن فِي الْبُيُوتِ}[42]. وَهَذِهِ الِاحْتِجَاجَاتُ قَدْ يَتَمَكَّنُ أَنْ يَتَطَرَّقَ إِلَيْهَا الِاحْتِمَالُ وَلَيْسَتْ قَاطِعَةً.

125. Certainty itself can admit degrees

R 125 · BA 149

Besides the argument already mentioned, what seems to have led those holding this position to exclude such abrogation is the greater weight we find them giving to the assent (التصديق) produced by the Book’s mass transmission: this is the highest degree of mass transmission. As for other reports, even when mass-transmitted, assent to them may fall short of assent to the Book. Contrary to what many think, it is not impossible for certain assent to admit degrees, especially where it rests on transmission. As for the report that al-Shāfiʿī, God have mercy on him, did not permit a mass-transmitted Sunna to be abrogated by the Qurʾān, this has no intelligible basis if taken in its apparent sense—unless it is interpreted otherwise, for the possibilities of interpretation are ample.[44]

وَيُشْبِهُ أَنْ يَكُونَ الَّذِي أَصَارَ الْقَائِلِينَ بِهَذَا إِلَى امْتِنَاعِ ذَلِكَ، مَعَ مَا تَقَدَّمَ مِنْ حُجَّتِهِمْ، مَا نَجِدُ فِي أَنْفُسِهِمْ مِنْ تَرْجِيحِ التَّصْدِيقِ الْوَاقِعِ عَنْ تَوَاتُرِ الْكِتَابِ، إِذْ هُوَ أَرْفَعُ مَرَاتِبِ التَّوَاتُرِ، وَأَنَّ مَا عَدَا ذَلِكَ مِنَ الْأَحَادِيثِ فَإِنَّهَا وَإِنْ تَوَاتَرَتْ فَلَا يَمْتَنِعُ أَنْ يَكُونَ التَّصْدِيقُ بِهَا مُقَصِّرًا عَنِ التَّصْدِيقِ بِالْكِتَابِ. وَلَيْسَ بِمُحَالٍ عَلَى مَا يَرَى كَثِيرٌ مِنَ النَّاسِ أَنْ يَتَفَاضَلَ التَّصْدِيقُ الْيَقِينِيُّ لَا سِيَّمَا فِيمَا سَبِيلُهُ النَّقْلُ، فَأَمَّا مَا نُقِلَ عَنِ الشَّافِعِيِّ رَحِمَهُ اللَّهُ أَنَّهُ كَانَ لَا يُجَوِّزُ نَسْخَ السُّنَّةِ الْمُتَوَاتِرَةِ بِالْقُرْآنِ، فَلَا مَعْنَى لَهُ، إِذَا أُخِذَ عَلَى ظَاهِرِهِ، اللَّهُمَّ إِلَّا أَنْ يُتَأَوَّلَ ذَلِكَ، فَإِنَّ وُجُوهَ التَّأْوِيلِ لَا تَضِيقُ.

126. Analogy may clarify a text but may not repeal it

R 126 · BA 150–151

Question. A decisive, mass-transmitted text may not be abrogated by probable analogy, just as it may not be abrogated by a solitary report. Those who permit this argue from the permissibility of restricting the scope of a mass-transmitted text through analogy. Even if conceded, this is no proof: specification clarifies, whereas abrogation removes.

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[41] **41.** Qurʾān, al-Baqarah 2:180 ↗.

[42] **42.** Qurʾān, al-Nisāʾ 4:15 ↗. The Arabic li-imsākihinna is a paraphrase of the verse’s fa-amsikūhunna; the author’s wording is retained.

[43] **43.** Translation. The report’s wording is translated as printed on p. 87; the editor’s longer quotation from Bidāyat al-mujtahid is not substituted for it.

[44] **44.** Translation. At p. 88 على ما يرى كثير من الناس can attach to محال within the negation, yielding “contrary to what many think,” as translated, or to the entire negative assertion, yielding “as many hold, it is not impossible.” The attachment is uncertain; either reading preserves Ibn Rushd’s assertion that certain assent can admit degrees.

مَسْأَلَةٌ: لَا يَجُوزُ نَسْخُ النَّصِّ الْقَاطِعِ الْمُتَوَاتِرِ بِالْقِيَاسِ الْمَظْنُونِ، كَمَا لَا يَجُوزُ بِخَبَرِ الْوَاحِدِ. وَقَدِ احْتَجَّ مَنْ أَجَازَ ذَلِكَ بِجَوَازِ تَخْصِيصِ الْقِيَاسِ لِلنَّصِّ الْمُتَوَاتِرِ. وَهَذَا إِذَا سُلِّمَ فَلَيْسَ بِحُجَّةٍ، إِذِ التَّخْصِيصُ بَيَانٌ وَالنَّسْخُ رَفْعٌ.

The proof here is the Companions’ consensus invalidating every opinion contrary to a text, all the more a mass-transmitted text; and the report of Muʿādh, when he said, ‘I exercise my judgement’ in the absence of a text, and the Messenger of God, God bless him and grant him peace, commended him for it. If two decisive texts contradict one another and the matter is unclear, may a solitary report determine that one is later? This requires examination; the question is open to independent judgement.

وَبِالْجُمْلَةِ فَالْحُجَّةُ فِي ذَلِكَ إِجْمَاعُ الصَّحَابَةِ عَلَى إِبْطَالِ كُلِّ رَأْيٍ مُخَالِفٍ لِلنَّصِّ، فَكَيْفَ لِلنَّصِّ الْمُتَوَاتِرِ. وَحَدِيثُ مُعَاذٍ إِذْ قَالَ أَجْتَهِدُ رَأْيِي عِنْدَ عَدَمِ النَّصِّ وَتَزْكِيَةُ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ لَهُ عَلَى ذَلِكَ. فَأَمَّا إِذَا تَنَاقَضَ نَصَّانِ قَاطِعَانِ وَأَشْكَلَ فَهَلْ يُقْضَى بِتَأَخُّرِ أَحَدِهِمَا بِخَبَرِ الْآحَادِ؟ فَفِيهِ نَظَرٌ، وَالْمَسْأَلَةُ فِي مَحَلِّ الِاجْتِهَادِ.

127. A Companion’s assertion of abrogation needs a transmitted basis

R 127 · BA 152

Question. A ruling is not abrogated by a Companion’s saying, ‘Such-and-such a ruling was abrogated,’ unless he says, ‘I heard the Messenger of God, God bless him and grant him peace, say this.’ That applies when the ruling was established by a solitary report, because what is not abrogation is often thought to be abrogation, as some have regarded an addition to a text as abrogation. If the ruling was established through mass transmission, a Companion’s statement does not abrogate it even if he transmits the Messenger of God’s own words, God bless him and grant him peace, since solitary transmission does not abrogate mass transmission, as explained earlier.

مَسْأَلَةٌ: لَا يُنْسَخُ الْحُكْمُ بِقَوْلِ الصَّحَابِيِّ نُسِخَ حُكْمُ كَذَا مَا لَمْ يَقُلْ سَمِعْتُ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ يَقُولُ ذَلِكَ. هَذَا إِذَا كَانَ الْحُكْمُ ثَابِتًا بِخَبَرِ الْوَاحِدِ، لِأَنَّ كَثِيرًا مَا يُظَنُّ بِمَا لَيْسَ بِنَسْخٍ أَنَّهُ نَسْخٌ، كَمَا ظَنَّ قَوْمٌ أَنَّ الزِّيَادَةَ عَلَى النَّصِّ نَسْخٌ. وَأَمَّا إِذَا كَانَ الْحُكْمُ ثَابِتًا بِطَرِيقِ التَّوَاتُرِ فَلَيْسَ قَوْلُ الصَّحَابِيِّ بِنَسْخٍ وَإِنْ نَقَلَ أَلْفَاظَ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، لِأَنَّ الْآحَادَ لَا يُنْسَخُ بِهِ التَّوَاتُرُ كَمَا تَقَدَّمَ.

128. Conditions implicit in the definition of abrogation

R 128 · BA 153

In general, you should know that abrogation has conditions contained implicitly in the definition given earlier. First, what is removed must be a revealed ruling, not a rational judgement such as original freedom from liability (البراءة الأصلية), which is removed by the prescription of acts of worship. Second, abrogation must take place through discourse, rather than the discourse whose ruling is removed being limited by a time whose arrival itself entails this. In general, according to each of the definitions of abrogation we have enumerated, some conditions apply and must be considered, while others fall outside it.

وَبِالْجُمْلَةِ فَيَنْبَغِي أَنْ تَعْلَمَ أَنَّ لِلنَّسْخِ شَرَائِطَ يَتَضَمَّنُهَا الْحَدُّ الْمُتَقَدِّمُ وَهِيَ مَنْطَوِيَةٌ فِيهِ. أَوَّلُهَا: أَنْ يَكُونَ الْمَرْفُوعُ حُكْمًا شَرْعِيًّا لَا عَقْلِيًّا كَالْبَرَاءَةِ الْأَصْلِيَّةِ الَّتِي تَرْتَفِعُ بِإِيجَابِ الْعِبَادَاتِ. وَالثَّانِي أَنْ يَكُونَ النَّسْخُ بِخِطَابٍ لَا أَنْ يَكُونَ الْخِطَابُ الْمَرْفُوعُ حُكْمُهُ مُقَيَّدًا بِوَقْتٍ يَقْتَضِي دُخُولَهُ. وَبِالْجُمْلَةِ فَتَلْحَقُهُ شَرَائِطُ تُعْتَبَرُ فِيهِ بِحَسَبِ حَدٍّ حَدٍّ مِنْ حُدُودِ النَّسْخِ الَّتِي عَدَدْنَاهَا وَتَخْرُجُ عَنْهُ شَرَائِطُ.

129. How the later of two conflicting texts is established

R 129 · BA 154

Question. If two decisive texts conflict and it is unknown which abrogates the other, this can be established only by transmission. There are several possible routes. First, the wording of one may indicate the abrogation of the other, as in his saying, peace be upon him, ‘I used to forbid you such-and-such; now do it.’ Second, their respective dates may be known. This may also be known through the community’s consensus that one of them has been abrogated. Other circumstances thought to establish abrogation do not do so, such as a transmitter’s later conversion to Islam, his younger age, or the ending of his companionship with the Prophet.

This concludes the discussion of the abrogating and the abrogated.

مَسْأَلَةٌ: إِذَا تَعَارَضَ نَصَّانِ قَاطِعَانِ فَلَمْ يُعْلَمْ أَيُّهُمَا نَاسِخٌ لِصَاحِبِهِ، فَالْوُقُوفُ عَلَى ذَلِكَ لَيْسَ يَكُونُ بِشَيْءٍ سِوَى النَّقْلِ. وَذَلِكَ يُمْكِنُ بِطُرُقٍ: أَحَدُهَا أَنْ يَكُونَ فِي لَفْظِ أَحَدِهِمَا مَا يَدُلُّ عَلَى نَسْخِ الْآخَرِ، كَقَوْلِهِ عَلَيْهِ السَّلَامُ «كُنْتُ نَهَيْتُكُمْ عَنْ كَذَا فَافْعَلُوهُ». الثَّانِي أَنْ يُعْلَمَ التَّارِيخُ فِيهِمَا. وَقَدْ تَقَعُ مَعْرِفَةُ ذَلِكَ بِأَنْ تَجْتَمِعَ الْأُمَّةُ عَلَى نَسْخِ أَحَدِهِمَا. وَمَا سِوَى هَذَا مِمَّا يُظَنُّ أَنَّهُ نَسْخٌ فَلَيْسَ بِنَسْخٍ، مِثْلَ تَأَخُّرِ الرَّاوِي فِي الْإِسْلَامِ، وَتَأَخُّرِهِ فِي السِّنِّ أَوِ انْقِطَاعِ صُحْبَتِهِ.

تَمَّ الْقَوْلُ فِي النَّاسِخِ وَالْمَنْسُوخِ.

On the Third Source of Proofs: Consensus

الْقَوْلُ فِي الْأَصْلِ الثَّالِثِ مِنْ أُصُولِ الْأَدِلَّةِ وَهُوَ الْإِجْمَاعُ

130. Consensus as certainty beyond surviving explicit texts

R 130 · BA 156

Consensus (الإجماع) is the agreement of the practitioners of independent judgement within Muḥammad’s community, God bless him and grant him peace, on a revealed ruling. This applies whether the bearer of the Law, God bless him and grant him peace, expressly stated the ruling but it was lost and not transmitted, or did not expressly state it, and they reached agreement through a contextual indication, a proof, or something else producing agreement. Consensus adds nothing to the authentication of what the Prophet, peace be upon him, expressly stated and which was transmitted by mass transmission. What was transmitted through solitary routes, however, consensus raises from the level of probability to that of certainty.

وَالْإِجْمَاعُ هُوَ اتِّفَاقُ الْمُجْتَهِدِينَ مِنْ أُمَّةِ مُحَمَّدٍ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ عَلَى حُكْمٍ شَرْعِيٍّ وَسَوَاءٌ كَانَ ذَلِكَ الْحُكْمُ مِمَّا صَرَّحَ بِهِ صَاحِبُ الشَّرْعِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَدَثَرَ وَلَمْ يُنْقَلْ، أَوْ لَمْ يُصَرِّحْ بِهِ، فَوَقَعَ الْإِجْمَاعُ مِنْهُمْ عَلَى ذَلِكَ لِقَرِينَةِ حَالٍ أَوْ دَلِيلٍ أَوْ غَيْرِ ذَلِكَ مِمَّا يُوجِبُ الِاتِّفَاقَ. أَمَّا مَا صَرَّحَ بِهِ النَّبِيُّ عَلَيْهِ السَّلَامُ وَنُقِلَ نَقْلَ تَوَاتُرٍ فَلَا غَنَاءَ لِلْإِجْمَاعِ فِي تَصْحِيحِهِ. وَأَمَّا مَا نُقِلَ نَقْلَ آحَادٍ فَإِنَّ الْإِجْمَاعَ يَنْقُلُهُ مِنْ رُتْبَةِ الظَّنِّ إِلَى رُتْبَةِ الْقَطْعِ.

Where a ruling was not expressly stated, or was expressly stated but has not reached us, consensus is used as a decisive proof establishing it. Such consensus has in fact occurred in the Law. We can learn of it in one of two ways: if those agreeing are our contemporaries, by meeting them; if they belong to earlier generations, through widespread transmission that produces assent (التصديق).

وَأَمَّا مَا لَمْ يُصَرِّحْ بِهِ أَوْ صَرَّحَ بِهِ وَلَمْ يَبْلُغْنَا فَإِنَّ الْإِجْمَاعَ يُسْتَعْمَلُ دَلِيلًا قَاطِعًا فِي تَثْبِيتِهِ. أَمَّا وُقُوعُ مِثْلِ هَذَا شَرْعًا فَمَوْجُودٌ وَأَمَّا اطِّلَاعُنَا عَلَيْهِ فَذَلِكَ يُمْكِنُ بِأَحَدِ وَجْهَيْنِ: أَمَّا إِنْ كَانَ الْمُجْمِعُونَ مُعَاصِرِينَ لَنَا فَبِلِقَائِهِمْ. وَأَمَّا إِنْ كَانُوا مِمَّنْ سَلَفَ فَبِالنَّقْلِ الْمُسْتَفِيضِ الَّذِي يُوقِعُ التَّصْدِيقَ.

131. Cumulative scriptural evidence for the authority of consensus

R 131 · BA 157

The proof that consensus is authoritative is drawn from transmitted revelation, the Book and the Sunna. Among its texts is God’s saying, ‘Whoever opposes the Messenger after guidance has become clear to him and follows a way other than that of the believers, We shall turn him toward what he has chosen,’[45] and the remainder of the verse. This is the strongest verse supporting reliance on consensus. There are also His sayings, blessed and exalted: ‘Thus We made you a community of the middle, so that you may be witnesses over humankind and the Messenger a witness over you’[46]; ‘You are the best community brought forth for humankind’[47]; and ‘Among those We have created is a community that guides by truth and acts justly by it.’[48]

وَأَمَّا الدَّلِيلُ عَلَى كَوْنِ الْإِجْمَاعِ حُجَّةً فَمَأْخُوذٌ مِنْ جِهَةِ النَّقْلِ مِنَ الْكِتَابِ وَالسُّنَّةِ. فَمِنْ ذَلِكَ قَوْلُهُ تَعَالَى: {وَمَنْ يُشَاقِقِ الرَّسُولَ مِنْ بَعْدِ مَا تَبَيَّنَ لَهُ الْهُدَى وَيَتَّبِعْ غَيْرَ سَبِيلِ الْمُؤْمِنِينَ نُوَلِّهِ مَا تَوَلَّى}[45] الْآيَةَ. وَهَذِهِ أَقْوَى آيَةٍ فِي التَّمَسُّكِ بِالْإِجْمَاعِ. وَمِنْهَا قَوْلُهُ تَبَارَكَ وَتَعَالَى: {وَكَذَلِكَ جَعَلْنَاكُمْ أُمَّةً وَسَطًا لِتَكُونُوا شُهَدَاءَ عَلَى النَّاسِ وَيَكُونَ الرَّسُولُ عَلَيْكُمْ شَهِيدًا}[46]. وَقَوْلُهُ: {كُنْتُمْ خَيْرَ أُمَّةٍ أُخْرِجَتْ لِلنَّاسِ}[47]. وَقَوْلُهُ تَعَالَى: {وَمِمَّنْ خَلَقْنَا أُمَّةٌ يَهْدُونَ بِالْحَقِّ وَبِهِ يَعْدِلُونَ}[48].

Although none of these verses taken separately is unambiguous wording (نص) establishing consensus as a revealed proof, together they require this community to be esteemed and honored, its way followed and agreement maintained with it, and they forbid opposing it and departing from its congregation.

وَهَذِهِ الْآيَاتُ وَإِنْ لَمْ تَكُنْ وَاحِدَةٌ وَاحِدَةٌ مِنْهَا نَصًّا فِي كَوْنِ الْإِجْمَاعِ دَلِيلًا شَرْعِيًّا فَإِنَّهَا بِمَجْمُوعِهَا تَقْتَضِي لِهَذِهِ الْأُمَّةِ التَّعْظِيمَ وَالتَّشْرِيفَ وَاتِّبَاعَ سَبِيلِهِمْ وَمُوَافَقَتَهُمْ وَالنَّهْيَ عَنْ مُخَالَفَتِهِمْ وَالْخُرُوجِ عَنْ جَمَاعَتِهِمْ.

In general, when these verses are joined to the transmitted reports affirming that this community is protected from error—reports mass-transmitted in meaning even if not in wording—consensus is established with certainty as a revealed proof. Such reports include his saying, peace be upon him: ‘My community does not agree upon error’; his saying, peace be upon him, ‘God would not bring my community into agreement upon error; whoever delights in the spacious heart of Paradise should keep to the congregation’; and his saying, peace be upon him, ‘God’s hand is with the congregation,’ together with the other reports of this kind.[49]

وَبِالْجُمْلَةِ إِذَا أُضِيفَ إِلَى هَذِهِ الْآيَاتِ مَا وَرَدَ مِنْ أَحَادِيثِ الْأَخْبَارِ فِي وُجُوبِ الْعِصْمَةِ لِهَذِهِ الْأُمَّةِ، وَإِنْ لَمْ تَكُنْ تَوَاتَرَتْ فِي اللَّفْظِ فَهِيَ مُتَوَاتِرَةٌ فِي الْمَعْنَى، كَقَوْلِهِ عَلَيْهِ السَّلَامُ: «لَا تَجْتَمِعُ أُمَّتِي عَلَى الْخَطَأِ» وَقَوْلِهِ عَلَيْهِ السَّلَامُ «لَمْ يَكُنِ اللَّهُ لِيَجْمَعَ أُمَّتِي عَلَى الْخَطَأِ وَمَنْ سَرَّهُ بُحْبُوحَةُ الْجَنَّةِ فَلْيَلْزَمِ الْجَمَاعَةَ». وَقَوْلِهِ عَلَيْهِ السَّلَامُ «يَدُ اللَّهِ مَعَ الْجَمَاعَةِ»، إِلَى مَا سِوَى ذَلِكَ مِنَ الْأَحَادِيثِ، ثَبَتَ عَلَى الْقَطْعِ كَوْنُ الْإِجْمَاعِ دَلِيلًا شَرْعِيًّا.

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[45] Qurʾān, al-Nisāʾ 4:115 ↗.

[46] Qurʾān, al-Baqarah 2:143 ↗.

[47] Qurʾān, Āl ʿImrān 3:110 ↗.

[48] Qurʾān, al-Aʿrāf 7:181 ↗.

[49] Translation. Reports are translated as quoted on p. 91, without replacing them by the editor’s parallel wording from al-Mustaṣfā.

132. Why consensus is not merely a rational inference from numbers

R 132 · BA 158

An argument establishing the authority of consensus through reason is weak. Although it is unlikely that many people would agree upon a lie, their agreeing upon an error is not unlikely. Indeed, we say that if only two or three practitioners of independent judgement remained and agreed on an opinion, consensus would be established through them, because the Law attests their protection from error insofar as the name ‘community’ applies to them at that time.

وَأَمَّا مَنِ احْتَجَّ عَلَى كَوْنِ الْإِجْمَاعِ حُجَّةً بِدَلِيلِ الْعَقْلِ فَضَعِيفٌ، لِأَنَّهُ وَإِنْ كَانَ يَبْعُدُ اجْتِمَاعُ الْكَثِيرِ عَلَى الْكَذِبِ، فَغَيْرُ بَعِيدٍ اجْتِمَاعُهُمْ عَلَى الْخَطَإِ. بَلْ نَقُولُ لَوْ بَقِيَ مِنْ أَهْلِ الِاجْتِهَادِ اثْنَانِ أَوْ ثَلَاثَةٌ وَأَجْمَعُوا عَلَى رَأْيٍ وَقَعَ الْإِجْمَاعُ بِهِمْ لِشَهَادَةِ الشَّرْعِ لَهُمْ بِالْعِصْمَةِ، مِنْ حَيْثُ يَنْطَلِقُ عَلَيْهِمُ اسْمُ الْأُمَّةِ فِي ذَلِكَ الْوَقْتِ.

133. Why lay agreement adds no independent proof

R 133 · BA 159

We specified practitioners of independent judgement in its definition because, although ordinary people can be conceived as participating in consensus, this is only in matters transmitted by mass transmission, such as the five prayers, fasting, and almsgiving, or in matters in which they are included as followers of the consensus of those practitioners. Their agreement therefore adds nothing to establishing the correctness of anything. Ordinary people always follow practitioners of independent judgement and agree with them, since this is their duty. There is no objection to calling this consensus, but such consensus is not a source used by a practitioner of independent judgement.

وَإِنَّمَا اشْتَرَطْنَا فِي حَدِّهِ الْمُجْتَهِدِينَ، لِأَنَّ الْعَوَامَّ وَإِنْ تُصُوِّرَ دُخُولُهُمْ فِي الْإِجْمَاعِ فَإِنَّمَا ذَلِكَ فِي الْأُمُورِ الَّتِي نُقِلَتْ نَقْلَ تَوَاتُرٍ كَالصَّلَوَاتِ الْخَمْسِ وَالصَّوْمِ وَالزَّكَاةِ، أَوْ فِيمَا كَانُوا فِيهِ مُسْتَصْحَبِينَ وَتَابِعِينَ لِإِجْمَاعِ الْمُجْتَهِدِينَ، فَلِذَلِكَ لَا غَنَاءَ لِإِجْمَاعِهِمْ فِي تَصْحِيحِ شَيْءٍ، بَلِ الْعَوَامُّ أَبَدًا مُتَّبِعُونَ لِلْمُجْتَهِدِينَ وَمُوَافِقُونَ لَهُمْ، إِذْ كَانَ ذَلِكَ فَرْضَهُمْ. فَإِنْ سُمِّيَ مِثْلُ هَذَا إِجْمَاعًا لَمْ يَمْتَنِعْ، لَكِنْ مِثْلُ هَذَا لَيْسَ بِأَصْلٍ يَسْتَعْمِلُهُ الْمُجْتَهِدُ.

134. All qualified jurists of one age, not every age

R 134 · BA 160

As for the number of those agreeing, there is no condition except that they comprise all qualified practitioners of independent judgement existing in a single age. If we required the agreement of people of every age—past, present, and future—no consensus could occur.

فَأَمَّا عَدَدُ الْمُجْمِعِينَ فَلَيْسَ فِيهِ شَرْطٌ سِوَى أَنْ يَكُونُوا جَمِيعَ الْمُجْتَهِدِينَ مِنْ أَهْلِ الْعِلْمِ الْمَوْجُودِينَ فِي عَصْرٍ وَاحِدٍ، لِأَنَّا لَوِ اشْتَرَطْنَا إِجْمَاعَ أَهْلِ الْأَعْصَارِ، مَنْ سَلَفَ مِنْهُمْ وَمَنْ هُوَ حَاضِرٌ وَمَنْ سَيَأْتِي، لَمْ يَقَعْ إِجْمَاعًا.

135. Can later agreement override an earlier disagreement?

R 135 · BA 161

If the people of our age agree on something about which their predecessors did not agree, is consensus established? This requires examination. If the preceding generation was silent and no opinion on the matter has been transmitted from it, the consensus of later generations is necessarily established. Discussion arises when a disagreement has been transmitted from the predecessors. Opinions differ, and the question is determined through the verbal forms of the statements affirming this community's protection from error, such as his saying, peace be upon him, 'My community will not agree upon misguidance,' and the other reports we have cited.

Although these cannot be understood with unrestricted generality, since the term 'community' cannot here include those yet to come, the term remains authoritative with respect to the generality of what remains within its scope. On what grounds, I wonder, can the preceding generation be excluded from the requirements of consensus, when the remaining general scope of the expression includes them? This is possible only for someone who holds that a general expression (العام), once specified, is no longer authoritative for the generality of what remains.

فَأَمَّا إِنْ أَجْمَعَ أَهْلُ عَصْرِنَا عَلَى أَمْرٍ لَمْ يُجْمِعْ عَلَيْهِ مَنْ سَبَقَهُمْ هَلْ يَنْعَقِدُ الْإِجْمَاعُ أَمْ لَا؟ فَفِيهِ مَوْضِعُ نَظَرٍ. أَمَّا مَا سَكَتَ عَلَيْهِ أَهْلُ الْعَصْرِ الْمُتَقَدِّمِ، وَلَمْ يُنْقَلْ عَنْهُمْ فِيهِ قَوْلٌ، فَإِجْمَاعُ مَنْ بَعْدَهُمْ مُنْعَقِدٌ ضَرُورَةً. وَأَمَّا إِذَا نُقِلَ فِيهِ عَنْ مَنْ سَلَفَ خِلَافٌ، فَهَا هُنَا مَوْضِعُ الْقَوْلِ. وَقَدِ اخْتَلَفَ النَّاسُ فِي ذَلِكَ، وَالْوُقُوفُ عَلَيْهِ يَكُونُ مِنْ جِهَةِ صِيَغِ الْأَلْفَاظِ الْوَارِدَةِ فِي مَعْنَى الْعِصْمَةِ لِهَذِهِ الْأُمَّةِ كَقَوْلِهِ عَلَيْهِ السَّلَامُ «لَنْ تَجْتَمِعَ أُمَّتِي عَلَى الضَّلَالِ»، وَسَائِرِ الْأَحَادِيثِ الَّتِي أَوْرَدْنَاهَا.

فَإِنَّهَا وَإِنْ لَمْ يُمْكِنْ حَمْلُهَا عَلَى الْعُمُومِ، إِذْ هُوَ مِنَ الْمُمْتَنِعِ أَنْ يَتَنَاوَلَ هَهُنَا لَفْظُ الْأُمَّةِ مَنْ سَيَأْتِي، فَهُوَ حُجَّةٌ فِي عُمُومِ مَا بَقِيَ دَاخِلًا تَحْتَ تَنَاوُلِ اللَّفْظِ. فَبِأَيِّ جِهَةٍ لَيْتَ شِعْرِي يُخْرَجُ مِنْ شَرْطِ الْإِجْمَاعِ أَهْلُ الْعَصْرِ الْمُتَقَدِّمِ، وَعُمُومُ مَا بَقِيَ مِنْ دَلَالَةِ اللَّفْظِ يَتَنَاوَلُهُمْ، اللَّهُمَّ إِلَّا عِنْدَ مَنْ يَرَى أَنَّ الْعَامَّ إِذَا خُصِّصَ فَلَيْسَ بِحُجَّةٍ فِي عُمُومِ مَا بَقِيَ.

136. Why the Ẓāhirīs restrict consensus to the Companions

R 136 · BA 162

This disagreement cannot arise for the Ẓāhirīs, because they consider consensus to be solely the Companions' agreement on a ruling, may God be pleased with them. This follows necessarily from their principles, since they do not allow consensus based on analogy. On their view, consensus therefore arises either from a report that has disappeared and has not reached us, or from indications and circumstances witnessed in the Prophet, God bless him and grant him peace. Such a basis is conceivable only among the Companions. Those who permit consensus to arise from analogy must, however, confront the disagreement just mentioned. We shall explain this in the book on inference, when the meaning they intend by analogy in this discipline has become clear.

فَأَمَّا أَهْلُ الظَّاهِرِ فَلَيْسَ يَتَصَوَّرُ مَعَهُمْ هَذَا الْخِلَافُ لِأَنَّهُمْ يَرَوْنَ الْإِجْمَاعَ إِنَّمَا هُوَ اتِّفَاقُ الصَّحَابَةِ رَضِيَ اللَّهُ عَنْهُمْ عَلَى حُكْمٍ مَا. وَذَلِكَ لَازِمٌ لِأُصُولِهِمْ. لِأَنَّهُمْ لَا يُجَوِّزُونَ الْإِجْمَاعَ بِالْقِيَاسِ. وَإِذَا كَانَ هَذَا هَكَذَا فَإِنَّمَا يَقَعُ الْإِجْمَاعُ عِنْدَهُمْ إِمَّا لِأَثَرٍ قَدْ عَفَا وَلَمْ يَصِلْ إِلَيْنَا، وَإِمَّا لِقَرَائِنَ وَأَحْوَالٍ مُشَاهَدَةٍ مِنْهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَمِثْلُ هَذَا لَا يَتَصَوَّرُ فِي غَيْرِ الصَّحَابَةِ. وَأَمَّا مَنْ يُجَوِّزُ وُقُوعَ الْإِجْمَاعِ عَنِ الْقِيَاسِ فَيَلْزَمُهُ الْخِلَافُ الْمَذْكُورُ وَسَنُبَيِّنُ هَذَا فِي كِتَابِ الِاسْتِنْبَاطِ، إِذَا تَبَيَّنَ مَا هُوَ الْمَعْنَى الَّذِي يَعْنُونَهُ بِالْقِيَاسِ فِي هَذِهِ الصِّنَاعَةِ.

137. Unanimity, majority, and the evidential limits of silence

R 137 · BA 163–164

Does the term ‘community’ also include every individual practitioner of independent judgement in that age, so that a single dissenter prevents consensus, or does it mean the majority? The apparent sense of the transmitted formulas includes them all. In general, examination of these conditions of consensus seems to be a matter for independent judgement. There is also disagreement when an opinion is transmitted from most of them and the rest are silent. The more evident view, as al-Shāfiʿī says, is that a speaker’s position should not be attributed to someone silent—unless the silent persons’ circumstances indicate that their silence may have expressed approval of, and agreement with, that opinion.

وَأَمَّا هَلْ يَتَنَاوَلُ أَيْضًا لَفْظُ الْأُمَّةِ جَمِيعَ الشُّخُوصِ الْمُجْتَهِدِينَ فِي ذَلِكَ الْعَصْرِ حَتَّى إِنْ شَذَّ مِنْهُمْ وَاحِدٌ لَمْ يَكُنْ إِجْمَاعًا، أَمْ يُرَادُ بِهِ الْأَكْثَرُ، فَالظَّاهِرُ مِنَ الصِّيَغِ الْوَارِدَةِ فِي ذَلِكَ تَنَاوُلُ جَمِيعِهِمْ. وَبِالْجُمْلَةِ فَالنَّظَرُ فِي هَذِهِ الْأَحْوَالِ الْمُشْتَرَطَةِ فِي الْإِجْمَاعِ يُشْبِهُ أَنْ يَكُونَ اجْتِهَادِيًّا. وَأَمَّا إِذَا نُقِلَ عَنْ أَكْثَرِهِمْ أَيْضًا قَوْلٌ، وَسَكَتَ الْبَاقُونَ فَمُخْتَلَفٌ فِيهِ. وَالْأَظْهَرُ كَمَا يَقُولُ الشَّافِعِيُّ أَلَّا يُنْسَبَ إِلَى سَاكِتٍ قَوْلُ قَائِلٍ، اللَّهُمَّ إِلَّا أَنْ يُعْلَمَ مِنْ قَرَائِنِ أَحْوَالِ السَّاكِتِينَ أَنَّ سُكُوتَهُمْ إنما كَانَ رِضًا مِنْهُمْ بِالْقَوْلِ وَاتِّفَاقًا عَلَيْهِ.

A person may remain silent for many reasons: he may have no opinion on the matter at that time; or, if he has an opinion, obstacles may prevent him from stating it. He may think that the ruling is open to independent judgement, or that every practitioner of independent judgement is correct; he may be inhibited by awe, or by other accompanying circumstances.

فَإِنَّ الْإِنْسَانَ قَدْ يَسْكُتُ لِأَسْبَابٍ شَتَّى: إِمَّا أَنَّهُ لَيْسَ عِنْدَهُ فِي ذَلِكَ الْوَقْتِ فِي الشَّيْءِ رَأْيٌ، وَإِمَّا إِنْ كَانَ عِنْدَهُ رَأْيٌ فِي الشَّيْءِ فَقَدْ تَمْنَعُهُ عَنِ التَّصْرِيحِ بِهِ مَوَانِعُ: مِنْهَا أَنَّهُ لَعَلَّهُ يَرَى أَنَّ الْحُكْمَ فِي مَحَلِّ الِاجْتِهَادِ، أَوْ أَنَّ كُلَّ مُجْتَهِدٍ مُصِيبٌ، أَوْ هَيْبَةٌ مَا، أَوْ غَيْرُ ذَلِكَ مِنْ قَرَائِنَ تَقْتَرِنُ لَهُ.

138. Medinan practice must be traced as transmission

R 138 · BA 165

Since this is so, and consensus requires agreement among all practitioners of independent judgement existing in the age, there is no basis for treating the agreement of the people of Medina as authoritative because they were the majority at the beginning of Islam.

وَإِذَا كَانَ هَذَا هَكَذَا وَكَانَ مِنْ شَرْطِ الْإِجْمَاعِ اتِّفَاقُ جَمِيعِ الْمُجْتَهِدِينَ الْمَوْجُودِينَ فِي ذَلِكَ الْعَصْرِ، فَمَنْ رَأَى إِجْمَاعَ أَهْلِ الْمَدِينَةِ حُجَّةً لِأَنَّهُمُ الْأَكْثَرُ فِي أَوَّلِ الْإِسْلَامِ فَلَا مَعْنَى لَهُ.

The discerning Mālikīs, however, regard it as authoritative on the ground of transmission. If an argument for its authority is to be built on this, it seems to me that the transmission of the practice must be explicitly stated, generation after generation, until it reaches the Messenger of God’s time, God bless him and grant him peace. It would then be authoritative through his approval, God bless him and grant him peace. For example, they would say, ‘This is how we found our fathers acting,’ tracing this back to the Messenger of God’s time, God bless him and grant him peace.

لَكِنَّ حُذَّاقَ الْمَالِكِيِّينَ إِنَّمَا يَرَوْنَهُ حُجَّةً مِنْ جِهَةِ النَّقْلِ وَهَذَا إِذَا بُنِيَ فِيهِ أَنْ يُجْعَلَ حُجَّةً فِيمَا يَظْهَرُ لِي، فَيَنْبَغِي أَنْ يُصَرَّحَ فِيهِ بِنَقْلِ الْعَمَلِ قَرْنًا بَعْدَ قَرْنٍ حَتَّى يُوصَلَ بِذَلِكَ إِلَى زَمَنِ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، فَيَكُونَ ذَلِكَ حُجَّةً بِإِقْرَارِهِ لَهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ. مِثْلَ أَنْ يَقُولُوا: هَكَذَا وَجَدْنَا آبَاءَنَا يَفْعَلُونَ، إِلَى أَنْ يَنْتَهِيَ ذَلِكَ إِلَى زَمَنِ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ.

Such was the encounter between Mālik and Abū Yūsuf in al-Rashīd’s presence concerning the ṣāʿ measure. If this requirement is neither imposed nor carefully maintained, their agreement may concern a practice forced upon them by some caliph or governor. In general, it is clear that reaching a legal judgement on this basis does not refer back to a source established with certainty in the Law, as a probable indication ought to do—unless transmission of the practice is explicitly stated as we have described, in which case it belongs to transmitted evidence.

مِثْلَ مَا اتَّفَقَ لِمَالِكٍ مَعَ أَبِي يُوسُفَ بِحَضْرَةِ الرَّشِيدِ فِي مَسْأَلَةِ الصَّاعِ. وَإِلَّا مَتَى لَمْ يُشْتَرَطْ هَذَا، وَلَمْ يُحْتَفَظْ بِهِ، لَمْ يَكُنْ مُمْتَنِعًا أَنْ يَكُونَ إِجْمَاعُهُمْ عَلَى أَمْرٍ حَمَلَهُمْ عَلَيْهِ بَعْضُ الْخُلَفَاءِ وَالْأُمَرَاءِ. وَبِالْجُمْلَةِ فَالْحُكْمُ فِي الشَّرْعِ بِمِثْلِ هَذَا الْحُكْمِ بَيِّنٌ أَنَّهُ لَيْسَ يَرْجِعُ إِلَى أَصْلٍ مَقْطُوعٍ بِهِ فِي الشَّرْعِ عَلَى مَا شَأْنُهَا أَنْ تَرْجِعَ إِلَيْهِ الْأَمَارَةُ الظَّنِّيَّةُ، اللَّهُمَّ إِلَّا أَنْ يُصَرَّحَ بِنَقْلِ الْعَمَلِ كَمَا قُلْنَا فَيَكُونَ مِنْ بَابِ النَّقْلِ.

139. Must an agreeing generation die out before consensus binds?

R 139 · BA 166

The requirement that the generation of practitioners of independent judgement must die out without disagreement intervening is not entailed by the wording of the reports establishing the authority of consensus. Rather, anyone who dissents after consensus has existed for even a single moment is disregarded and is certainly in error.

وَأَمَّا مَنْ يَشْتَرِطُ فِي الْإِجْمَاعِ انْقِرَاضَ عَصْرِ الْمُجْتَهِدِينَ دُونَ أَنْ يقع بَيْنَهُمْ خِلَافٌ فَلَيْسَ تَقْتَضِيهِ صِيَغُ الْأَحَادِيثِ الْوَارِدَةِ بِكَوْنِ الْإِجْمَاعِ حُجَّةً، بَلْ مَنْ خَالَفَ مِنْ بَعْدِ وُقُوعِ الْإِجْمَاعِ فِي لَحْظَةٍ مَا فَغَيْرُ مُلْتَفَتٍ إِلَيْهِ وَمَقْطُوعٌ بِخَطَئِهِ.

140. The essential account is enough to understand further objections

R 140 · BA 167

This is our account, as concise as we could make it, of what consensus is and of its requirements. Someone who has grasped consensus to the extent set out here can readily understand the further questions and objections connected with it, which Abū Ḥāmid has discussed at such length.

فَهَذَا هُوَ الْقَوْلُ فِي الْإِجْمَاعِ مَا هُوَ، وَسَائِرِ مَا يُشْتَرَطُ فِيهِ بِأَوْجَزِ مَا أَمْكَنَنَا، وَسَائِرُ مَا يَلْحَقُهُ مِنَ الْمَسَائِلِ وَالِاعْتِرَاضَاتِ الَّتِي كَثَّرَ أَبُو حَامِدٍ بِذِكْرِهَا فَقَدْ يَقِفُ عَلَيْهَا بِسُهُولَةٍ مَنْ تَصَوَّرَ مِنَ الْإِجْمَاعِ هَذَا الْمِقْدَارَ الَّذِي كَتَبْنَاهُ.

On the Fourth Source

الْقَوْلُ فِي الْأَصْلِ الرَّابِعِ

141. Original freedom from liability and the burden of proof

R 141 · BA 168

This is rational evidence for presuming the continuation (الاستصحاب) of freedom from obligations and the absence of blame for people where no command or prohibition has been received: for example, the absence of an obligation to perform a sixth prayer, eating during Shawwāl, and the like. In general, calling this a proof is a loose use of language. They were led to it by straining to make revealed matters require proof for both negation and affirmation, just as rational matters do. Thus you see them wavering: sometimes they say, ‘The absence of proof is proof’; sometimes, ‘It is established by analogy or consensus that anything for which no proof is found in the Law original freedom from liability is presumed to continue.’

وَهُوَ دَلِيلُ الْعَقْلِ فِي اسْتِصْحَابِ بَرَاءَةِ الذِّمَّةِ عَنِ الْوَاجِبَاتِ، وَسُقُوطِ الْحَرَجِ عَنِ الْخَلْقِ فِيمَا لَمْ يَأْتِ فِيهِ أَمْرٌ أَوْ نَهْيٌ، كَسُقُوطِ الصَّلَاةِ السَّادِسَةِ مَثَلًا، وَأَكْلِ شَوَّالٍ وَمَا أَشْبَهَ ذَلِكَ. وَبِالْجُمْلَةِ فَتَسْمِيَةُ هَذَا دَلِيلًا تَجُوزُ فِيهِ الْعِبَارَةُ. وَالَّذِي أَصَارَهُمْ إِلَى هَذَا تَكَلُّفُهُمْ أَنْ يَجْعَلُوا السَّمْعِيَّاتِ فِي وُجُوبِ الدَّلِيلِ فِي حَالَتَيِ النَّفْيِ وَالْإِثْبَاتِ كَوُجُوبِ ذَلِكَ فِي الْعَقْلِيَّاتِ، حَتَّى تَرَاهُمْ يَضْطَرِبُونَ، فَمَرَّةً يَقُولُونَ: «عَدَمُ الدَّلِيلِ دَلِيلٌ»، وَمَرَّةً يَقُولُونَ: «ثَبَتَ بِالْقِيَاسِ أَوْ بِالْإِجْمَاعِ أَنَّ مَا لَمْ يُلْفَ دَلِيلٌ عَلَيْهِ فِي الشَّرْعِ فَتُسْتَصْحَبُ فِيهِ الْبَرَاءَةُ الْأَصْلِيَّةُ».

The correct view is otherwise. Anything whose existence can be established only by revelation is presumed absent until something to the contrary is received; its absence is the better-known state. In such a case, either no proof at all should be demanded from people, or, if proof is demanded, it should be less than that demanded from someone affirming its existence, as with a claimant and a defendant.[50]

وَالصَّوَابُ غَيْرُ هَذَا، لِأَنَّ مَا كَانَ طَرِيقُ وُجُودِهِ السَّمْعَ فَهُوَ عَلَى الْعَدَمِ مَحْمُولٌ حَتَّى يَرِدَ غَيْرُ ذَلِكَ، وَالْعَدَمُ فِيهِ أَشْهَرُ. وَمَا كَانَ هَذَا إِمَّا أَنْ لَا يُطْلَبَ مِنَ النافي دَلِيلٌ عَلَيْهِ أَصْلًا، وَأَمَّا إِنْ طُلِبَ فَدُونَ دَلِيلِ الْمُثْبِتِ، كَالْحَالِ فِي الْمُدَّعِي وَالْمُدَّعَى عَلَيْهِ.

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[50] **50.** Translation. أكل شوال, p. 96, means eating in the month of Shawwāl, with no Ramadan-like fasting obligation presumed for it; the elliptical example is retained without silently changing أكل to صوم.

142. Five forms of continuity and the problem of a changed subject

R 142 · BA 169–170

Presumption of continuity (الاستصحاب) has several applications in this discipline. First is the continuation of original freedom from liability (البراءة الأصلية), discussed earlier. Second is retaining general scope until a specification is received. Third is retaining the text until abrogation is received. Fourth is retaining a ruling when the circumstance to which the Law attached it recurs. Fifth is retaining consensus—or, more generally, a revealed ruling established by transmission—in a case where the subject's ruling is thought to have changed because the subject itself has changed, as with selling a slave woman who has borne her master a child, and similar cases.

The Ẓāhirīs accept this presumption of continuity and thereby remain consistent with their principles. Those who do not allow in the Law the kind of reasoning called analogy by practitioners of this discipline hold that things remain in their original freedom from liability until revealed evidence is received. Similarly, once revealed evidence is received, the subject retains its ruling even if its attributes change, until evidence removing the ruling is received.

It is as though the situation here were the reverse of presuming original freedom from liability. There, absence was more evident, so proof was required from whoever affirmed; here, existence is more evident, so proof is required from whoever denies. Someone who accepts analogy in the Law must reject this kind of continuity, since he can say: we are charged to reason by analogy where there is no text. This subject's attribute has changed, so it has the status of a case for which no text has been received, because a change of attribute requires a change of ruling.

وَالِاسْتِصْحَابُ فِي هَذِهِ الصِّنَاعَةِ يُطْلَقُ عَلَى وُجُوهٍ: أَحَدُهَا اسْتِصْحَابُ الْبَرَاءَةِ الْأَصْلِيَّةِ الَّذِي تَقَدَّمَ. وَالثَّانِي اسْتِصْحَابُ الْعُمُومِ حَتَّى يَرِدَ تَخْصِيصٌ. وَالثَّالِثُ اسْتِصْحَابُ النَّصِّ حَتَّى يَرِدَ نَسْخٌ. وَالرَّابِعُ اسْتِصْحَابُ حُكْمٍ عِنْدَ أَمْرٍ قَرَنَهُ الشَّرْعُ بِهِ لِتَكَرُّرِ ذَلِكَ الْأَمْرِ. وَالْخَامِسُ اسْتِصْحَابُ الْإِجْمَاعِ، أَوْ بِالْجُمْلَةِ الْحُكْمِ الشَّرْعِيِّ الثَّابِتِ بِالنَّقْلِ فِي مَوْضِعٍ يُظَنُّ أَنَّ الْمَحْكُومَ عَلَيْهِ قَدْ تَغَيَّرَ حُكْمُهُ لِتَغَيُّرِهِ فِي نَفْسِهِ، كَبَيْعِ أُمِّ الْوَلَدِ وَمَا أَشْبَهَ ذَلِكَ.

وَهَذَا الِاسْتِصْحَابَ يَرَاهُ أَهْلُ الظَّاهِرِ وَهُمْ لَازِمُونَ فِي ذَلِكَ لِأُصُولِهِمْ، لِأَنَّ مَنْ لَا يُجَوِّزُ فِي الشَّرْعِ النَّوْعَ مِنَ النَّظَرِ الَّذِي يُسَمَّى عِنْدَ أَهْلِ هَذِهِ الصِّنَاعَةِ بِالْقِيَاسِ، فَالْأَشْيَاءُ كَمَا أَنَّهَا عِنْدَهُمْ عَلَى الْبَرَاءَةِ الْأَصْلِيَّةِ حَتَّى يَرِدَ دَلِيلُ السَّمْعِ، كَذَلِكَ إِذَا وَرَدَ دَلِيلُ الشَّرْعِ بَقِيَ عَلَى حُكْمِهِ وَإِنْ تَغَيَّرَتْ أَوْصَافُهُ حَتَّى يَرِدَ دَلِيلُ الِارْتِفَاعِ.

وَكَأَنَّ الْحَالَ هَهُنَا بِالْعَكْسِ فِي اسْتِصْحَابِ الْبَرَاءَةِ الْأَصْلِيَّةِ لِأَنَّ هُنَاكَ كَانَ الْعَدَمُ أَظْهَرَ فَوَجَبَ الدَّلِيلُ عَلَى الْمُثْبِتِ، وَهَهُنَا الْوُجُودُ أَظْهَرُ فَوَجَبَ الدَّلِيلُ عَلَى النَّافِي. وَأَمَّا مَنْ يَرَى الْقِيَاسَ فِي الشَّرْعِ فَيَلْزَمُهُ أَلَّا يَقُولَ بِمِثْلِ هَذَا الِاسْتِصْحَابِ، لِأَنَّ لَهُ أَنْ يَقُولَ نَحْنُ مُكَلَّفُونَ بِالنَّظَرِ بِالْقِيَاسِ فِيمَا لَيْسَ فِيهِ نَصٌّ، وَهَذَا قَدْ تَغَيَّرَ وَصْفُهُ، فَلَهُ حُكْمُ مَا لَمْ يَرِدْ فِيهِ نَصٌّ، إِذْ تَغَيُّرُ الْوَصْفِ يُوجِبُ تَغَيُّرَ الْحُكْمِ.

143. Conclusion of the four sources

R 143 · BA 171

Here the discussion of the fourth source ends, and with it the discussion of the second part of this book, which comprises the sources of proofs.

وَهُنَا انْقَضَى الْقَوْلُ فِي الْأَصْلِ الرَّابِعِ وَهُوَ مُنْتَهَى الْكَلَامِ فِي الْجُزْءِ الثَّانِي مِنْ هَذَا الْكِتَابِ وَهُوَ الْمُشْتَمِلُ عَلَى أُصُولِ الْأَدِلَّةِ.

144. A Companion’s opinion attracts weight but is not infallible

R 144 · BA 172

Other sources may be supposed to exist, and we shall mention them. One is a Companion’s statement, which is thought authoritative but is not. One may not follow uncritically someone whose protection from error has not been established; such protection is established only by a miracle, or by the bearer of a miracle declaring that the person is protected from error. Opinions differ: some confine this authority to particular Companions; others extend it to every Companion. In general, a Companion is one practitioner of independent judgement among others. The mind nevertheless inclines more readily to their opinions because of the indications accompanying them, and these indications led those who regard their statements as authoritative to that view.

وَقَدْ يُظَنُّ أَنَّ هَهُنَا أُصُولًا غَيْرَ هَذِهِ نَحْنُ ذَاكِرُوها: مِنْهَا قَوْلُ الصَّحَابِيِّ يُظَنُّ بِهِ أَنَّهُ حُجَّةٌ وَلَيْسَ بِحُجَّةٍ، لِأَنَّ مَنْ لَمْ تَثْبُتْ عِصْمَتُهُ لَمْ يَجُزْ تَقْلِيدُهُ، فَالْعِصْمَةُ إِنَّمَا تَثْبُتُ بِالْمُعْجِزَةِ أَوْ بِقَوْلِ صَاحِبِ الْمُعْجِزَةِ فِيهِ إِنَّهُ مَعْصُومٌ. وَقَدْ تَفَرَّقَ النَّاسُ فِي ذَلِكَ عَلَى أَقْوَالٍ: فَبَعْضُهُمْ خَصَّ بِذَلِكَ بَعْضَ الصَّحَابَةِ، وَبَعْضُهُمْ رَآهُ فِي كُلِّ صَاحِبٍ. وَبِالْجُمْلَةِ فَالصَّاحِبُ مُجْتَهِدٌ مِنَ الْمُجْتَهِدِينَ، لَكِنَّ النَّفْسَ أَمْيَلُ إِلَى أَقْوَالِهِمْ لِمَا انْضَافَتْ إِلَيْهِمْ مِنَ الْقَرَائِنِ، وَهِيَ الَّتِي أَوْقَعَتْ مَنْ رَأَى أَقْوَالَهُمْ حُجَّةً فِي ذَلِكَ.

145. Earlier revealed laws are not an independent source

R 145 · BA 173

Another is the law of those before us. The proof that this is not a source is that, were it a source, transmitting it would be a collective obligation. It cannot be right that the community should, at any time, lose knowledge of a collective obligation, given the proof of its protection from error. Had its transmission been a collective obligation, the Companions would have reported it and it would have been transmitted down to the present. As for provisions of earlier laws contained in the Book and commanded of us, they are commanded of us insofar as they are in the Book, not insofar as they are the law of those before us.

وَمِنْهَا شَرْعُ مَنْ قَبْلَنَا، وَالدَّلِيلُ عَلَى أَنَّهُ لَيْسَ بِأَصْلٍ أَنَّهُ لَوْ كَانَ كَذَلِكَ لَكَانَ نَقْلُهُ مِنْ فُرُوضِ الْكِفَايَاتِ. وَلَيْسَ يَصِحُّ عَلَى الْأُمَّةِ أَنْ يَذْهَبَ عَلَيْهَا فِي وَقْتٍ مَا فَرْضٌ مِنْ فُرُوضِ الْكِفَايَةِ بِدَلِيلِ الْعِصْمَةِ لَهُمْ، وَلَوْ كَانَ فَرْضًا مِنْ فُرُوضِ الْكِفَايَاتِ لَأَخْبَرَ بِهِ الصَّحَابَةُ وَنُقِلَ إِلَى الْيَوْمِ. فَأَمَّا مَا مِنْهَا فِي الْكِتَابِ وَنَحْنُ مَأْمُورُونَ بِهِ فَإِنَّمَا نَحْنُ مَأْمُورُونَ بِهِ مِنْ جِهَةِ مَا هُوَ فِي الْكِتَابِ لَا مِنْ جِهَةِ مَا هُوَ شَرْعُ مَنْ قَبْلَنَا.

146. Preference and welfare require a recognized legal warrant

R 146 · BA 174

Others are juristic preference and consideration of welfare. If these mean a kind of analogy, evident or subtle, permissible in the Law in the manner allowed by its proponents, then it is a source on their view. If they do not mean that, they are not a source. In general, the Law has encouraged consideration of benefits, but to a certain extent and within a certain limit: where it has attested that they, or their kind, constitute a benefit. Whether analogy itself is a source will be discussed later.

وَمِنْهَا الِاسْتِحْسَانُ وَالِاسْتِصْلَاحُ وَهَذَانِ إِنْ أُرِيدَ بِهِمَا نَوْعٌ مِنْ أَنْوَاعِ الْقِيَاسِ، جَلِيٌّ أَوْ خَفِيٌّ مِمَّا يَجُوزُ فِي الشَّرْعِ عَلَى الْجِهَةِ الَّتِي يُجَوِّزُهُ الْقَائِلُونَ بِهِ، فَهُوَ عَلَى رَأْيِهِمْ أَصْلٌ، وَأَمَّا إِنْ لَمْ يُرَدْ بِهِ ذَلِكَ فَلَيْسَ بِأَصْلٍ.

وَبِالْجُمْلَةِ النَّظَرُ فِي الْمَصَالِحِ قَدْ نَدَبَ إِلَيْهَا الشَّرْعُ لَكِنْ بِمِقْدَارٍ مَا وَبِحَدٍّ مَا، وَهُوَ مَا شَهِدَ لَنَا بِكَوْنِهَا أَوْ كَوْنِ جِنْسِهَا مَصْلَحَةً. وَأَمَّا هَلِ الْقِيَاسُ أَصْلٌ فَسَيَأْتِي الْقَوْلُ فِيهِ فِيمَا بَعْدُ.

147. Conclusion of Part Two

R 147 · BA 175

Here the examination of the second part of this science ends. Praise be to God.

وَهُنَا انْتَهَى النَّظَرُ فِي الْجُزْءِ الثَّانِي مِنْ هَذَا الْعِلْمِ وَالْحَمْدُ لِلَّهِ.

Part III

On the Third Part of the Abridgment

الْقَوْلُ فِي الْجُزْءِ الثَّالِثِ مِنَ الْمُخْتَصَرِ

148. The distinctive task: understanding prophetic indications

R 148 · BA 176

This part concerns the inquiry most distinctive of this science, as we explained earlier. It is divided according to the things through which the Prophet’s meaning is understood, God bless him and grant him peace: either wording or an indication (قرينة).

وَهَذَا الْجُزْءُ هُوَ الَّذِي النَّظَرُ فِيهِ أَخَصُّ بِهَذَا الْعِلْمِ عَلَى مَا قَدَّمْنَا فِيمَا سَلَفَ، وَهُوَ يَنْقَسِمُ بِحَسَبِ الْأَشْيَاءِ الَّتِي يَقَعُ بِهَا الْفَهْمُ عَنِ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَذَلِكَ إِمَّا لَفْظٌ أَوْ قَرِينَةٌ.

149. Verbal form and intelligible import

R 149 · BA 176

Wording is divided into what indicates a ruling through its verbal form, and what indicates it through its understood import and intelligible meaning.[51]

وَاللَّفْظُ يَنْقَسِمُ إِلَى مَا يَدُلُّ عَلَى الْحُكْمِ بِصِيغَتِهِ، وَإِلَى مَا يَدُلُّ بِمَفْهُومِهِ وَمَعْقُولِهِ.

150. Action and approval as nonverbal indications

R 150 · BA 176

Indication is divided into two kinds: one is his action, God bless him and grant him peace; the other is his approval of a ruling.

وَالْقَرِينَةُ تَنْقَسِمُ إِلَى قِسْمَيْنِ: أَحَدُهُمَا فِعْلُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَالْآخَرُ إِقْرَارُهُ عَلَى الْحُكْمِ.

1. On Unambiguous and Indeterminate Wording in Respect of Verbal Form

١) الْقَوْلُ فِي النَّصِّ وَالْمُجْمَلِ مِنْ جِهَةِ الصِّيغَةِ

151. Four classes of verbal indication

R 151 · BA 177

Let us begin by examining wording. We say: practitioners of this discipline customarily divide expressions and statements into the indeterminate (المجمل), the unambiguous (النص), what has an apparent meaning (الظاهر), and what is interpreted beyond that apparent meaning (المؤول). We should examine each division and explain what they signify by each. We say:

وَلْنَبْدَأْ مِنْ ذَلِكَ بِالنَّظَرِ فِي الْأَلْفَاظِ فَنَقُولُ: إِنَّ الْعَادَةَ قَدْ جَرَتْ عِنْدَهُمْ فِي هَذِهِ الصِّنَاعَةِ أَنْ يُقَسِّمُوا الْأَلْفَاظَ وَالْأَقَاوِيلَ إِلَى الْمُجْمَلِ وَالنَّصِّ وَالظَّاهِرِ وَالْمُؤَوَّلِ. وَيَنْبَغِي أَنْ نَنْظُرَ فِي وَاحِدٍ وَاحِدٍ مِنْ هَذِهِ الْأَقْسَامِ، وَنُبَيِّنَ الْمَعْنَى الَّذِي يَدُلُّونَ عَلَيْهِ فِي وَاحِدٍ وَاحِدٍ مِنْهَا، فَنَقُولُ:

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51. Interpretation. Linguistic rather than syllogistic inference. Bou Akl 2015 intro pp.50–76 stresses two categories of the indication of legal discourse: form (ṣīgha) and intelligible or understood import (mafhūm/maʿqūl), a significant reduction of al-Ghazālī’s initial tripartite scheme.

152. Simple expressions, compounds, and complete utterances

R 152 · BA 178

Expressions are either simple or compound. A simple expression is a noun, a verb, or a particle. A compound expression is composed of these, with a part of it signifying part of its meaning. Some compound expressions do not independently convey a complete meaning; others do. The latter divide into statements whose composition admits truth or falsehood, and ⟨utterances which do not⟩. The latter include commands, prohibitions, requests, entreaties, and calls.

إِنَّ الْأَلْفَاظَ مِنْهَا مُفْرَدَةٌ وَمِنْهَا مُرَكَّبَةٌ، وَالْمُفْرَدُ إِمَّا اسْمٌ وَإِمَّا فِعْلٌ وَإِمَّا حَرْفٌ. وَالْمُرَكَّبَةُ مَا تَرَكَّبَ مِنْ هَذِهِ وَكَانَ يَدُلُّ جُزْؤُهُ عَلَى جُزْءٍ مِنَ الْمَعْنَى. وَمِنْ هَذِهِ مَا هُوَ غَيْرُ مُسْتَقِلٍّ بِنَفْسِهِ فِي الْفَهْمِ، وَمِنْهَا مَا هُوَ مُسْتَقِلٌّ بِنَفْسِهِ. وَهَذَا يَنْقَسِمُ إِلَى مَا تَرْكِيبُهُ تَرْكِيبٌ يَدْخُلُهُ الصِّدْقُ وَالْكَذِبُ ⟨وَإِلَى مَا لَا يَدْخُلُ ذَلِكَ⟩ فِيهِ، وَهَذَا يَنْقَسِمُ إِلَى أَمْرٍ وَنَهْيٍ وَطَلِبَةٍ وَتَضَرُّعٍ وَنِدَاءٍ.

153. Original assignment, transfer, and specialized legal usage

R 153 · BA 179–181

Among expressions—whether nouns, particles, or verbs, simple or compound—some invariably convey one meaning through their forms in every context. These constitute part of what is meant by unambiguous wording (النص) in this discipline; let us call it unambiguous wording in respect of form. Others can convey more than one meaning. If they signify all these meanings equally, so that one can be understood only through proof or an indication, they constitute part of what this discipline calls indeterminate wording (المجمل); let us call it indeterminate wording in respect of form.

وَالْأَلْفَاظُ، سَوَاءٌ كَانَتْ أَسْمَاءً أَوْ حُرُوفًا أَوْ أَفْعَالًا أَوْ مُفْرَدَةً أَوْ مُرَكَّبَةً، مِنْهَا مَا يُفْهَمُ عَنْهَا بِصِيَغِهَا فِي كُلِّ مَوْضِعٍ مَعْنًى وَاحِدٌ أَبَدًا، وَهَذِهِ بَعْضُ مَا يَعْنُونَ بِالنَّصِّ فِي هَذِهِ الصِّنَاعَةِ، وَلْنُسَمِّهِ نَحْنُ النَّصَّ مِنْ جِهَةِ الصِّيَغِ. وَمِنْهَا أَلْفَاظٌ يُمْكِنُ أَنْ يُفْهَمَ عَنْهَا أَكْثَرُ مِنْ مَعْنًى وَاحِدٍ، وَهَذِهِ إِذَا كَانَتْ دَلَالَتُهَا عَلَى جَمِيعِ الْمَعَانِي بِالسَّوَاءِ، حَتَّى لَا يُفْهَمَ أَحَدُهَا إِلَّا بِدَلِيلٍ أَوْ قَرِينَةٍ فَهُوَ أَيْضًا بَعْضُ مَا يَعْنُونَ بِالْمُجْمَلِ فِي هَذِهِ الصِّنَاعَةِ، وَلْنُسَمِّهِ نَحْنُ مُجْمَلًا مِنْ جِهَةِ الصِّيَغِ.

Some expressions originally apply to one thing and signify it more commonly, but are later transferred to something else because it resembles the original meaning; or one expression is substituted for another, relying on an indication to disclose the transferred or substituted meaning. When such expressions occur without accompanying indications, they are understood according to their original assignment. These constitute part of what this discipline calls apparent wording (الظاهر); following our practice, let us call it apparent wording in respect of form. When indications establish transfer or substitution, this constitutes part of what the discipline calls interpreted wording (المؤول); let us call it interpreted wording in respect of form.

وَمِنْ هَذِهِ الْأَلْفَاظِ مَا يُقَالُ مِنْ أَوَّلِ الْأَمْرِ عَلَى شَيْءٍ مِنْهَا وَيَكُونُ أَشْهَرَ فِي الدَّلَالَةِ عَلَيْهِ، ثُمَّ يُسْتَعَارُ حِينًا مَا لِشَيْءٍ آخَرَ لِشَبَهِهِ بِالْمَعْنَى الْأَوَّلِ، أَوْ يُبْدَلُ بَعْضُهَا مَكَانَ بَعْضٍ اتِّكَالًا فِي ذَلِكَ عَلَى قَرِينَةٍ تُفْهِمُ الْمَعْنَى الْمُسْتَعَارَ أَوِ الْمُبْدَلَ. وَهَذِهِ إِذَا وَرَدَتْ خِلْوًا مِنَ الْقَرَائِنِ حُمِلَتْ عَلَى وَضْعِهَا الْأَوَّلِ، وَهِيَ بَعْضُ مَا يَعْنُونَ فِي هَذِهِ الصِّنَاعَةِ بِالظَّاهِرِ، وَلْنُسَمِّهِ نَحْنُ عَلَى عَادَتِنَا الظَّاهِرَ مِنْ جِهَةِ الصِّيَغِ. وَإِذَا دَلَّتِ الْقَرَائِنُ عَلَى اسْتِعَارَتِهَا أَوْ تَبْدِيلِهَا فَهُوَ بَعْضُ مَا يُسَمَّى فِي هَذِهِ الصِّنَاعَةِ مُؤَوَّلًا، وَلْنُسَمِّهِ الْمُؤَوَّلَ مِنْ جِهَةِ الصِّيَغِ.

This class includes terms established by specialised usage: terms originally assigned to certain things, then transferred in the Law to other things because of their resemblance to the original meanings or some relation to them. When these occur in the Law, their apparent meanings are the legal meanings; they are understood in their ordinary linguistic meanings only through interpretation.

وَفِي هَذَا الصِّنْفِ تَدْخُلُ الْأَسْمَاءُ الْعُرْفِيَّةُ، وَهِيَ أَسْمَاءٌ اسْتُعْمِلَتْ فِي الْوَضْعِ عَلَى أَشْيَاءَ ثُمَّ نُقِلَتْ فِي الشَّرْعِ إِلَى أَشْيَاءَ أُخْرَى لِشَبَهِهَا بِالْمَعَانِي الْأُوَلِ أَوْ لِتَعَلُّقِهَا بِهَا بِوَجْهٍ مِنْ أَوْجُهِ التَّعَلُّقِ. وَهَذِهِ إِذَا وَرَدَتْ فِي الشَّرْعِ كَانَتْ ظَاهِرَةً فِي الْمَعَانِي الشَّرْعِيَّةِ، وَلَمْ تُحْمَلْ عَلَى الْمَعَانِي اللُّغَوِيَّةِ إِلَّا بِالتَّأْوِيلِ.

154. Omission, addition, and substitution in figurative speech

R 154 · BA 182

Some expressions and statements signify through their understood imports, rather than through their verbal forms, because they have been altered by abridgement and omission or addition, and likewise by substitution and transfer. This class of expressions is called figurative usage (مجاز).

وَمِنْ هَذِهِ الْأَلْفَاظِ وَالْأَقَاوِيلِ مَا تَدُلُّ بِمَفْهُومَاتِهَا لَا بِصِيَغِهَا وَذَلِكَ لِتَغْيِيرِهَا بِالنَّقْصِ وَالْحَذْفِ أَوِ الزِّيَادَةِ، وَكَذَلِكَ أَيْضًا بِالتَّبْدِيلِ وَالِاسْتِعَارَةِ. وَهَذَا الصِّنْفُ مِنَ الْأَلْفَاظِ يُسَمَّى مَجَازًا.

155. Clarity and obscurity arise from meaning as well as form

R 155 · BA 182

Within these, too, there are counterparts to the unambiguous, the indeterminate, the apparent, and the interpreted; but they possess these characteristics through accompanying indications, not through their forms. Thus 'unambiguous wording' as used in this discipline signifies two kinds: what is unambiguous in respect of form and what is unambiguous in respect of understood import. The apparent, the indeterminate, and the interpreted admit the same division.

وَهَذِهِ يُوجَدُ فِيهَا أَيْضًا مَا يُشْبِهُ النَّصَّ وَالْمُجْمَلَ وَالظَّاهِرَ وَالْمُؤَوَّلَ، وَإِنَّمَا يُوجَدُ ذَلِكَ فِيهَا مِنْ جِهَةِ الْقَرَائِنِ لَا مِنْ صِيَغِهَا. فَيَكُونُ إِذًا النَّصُّ الْمُسْتَعْمَلُ فِي هَذِهِ الصِّنَاعَةِ يُعْنَى بِهِ صِنْفَانِ: أَحَدُهُمَا مَا كَانَ نَصًّا مِنْ جِهَةِ الصِّيَغِ، وَالثَّانِي مَا كَانَ نَصًّا مِنْ جِهَةِ الْمَفْهُومِ. وَبِمِثْلِ هَذِهِ الْقِسْمَةِ يَنْقَسِمُ الظَّاهِرُ وَالْمُجْمَلُ وَالْمُؤَوَّلُ.

156. A classification useful for legal inference

R 156 · BA 183

This division of expressions into these classes seems to be the useful one in this discipline. We should examine them following the practitioners' customary procedure, explain the authority of each as a revealed proof, and investigate statements thought to be uncertain between more than one of these classes. Let us begin with the divisions belonging to an expression by virtue of its form, and among these with simple expressions and expressions compounded as assertions.

وَيُشْبِهُ أَنْ تَكُونَ قِسْمَةُ الْأَلْفَاظِ إِلَى هَذِهِ الْأَصْنَافِ هِيَ النَّافِعَةَ فِي هَذِهِ الصِّنَاعَةِ. وَيَنْبَغِي أَنْ نَنْظُرَ فِيهَا عَلَى عَادَتِهِمْ، وَنُبَيِّنَ فِي وَاحِدٍ وَاحِدٍ مِنْهَا كَوْنَهُ دَلِيلًا شَرْعِيًّا، وَنَفْحَصَ عَمَّا يُظَنُّ بِهِ مِنَ الْأَقَاوِيلِ أَنَّهُ مُتَرَدِّدٌ بَيْنَ أَكْثَرَ مِنْ صِنْفٍ وَاحِدٍ مِنْ هَذِهِ الْأَصْنَافِ. وَلْنَبْدَأْ مِنْ هَذِهِ الْأَقْسَامِ بِمَا يُوجَدُ لِلَّفْظِ مِنْ جِهَةِ صِيغَتِهِ وَمِنْ هَذِهِ فِي الْمُفْرَدَةِ وَالْمُرَكَّبَةِ تَرْكِيبَ إِخْبَارٍ.

157. Unambiguous expressions and determinate pronoun reference

R 157 · BA 184

As we have said, wording is unambiguous only when it conveys one meaning in every context. This occurs in both simple and compound expressions. Examples of simple expressions are ‘human being,’ ‘horse,’ and ‘animal.’ A compound example is God’s saying, ‘Say: He is God, One.’[52] In general, this includes every expression composed of unambiguous simple expressions, provided that its pronouns cannot refer to more than one meaning.’[53]

وَاللَّفْظُ كَمَا قُلْنَا إِنَّمَا يَكُونُ نَصًّا إِذَا فُهِمَ عَنْهُ فِي كُلِّ مَوْضِعٍ مَعْنًى وَاحِدٌ، وَهَذَا يُوجَدُ فِي الْمُفْرَدِ وَالْمُرَكَّبِ. أَمَّا مِثَالُ الْمُفْرَدِ فَكَالْإِنْسَانِ وَالْفَرَسِ وَالْحَيَوَانِ، وَأَمَّا فِي الْمُرَكَّبِ فَمِثْلُ قَوْلِهِ تَعَالَى: {قُلْ هُوَ اللَّهُ أَحَدٌ}[52] وَبِالْجُمْلَةِ كُلُّ مَا تَرَكَّبَ عَنِ الْمُفْرَدَاتِ النُّصُوصِ، وَلَمْ تَكُنِ الضَّمَائِرُ فِيهِ مُحْتَمِلَةً أَنْ تَعُودَ عَلَى مَعْنًى أَكْثَرَ مِنْ وَاحِدٍ.

158. Equivocation: qurʾ, ʿayn, and the marriage bond

R 158 · BA 185

Indeterminate wording in respect of form is the opposite. Among simple expressions, an example is ʿayn, used equivocally for a spring of water, the eye of a balance, the eye with which one sees, and other things. A term may even signify a thing and its opposite, as qurʾ sometimes means a period of purity and sometimes menstruation. Indeterminacy in composition occurs in expressions compounded from such terms, or where the pronouns connecting the statement are ambiguous. An example is His saying, blessed and exalted, ‘Or the one in whose hand is the marriage bond remits it’[54]: the pronoun here may refer either to the guardian or to the husband.’[55]

وَالْمُجْمَلُ مِنْ جِهَةِ الصِّيغَةِ فِي مُقَابَلَةِ هَذَا. أَمَّا فِي الْأَلْفَاظِ الْمُفْرَدَةِ فَكَمِثْلِ اسْمِ الْعَيْنِ الَّذِي يُقَالُ بِاشْتِرَاكٍ عَلَى عَيْنِ الْمَاءِ، وَعَلَى عَيْنِ الْمِيزَانِ، وَالْعَيْنِ الَّتِي يُبْصَرُ بِهَا، وَغَيْرِ ذَلِكَ. وَرُبَّمَا قِيلَ عَلَى الشَّيْءِ وَضِدِّهِ كَالْقُرْءِ الَّذِي يُعْنَى بِهِ مَرَّةً الطُّهْرُ وَمَرَّةً الْحَيْضُ. وَأَمَّا الْمُجْمَلُ مِنْ جِهَةِ التَّرْكِيبِ فَمَا تَرَكَّبَ عَنْ مِثْلِ هَذِهِ الْأَلْفَاظِ، أَوْ كَانَتِ الضَّمَائِرُ الَّتِي يَرْتَبِطُ بِهَا الْقَوْلُ مُحْتَمِلَةً، كَقَوْلِهِ تَبَارَكَ وَتَعَالَى: {أَوْ يَعْفُوَ الَّذِي بِيَدِهِ عُقْدَةُ النِّكَاحِ}[54]. فَإِنَّ الضَّمِيرَ مُحْتَمِلٌ هَهُنَا أَنْ يَعُودَ عَلَى الْوَلِيِّ أَوِ النَّاكِحِ.

159. Clarification encompasses every valid means of understanding

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In this discipline they apply the term ‘clarification’ to everything through which rulings may be established and understanding produced: an expression’s form, its understood import, and the other things enumerated earlier, according to their degrees in producing assent (التصديق). We shall discuss the authority of each as a revealed proof.

وَاسْمُ الْبَيَانِ يَقَعُ عِنْدَهُمْ فِي هَذِهِ الصِّنَاعَةِ عَلَى كُلِّ مَا يُمْكِنُ أَنْ تَثْبُتَ بِهِ الْأَحْكَامُ، وَيَقَعُ به الإفهام، مِنْ صِيغَةِ لَفْظٍ أَوْ مَفْهُومِهِ، وَمَا سِوَى ذَلِكَ مِمَّا عَدَدْنَاهُ قَبْلُ عَلَى مَرَاتِبِهِ فِي إِفَادَةِ التَّصْدِيقِ. وَسَنَقُولُ فِي كَوْنِ وَاحِدٍ وَاحِدٍ مِنْهَا دَلِيلًا شَرْعِيًّا.

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52. Qurʾān, al-Ikhlāṣ 112:1 ↗.

53. Translation. ‘Every context’ translates في كل موضع within Ibn Rushd’s own account; it does not add a later hierarchy of degrees of textual clarity.

54. Qurʾān, al-Baqarah 2:237 ↗.

55. Translation. ‘Eye of a balance’ preserves the technical example عين الميزان rather than replacing it with an unrelated modern meaning of ʿayn.

160. May clarification be delayed when action is required?

R 160 · BA 187–188

Indeterminate wording is not clarification, by consensus, and establishes no ruling at all. A question arises here: may an instruction be addressed through indeterminate wording pending clarification, or through apparent wording pending specification, at the time when clarification is needed? This is the question they designate as the permissibility of delaying clarification beyond the time of need. Some permit it, while others forbid it. Our account is as follows.

فَأَمَّا الْمُجْمَلُ فَلَيْسَ بِبَيَانٍ بِإِجْمَاعٍ، وَلَا يَثْبُتُ بِهِ حُكْمٌ أَصْلًا. وَيَتَطَرَّقُ إِلَى هَذَا مَسْأَلَةٌ وَهِيَ: هَلْ تَجُوزُ الْمُخَاطَبَةُ عَلَى مَعْنَى الْأَمْرِ بِالْمُجْمَلِ حَتَّى يَرِدَ الْبَيَانُ، أَوْ بِالظَّاهِرِ حَتَّى يَرِدَ التَّخْصِيصُ، وَذَلِكَ فِي وَقْتِ الْحَاجَةِ؟ وَهَذِهِ الْمَسْأَلَةُ هِيَ الَّتِي يَرْسُمُونَهَا بِجَوَازِ تَأْخِيرِ الْبَيَانِ عَنْ وَقْتِ الْحَاجَةِ. وَقَدْ أَجَازَ ذَلِكَ قَوْمٌ، وَمَنَعَهُ آخَرُونَ. وَنَحْنُ نَقُولُ فِي ذَلِكَ:

161. How speakers rely on context and hearers seek clarification

R 161 · BA 189

Inquiry into this question is linguistic, so we should examine it from the standpoint appropriate to language. Surveying Arabic speech shows that Arabs address others with an equivocal term only where evidence indicates the intended meaning from among its other meanings, whether through a readily available contextual indication or something present in the wording itself. In God’s saying, blessed and exalted, ‘Then it became like al-ṣarīm,’[56] preceding descriptions of the thing compared indicate that al-ṣarīm here means night. Similarly, when they mean morning by al-ṣarīm, they say ‘the light of al-ṣarīm,’ or something comparable.

وَهَذِهِ الْمَسْأَلَةُ الْفَحْصُ عَنْهَا لُغَوِيٌّ، فَلِذَلِكَ يَنْبَغِي أَنْ نَجْعَلَ نَظَرَنَا فِيهَا مِنَ الْجِهَةِ الَّتِي ننظر فِي اللُّغَةِ فَنَقُولُ: إِنَّهُ إِذَا اسْتُقْرِئَ كَلَامُ الْعَرَبِ ظَهَرَ مِنْ أَمْرِهِمْ أَنَّهُمْ لَا يُخَاطِبُونَ بِالِاسْمِ الْمُشْتَرَكِ إِلَّا حَيْثُ يَدُلُّ الدَّلِيلُ عَلَى الْمَعْنَى الْمَقْصُودِ مِنْ سَائِرِ مَا يُقَالُ عَلَيْهِ ذَلِكَ الِاسْمُ، إِمَّا لِقَرِينَةٍ حَاضِرَةٍ مُبْتَذَلَةٍ، أَوْ مَوْجُودَةٍ فِي نَفْسِ اللَّفْظِ. فَإِنَّ قَوْلَ اللَّهِ تَبَارَكَ وَتَعَالَى: {فَأَصْبَحَتْ كَالصَّرِيمِ}[56] قَدْ تَقَدَّمَ مِنْ صِفَاتِ الْمُشَبَّهِ مَا يَدُلُّ عَلَى أَنَّ الصَّرِيمَ هَهُنَا اللَّيْلُ. وَكَذَلِكَ إِذَا أَرَادُوا بِالصَّرِيمِ الصُّبْحَ قَالُوا ضَوْءُ الصَّرِيمِ، وَمَا أَشْبَهَ ذَلِكَ.

In general, addressing someone with indeterminate expressions while knowing with certainty that they remain indeterminate has never occurred; if it did, it would be idle speech. A speaker may, however, use an indeterminate term believing it very likely that he will be understood, relying on accompanying indications, while the addressee fails to understand him. The addressee may then seek clarification, and the speaker provide it. If the addressee sees that fulfilment of what he was addressed with is not required at that moment, he postpones his question until the time of need, and clarification is correspondingly delayed.

وَبِالْجُمْلَةِ فَالْمُخَاطَبَةُ بِالْأَلْفَاظِ الْمُجْمَلَةِ وَالْمُخَاطِبُ يَعْلَمُ قَطْعًا أَنَّهَا مُجْمَلَةٌ مِمَّا لَمْ يَقَعْ بَعْدُ، وَلَوْ وَقَعَ لَكَانَ هَذْرًا، اللَّهُمَّ إِلَّا أَنَّ الْمُخَاطِبَ بِالِاسْمِ الْمُجْمَلِ قَدْ يُخَاطِبُ بِهِ وَيَغْلِبُ عَلَى ظَنِّهِ فَهْمُ ذَلِكَ عَنْهُ اتِّكَالًا مِنْهُ عَلَى الْقَرَائِنِ وَلَا يَفْهَمُ ذَلِكَ عَنْهُ الْمُخَاطَبُ، فَهُنَا يَصْلُحُ الِاسْتِفْهَامُ مِنَ الْمُخَاطَبِ وَالْبَيَانُ مِنَ الْمُخَاطِبِ. وَإِنْ رَأَى الْمُخَاطَبُ أَنَّ اقْتِضَاءَ ذَلِكَ خُوطِبَ بِهِ لَمْ يُطْلَبْ مِنْهُ فِي ذَلِكَ الْوَقْتِ، أَخَّرَ السُّؤَالَ إِلَى وَقْتِ الْحَاجَةِ فَيَتَأَخَّرُ الْبَيَانُ.

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56. Qurʾān, al-Qalam 68:20 ↗.

But for a speaker to address someone in indeterminate expressions, knowing with certainty that they are indeterminate and that the addressee understands nothing by them, while relying on explaining the intended meaning when the time of need arrives—this, as we have said, has never occurred among Arabs or anyone else. In general, such indeterminate address occurs only when a riddle or mockery of the addressee's disposition is intended. The same holds of wording indeterminate in its understood import. The Law has introduced no specialised convention altering this.[57, 58]

فَأَمَّا أَنْ يَرِدَ الْخِطَابُ بِالْأَلْفَاظِ الْمُجْمَلَةِ، وَالْمُخَاطِبُ يَعْلَمُ قَطْعًا أَنَّهَا مُجْمَلَةٌ، وَأَنَّ الْمُخَاطَبَ لَا يَفْهَمُ عَنْهُ شَيْئًا تَعْوِيلًا مِنَ الْمُخَاطِبِ عَلَى أَنَّهُ سَيُبَيِّنُ ذَلِكَ الْمَعْنَى الْمَقْصُودَ عِنْدَ وَقْتِ الْحَاجَةِ، فَهُوَ شَيْءٌ كَمَا قُلْنَا لَمْ يَقَعْ مِنْ عَرَبِيٍّ قَطُّ وَلَا مِنْ غَيْرِهِ. وَبِالْجُمْلَةِ فَلَيْسَ تَقَعُ الْمُخَاطَبَةُ بِالْأَلْفَاظِ الْمُجْمَلَةِ اللَّهُمَّ إِلَّا أَنْ يُرَادَ بِهَا اللُّغْزُ وَالِاسْتِهْزَاءُ لِطَبِيعَةِ الْمُخَاطَبِ. وَكَذَلِكَ مَا كَانَ مُجْمَلًا مِنْ جِهَةِ مَفْهُومِهِ. وَأَمَّا الشَّرْعُ فَإِنَّهُ لَمْ يَتَصَرَّفْ فِي ذَلِكَ بِوَضْعٍ عُرْفِيٍّ.

162. A figurative meaning needs an intelligible indication

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Apparent wording in respect of form also has, in my view, the same status as an equivocal term. This concerns what originally applies to something and has its apparent meaning in it, but is later transferred to another thing because of resemblance to the first meaning or some relation to it. When an Arab uses the word 'sky' without qualification, he is invariably understood to mean the starry sky. If he means rain, he indicates this through a contextual clue, as in 'We kept treading the sky until we reached you,' or 'When the sky falls upon a people's land.'

وَأَمَّا الظَّاهِرُ أَيْضًا مِنْ جِهَةِ الصِّيغَةِ فَحُكْمُهُ عِنْدِي حُكْمُ الِاسْمِ الْمُشْتَرَكِ، وَذَلِكَ مِنْهُ فِيمَا قِيلَ مِنْ أَوَّلِ الْأَمْرِ عَلَى شَيْءٍ مَا، وَكَانَ ظَاهِرًا فِيهِ، ثُمَّ اسْتُعِيرَ وَقْتًا مَا لِشَيْءٍ مَا آخَرَ لِشَبَهِهِ بِالْمَعْنَى الْأَوَّلِ أَوْ لِتَعَلُّقِهِ بِهِ بِوَجْهٍ مِنْ أَوْجُهِ التَّعَلُّقِ. فَإِنَّ الْعَرَبِيَّ إِذَا أَطْلَقَ لَفْظَ السَّمَاءِ لَمْ يُفْهَمْ عَنْهُ أَبَدًا إِلَّا السَّمَاءُ الْمُكَوْكَبَةُ، فَإِذَا أَرَادَ بِذَلِكَ الْمَطَرَ دَلَّ عَلَى ذَلِكَ بِقَرِينَةٍ كَقَوْلِهِمْ: «مَا زِلْنَا نَطَأُ السَّمَاءَ حَتَّى أَتَيْنَاكُمْ»، وَكَقَوْلِهِمْ «إِذَا سَقَطَ السَّمَاءُ بِأَرْضِ قَوْمٍ».

Otherwise, whenever such terms are used without qualification while something other than their established meaning is intended, this can occur only as an error; if deliberate, it is misleading. This concerns the time of need. If it is not yet the time of need, what benefit is there in speech that makes a person believe the opposite of what the subsequent clarification will convey? Apparent wording in respect of understood import seems to stand on the same footing.

وَإِلَّا مَتَى خُوطِبَ بِمِثْلِ هَذِهِ الْأَسْمَاءِ وَأُطْلِقَتْ إِطْلَاقًا، وَالْمُرَادُ بِهَا غَيْرُ مَا هِيَ رَاتِبَةٌ عَلَيْهِ، لَمْ يَقَعْ ذَلِكَ إِلَّا غَلَطًا، وَإِنْ قُصِدَ ذَلِكَ كَانَ تَغْلِيطًا. هَذَا إِذَا كَانَ وَقْتُ الْحَاجَةِ. وَأَمَّا إِنْ لَمْ يَكُنْ وَقْتُ الْحَاجَةِ فَأَيُّ فَائِدَةٍ لِمُخَاطَبَةٍ يَعْتَقِدُ الْإِنْسَانُ مِنْهَا خِلَافَ مَا يَأْتِي بِهِ الْبَيَانُ. وَيُشْبِهُ أَنْ تكون كَذَلِكَ الظَّاهِرُ مِنْ جِهَةِ الْمَفْهُومِ.

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57. Translation. Al-ṣarīm is retained because the example depends on a single Arabic expression having opposed temporal meanings.

58. Interpretation. Communicative intention. Bou Akl 2015 intro pp.70–76 reads discussion of delaying clarification as a theory of ordinary speakers who intend their addressees to understand one determinate sense. The resulting disagreement concerns accessibility of a prior intended meaning, not a literal indeterminate divine volition.

163. Partial knowledge can precede a more specific explanation

R 163 · BA 191–194

As for apparent wording involving substitution (الإبدال)—general expressions by which something falling under them is intended—addressing people with these expressions without qualification or an accompanying indication identifying the specific meaning intended, deliberately postponing clarification until the time of need, does occur in language and in the Law. This is so when the addressees understand from contextual indications that there remains a question to ask, and that the speaker did not intend to confine himself to what he has already said.

God’s saying, mighty and majestic, ‘God commands you to slaughter a cow,’[59] was of this kind. They kept asking, and the answers supplied specifications until the particular cow was identified for them[59]. If the addressees do not know from contextual indications that there is a question to ask, this does not occur. It is permissible with general wording, but not with indeterminate wording or the first kind of apparent wording, because someone who knows a thing through a universal description (كلي) knows it in some respect, while awaiting a more specific knowledge of it.

Statements composed of such descriptions are often clearer than names, or indispensable for things that have no names, as with the cow they were commanded to slaughter. On this basis, terms established by specialised usage may be used before the meanings signified by them are understood, relying on the addressees’ knowledge that those terms signify meanings additional to their original assignment. The benefit is to produce resolve to obey the command even while its detailed clarification is deferred until the time of need—as with commanding almsgiving and pilgrimage before they become obligatory.

وَأَمَّا الظَّاهِرُ مِنْ جِهَةِ الْإِبْدَالِ وَذَلِكَ مِنْهُ فِيمَا يَأْتِي مِنَ الْأَلْفَاظِ الْعَامَّةِ الَّتِي الْمُرَادُ بِهَا مَا تَحْتَهَا، فَالْمُخَاطَبَةُ بِهَا دُونَ أَنْ تُقَيَّدَ أَوْ تَقْتَرِنَ بِهَا قَرِينَةٌ تَدُلُّ عَلَى فَهْمِ ذَلِكَ الْمَعْنَى الْمُخَصَّصِ قَصْدًا بِتَأْخِيرِ الْبَيَانِ فِيهَا إِلَى وَقْتِ الْحَاجَةِ، وَاقِعٌ لُغَةً وَشَرْعًا، إِذَا فَهِمَ الْمُخَاطَبُونَ مِنْ قَرَائِنِ الْأَحْوَالِ أَنَّ هَهُنَا أَيْضًا مَوْضِعًا لِلسُّؤَالِ، وَأَنَّ الْمُخَاطِبَ لَمْ يَكُنْ قَصْدُهُ الِاقْتِصَارَ عَلَى مَا خَاطَبَ بِهِ.

وَعَلَى ذَلِكَ وَرَدَ قَوْلُهُ عَزَّ وَجَلَّ: {إِنَّ اللَّهَ يَأْمُرُكُمْ أَنْ تَذْبَحُوا بَقَرَةً}[59] فَإِنَّهُمْ لَمْ يَزَالُوا يَسْأَلُونَ وَالْجَوَابُ يَرِدُ بِالتَّخْصِيصِ إِلَى أَنْ تَعَيَّنَتْ لَهُمُ الْبَقَرَةُ الْمَخْصُوصَةُ[59]. فَأَمَّا إِذَا لَمْ يَعْلَمِ الْمُخَاطَبُونَ مِنْ قَرَائِنِ الْأَحْوَالِ أَنَّ هَهُنَا مَوْضِعًا لِلسُّؤَالِ فَذَلِكَ غَيْرُ وَاقِعٍ. وَإِنَّمَا سَاغَ مِثْلُ هَذَا فِي الْعَامِّ، وَلَمْ يَسُغْ فِي الْمُجْمَلِ، وَلَا فِي الْجِنْسِ الْأَوَّلِ مِنَ الظَّاهِرِ لِأَنَّ مَنْ عَرَفَ الشَّيْءَ بِأَمْرٍ كُلِّيٍّ فَقَدْ عَرَفَهُ بِوَجْهٍ مَا، مَعَ أَنَّهُ يَنْتَظِرُ مَعْرِفَتَهُ بِوَجْهٍ أَخَصَّ.

وَكَثِيرًا مَا تَكُونُ الْأَقَاوِيلُ الْمُؤَلَّفَةُ عَنْ مِثْلِ هَذِهِ أَبْيَنَ مِنَ الْأَسْمَاءِ أَوْ مُضْطَرًّا إِلَيْهَا فِيمَا لَمْ تَكُنْ لَهَا أَسْمَاءٌ، كَمَا اتَّفَقَ فِي الْبَقَرَةِ الْمَأْمُورِ بِذَبْحِهَا. وَعَلَى هَذَا تَجُوزُ الْمُخَاطَبَةُ بِالْأَسْمَاءِ الْعُرْفِيَّةِ قَبْلَ فَهْمِ الْمَعَانِي الَّتِي يَدُلُّ عَلَيْهَا بِتِلْكَ الْأَسْمَاءِ، اتِّكَالًا عَلَى أَنَّ الْمُخَاطَبِينَ يَعْلَمُونَ أَنَّ تِلْكَ الْأَسْمَاءَ تَدُلُّ عَلَى مَعَانٍ زَائِدَةٍ إِلَى مَا كَانَتْ تَدُلُّ عَلَيْهِ فِي الْوَضْعِ الْأَوَّلِ، وَفَائِدَةُ ذَلِكَ الْعَزْمُ عَلَى الْأَمْرِ بِتَأَخُّرِ الْبَيَانِ إِلَى وَقْتِ الْحَاجَةِ، كَالْأَمْرِ بِالزَّكَاةِ وَالْحَجِّ قَبْلَ وُجُوبِهِمَا.

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[59] Qurʾān, al-Baqarah 2:67–71 ↗. The quoted command is 2:67; the subsequent questions and specifications are in 2:68–71.

If you examine the cases cited by those who permit delaying clarification until the time of need without distinguishing among cases, you will find them included in the classes we have enumerated. Likewise, if you examine the evidence cited by those who [do not] permit it, you will find that it concerns wholly indeterminate wording admitting alternatives, and the first kind of apparent wording. In general, both positions, taken without qualification, are partly false, as positions supported by an induction that does not exhaust all particulars are liable to be false. That clarification may not be delayed beyond the time of need, however, is undisputed.

وَإِذَا أَنْتَ تَصَفَّحْتَ الْأَشْيَاءَ الَّتِي يَحْتَجُّ بِهَا مَنْ يُجَوِّزُ تَأْخِيرَ الْبَيَانِ إِلَى وَقْتِ الْحَاجَةِ مِنْ غَيْرِ تَفْصِيلٍ وَجَدْتَهَا دَاخِلَةً تَحْتَ هَذِهِ الَّتِي عَدَدْنَاهَا، وَكَذَلِكَ إِذَا نَظَرْتَ إِلَى مَا يَحْتَجُّ بِهِ مَنْ ⟨لَا⟩ يُجَوِّزُهُ وَجَدْتَ ذَلِكَ إِنَّمَا هُوَ فِي الْمُجْمَلِ الْمَحْضِ الِاحْتِمَالِ، وَفِي الصِّنْفِ الْأَوَّلِ مِنَ الظَّاهِرِ. وَبِالْجُمْلَةِ فَكِلَا الرَّأْيَيْنِ إِذَا أُخِذَا بِإِطْلَاقٍ كَاذِبٌ بِالْجُزْءِ، عَلَى مَا مِنْ شَأْنِهَا أَنْ تَكْذِبَ الْآرَاءُ الْمُصَحَّحَةُ بِالِاسْتِقْرَاءِ الَّذِي لَا تُسْتَوْفَى فِيهِ جَمِيعُ الْجُزْئِيَّاتِ. فَأَمَّا أَنَّ الْبَيَانَ لَا يَتَأَخَّرُ عَنْ وَقْتِ الْحَاجَةِ فَذَلِكَ مَا لَا خِلَافَ فِيهِ.

Having discussed indeterminate and unambiguous wording, let us turn to apparent and interpreted wording.[60]

وَإِذْ قُلْنَا فِي الْمُجْمَلِ وَالنَّصِّ، فَلْنَقُلْ فِي الظَّاهِرِ وَالْمُؤَوَّلِ.

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2. On Apparent and Interpreted Wording in Respect of Verbal Form

٢) الْقَوْلُ فِي الظَّاهِرِ وَالْمُؤَوَّلِ مِنْ جِهَةِ الصِّيغَةِ

164. Transfer through resemblance, relation, and indirect expression

R 164 · BA 196

As we have said, apparent wording in respect of form is of two kinds. The first comprises expressions originally applied to one thing, then transferred to another because of resemblance or some relation between them. Transfer through resemblance is exemplified by calling a bed a ‘nest’; transfer through another relation, by calling vegetation ‘dew,’ because it arises from dew. This class includes indirect expression, such as referring to excrement as ‘the low ground’ and sexual intercourse as ‘touching.’

وَالظَّاهِرُ كَمَا قُلْنَا مِنْ جِهَةِ الصِّيغَةِ قِسْمَانِ: أَحَدُهُمَا الْأَلْفَاظُ الْمَقُولَةُ مِنْ أَوَّلِ الْأَمْرِ عَلَى شَيْءٍ ثُمَّ اسْتُعِيرَتْ لِغَيْرِهِ لِتَشَابُهٍ بَيْنَهُمَا أَوْ لِتَعَلُّقٍ بِوَجْهٍ مِنْ أَوْجُهِ التَّعَلُّقِ. أَمَّا الَّذِي اسْتُعِيرَ لِتَشَابُهٍ بَيْنَهُمَا فَمِثْلُ تَسْمِيَتِهِمُ الْفِرَاشَ عُشًّا، وَأَمَّا الَّذِي اسْتُعِيرَ لِتَعَلُّقِهِ بِوَجْهٍ آخَرَ فَكَتَسْمِيَتِهِمُ النَّبْتَ نَدًى، لِأَنَّهُ عَنِ النَّدَى يَكُونُ. وَمِنْ هَذَا الصِّنْفِ الْكِنَايَةُ، كَتَعْبِيرِهِمْ عَنِ الرَّجِيعِ بِالْغَائِطِ وَعَنِ النِّكَاحِ بِالْمَسِيسِ.

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[60] Translation. Until the time of need (إلى) and beyond it (عن) are distinguished throughout, especially in the closing sentence on p. 107.

165. Substituting a universal for a particular, or the reverse

R 165 · BA 197

The second class of apparent expressions consists of substituted expressions. By substitution here we mean placing the universal (الكلي) in place of the particular (الجزئي), or the particular in place of the universal. Strictly speaking, substitution applies to all transferred expressions, which are then divided into the classes we have enumerated. We have nevertheless chosen to reserve the name 'substitution' (التبديل) for this class, namely the universal and the particular, although in reality everything substituted is transferred, and everything transferred is substituted.[61]

وَأَمَّا الْقِسْمُ الثَّانِي مِنْ أَقْسَامِ الْأَلْفَاظِ الظَّاهِرَةِ فَهِيَ الْمُبْدَلَةُ، وَنَعْنِي هَهُنَا بِالْمُبْدَلَةِ إِبْدَالَ الْكُلِّيِّ مَكَانَ الْجُزْئِيِّ، وَالْجُزْئِيِّ مَكَانَ الْكُلِّيِّ. وَعَلَى التَّحْقِيقِ فَالتَّبْدِيلُ يَلْحَقُ جَمِيعَ الْأَلْفَاظِ الْمُسْتَعَارَةِ، ثُمَّ تَنْقَسِمُ هَذِهِ الْأَقْسَامَ الَّتِي أَحْصَيْنَاهَا، لَكِنْ رَأَيْنَا أَنْ نَخُصَّ هَذَا الصِّنْفَ بِاسْمِ التَّبْدِيلِ، أَعْنِي الْكُلِّيَّ وَالْجُزْئِيَّ، وَإِنْ كَانَ فِي الْحَقِيقَةِ كُلُّ مُبْدَلٍ مُسْتَعَارٌ وَكُلُّ مُسْتَعَارٍ مُبْدَلٌ.

166. Why apparent meanings bind and interpretation needs proportionate proof

R 166 · BA 198–199

When these two classes occur without qualification in the Law, they are understood in their apparent meanings until evidence indicates otherwise—that is, indicates that they should be understood in a transferred meaning, which is what is called interpretation (تأويل). That these expressions have these apparent significations is known necessarily through a survey of language. Their authority as revealed proof is known through the Companions' consensus on adopting apparent meanings and through the fact that the Law has introduced no specialised convention altering this.

وَهَذَانِ الصِّنْفَانِ إِذَا وَرَدَا بِإِطْلَاقٍ فِي الشَّرْعِ حُمِلَا عَلَى ظَاهِرِهِمَا حَتَّى يَدُلَّ الدَّلِيلُ عَلَى غَيْرِ ذَلِكَ، وَهُوَ حَمْلُهُمَا عَلَى الْمَعْنَى الْمُسْتَعَارِ، وَهُوَ الْمُسَمَّى تَأْوِيلًا. وَكَوْنُ هَذِهِ الْأَلْفَاظِ ظَاهِرَةً فِي هَذِهِ الدَّلَالَاتِ يُعْرَفُ ذَلِكَ ضَرُورَةً مِنَ اسْتِقْرَاءِ اللُّغَةِ. وَكَوْنُهَا دَلِيلًا شَرْعِيًّا يُعْرَفُ بِإِجْمَاعِ الصَّحَابَةِ عَلَى الْأَخْذِ بِالظَّوَاهِرِ، وَأَنَّ الشَّرْعَ لَمْ يَتَصَرَّفْ فِي ذَلِكَ بِوَضْعٍ عُرْفِيٍّ.

Moreover, if we did not adopt apparent meanings, many acts of worship would lapse, because unambiguous texts (النصوص) are extremely scarce. The necessity calling for action upon solitary reports is here the necessity calling for action upon the apparent meanings of expressions. These expressions admit degrees of apparentness: the stronger an expression's apparent meaning, the stronger the evidence required to interpret it otherwise; conversely, the weaker its apparent meaning, the slighter the evidence sufficient for interpretation. Let us give three examples, one at the first degree, a second at the intermediate degree, and a third at the last degree, for both classes of apparent wording.

وَأَيْضًا فَلَوْ لَمْ نَصِرْ إِلَى الْأَخْذِ بِالظَّوَاهِرِ لَكَانَ سَيَبْطُلُ كَثِيرٌ مِنَ الْعِبَادَاتِ لِأَنَّ النُّصُوصَ مُعْوِزَةٌ جِدًّا. وَبِالْجُمْلَةِ الضَّرُورَةُ الدَّاعِيَةُ إِلَى الْعَمَلِ بِأَخْبَارِ الْآحَادِ هِيَ هَهُنَا الضَّرُورَةُ الدَّاعِيَةُ إِلَى الْعَمَلِ بِظَوَاهِرِ الْأَلْفَاظِ. وَهَذِهِ الْأَلْفَاظُ الظَّاهِرَةُ لَهَا مَرَاتِبُ فِي الظُّهُورِ. وَكُلَّمَا كَانَ اللَّفْظُ أَظْهَرَ احْتِيجَ فِي تَأْوِيلِهِ إِلَى دَلِيلٍ أَقْوَى، وَبِالْعَكْسِ مَتَى كَانَ اللَّفْظُ قَلِيلَ الظُّهُورِ انْصَرَفَ إِلَى التَّأْوِيلِ بِأَيْسَرِ دَلِيلٍ. وَلْنَضْرِبْ فِي ذَلِكَ ثَلَاثَةَ أَمْثِلَةٍ، وَاحِدًا فِي الرُّتْبَةِ الْأُولَى وَثَانِيًا فِي الرُّتْبَةِ الْوُسْطَى وَثَالِثًا فِي الْمَرْتَبَةِ الْأَخِيرَةِ، وَذَلِكَ فِي صِنْفَيِ الظَّاهِرِ جَمِيعًا.

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61. Translation. Ibdāl/tabdīl is translated "substitution" in accordance with the explicit definition at p. 107. The universal/particular relation is preserved throughout the following discussion.

167. Three degrees: clothing, the balance, and touching women

R 167 · BA 200–202

At the first degree among transferred terms is the interpretation of God’s saying, mighty and majestic, ‘Children of Adam, We have sent down upon you clothing to cover your nakedness,’[62] as meaning rain by ‘clothing.’ Such an interpretation requires evidence, since ‘clothing’ very strongly signifies what covers a person. The second degree is exemplified by interpreting God’s saying, ‘We sent Our messengers with clear proofs and sent down with them the Book and the balance,’[63] as meaning justice by ‘the balance.’

أَمَّا الَّذِي فِي الْمَرْتَبَةِ الْأُولَى مِنَ الْأَسْمَاءِ الْمُسْتَعَارَةِ فَمِثْلُ مَنْ حَمَلَ قَوْلَهُ عَزَّ وَجَلَّ: {يَا بَنِي آدَمَ قَدْ أَنْزَلْنَا عَلَيْكُمْ لِبَاسًا يُوَارِي سَوْءَاتِكُمْ}[62] عَلَى أَنَّ اللِّبَاسَ هَهُنَا الْمَطَرُ، فَإِنَّ مِثْلَ هَذَا التَّأْوِيلِ يَحْتَاجُ إِلَى دَلِيلٍ فَإِنَّ اللِّبَاسَ ظَاهِرٌ جِدًّا فِيمَا يُوَارِي الْإِنْسَانَ. وَالثَّانِي مِثْلُ حَمْلِ قَوْلِهِ تَعَالَى: {لَقَدْ أَرْسَلْنَا رُسُلَنَا بِالْبَيِّنَاتِ وَأَنْزَلْنَا مَعَهُمُ الْكِتَابَ وَالْمِيزَانَ}[63] عَلَى أَنَّ الْمِيزَانَ هَهُنَا الْعَدْلُ.

The third degree is exemplified by God’s saying, ‘Or you have touched women.’[64] Some jurists understand this as touching with the hand; others as sexual intercourse. Although its apparent meaning is touching with the hand, it can quite plausibly mean intercourse, since this accords with Arab usage, and God Most High has referred indirectly to intercourse by massīs[65], which has the meaning of touching.’[66]

وَالثَّالِثُ مِثْلُ قَوْلِهِ تَعَالَى: {أَوْ لَامَسْتُمُ النِّسَاءَ}[64] فَإِنَّ بَعْضَ الْفُقَهَاءِ حَمَلَهُ عَلَى اللَّمْسِ الَّذِي بِالْيَدِ، وَحَمَلَهُ بَعْضُهُمْ عَلَى الْجِمَاعِ. وَهَذَا وَإِنْ كَانَ الظَّاهِرُ فِيهِ اللَّمْسَ بِالْيَدِ فَقَدْ يَحْتَمِلُ أَنْ يُرَادَ بِهِ الْجِمَاعُ احْتِمَالًا قَرِيبًا، إِذْ ذَلِكَ مِنْ عَادَةِ الْعَرَبِ، وَقَدْ كَنَى اللَّهُ تَعَالَى عَنِ الْجِمَاعِ بِالْمَسِيسِ[65]، وَهُوَ فِي مَعْنَى اللَّمْسِ.

168. Established usage, ambiguity, and certain interpretation

R 168 · BA 203

In general, degrees of apparentness in expressions depend on frequency or rarity of use. If use in the transferred meaning becomes as frequent as use in the original meaning, the expression stands equivocally between the first and second meanings and is indeterminate. The less frequently it is used in the second meaning, the more apparent it is in the first.

وَبِالْجُمْلَةِ فَمَرَاتِبُ الظُّهُورِ فِي الْأَلْفَاظِ إِنَّمَا هُوَ بِحَسَبِ كَثْرَةِ الِاسْتِعْمَالِ وَقِلَّتِهِ، فَإِنْ بَلَغَتْ كَثْرَةُ الِاسْتِعْمَالِ فِي الْمَعْنَى الَّذِي اسْتُعِيرَ لَهُ أَنْ يُعَادِلَ اسْتِعْمَالَهُ فِي الْمَعْنَى الْأَوَّلِ بَقِيَ اللَّفْظُ بَيْنَ الْأَوَّلِ وَالثَّانِي مُشْتَرَكًا وَمُجْمَلًا، وَمَهْمَا نَقَصَتْ كَثْرَةُ الِاسْتِعْمَالِ فِي الثَّانِي كَانَ أَظْهَرَ فِي الْأَوَّلِ.

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[62] Qurʾān, al-Aʿrāf 7:26 ↗.
[63] Qurʾān, al-Ḥadīd 57:25 ↗.
[64] Qurʾān, al-Nisāʾ 4:43 ↗; al-Māʾidah 5:6 ↗.
[65] Qurʾān, al-Baqarah 2:236–237 ↗. These verses use forms of “touch” for sexual intercourse.
[66] Translation. The three degrees concern the strength of an expression’s apparent meaning and the evidence needed to depart from it.

Interpretation of apparent wording may be self-evident or may require an explanation; it may amount to predominant probability or to certainty. A self-evident and certain example is their saying, ‘We kept treading the sky until we reached you.’ An example made clear by decisive proof is God’s saying, ‘The All-Merciful is established over the Throne’[67]: decisive proof has established that ‘being established’ here is not occupying a place.’[68]

وَرُبَّمَا كَانَ التَّأْوِيلُ فِي الظَّاهِرِ بَيِّنًا بِنَفْسِهِ، وَرُبَّمَا احْتِيجَ إِلَى تَبْيِينٍ، وَرُبَّمَا كَانَ ذَلِكَ ظَنًّا أَكْثَرِيًّا، وَرُبَّمَا كَانَ قَطْعًا. مِثَالُ مَا كَانَ مِنْ ذَلِكَ بَيِّنًا بِنَفْسِهِ وَكَانَ قَطْعًا قَوْلُهُمْ: «مَا زِلْنَا نَطَأُ السَّمَاءَ حَتَّى أَتَيْنَاكُمْ»، وَمِثَالُ مَا كَانَ مِنْ ذَلِكَ بَيِّنًا بِدَلِيلٍ قَطْعِيٍّ قَوْلُهُ تَعَالَى: {الرَّحْمَانُ عَلَى الْعَرْشِ اسْتَوَى}[67] فَإِنَّهُ قَدْ عُلِمَ بِدَلِيلٍ قَطْعِيٍّ أَنَّ الِاسْتِوَاءَ هَهُنَا لَيْسَ هُوَ التَّمَكُّنَ.

169. General meaning is a real feature of language

R 169 · BA 204

The second class of apparent wording, which we called substituted wording, also has two kinds: universal wording (الكلي) and particular wording (الجزئي). Let us first examine the universal, which is the general (العام). General wording has many forms. Some dispute that expressions signify generality and that, when unqualified, they apparently encompass everything falling under them. Their objection has no basis: the matter is evident, and indeed shared by all tongues and languages. The Law has introduced no specialised convention changing it. The argument establishing its authority as revealed proof is the argument establishing the authority of apparent wording as such, which has already been given.

وَأَمَّا الصِّنْفُ الثَّانِي مِنَ اللَّفْظِ الظَّاهِرِ، وَهُوَ الَّذِي سَمَّيْنَاهُ الْمُبْدَلَ، فَهُوَ أَيْضًا صِنْفَانِ: أَحَدُهُمَا اللَّفْظُ الْكُلِّيُّ، وَالثَّانِي اللَّفْظُ الْجُزْئِيُّ. وَلْنَجْعَلْ نَظَرَنَا مِنْ ذَلِكَ أَوَّلًا فِي الْكُلِّيِّ وَهُوَ الْعَامُّ. وَالْعَامُّ أَصْنَافُهُ كَثِيرَةٌ، وَقَدْ نَازَعَ قَوْمٌ فِي وُجُودِ مَعْنَى الْعُمُومِ فِي الْأَلْفَاظِ وَكَوْنِهِ إِذَا وَرَدَ مُطْلَقًا ⟨كَانَ⟩ ظَاهِرًا فِي حَصْرِ جَمِيعِ مَا يدخل تَحْتَهُ. وَلَا مَعْنَى لِمُنَازَعَتِهِمْ، فَإِنَّ الْأَمْرَ ظَاهِرٌ، بَلْ هُوَ شَيْءٌ مُشْتَرَكٌ لِجَمِيعِ الْأَلْسِنَةِ وَاللُّغَاتِ. وَالشَّرْعُ لَمْ يَتَصَرَّفْ فِي تَغْيِيرِهِ بِوَضْعٍ عُرْفِيٍّ. وَالْحُجَّةُ عَلَى كَوْنِهِ دَلِيلًا شَرْعِيًّا هِيَ الْحُجَّةُ عَلَى كَوْنِ الظَّاهِرِ بِمَا هُوَ ظَاهِرٌ دَلِيلًا شَرْعِيًّا. وَقَدْ تَقَدَّمَ ذَلِكَ.

170. Forms of generality and their unequal apparent force

R 170 · BA 205–206

These expressions have many forms. They include plural nouns, with or without the definite article; names of genera, species, and classes when they have the definite article and do not end in the feminine ending, such as ‘the fruit,’ ‘the date palm,’ and ‘the woman’; man and mā (‘whoever’ and ‘whatever’) when used ⟨in conditional and consequential clauses⟩, together with ayna and matā (‘wherever’ and ‘whenever’); negative particles; and emphatic expressions such as ‘all of them’ and ‘every one.’

وَأَصْنَافُ هَذِهِ الْأَلْفَاظِ كَثِيرَةٌ: فَمِنْهَا أَسْمَاءُ الْجُمُوعِ، دَخَلَتْهَا الْأَلِفُ وَاللَّامُ أَوْ لَمْ تَدْخُلْهَا. وَمِنْهَا أَسْمَاءُ الْأَجْنَاسِ وَالْأَنْوَاعِ وَالْأَصْنَافِ إِذَا كَانَ فِيهَا الْأَلِفُ وَاللَّامُ وَلَمْ تَكُنْ فِي آخِرِهَا هَاءُ التَّأْنِيثِ مِثْلَ الثَّمَرَةِ وَالنَّخْلَةِ وَالْمَرْأَةِ. وَمِنْهَا مَنْ وَمَا، إِذَا أُورِدَتْ ⟨لِلشَّرْطِ وَالْجَزَاءِ⟩، وَأَيْنَ وَمَتَى. وَمِنْهَا حُرُوفُ النَّفْيِ. وَمِنْهَا الْأَلْفَاظُ الْمُؤَكِّدَةُ كَقَوْلِهِمْ كُلُّهُمْ وَأَجْمَعُونَ.

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67. Qurʾān, Ṭā Hā 20:5 ↗.

68. Translation. Ibn Rushd states here what الاستواء is not—التمكن, occupying or being established in a place—without supplying a complete affirmative interpretation of the verse.

When these forms are used without qualification, they are generally understood in their full generality until evidence establishes a specification. They, too, admit degrees of apparentness, as did the first class. Their interpretive proofs have corresponding degrees, because evidence for interpretation must always signify more strongly than the expression's form. Examples at the respective degrees follow.

وَهَذِهِ الْأَصْنَافُ إِذَا أُطْلِقَتْ إِطْلَاقًا حُمِلَتْ عَلَى الْأَكْثَرِ عَلَى عُمُومِهَا إِلَى أَنْ يَدُلَّ الدَّلِيلُ عَلَى تَخْصِيصِهَا، وَلَهَا أَيْضًا مَرَاتِبُ فِي الظُّهُورِ، كَمَا كَانَ الصِّنْفُ الْأَوَّلُ. وَلِأَدِلَّتِهَا أَيْضًا مَرَاتِبُ بِحَسَبِهَا لِأَنَّهُ أَبَدًا يُشْتَرَطُ فِي الدَّلِيلِ الْمُؤَوِّلِ أَنْ يَكُونَ أَقْوَى دَلَالَةً مِنْ صِيغَةِ اللَّفْظِ، مِثَالُ مَا مِنْهَا فِي:

171. A remote restriction of the guardian-permission report

R 171 · BA 207

At the first degree of apparentness is his saying, God bless him and grant him peace, 'Any woman who marries without her guardian's permission, her marriage is invalid.' Some apply this to a slave woman. When that proved untenable because of his saying, God bless him and grant him peace, 'She is entitled to the dower'—whereas a slave woman's dower belongs to her master—they applied it to a slave woman under a contract for emancipation. This is a remote interpretation.

الْمَرْتَبَةِ الْأُولَى مِنَ الظُّهُورِ قَوْلُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ «أَيُّمَا امْرَأَةٍ نَكَحَتْ بِغَيْرِ إِذْنِ وَلِيِّهَا فَنِكَاحُهَا بَاطِلٌ» حَمَلَهُ قَوْمٌ عَلَى الْأَمَةِ، فَلَمَّا لَمْ يَسُغْ لِقَوْلِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ «فَلَهَا الْمَهْرُ وَإِنَّمَا مَهْرُ الْأَمَةِ لِسَيِّدِهَا» حَمَلُوهُ عَلَى الْمُكَاتَبَةِ، وَهَذَا يَبْعُدُ مِنْ جِهَةِ التَّأْوِيلِ.

172. Restricting the requirement of a nightly fasting intention

R 172 · BA 208

The second degree is his saying, peace be upon him, 'There is no fasting for someone who has not resolved upon the fast during the night.' Some apply this to a fast making up a missed obligation and to a vowed fast. This interpretation is closer than the first.

الْمَرْتَبَةِ الثَّانِيَةِ قَوْلُهُ عَلَيْهِ السَّلَامُ: «لَا صِيَامَ لِمَنْ لَمْ يُبَيِّتِ الصِّيَامَ» حَمَلَهُ قَوْمٌ عَلَى الْقَضَاءِ وَالنَّذْرِ وَهَذَا التَّأْوِيلُ أَقْرَبُ مِنَ الْأَوَّلِ.

173. Does the tithe report include vegetables?

R 173 · BA 209

The third degree is his saying, God bless him and grant him peace, 'On what the sky waters, a tenth; on what is irrigated by drawing water, half a tenth.' Some apply this to everything, even taking almsgiving from vegetables. Others say that it is confined to the various grains from which almsgiving is taken.

الْمَرْتَبَةِ الثَّالِثَةِ قَوْلُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: «فِيمَا سَقَتِ السَّمَاءُ الْعُشْرُ وَفِيمَا سُقِيَ بِالنَّضْحِ نِصْفُ الْعُشْرِ» حَمَلَهُ قَوْمٌ عَلَى كُلِّ شَيْءٍ حَتَّى أَخَذُوا الزَّكَاةَ مِنَ الْخُضَرِ، وَقَالَ آخَرُونَ هُوَ مَقْصُورٌ عَلَى سَائِرِ الْحُبُوبِ الَّتِي تُؤْخَذُ مِنْهَا الزَّكَاةُ.

174. General wording with a known or unknown specific intention

R 174 · BA 210

These are the kinds of general expressions and their degrees of apparentness. Sometimes general wording (العام) occurs with a specific meaning (الخاص) intended, and this is clear from the outset—as when someone beating his child says, ‘There is no good in children.’ This understanding may be predominantly probable or certain, according to the particular indication. It may also become clear through proof, which itself may be decisive or predominantly probable. Sometimes we know that general wording is intended specifically without knowing which specific meaning is intended; its force may then be that of indeterminate wording (المجمل).

فَهَذِهِ أَصْنَافُ أَلْفَاظِ الْعُمُومِ وَمَرَاتِبُهَا فِي الظُّهُورِ. وَرُبَّمَا وَرَدَ اللَّفْظُ الْعَامُّ وَالْمُرَادُ بِهِ الْخَاصُّ، وَيَكُونُ ذَلِكَ فِيهِ بَيِّنًا مِنْ أَوَّلِ الْأَمْرِ، كَقَوْلِ الْقَائِلِ عِنْدَمَا يَضْرِبُ وَلَدَهُ لَيْسَ فِي الْأَوْلَادِ خَيْرٌ. وَرُبَّمَا كَانَ ذَلِكَ ظَنًّا أَكْثَرِيًّا، وَرُبَّمَا كَانَ قَطْعِيًّا، وَذَلِكَ بِحَسَبِ قَرِينَةٍ قَرِينَةٍ. وَرُبَّمَا تَبَيَّنَ ذَلِكَ بِدَلِيلٍ. وَالدَّلِيلُ أَيْضًا إِمَّا قَطْعِيٌّ وَإِمَّا أَكْثَرِيٌّ، وَرُبَّمَا عَلِمْنَا أَنَّهُ عَامٌّ أُرِيدَ بِهِ الْخَاصُّ، وَلَمْ نَعْلَمْ أَيُّ خَاصٍّ هُوَ، وَرُبَّمَا كَانَتْ قُوَّتُهُ قُوَّةَ الْمُجْمَلِ.

175. Disputed boundaries of generality

R 175 · BA 211

It remains to discuss kinds of expressions thought to have general scope when they do not, or thought not to have general scope when they do. We shall set out several questions on this.

وَقَدْ بَقِيَ عَلَيْنَا أَنْ نَقُولَ فِيمَا يُظَنُّ بِهِ مِنْ أَصْنَافِ الْأَلْفَاظِ أَنَّ لَهَا عُمُومًا، وَلَيْسَ لَهَا عُمُومٌ، أَوْ فِيمَا يُظَنُّ مِنْهَا أَنْ لَيْسَ لَهَا عُمُومٌ وَلَهَا عُمُومٌ، وَنَرْسُمَ فِي ذَلِكَ مَسَائِلَ:

176. A particular occasion does not confine a general answer

R 176 · BA 212

Question. Generality in wording occurs when the Lawgiver uses it in an independent statement, or in reply to a question arising from a specific circumstance but frames the answer generally. For example, when asked about the well of Buḍāʿa, he said, God bless him and grant him peace, ‘God created water as purifying; nothing renders it impure.’ This statement is understood to concern all water, not only that well. Some regard such a statement as specific and confine it to the thing asked about, even when it is framed generally. Their position has no basis, for the matter is clear.

مَسْأَلَةٌ: الْعُمُومُ فِي الْأَلْفَاظِ إِنَّمَا يَتَصَوَّرُ إِذَا كَانَ مِنْ لَفْظِ الشَّارِعِ عَلَى سَبِيلِ الِابْتِدَاءِ، أَوْ وَرَدَ عِنْدَ السُّؤَالِ عَلَى سَبَبٍ خَاصٍّ فَأُخْرِجَ مَخْرَجَ الْعَامِّ. مِثْلَ قَوْلِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، وَقَدْ سُئِلَ عَنْ بِئْرِ بُضَاعَةَ فَقَالَ: «خَلَقَ اللَّهُ الْمَاءَ طَهُورًا لَا يُنَجِّسُهُ شَيْءٌ» فَإِنَّ هَذَا الْقَوْلَ لَيْسَ يُحْمَلُ عَلَى بِئْرِ بُضَاعَةَ وَحْدَهُ، بَلْ عَلَى جَمِيعِ الْمِيَاهِ. وَقَدْ رَأَى قَوْمٌ أَنَّ مِثْلَ هَذَا الْقَوْلِ خَاصٌّ وَيُقْتَصَرُ بِهِ عَنِ الشَّيْءِ الْمَسْؤُولِ عَنْهُ، وَإِنْ أُخْرِجَ مَخْرَجَ الْعُمُومِ. وَلَا مَعْنَى لِقَوْلِهِمْ، فَإِنَّ الْأَمْرَ فِي ذَلِكَ بَيِّنٌ.

177. Equivocation is not the generality of a universal

R 177 · BA 213

Question. An equivocal term does not have general scope encompassing everything to which it applies. Some hold otherwise, as do those who understand ‘Or you have touched women’[69] to cover both intercourse and touching with the bodily member, the hand. A survey of Arabic speech shows the contrary: Arabs do not use the term ʿayn, for example, intending their hearer to understand all the meanings to which it applies. This is clearest in terms used for opposites. Someone might claim that such an inclusive meaning is understood through a specialised legal convention, but anyone making that claim must establish it.’[70]

مَسْأَلَةٌ: لَيْسَ لِلاسْمِ الْمُشْتَرَكِ عُمُومٌ لِجَمِيعِ مَا يُقَالُ عَلَيْهِ، وَإِنْ كَانَ قَدْ يَرَى ذَلِكَ بَعْضُهُمْ مِثْلَ مَنْ حَمَلَ قَوْلَهُ تَعَالَى: {أَوْ لَامَسْتُمُ النِّسَاءَ}[69] عَلَى الْأَمْرَيْنِ جَمِيعًا، أَعْنِي النِّكَاحَ وَاللَّمْسَ بِالْجَارِحَةِ الَّتِي هِيَ الْيَدُ. وَهَذَا يَتَبَيَّنُ خِلَافُهُ بِاسْتِقْرَاءِ كَلَامِ الْعَرَبِ، فَإِنَّهُمْ لَيْسَ يُطْلِقُونَ فِي مُخَاطَبَتِهِمُ اسْمَ الْعَيْنِ مَثَلًا وَيُرِيدُونَ بِهِ أَنْ يَفْهَمَ السَّامِعُ عَنْهُمْ جَمِيعَ الْمَعَانِي الَّتِي يُقَالُ عَلَيْهَا اسْمُ الْعَيْنِ. وَأَبْيَنُ مَا يَظْهَرُ ذَلِكَ فِي الْأَسْمَاءِ الْمَقُولَةِ عَلَى الْمُتَضَادَّاتِ، اللَّهُمَّ إِلَّا أَنْ يَدَّعِيَ مُدَّعٍ أَنَّ ذَلِكَ مَفْهُومٌ بِالْعُرْفِ الشَّرْعِيِّ، لَكِنْ إِنِ ادَّعَى ذَلِكَ فَعَلَيْهِ إِثْبَاتُهُ.

178. Who is included by “people” and by a masculine plural?

R 178 · BA 214

Question. The expressions ‘people’ and ‘human being’ include the slave, the unbeliever, the male, and the female. ‘The believers’ includes the slave but does not include women, since its form is specifically a masculine plural.

مَسْأَلَةٌ: يَدْخُلُ تَحْتَ لَفْظِ النَّاسِ وَالْإِنْسَانِ الْعَبْدُ وَالْكَافِرُ وَالذَّكَرُ وَالْأُنْثَى. وَأَمَّا الْمُؤْمِنُونَ فَيَدْخُلُ تَحْتَهُ الْعَبْدُ وَلَا يَدْخُلُ تَحْتَهُ النِّسَاءُ، إِذْ هِيَ صِيغَةٌ خَاصَّةٌ بالجمع الْمُذَكَّرِ.

179. Can a plural be restricted below its minimum?

R 179 · BA 215

Question. General wording may be understood without exhaustive inclusion. Abū Ḥāmid claims, however, that it cannot be reduced to less than the minimum denoted by a plural, on the view that the least number a plural denotes is two. This requires examination.

مَسْأَلَةٌ: صَرْفُ الْعُمُومِ إِلَى غَيْرِ الِاسْتِغْرَاقِ جَائِزٌ. وَأَمَّا رَدُّهُ إِلَى مَا دُونَ أَقَلِّ الْجَمْعِ عِنْدَ مَنْ يَرَى أَنَّ أَقَلَّ مَا يُدَلُّ بِلَفْظِ الْجَمْعِ عَلَيْهِ اثْنَانِ، فَزَعَمَ أَبُو حَامِدٍ أَنَّ ذَلِكَ مُمْتَنِعٌ، وَفِيهِ نَظَرٌ.

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[69] Qurʾān, al-Nisāʾ 4:43 ↗; al-Māʾidah 5:6 ↗.

[70] Translation. The issue is whether equivocal meanings are jointly intended, distinguished from the extension of a universal term to the particulars under it.

180. Three is the normal plural; two or one requires a clue

R 180 · BA 216

Question. A plural expression, when unqualified, denotes at least three or more, and is more apparent in that sense than in the sense of two; it is understood as two only through an accompanying indication. It is remarkable that anyone should understand unqualified plural expressions as denoting two, when two has its own distinctive form. That a plural may be used figuratively to mean two is not denied, but this is substitution and extended usage, like what occurs with other expressions conventionally assigned to something. Examining the cases cited by those who permit this shows them to be of that kind.

مَسْأَلَةٌ: لَفْظُ الْجَمِيعِ إِذَا وَرَدَ مُطْلَقًا فَأَقَلُّ مَا يَتَنَاوَلُ الثَّلَاثَةُ فَمَا فَوْقَهَا، وَهُوَ فِيهَا أَظْهَرُ مِنْهُ فِي الِاثْنَيْنِ، وَإِنَّمَا يُحْمَلُ عَلَى الِاثْنَيْنِ بِقَرِينَةٍ. وَالْعَجَبُ مِمَّنْ يَحْمِلُ أَلْفَاظَ الْجُمُوعِ إِذَا وَرَدَتْ مُطْلَقَةً عَلَى الِاثْنَيْنِ، مَعَ أَنَّ لِلِاثْنَيْنِ صِيغَةً خَاصَّةً. فَأَمَّا أَنَّ لَفْظَ الْجَمْعِ قَدْ يُتَجَوَّزُ فِيهِ وَيُرَادُ بِهِ الِاثْنَانِ، فَذَلِكَ غَيْرُ مَدْفُوعٍ. لَكِنْ عَلَى جِهَةِ الْإِبْدَالِ وَالتَّجَوُّزِ عَلَى نَحْوِ مَا يُفْعَلُ فِي سَائِرِ الْأَلْفَاظِ الرَّاتِبَةِ عَلَى شَيْءٍ مَا. وَإِذَا أَنْتَ تَصَفَّحْتَ الْمَوَاضِعَ الَّتِي يَحْتَجُّ بِهَا مَنْ يُجَوِّزُ ذَلِكَ وَجَدْتَهَا مِنْ هَذَا الْقَبِيلِ.

Investigators in this field, however, customarily fail, when discussing verbal signification, to distinguish an expression's established signification from what it signifies by extended use and transfer. Thus we see them saying that a plural applies to two just as it applies to three or more. This is what has misled those investigating this question in this discipline when they appeal to Sībawayh and other grammarians, and to examples occurring in Arabic speech.

لَكِنْ قَدْ جَرَتْ عَادَةُ النُّظَّارِ فِي هَذَا الشَّأْنِ عِنْدَمَا يَتَكَلَّمُونَ فِي دَلَالَاتِ الْأَلْفَاظِ أَلَّا يُفَرِّقُوا بَيْنَ مَا تَدُلُّ عَلَيْهِ الْأَلْفَاظُ دَلَالَةً رَاتِبَةً، وَبَيْنَ مَا تَدُلُّ عَلَيْهِ تَجَوُّزًا وَاسْتِعَارَةً. فَلِذَلِكَ نَرَاهُمْ يَقُولُونَ إِنَّ لَفْظَ الْجَمْعِ يَنْطَلِقُ عَلَى الِاثْنَيْنِ كَمَا يَنْطَلِقُ عَلَى الثَّلَاثَةِ فَمَا فَوْقَهَا. وَهَذَا هُوَ الَّذِي غَلَّطَ النَّاظِرِينَ فِي هَذِهِ الصِّنَاعَةِ فِي هَذِهِ الْمَسْأَلَةِ عِنْدَمَا يَحْتَجُّونَ فِي ذَلِكَ بِقَوْلِ سِيبَوَيْهِ وَغَيْرِهِ مِنَ النَّحْوِيِّينَ، وَبِمَا وَرَدَ مِنْ ذَلِكَ فِي كَلَامِ الْعَرَبِ.

Nor is this alone found in their speech—I mean using a plural form to signify two. They may also use it to signify one, but do so by way of magnification, as when they say, 'He is all people,' or 'He is the young man, the whole of a young man.'

وَلَيْسَ هَذَا مَوْجُودًا وَحْدَهُ فِي كَلَامِهِمْ، أَعْنِي أَنْ يَدُلَّ عَلَى الِاثْنَيْنِ بِصِيغَةِ الْجَمْعِ. لَكِنْ قَدْ يَدُلُّ بِذَلِكَ عَلَى الْوَاحِدِ وَإِنَّمَا يُخْرِجُونَ ذَلِكَ مَخْرَجَ التَّعْظِيمِ كَمَا يَقُولُونَ هُوَ كُلُّ النَّاسِ، وَهُوَ الْفَتَى كُلُّ الْفَتَى.

181. Specification or contradiction? The importance of chronology

R 181 · BA 217–218

As explained earlier, these general expressions may occur with a specific meaning intended. Sometimes this is clear from the outset; sometimes it is not and requires evidence: wording, an action, an approval, or one of the other proofs used in this discipline. Accordingly, when one seeks to specify general wording through any of these, one must consider which has the stronger rank in producing predominant probability.

وَلِأَنَّ هَذِهِ الْأَلْفَاظَ الْعَامَّةَ كَمَا تَقَدَّمَ قَدْ تَرِدُ وَالْمُرَادُ بِهَا التَّخْصِيصُ، فَرُبَّمَا كَانَ ذَلِكَ فِيهَا بَيِّنًا مِنْ أَوَّلِ الْأَمْرِ، وَرُبَّمَا لَمْ يَكُنْ بَيِّنًا، بَلْ يُحْتَاجُ فِي ذَلِكَ إِلَى دَلِيلٍ، وَذَلِكَ إِمَّا لَفْظٌ وَإِمَّا فِعْلٌ وَإِمَّا إِقْرَارٌ أَوْ وَاحِدٌ مِنَ الْأَدِلَّةِ الْمُسْتَعْمَلَةِ فِي هَذِهِ الصِّنَاعَةِ فَيَنْبَغِي إِذَا أُرِيدَ الْمَصِيرُ إِلَى تَخْصِيصِ الْعَامِّ بِوَاحِدٍ وَاحِدٍ مِنْهَا أَنْ نَنْظُرَ إِلَى أَيِّهَا أَقْوَى رُتْبَةً فِي غَلَبَةِ الظَّنِّ إِلَيْهِ.

Opinions differ concerning the specification of general wording through these other revealed proofs. Some hold that when a general statement concerning something is received together with a specification—whether through verbal form, understood import, action, or approval—the two have the status of conflicting evidence. The general statement may, for example, have come later than the specifying evidence, whether wording, action, or approval, and thus abrogate it, unless it is known that the specification followed the general statement as clarification delayed until the time of need. This is the position of Dāwūd and his followers.[71]

وَقَدِ اخْتَلَفَ النَّاسُ فِي تَخْصِيصِ الْعَامِّ بغيره مِنْ هَذِهِ الْأَدِلَّةِ الشَّرْعِيَّةِ، فَذَهَبَ بَعْضُهُمْ أَنَّ الْعَامَّ إِذَا وَرَدَ فِي شَيْءٍ ثُمَّ وَرَدَ تَخْصِيصُهُ، وَذَلِكَ إِمَّا بِصِيغَةِ لَفْظٍ أَوْ مَفْهُومٍ أَوْ بِفِعْلٍ أَوْ إِقْرَارٍ، أَنَّ ذَلِكَ يَجْرِي مَجْرَى التَّعَارُضِ، لِأَنَّهُ جَائِزٌ مَثَلًا أَنْ يَرِدَ الْعَامُّ مُتَأَخِّرًا عَنِ الْمُخَصِّصِ، سَوَاءٌ كَانَ لَفْظًا أَوْ فِعْلًا أَوْ إِقْرَارًا، فَيَكُونَ وُرُودُ الْعَامِّ نَسْخًا لَهُ، إِلَّا أَنْ يُعْلَمَ أَنَّ التَّخْصِيصَ وَرَدَ بَعْدَ التَّعْمِيمِ عَلَى جِهَةِ تَأْخِيرِ الْبَيَانِ إِلَى وَقْتِ الْحَاجَةِ. وَإِلَى هَذَا ذَهَبَ دَاوُدُ وَأَصْحَابُهُ.

182. Specific evidence can govern without a known chronological order

R 182 · BA 219

Those who permit specifying general wording through such proofs without knowing their chronological order appeal to the Companions' practice of doing so and of making the specific govern the general. On this view, the general and specific have one of two relations: either the general expression comes after the specific, which then serves as an indication specifying the general, since the wording admits this; or the specific comes after the general and is acted upon.

وَقَدِ احْتَجَّ مَنْ أَجَازَ تَخْصِيصَ الْعَامِّ بِمِثْلِ هَذِهِ الْأَدِلَّةِ دُونَ أَنْ يُعْلَمَ الْمُتَقَدِّمُ مِنْهَا وَالْمُتَأَخِّرُ بِمَصِيرِ الصَّحَابَةِ إِلَى ذَلِكَ، وَحُكْمِهِمْ بِالْخَاصِّ عَلَى الْعَامِّ، فَيَكُونُ عَلَى رَأْيِ هَؤُلَاءِ حَالَةُ الْعَامِّ مَعَ الْخَاصِّ إِحْدَى حَالَتَيْنِ: إِمَّا أَنْ يَرِدَ اللَّفْظُ الْعَامُّ وَقَدْ تَقَدَّمَهُ الْخَاصُّ، فَيَكُونَ ذَلِكَ قَرِينَةً يُخَصَّصُ بِهَا الْعَامُّ لِاحْتِمَالِ اللَّفْظِ لِذَلِكَ. وَإِمَّا أَنْ يَرِدَ الْخَاصُّ بَعْدَ الْعَامِّ فَيَكُونَ مَعْمُولًا عَلَيْهِ.

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[71] **71.** Translation. The transition لِغَيْرِهِ مِنْ هَذِهِ الْأَدِلَّةِ الشَّرْعِيَّةِ، فَذَهَبَ بَعْضُهُمْ establishes that the following argument about conflicting evidence is a position being reported, not necessarily an assertion in Ibn Rushd's own voice.

In general, as we have said, whoever permits specification through such proofs should follow whichever ranks highest in predominant probability. This predominance may arise from the wording or from its transmission. Thus someone may permit specifying general wording through an unambiguous text, yet refuse this in the Qurʾān because the Qurʾān is established by mass transmission—when the specifying text is transmitted through solitary routes.

وَبِالْجُمْلَةِ كَمَا قُلْنَا فَيَنْبَغِي لِمَنْ يُجَوِّزُ التَّخْصِيصَ بِمِثْلِ هَذِهِ الْأَدِلَّةِ أَنْ يَصِيرَ إِلَى أَقْوَاهَا رُتْبَةً فِي غَلَبَةِ الظَّنِّ. وَهَذَا النَّوْعُ مِنْ غَلَبَةِ الظَّنِّ قَدْ يَقَعُ مِنْ جِهَةِ الْأَلْفَاظِ، وَمِنْ جِهَةِ النَّقْلِ، كَمَنْ يُجِيزُ تَخْصِيصَ الْعَامِّ بِالنَّصِّ وَيَمْنَعُهُ فِي الْقُرْآنِ لِكَوْنِ الْقُرْآنِ مِمَّا ثَبَتَ تَوَاتُرًا، هَذَا إِذَا كَانَ الْخَاصُّ وَارِدًا بِطُرُقِ الْآحَادِ.

183. Why an exception must accompany its statement

R 183 · BA 220

Exception is a kind of specification of general wording, but differs from specification in that it does not occur separately from the expression to which it belongs. There is therefore no basis for permitting an exception to be postponed. We should discuss this. The forms of exception are well known; the kinds that require examination here are the following.

وَلِأَنَّ الِاسْتِثْنَاءَ تَخْصِيصٌ مَا لِلْعَامِّ، إِلَّا أَنَّ الْفَرْقَ بَيْنَهُ وَبَيْنَ التَّخْصِيصِ أَنَّهُ لَا يَرِدُ مُنْفَرِدًا عَنِ الْمُسْتَثْنَى. وَلِذَلِكَ لَا مَعْنَى لِقَوْلِ مَنْ أَجَازَ تَأْخِيرَ الِاسْتِثْنَاءِ، فَقَدْ يَنْبَغِي أَنْ نَقُولَ فِي ذَلِكَ: وَصِيَغُ الِاسْتِثْنَاءِ مَعْرُوفَةٌ. فَأَمَّا أَصْنَافُهُ الَّتِي يَجِبُ أَنْ نَنْظُرَ فِيهَا هَهُنَا فَهِيَ هَذِهِ:

184. Connected and disconnected exceptions; one or several sentences

R 184 · BA 221

An exception may be connected, where the thing excepted belongs to the same genus as that from which it is excepted; or disconnected, where it belongs to a different genus. Language specialists call the latter a discontinuous exception. An exception may also follow a single complete sentence, or several sentences. We shall examine both these divisions.

الِاسْتِثْنَاءُ مِنْهُ مُتَّصِلٌ، وَهُوَ الَّذِي الْمُسْتَثْنَى فِيهِ مِنْ جِنْسِ الْمُسْتَثْنَى مِنْهُ، وَمِنْهُ مَقْطُوعٌ، وَهُوَ الَّذِي الْمُسْتَثْنَى فِيهِ مِنْ غَيْرِ جِنْسِ الْمُسْتَثْنَى مِنْهُ. وَهَذَا يُسَمِّيهِ أَهْلُ اللِّسَانِ بِالِاسْتِثْنَاءِ الْمُتَقَطِّعِ. وَأَيْضًا مِنَ الِاسْتِثْنَاءِ مَا يَرِدُ بَعْدَ جُمْلَةٍ وَاحِدَةٍ مُفِيدَةٍ، وَمِنْهُ مَا يَرِدُ بَعْدَ جُمَلٍ. وَنَحْنُ نَنْظُرُ فِي هَذَيْنِ الصِّنْفَيْنِ جَمِيعًا فَنَقُولُ:

185. How can an exception belong to another genus?

R 185 · BA 222

There is no disagreement over an exception belonging to the same genus as that from which it is excepted. Disagreement concerns an exception belonging to another genus. Some reject it, saying that there is no sense in excepting what the preceding statement did not include, and that calling such a thing an exception is idle speech. Those who permit it appeal to its occurrence in language, as in God's sayings, 'For they are enemies to me, except the Lord of the worlds,'[72] and 'Do not consume your wealth among yourselves wrongfully, except that it be an immediate transaction.'[73]

إِنَّ الِاسْتِثْنَاءَ الَّذِي مِنْ جِنْسِ الْمُسْتَثْنَى مِنْهُ مِمَّا لَا خِلَافَ فِيهِ. وَإِنَّمَا الْخِلَافُ فِي وُقُوعِ الْمُسْتَثْنَى مِنْ غَيْرِ جِنْسِ الْمُسْتَثْنَى مِنْهُ. وَهَذَا قَدْ مَنَعَهُ قَوْمٌ، وَقَالُوا لَا مَعْنَى لِاسْتِثْنَاءِ مَا لَمْ يَتَضَمَّنْهُ الْقَوْلُ الْمُتَقَدِّمُ، وَتَسْمِيَةُ مِثْلِ هَذَا اسْتِثْنَاءً هَذْرٌ. وَأَمَّا الَّذِينَ أَجَازُوهُ فَقَدْ تَمَسَّكُوا بِوُقُوعِ ذَلِكَ لُغَةً، مِنْ ذَلِكَ قَوْلُهُ تَعَالَى: {فَإِنَّهُمْ عَدُوٌّ لِي إِلَّا رَبَّ الْعَالَمِينَ}[72]، وَقَوْلُهُ تَعَالَى: {وَلَا تَأْكُلُوا أَمْوَالَكُمْ بَيْنَكُمْ بِالْبَاطِلِ إِلَّا أَنْ تَكُونَ تِجَارَةً حَاضِرَةً}[73].

A comparable instance is the poet's saying, 'No one is at the campsite except the horse tethering places.' The term 'anyone' does not apply to tethering places. Another poet says, 'And a land with no companion in it, except gazelles and except white camels.' Arabs also customarily say, 'There is no man in the house except a woman.' In general, this is well known and frequent in their speech.

وَفِي مِثْلِ هَذَا قَوْلُ الشَّاعِرِ: «وَمَا بِالرَّبْعِ مِنْ أَحَدٍ إِلَّا الْأَوَارِيَّ». وَالْأَوَارِيُّ لَيْسَ يَنْطَلِقُ عَلَيْهَا اسْمُ أَحَدٍ، وَقَوْلُ الْآخَرِ: «وَبَلْدَةٍ لَيْسَ بِهَا أَنِيسٌ إِلَّا الْيَعَافِيرُ وَإِلَّا الْعِيسُ». وَمِنْ عَادَةِ الْعَرَبِ أَنْ تَقُولَ: مَا فِي الدَّارِ رَجُلٌ إِلَّا امْرَأَةً. وَبِالْجُمْلَةِ فَهُوَ فِي كَلَامِهِمْ مَشْهُورٌ وَمَوْجُودٌ كَثِيرًا.

The first group rejects it on theoretical grounds; the second appeals to its actual occurrence, but has been unable to explain how it is valid in speech according to known Arab usage, and thereby resolve the difficulty raised earlier.[74]

وَالْفِرْقَةُ الْأُولَى دَفَعُوا ذَلِكَ مِنْ جِهَةِ النَّظَرِ، وَالثَّانِيَةُ تَمَسَّكُوا بِالْوُجُودِ وَلَمْ يَقْدِرُوا أَنْ يُعْطُوا الْجِهَةَ الَّتِي بِهَا يَصِحُّ ذَلِكَ فِي الْكَلَامِ بِمَا هُوَ مَعْرُوفٌ مِنْ عَادَةِ الْعَرَبِ وَيَنْحَلُّ بِهَا الشَّكُّ الْمُتَقَدِّمُ.

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[72] Qurʾān, al-Shuʿarāʾ 26:77 ↗.
[73] Qurʾān, al-Nisāʾ 4:29 ↗; al-Baqarah 2:282 ↗. The quotation combines wording from these two verses; "an immediate transaction" comes from 2:282. The author's wording is retained.
[74] Translation. الأواري is rendered 'horse tethering places,' consistent with the edition's explanatory note at p. 114. اليعافير is rendered 'gazelles,' an attested sense in Ibn Manẓūr, Lisān al-ʿArab, s.v. عفر (↗); lexical alternatives include young wild cattle. This vocabulary lookup does not replace or expand the quoted poem.

186. A disconnected exception belongs to the understood wider meaning

R 186 · BA 223

Our account is this: as explained earlier, Arabs customarily substitute the universal for the particular and the particular for the universal, relying on accompanying indications and extended usage. If a Bedouin says, for example, ‘There is no man in the house,’ his negation may be understood to extend beyond men; hence he adds the exception, ‘except a woman.’ The same holds of ‘And a land with no companion in it.’ On the account we have given, the thing excepted does not belong to a genus different from that from which it is excepted.

وَنَحْنُ نَقُولُ فِي ذَلِكَ: إِنَّ مِنْ عَادَةِ الْعَرَبِ، كَمَا تَقَدَّمَ، إِبْدَالَ الْكُلِّيِّ مَكَانَ الْجُزْئِيِّ، وَالْجُزْئِيِّ مَكَانَ الْكُلِّيِّ اتِّكَالًا عَلَى الْقَرَائِنِ وَتَجَوُّزًا. فَالْأَعْرَابِيُّ مَثَلًا إِذَا قَالَ: مَا فِي الدَّارِ رَجُلٌ أَمْكَنَ أَنْ يُفْهَمَ عَنْهُ فَمَا سِوَاهُ، فَلِذَلِكَ اسْتَثْنَى فَقَالَ: إِلَّا امْرَأَةً، وَكَذَلِكَ قَوْلُهُ: وَبَلْدَةٍ لَيْسَ بِهَا أَنِيسٌ. وَعَلَى هَذَا الْوَجْهِ الَّذِي قُلْنَاهُ لَيْسَ يَكُونُ الْمُسْتَثْنَى مِنْ غَيْرِ جِنْسِ الْمُسْتَثْنَى مِنْهُ.

The difference from the first kind is that the first excepts something from the general scope conveyed by the expression’s form, whereas this excepts it from the general scope conveyed by its understood import, not its form. If you examine the occurrences of such exceptions, you will find them to be as we have described; otherwise, the statement would be contradictory and idle, incapable of sustaining intelligible conversation.

لَكِنَّ الْفَرْقَ بَيْنَهُ وَبَيْنَ الْأَوَّلِ أَنَّ ذَلِكَ اسْتِثْنَاءٌ مِنْ عُمُومِ مَا اقْتَضَاهُ اللَّفْظُ بِصِيغَتِهِ، وَهَذَا مِنْ عُمُومِ مَا اقْتَضَاهُ اللَّفْظُ بِمَفْهُومِهِ لَا بِصِيغَتِهِ. وَإِذَا تَصَفَّحْتَ الْمَوَاضِعَ الْوَاقِعَ فِيهَا مِثْلُ هَذَا الِاسْتِثْنَاءِ وَجَدْتَهَا عَلَى مَا قُلْنَاهُ، وَإِلَّا كَانَ خُلْفًا مِنَ الْقَوْلِ وَهَذْرًا لَا تَصِحُّ بِمِثْلِهِ مُحَاوَرَةٌ.

187. How far does an exception reach over coordinated clauses?

R 187 · BA 224

If an exception follows several sentences joined by ‘and,’ and ‘and’ makes them share or combine in one meaning, the more evident reading is that the exception refers to everything mentioned. If ‘and’ joins them without making them share one meaning, and the joined meanings are multiple, the case is different. An example is God’s saying, ‘Those who accuse chaste women and then do not produce four witnesses: lash them eighty times, never accept their testimony, and they are the wrongdoers—except those who repent thereafter and make amends.’[75]

وَأَمَّا الِاسْتِثْنَاءُ الَّذِي يَرِدُ بَعْدَ جُمْلَةٍ أَكْثَرَ مِنْ وَاحِدَةٍ مَنْسُوقَةٍ بِالْوَاوِ، فَإِنْ كَانَتِ الْوَاوُ أَعْطَتِ التَّشْرِيكَ بَيْنَهُمَا أَوِ الْجَمْعَ فِي مَعْنًى وَاحِدٍ، فَالْأَظْهَرُ فِيهِ أَنَّ الِاسْتِثْنَاءَ يَعُودُ عَلَى جَمِيعِ الْمَذْكُورِينَ. وَأَمَّا إِنْ كَانَتِ الْوَاوُ تَنْسُقُ مِنْ غَيْرِ أَنْ تُعْطِيَ التَّشْرِيكَ فِي مَعْنًى وَاحِدٍ، وَكَانَتِ الْمَعَانِي الْمَنْسُوقَةُ كَثِيرَةً، كَقَوْلِهِ تَعَالَى: {وَالَّذِينَ يَرْمُونَ الْمُحْصَنَاتِ ثُمَّ لَمْ يَأْتُوا بِأَرْبَعَةِ شُهَدَاءَ فَاجْلِدُوهُمْ ثَمَانِينَ جَلْدَةً وَلَا تَقْبَلُوا لَهُمْ شَهَادَةً أَبَدًا وَأُولَئِكَ هُمُ الْفَاسِقُونَ إِلَّا الَّذِينَ تَابُوا مِنْ بَعْدِ ذَلِكَ وَأَصْلَحُوا}[75].

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[75] Qurʾān, al-Nūr 24:4–5 ↗.

Another example is His saying, ‘Its expiation is feeding ten needy people from the average of what you feed your families, or clothing them, or freeing a slave; whoever cannot find the means must fast three days.’[76] In such cases the more evident course is to suspend judgement until evidence, whether a contextual indication or something else, shows what the exception refers to.’[77]

وَكَقَوْلِهِ تَعَالَى: {فَكَفَّارَتُهُ إِطْعَامُ عَشَرَةِ مَسَاكِينَ مِنْ أَوْسَطِ مَا تُطْعِمُونَ أَهْلِيكُمْ أَوْ كِسْوَتُهُمْ أَوْ تَحْرِيرُ رَقَبَةٍ فَمَنْ لَمْ يَجِدْ فَصِيَامُ ثَلَاثَةِ أَيَّامٍ}[76]. فَالْأَظْهَرُ فِي مِثْلِ هَذَا أَنْ يُتَوَقَّفَ حَتَّى يَدُلَّ الدَّلِيلُ مِنْ قَرِينَةِ حَالٍ أَوْ غَيْرِ ذَلِكَ عَلَى الَّذِي إِلَيْهِ يَعُودُ الِاسْتِثْنَاءُ.

188. An exception larger than the remainder

R 188 · BA 225

As for whether the amount remaining after an exception may be smaller than the amount excepted, this is something that has not occurred in Arabic speech, since such an expression would almost amount to an inability to express oneself. It is an incongruous way of speaking to say, ‘I saw a hundred, except ninety-nine.’[78]

وَأَمَّا هَلْ يَكُونُ الْمُسْتَثْنَى مِنْهُ أَقَلَّ مِنَ الْمُسْتَثْنَى، فَهُوَ شَيْءٌ لَمْ يَقَعْ فِي كَلَامِ الْعَرَبِ بَعْدُ، لِأَنَّ وُقُوعَ مِثْلِ هَذَا يَكَادُ أَنْ يَكُونَ عِيًّا، فَإِنَّهُ مِنْ خُلْفِ الْقَوْلِ أَنْ يَقُولَ الْإِنْسَانُ رَأَيْتُ مِائَةً إِلَّا تِسْعَةً وَتِسْعِينَ.

189. Unqualified and qualified wording in the same or different contexts

R 189 · BA 226

Question. When general wording is qualified by an attribute or made conditional on something, there should be no disagreement about acting upon it subject to that condition. If it occurs unqualified in one context and then qualified in the same context—what they call construing the unqualified in light of the qualified—the majority adopt that construction. An example is his saying, peace be upon him, ‘There is no marriage without two witnesses,’ alongside his saying, peace be upon him, ‘There is no marriage without two witnesses of probity.’

مَسْأَلَةٌ: إِذَا وَرَدَ الْعَامُّ مُقَيَّدًا بِصِفَةٍ أَوْ مُشْتَرَطًا فِيهِ شَرْطٌ مَا فَالْمَصِيرُ إِلَى الْعَمَلِ بِهِ عَلَى الْجِهَةِ الَّتِي اشْتُرِطَ فِيهِ مِمَّا لَا يَنْبَغِي أَنْ يَقَعَ فِيهِ خِلَافٌ. وَأَمَّا إِذَا وَرَدَ مُطْلَقًا فِي مَكَانٍ، ثُمَّ وَرَدَ مَرَّةً أُخْرَى فِي ذَلِكَ الْمَكَانِ مُقَيَّدًا، وَهُوَ الَّذِي يَعْرِفُونَهُ بِحَمْلِ الْمُطْلَقِ عَلَى الْمُقَيَّدِ، كَقَوْلِهِ عَلَيْهِ السَّلَامُ: «لَا نِكَاحَ إِلَّا بِشَاهِدَيْنِ» وَقَوْلِهِ عَلَيْهِ السَّلَامُ: «لَا نِكَاحَ إِلَّا بِشَاهِدَيْ عَدْلٍ»، فَقَدْ رَأَى أَكْثَرُ النَّاسِ فِي ذَلِكَ حَمْلَ الْمُطْلَقِ عَلَى الْمُقَيَّدِ.

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76. Qurʾān, al-Māʾidah 5:89 ↗.

77. Translation. The second uses a conditional qualification, which Ibn Rushd includes here within his discussion of the scope of an exception; the examples are retained without silently replacing its conjunctions.

78. Translation. The comparison of المستثنى منه with المستثنى at p. 116 is understood of the remaining and excepted amounts, as required by the author’s example of a hundred minus ninety-nine.

Some hold that the unqualified statement retains its unqualified scope, that the qualification serves to emphasize, and that it conflicts with the unqualified statement only through contrary implication (دليل الخطاب). Generality is stronger than contrary implication—I mean the generality present in the unqualified statement. If, however, the general expression is qualified in a context different from the one in which it was unqualified, there is no basis for construing it as qualified without proof or a contextual indication.

وَرَأَى بَعْضُهُمْ أَنَّ الْمُطْلَقَ بَاقٍ عَلَى إِطْلَاقِهِ، وَأَنَّ التَّقْيِيدَ مَحْمُولٌ عَلَى التَّأْكِيدِ، وَأَنَّهُ لَيْسَ يُعَارِضُهُ إِلَّا مِنْ جِهَةِ دَلِيلِ الْخِطَابِ. وَالْعُمُومُ أَقْوَى مِنْ دَلِيلِ الْخِطَابِ، أَعْنِي الْعُمُومَ الَّذِي فِي الْمُطْلَقِ. وَأَمَّا إِذَا وَرَدَ الْعَامُّ مُقَيَّدًا فِي مَكَانٍ غَيْرِ الْمَكَانِ الَّذِي أُطْلِقَ فِيهِ فَلَا مَعْنَى لِحَمْلِهِ عَلَى التَّقْيِيدِ إِلَّا بِدَلِيلٍ أَوْ قَرِينَةِ حَالٍ.

190. From general to specific expressions

R 190 · BA 227

This is the account of general verbal forms, and of the circumstances in which they are understood generally and those in which they are not. It remains to discuss the second class of apparent wording, namely specific expressions. Let us turn to them.

فَهَذَا هُوَ الْقَوْلُ فِي الصِّيَغِ الْعَامَّةِ، وَفِي أَيِّ الْأَحْوَالِ تُحْمَلُ عَلَى عُمُومِهَا، وَفِي أَيِّهَا لَا. وَبَقِيَ عَلَيْنَا الْقَوْلُ فِي الصِّنْفِ الثَّانِي مِنَ الظَّاهِرِ، وَهُوَ الْأَلْفَاظُ الْخَاصَّةُ، فَلْنَقُلْ فِيهَا:

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3. On specific expressions

3) الْقَوْلُ فِي الْأَلْفَاظِ الْخَاصَّةِ

191. Specific expressions may stand for an intended universal

R 191 · BA 228–233

Some of these are names of individuals, and others are names of genera and species. When we call such expressions “specific” (خاص), we do so relatively: something is called specific in relation to the general term above it, and general in relation to the specific term below it.

وَهَذِهِ مِنْهَا مَا هِيَ أَسْمَاءُ أَشْخَاصٍ، وَمِنْهَا مَا هِيَ أَسْمَاءُ أَجْنَاسٍ وَأَنْوَاعٍ. وَقَوْلُنَا فِي مِثْلِ هَذِهِ الْأَلْفَاظِ خَاصَّةٌ إِنَّمَا هُوَ بِالْإِضَافَةِ، فَإِنَّ الْخَاصَّ إِنَّمَا يُقَالُ بِالْإِضَافَةِ إِلَى الْعَامِّ الَّذِي فَوْقَهُ، وَالْعَامُّ بِالْإِضَافَةِ إِلَى الْخَاصِّ الَّذِي تَحْتَهُ.

When these expressions name individuals, they are construed as bearing the specific meaning required by their forms, rather than a meaning encompassing that specific meaning. This is their prima facie import (ظاهر), just as expressions of generality prima facie retain their general scope until evidence of restriction appears. Similarly, names of genera and species prima facie encompass what falls under them, while delimiting the meanings their forms initially signify from anything more general, until evidence requires generalization. Here too there are degrees of prima facie clarity.

وَهَذِهِ الْأَلْفَاظُ إِذَا كَانَتْ أَسْمَاءَ أَشْخَاصٍ فَإِنَّهَا تُحْمَلُ عَلَى مَا تَقْتَضِيهِ صِيَغُهَا مِنَ الْمَعْنَى الْخَاصِّ دُونَ أَنْ تُحْمَلَ عَلَى مَا يَعُمُّ ذَلِكَ الْمَعْنَى الْخَاصَّ، وَهِيَ فِي ذَلِكَ ظَاهِرَةٌ، كَمَا كَانَتْ أَلْفَاظُ الْعُمُومِ ظَاهِرَةً فِي عُمُومِهَا، إِلَى أَنْ يَرِدَ دَلِيلُ التَّخْصِيصِ. وَكَذَلِكَ إِذَا كَانَتْ أَسْمَاءَ أَجْنَاسٍ وَأَنْوَاعٍ فَإِنَّهَا كَمَا كَانَتْ ظَاهِرَةً فِي تَعْمِيمِ مَا تَحْتَهَا، كَذَلِكَ هِيَ ظَاهِرَةٌ فِي تَخْصِيصِ مَعَانِيهَا الَّتِي دَلَّتْ عَلَيْهَا أَوَّلًا بِصِيَغِهَا عَمَّا هُوَ أَعَمُّ مِنْهَا إِلَى أَنْ يَدُلَّ دَلِيلُ التَّعْمِيمِ، وَهُنَا أَيْضًا مَرَاتِبُ فِي الظُّهُورِ.

Just as speakers customarily substitute the general universal for the specific particular, so here they customarily substitute the specific particular for the general, relying on contextual indications (قرائن). This too may be evident in itself and certain, or it may rest on a preponderant probability, or it may not be evident in itself. Sometimes the occurrence of substitution is itself evident, while it remains unclear which universal the particular has been substituted for.

وَكَمَا أَنَّ مِنْ عَادَتِهِمْ إِبْدَالَ الْكُلِّيِّ الْعَامِّ مَكَانَ الْجُزْئِيِّ الْخَاصِّ، كَذَلِكَ مِنْ عَادَتِهِمْ هَهُنَا إِبْدَالُ الْجُزْئِيِّ الْخَاصِّ مَكَانَ الْعَامِّ تَعْوِيلًا فِي ذَلِكَ عَلَى الْقَرَائِنِ. وَهَذَا أَيْضًا رُبَّمَا كَانَ بَيِّنًا بِنَفْسِهِ وَقَطْعًا، وَرُبَّمَا كَانَ ظَنِّيًّا أَكْثَرِيًّا، وَرُبَّمَا لَمْ يَكُنْ بَيِّنًا بِنَفْسِهِ. وَرُبَّمَا كَانَ بَيِّنًا بِنَفْسِهِ أَنَّهُ مُبْدَلٌ وَلَمْ يَكُنْ بَيِّنًا أَيُّ كُلِّيٍّ أُبْدِلَ الْجُزْئِيُّ مَكَانَهُ.

An example evident in itself and certain is His exalted saying, “Do not say ‘Uff’ to the two of them,”[79] and the Prophet’s saying, peace be upon him, “Hand over the thread and the needle.” Examples evident in themselves but not certain are the prohibition of entering the mosque smelling of garlic, and of drinking from silver vessels. An example not evident in itself is his prohibition, peace be upon him, concerning wheat exchanged for wheat—the four commodities mentioned. Some understood it as referring to staple nourishment, others to food, and others to goods measured by volume; others confined the ruling to the stated text.’[80]

مِثَالُ مَا كَانَ مِنْ ذَلِكَ بَيِّنًا بِنَفْسِهِ وَقَطْعًا قَوْلُهُ تَعَالَى: «وَلَا تَقُلْ لَهُمَا أُفٍّ»[79]. وَقَوْلُهُ عَلَيْهِ السَّلَامُ: «أَدُّوا الْخَائِطَ وَالْمِخْيَطَ». ومثال مَا كَانَ مِنْ ذَلِكَ بَيِّنًا بِنَفْسِهِ وَلَمْ يَكُنْ قَطْعًا النَّهْيُ عَنْ دُخُولِ الْمَسْجِدِ بِرِيحِ الثُّومِ أَوْ عَنِ الشُّرْبِ بِآنِيَةِ الْفِضَّةِ. وَمِثَالُ مَا لَمْ يَكُنْ مِنْ ذَلِكَ بَيِّنًا بِنَفْسِهِ فَنَهْيُهُ عَلَيْهِ السَّلَامُ عَنْ بَيْعِ الْبُرِّ بِالْبُرِّ الْأَرْبَعَةِ الْمَذْكُورَةِ. فَإِنَّ قَوْمًا حَمَلُوهُ عَلَى الْمُقْتَاتِ وَآخَرُونَ عَلَى الْمَطْعُومِ، وَآخَرُونَ عَلَى الْمَكِيلِ، وَقَوْمٌ قَصَرُوا الْحُكْمَ عَلَى النَّصِّ.

192. From verbal form to understood meaning

R 192 · BA 234

فَهَذَا هُوَ الْقَوْلُ فِي الْأَلْفَاظِ الْمُجْمَلَةِ وَالنُّصُوصِ والظاهرة وَالْمُؤَوَّلَةِ مِنْ جِهَةِ صِيَغِهَا، وَقَدْ بَقِيَ الْقَوْلُ فِي ذَلِكَ مِنْ جِهَةِ الْمَفْهُومِ.

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79. Qurʾān, al-Isrāʾ 17:23 ↗. The Arabic quotation has wa-lā where the verse has fa-lā; the author’s wording is retained.
80. Translation. Ibdāl is the substitution of a particular expression for an intended universal meaning. The direction of substitution is retained throughout; it is not silently reversed into the direction in which a jurist extends a ruling.

This completes the discussion of indeterminate, unambiguous, prima facie, and interpreted expressions with respect to their forms. It remains to discuss them with respect to their understood meaning (مفهوم).

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4. On expressions signifying through their understood meaning

4) الْقَوْلُ فِي دَلَالَاتِ الْأَلْفَاظِ بِمَفْهُومِهَا

193. Context determines the force of an implied meaning

R 193 · BA 235

As we said before, an expression signifies through its understood meaning when some of its parts are omitted, something is added to it, or it is used metaphorically or by substitution. In such cases its signification comes only through contextual indications. If the contextual indication is unvarying and decisive as to its understood meaning, the expression is again called unambiguous (نص). If it supplies a preponderant probability, it is called prima facie (ظاهر); if it supplies probability without preponderance, it is called indeterminate (مجمل), and evidence for it is sought elsewhere.

وَاللَّفْظُ كَمَا تَقَدَّمَ مِنْ قَوْلِنَا إِنَّمَا يَصِيرُ دَالًّا بِمَفْهُومِهِ عِنْدَمَا تُحْذَفُ بَعْضُ أَجْزَائِهِ، أَوْ يُزَادُ فِيهِ أَوْ يُسْتَعَارُ وَيُبْدَلُ، وَلِذَلِكَ لَا تَكُونُ دَلَالَتُهُ عِنْدَ ذَلِكَ إِلَّا مِنْ جِهَةِ الْقَرَائِنِ، فَإِنْ كَانَتِ الْقَرِينَةُ غَيْرَ مُتَبَدِّلَةٍ وَقَاطِعَةً عَلَى مَفْهُومِهِ سُمِّيَ أَيْضًا هَهُنَا نَصًّا، وَإِنْ كَانَتْ ظَنِّيَّةً أَكْثَرِيَّةً سُمِّيَ أَيْضًا ظَاهِرًا، وَإِنْ كَانَتْ ظَنِّيَّةً غَيْرَ مُتَرَجِّحَةٍ سُمِّيَ مُجْمَلًا، وَطُلِبَ دَلِيلُهُ مِنْ مَوْضِعٍ آخَرَ.

Examples involving metaphor and substitution have already been given. What remains for us here is the case in which this occurs through omission. We say:

وَقَدْ تَقَدَّمَتْ أَمْثِلَةُ ذَلِكَ فِي الْمُسْتَعَارِ وَالْمُبْدَلِ، وَالَّذِي بَقِيَ عَلَيْنَا الْقَوْلُ فِيهِ هُنَا هُوَ مَا كَانَ كَذَلِكَ مِنْ أَجْلِ الْحَذْفِ فَنَقُولُ:

194. Omitted meanings: villagers, marriage, fasting, and a prayer cycle

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An example having the status of an unambiguous expression is His exalted saying, “Ask the village in which we were.”[81] It is known with certainty that He means the inhabitants of the village. Likewise, in His exalted saying, “Forbidden to you are your mothers,”[82] what is certainly understood here is marriage.

أَمَّا مِثَالُ مَا كَانَ مِنْ ذَلِكَ بِمَنْزِلَةِ النَّصِّ فَقَوْلُهُ تَعَالَى: «وَاسْأَلِ الْقَرْيَةَ الَّتِي كُنَّا فِيهَا»[81]. فَإِنَّهُ يُعْلَمُ قَطْعًا أَنَّهُ أَرَادَ أَهْلَ الْقَرْيَةِ، وَكَذَلِكَ قَوْلُهُ تَعَالَى: «حُرِّمَتْ عَلَيْكُمْ أُمَّهَاتُكُمْ»[82]. فَإِنَّ الْمَفْهُومَ هَهُنَا قَطْعًا إِنَّمَا هُوَ النِّكَاحُ.

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81. Qurʾān, Yūsuf 12:82 ↗.
82. Qurʾān, al-Nisāʾ 4:23 ↗.

An example in this class resembling a prima facie expression is his saying, peace be upon him, “There is no fast for one who has not resolved upon the fast overnight.” This may mean that the fast is not complete, or that the fast is not accepted at all; the latter is more apparent. An example thought indeterminate is his saying, peace be upon him, “Whoever has caught one cycle of the prayer has caught the prayer.” It is undecided whether this means obtaining the prayer’s merit, its legal effect, or its appointed time.

وَمِثَالُ مَا هُوَ مِنْ هَذَا الْجِنْسِ كَالظَّاهِرِ قَوْلُهُ عَلَيْهِ السَّلَامُ: «لَا صِيَامَ لِمَنْ لَمْ يُبَيِّتِ الصِّيَامَ». فَإِنَّهُ مُحْتَمِلٌ أَنْ يُرِيدَ لَا صِيَامَ كَامِلٌ وَيَحْتَمِلُ أَنْ يُرِيدَ انْتِفَاءَ قَبُولِ الصِّيَامِ أَصْلًا وَهُوَ الْأَظْهَرُ. وَمِثَالُ مَا يُظَنُّ بِهِ مُجْمَلًا قَوْلُهُ عَلَيْهِ السَّلَامُ: «مَنْ أَدْرَكَ رَكْعَةً مِنَ الصَّلَاةِ فَقَدْ أَدْرَكَ الصَّلَاةَ» فَإِنَّهُ مُتَرَدِّدٌ بَيْنَ إِدْرَاكِ فَضِيلَةِ الصَّلَاةِ أَوْ حُكْمِهَا أَوْ وَقْتِهَا.

A particularly well-known kind within this class is what they call inference from the discourse (دليل الخطاب). Something is mentioned subject to a qualification or condition, and a ruling is attached to it. It is then judged probable that the ruling belongs to it insofar as it bears that qualification or description, and that, when the description is absent, the ruling ceases to apply and its contradictory applies instead.

وَمِنْ أَشْهَرِ مَا يَدْخُلُ فِي هَذَا الْجِنْسِ النَّوْعُ الَّذِي يَعْرِفُونَهُ بِدَلِيلِ الْخِطَابِ وَهُوَ أَنْ يَرِدَ الشَّيْءُ مُقَيَّدًا بِأَمْرٍ مَا، أَوْ مُشْتَرَطًا فِيهِ شَرْطٌ مَا، وَقَدْ عُلِّقَ بِهِ حُكْمٌ، فَيُظَنَّ أَنَّ ذَلِكَ الْحُكْمَ لَازِمٌ لِذَلِكَ الشَّيْءِ مِنْ جِهَةِ مَا هُوَ مُقَيَّدٌ وَمَوْصُوفٌ، وَأَنَّ الْحُكْمَ مُرْتَفِعٌ عَنْهُ بِارْتِفَاعِ تِلْكَ الصِّفَةِ وَلَازِمٌ نَقِيضُهُ.

This class has several kinds. They disagree over whether these constitute legal evidence. Some have allowed none of them as evidence at all; some have allowed all of them; others have allowed some and denied others. We say concerning this:[83, 84]

وَهَذَا الْجِنْسُ تَحْتَهُ أَصْنَافٌ. وَقَدِ اخْتَلَفُوا فِي كَوْنِهَا أَدِلَّةً شَرْعِيَّةً، فَبَعْضُهُمْ لَمْ يُجِزْ ذَلِكَ فِي جَمِيعِهَا أَصْلًا، وَبَعْضٌ أَجَازَ ذَلِكَ فِي كُلِّهَا، وَبَعْضٌ أَجَازَهُ فِي الْبَعْضِ وَنَفَاهُ عَنِ الْبَعْضِ، وَنَحْنُ نَقُولُ فِي ذَلِكَ:

195. Description, condition, restriction, and endpoint

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Its kinds include mentioning something qualified by a description, as in his saying, peace be upon him, “Zakāt is due on grazing sheep.” Another is to make something conditional through one of the conditional particles, as in “Whoever enters the house, give him a dirham.” This, in their view, occupies a stronger rank.

أَمَّا أَصْنَافُهُ فَمِنْهَا أَنْ يَرِدَ الشَّيْءُ مُقَيَّدًا بِصِفَةٍ كَقَوْلِهِ عَلَيْهِ السَّلَامُ: «فِي سَائِمَةِ الْغَنَمِ الزَّكَاةُ». وَمِنْهَا أَنْ يَرِدَ مُشْتَرَطًا فِيهِ شَرْطٌ مَا بِأَحَدِ حُرُوفِ الشَّرْطِ، كَقَوْلِهِ: مَنْ دَخَلَ الدَّارَ فَاعْطِهِ دِرْهَمًا، وَهَذَا عِنْدَهُمْ أَقْوَى فِي الْمَرْتَبَةِ.

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[83] Translation. The omitted object in the prohibition concerning mothers is supplied by Ibn Rushd himself as marriage; the contextual character of this certainty is central to his use of naṣṣ.

[84] Translation. Dalīl al-khiṭāb here is contrary implication: the ruling for the unmentioned case is inferred from the qualification of the stated case. It differs from the a fortiori faḥwā al-khiṭāb of §215.

Another restricts a ruling through a restrictive particle: innamā or the definite article al-, as in his saying, peace be upon him, “The rights of clientage belong only to the emancipator,” or in “The property belongs to Zayd.” Another qualifies something by an endpoint, expressed by “until” or “up to.” It seems that everyone has accepted this kind. Examples are His exalted sayings, “Do not approach them until they become pure,”[85] “until she marries a husband other than him,”[86] and His exalted saying, “Complete the fast until nightfall.”[87]

وَمِنْهَا أَنْ يَرِدَ الْحُكْمُ مَحْصُورًا بِأَحَدِ حُرُوفِ الْحَصْرِ، وَهِيَ إِنَّمَا وَالْأَلِفُ وَاللَّامُ، فِي مِثْلِ قَوْلِهِ عَلَيْهِ السَّلَامُ: «إِنَّمَا الْوَلَاءُ لِمَنْ أَعْتَقَ». وَفِي مِثْلِ قَوْلِهِ: الْمَالُ لِزَيْدٍ. وَمِنْهَا أَنْ يُقَيَّدَ الشَّيْءُ بِصِفَةٍ غَائِيَّةٍ، وَتِلْكَ هِيَ الَّتِي يُدَلُّ عَلَيْهَا بِحَتَّى وَإِلَى، وَهَذَا الصِّنْفُ كَأَنَّ جَمِيعَهُمْ قَدْ أَقَرَّ بِالْقَوْلِ بِهِ مِثْلَ قَوْلِهِ تَعَالَى: «وَلَا تَقْرَبُوهُنَّ حَتَّى يَطْهُرْنَ»[85]، وَ«حَتَّى تَنْكِحَ زَوْجًا غَيْرَهُ»[86]. وَقَوْلِهِ تَعَالَى: «وَأَتِمُّوا الصِّيَامَ إِلَى اللَّيْلِ»[87].

It is virtually known that night differs from day in that fasting does not extend to it; likewise the menstruating woman’s condition after purification differs from her condition beforehand, as does that of the divorced woman after marrying a husband. Within this manner of speaking and all its kinds, some cases must be recognised as resembling the unambiguous and possessing its force: those in which the ruling is known to depend on the qualification or condition. Others resemble the prima facie or the indeterminate. In the discussion of qiyās we shall indicate the ranks of contextual indications that establish these degrees of signification.[88]

فَإِنَّهُ يَكَادُ أَنْ يُعْلَمَ أَنَّ اللَّيْلَ بِخِلَافِ النَّهَارِ فِي انْتِفَاءِ الصَّوْمِ عَنْهُ، وَكَذَلِكَ حَالُ الْحَائِضِ إِذَا طَهُرَتْ بِخِلَافِهَا قَبْلَ أَنْ تَطْهُرَ، وَكَذَلِكَ الْمُطَلَّقَةُ إِذَا نَكَحَتْ زَوْجًا. وَهَذَا النَّوْعُ مِنَ الْكَلَامِ وَجَمِيعُ أَصْنَافِهِ يَنْبَغِي أَنْ يُعْتَقَدَ أَنَّ فِيهِ مَا يُشْبِهُ النَّصَّ وَيَقْوَى قُوَّتَهُ، وَذَلِكَ حَيْثُ يُعْلَمُ أَنَّ ذَلِكَ الْحُكْمَ إِنَّمَا تَعَلَّقَ بِالشَّيْءِ مِنْ جِهَةِ مَا قُيِّدَ أَوِ اشْتُرِطَ فِيهِ ذَلِكَ الشَّرْطُ. وَفِيهِ مَا يُشْبِهُ الظَّاهِرَ، وَفِيهِ مَا يُشْبِهُ الْمُجْمَلَ، وَسَنُشِيرُ إِلَى مَرَاتِبِ الْقَرَائِنِ الَّتِي يَتَرَتَّبُ بِهَا هَذَا التَّرْتِيبُ فِي الدَّلَالَةِ فِي كِتَابِ الْقِيَاسِ.

196. From assertions to prescriptions

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Here ends the discussion of assertions and their components. Let us now examine commands and prohibitions.

وَهُنَا انْتَهَى الْكَلَامُ فِي الْأَخْبَارِ وَأَجْزَائِهَا، وَبَعْدَ ذَلِكَ فَلْنَنْظُرْ فِي الْأَوَامِرِ وَالنَّوَاهِي.

5. On commands and prohibitions

5) الْقَوْلُ فِي الْأَوَامِرِ وَالنَّوَاهِي

197. Command, request, and supplication depend on the relation of speakers

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We must also examine whether these admit the preceding division: whether unambiguous, prima facie, and indeterminate cases occur among them; and, if so, whether this is through their forms or through their understood meaning.

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[85] Qurʾān, al-Baqarah 2:222 ↗.

[86] Qurʾān, al-Baqarah 2:230 ↗.

[87] Qurʾān, al-Baqarah 2:187 ↗. The Arabic quotation begins wa-atimmū; the verse has thumma atimmū.

[88] Translation. “Endpoint” renders غائية here; it does not mean a purposive or final cause.

وَيَنْبَغِي أَنْ نَنْظُرَ أَيْضًا فِي هَذِهِ هَلْ تَنْقَسِمُ الْقِسْمَةَ الْمُتَقَدِّمَةَ، أَعْنِي هَلْ يُوجَدُ فِيهَا النَّصُّ وَالظَّاهِرُ وَالْمُجْمَلُ، وَإِنْ كَانَ ذَلِكَ مَوْجُودًا فِيهَا فَهَلْ ذَلِكَ مِنْ جِهَةِ صِيَغِهَا أَوْ مِنْ جِهَةِ مَفْهُومِهَا.

Meaningful speech, as has been said, divides into assertion, command, request, address, and supplication. Plainly, Arabic does not possess a distinct form for each of command, request, and supplication: they are distinguished by circumstantial indications. Addressed by a superior to a subordinate, it is a command; by a subordinate to a superior, a supplication; and by an equal to an equal, a request. Each of these three has an opposite. The opposite of command is prohibition, but the opposites of request and supplication have no names.

وَالْكَلَامُ الْمُفِيدُ كَمَا قِيلَ يَنْقَسِمُ إِلَى خَبَرٍ وَأَمْرٍ وَطَلِبَةٍ وَنِدَاءٍ وَتَضَرُّعٍ. وَظَاهِرٌ أَنَّ الْأَمْرَ وَالطَّلِبَةَ وَالتَّضَرُّعَ لَيْسَ لِوَاحِدٍ وَاحِدٍ مِنْهَا فِي اللِّسَانِ الْعَرَبِيِّ صِيَغٌ خَاصَّةٌ، وَإِنَّمَا يتميز ذلك بِقَرَائِنِ الْأَحْوَالِ. فَإِذَا كَانَ مِنْ رَئِيسٍ إِلَى مَرْؤُوسٍ كَانَ أَمْرًا، وَإِنْ كَانَ مِنْ مَرْؤُوسٍ إِلَى رَئِيسٍ كَانَ تَضَرُّعًا، وَإِنْ كَانَ مِنْ مُسَاوٍ إِلَى مُسَاوٍ كَانَ طَلِبَةً. وَلِكُلٍّ وَاحِدٍ مِنْ هَذِهِ الثَّلَاثَةِ مُقَابِلٌ. فَمُقَابِلُ الْأَمْرِ النَّهْيُ وَلَيْسَ لِمُقَابِلِ الطَّلَبِ وَالتَّضَرُّعِ اسْمٌ.

198. Questions about obligation, timing, and repetition

R 198 · BA 244

Our purpose here is to discuss command and prohibition among these divisions. A legal demand (اقتضاء) cannot be conceived as taking the form of a request—unless “request” is taken here as a generic term divided into obligation and recommendation. It is preferable, however, that “command” should admit this division.

وَقَصْدُنَا نَحْنُ هَهُنَا مِنْ هَذِهِ الْأَقْسَامِ أَنْ نَتَكَلَّمَ فِي الْأَمْرِ وَالنَّهْيِ، إِذِ الِاقْتِضَاءُ الشَّرْعِيُّ لَيْسَ يَتَصَوَّرُ وُقُوعُهُ عَلَى جِهَةِ الطَّلَبِ اللَّهُمَّ إِلَّا أَنْ نَجْعَلَ الطَّلَبَ هَهُنَا كَأَنَّهُ اسْمُ جِنْسٍ يَنْقَسِمُ إِلَى الْوَاجِبِ وَالنَّدْبِ، لَكِنَّ الْأَوْلَى أَنْ يَكُونَ الْأَمْرُ يَنْقَسِمُ هَذِهِ الْقِسْمَةَ.

They have disagreed whether the meanings of commands [subsisting] in the soul have particular forms that signify them intrinsically and primarily. If they have forms, do these unambiguously require obligation or recommendation? Or is one of the two more apparent, with the form directed to the other by interpretation, in the manner of interpreting a prima facie expression? Or are the forms indeterminate between obligation and recommendation?

وَقَدِ اخْتَلَفُوا فِي مَعَانِي الْأَوَامِرِ الْعَامَّةِ بِالنَّفْسِ هَلْ لَهَا صِيَغٌ خَاصَّةٌ تَدُلُّ عَلَيْهَا بِالذَّاتِ وَأَوَّلًا، وَإِنْ كَانَ لَهَا صِيَغٌ فَهَلْ تَقْتَضِي الْإِيجَابَ أَوِ النَّدْبَ عَلَى جِهَةِ النَّصِّ، أَمْ هِيَ أَظْهَرُ فِي أَحَدِهِمَا وَمَصْرُوفَةٌ إِلَى الثَّانِي بِالتَّأْوِيلِ، عَلَى جِهَةِ مَا يُؤَوَّلُ الظَّاهِرُ، أَوْ هِيَ مُجْمَلَةٌ بَيْنَ الْإِيجَابِ وَالنَّدْبِ.

Those who hold that commands possess signifying forms also disagree whether those forms require immediate performance, allow delay, or remain undecided between these. Likewise, they disagree whether the forms require repetition or performance once.

وَكَذَلِكَ اخْتَلَفَ الَّذِينَ رَأَوْا أَنَّ لَهَا صِيَغًا دَالَّةً فِي هَلْ تَقْتَضِي أَيْضًا بِصِيَغِهَا الْفَوْرَ، أَمِ التَّرَاخِيَ، أَمْ هِيَ مُتَرَدِّدَةٌ بَيْنَ ذَلِكَ. وَكَذَلِكَ أَيْضًا هَلْ تَقْتَضِي التَّكْرَارَ أَمِ الْفِعْلَ مَرَّةً وَاحِدَةً.

199. Linguistic convention and legal usage must be distinguished

R 199 · BA 244

We begin this inquiry by considering how these forms stand in linguistic convention and in legal usage. We say:

وَنَحْنُ نَبْتَدِئُ بِالنَّظَرِ فِي ذَلِكَ بِأَنْ نَتَأَمَّلَ كَيْفَ حَالُهَا فِي الْوَضْعِ اللُّغَوِيِّ وَالْعُرْفِ الشَّرْعِيِّ فَنَقُولُ:

200. The imperative’s legal force must be learned from revelation

R 200 · BA 245–247

No one denies that Arabic has forms expressing a demand, such as “Go out! Depart!” These forms can nevertheless occur with the intention of threatening and deterring an action, as in His exalted saying, “Eat and enjoy yourselves a little.”[89] Generally, however, permission is their more apparent import; they signify threat only metaphorically. Likewise, when speakers intend prohibition, they combine the particle lā with these forms, and the resulting combination signifies prohibition through its structure and form.

أَمَّا أَنَّ لِلِاقْتِضَاءِ صِيَغًا فِي كَلَامِ الْعَرَبِ فَذَلِكَ مَا لَا يَدْفَعُهُ أَحَدٌ، كَقَوْلِهِمْ «اخْرُجْ انْطَلِقْ»، وَإِنْ كَانَ قَدْ تَأْتِي هَذِهِ الصِّيَغُ فِي كَلَامِهِمْ وَالْمَقْصُودُ بِهَا التَّهْدِيدُ وَالْكَفُّ عَنِ الْفِعْلِ، كَقَوْلِهِ تَعَالَى: «كُلُوا وَتَمَتَّعُوا قَلِيلًا»[89]. وَلَكِنْ بِالْجُمْلَةِ هِيَ أَظْهَرُ فِي الْإِذْنِ، وَإِنَّمَا تَدُلُّ عَلَى التَّهْدِيدِ بِاسْتِعَارَةٍ. وَكَذَلِكَ أَيْضًا إِذَا أَرَادُوا النَّهْيَ قَرَنُوا بِهَذِهِ الصِّيَغِ حَرْفَ لَا، فَصَارَ مَجْمُوعُهَا يَدُلُّ بِشَكْلِهِ وَصِيغَتِهِ عَلَى النَّهْيِ.

Whether these forms signify command intrinsically by linguistic convention is not evident from them; still less is it evident that there are forms signifying obligation or recommendation as such. These are legal meanings, not meanings of ordinary usage. By legal usage, however, the forms undoubtedly contain the meaning of command. Whether they contain obligation or recommendation is disputed. Most jurists hold that commands prima facie signify obligation in the Law, and are directed to recommendation by evidence. Some suspend judgement and regard them as indeterminate.

فَأَمَّا هَلْ تَدُلُّ هَذِهِ الصِّيَغُ بِذَاتِهَا وَضْعًا لُغَوِيًّا عَلَى الْأَمْرِ فَذَلِكَ مِمَّا لَا يَتَبَيَّنُ فِيهَا، وَأَحْرَى مِنْ ذَلِكَ أَنْ تَكُونَ لَهَا صِيَغٌ تَدُلُّ بِهَا عَلَى الْوُجُوبِ أَوِ النَّدْبِ، لِأَنَّ هَذِهِ الْمَعَانِيَ هِيَ مَعَانٍ شَرْعِيَّةٌ وَلَيْسَتْ بِمَعَانٍ جُمْهُورِيَّةٍ. فَأَمَّا بِالْعُرْفِ الشَّرْعِيِّ فَهِيَ لَا شَكَّ مُتَضَمِّنَةٌ مَعْنَى الْأَمْرِ، وَأَمَّا هَلْ تَتَضَمَّنُ الْوُجُوبَ أَوِ النَّدْبَ فَقَدِ اخْتَلَفُوا فِي ذَلِكَ، فَذَهَبَ أَكْثَرُ الْفُقَهَاءِ إِلَى أَنَّ الْأَوَامِرَ ظَاهِرَةٌ فِي مَعْنَى الْإِيجَابِ فِي الشَّرْعِ وَمَصْرُوفَةٌ إِلَى النَّدْبِ بِدَلِيلٍ. وَذَهَبَ بَعْضُهُمْ إِلَى التَّوَقُّفِ فِي ذَلِكَ وَأَنَّهَا مُجْمَلَةٌ.

This should be investigated inductively in the Law, examining how the Companions, may God be pleased with them, received commands when they appeared without contextual indications. Construing them as obligatory seems more prudent, since the circumstances of the Law show that its commands have a firm and decisive character. There is no sense in assigning them what someone claims is the least that a command signifies—recommendation—on the alleged ground that this always accompanies command.[90]

وَيَنْبَغِي أَنْ يُسْتَقْرَأَ ذَلِكَ فِي الشَّرْعِ، وَيُنْظَرَ كَيْفَ كَانَ قَبُولُ الصَّحَابَةِ رَضِيَ اللَّهُ عَنْهُمْ لِلْأَوَامِرِ إِذَا وَرَدَتْ مُجَرَّدَةً عَنِ الْقَرَائِنِ. وَيُشْبِهُ أَنْ يَكُونَ حَمْلُهَا عَلَى الْإِيجَابِ أَحْوَطَ، إِذْ قَدْ عُرِفَ مِنْ قَرَائِنِ أَحْوَالِ الشَّرْعِ أَنَّ الْأَوَامِرَ فِيهِ عَلَى جِهَةِ الْجَزْمِ وَالْقَطْعِ. وَأَمَّا مَنْ جَعَلَ ذَلِكَ عَلَى أَقَلِّ مَا يَدُلُّ عَلَيْهِ الْأَمْرُ وَهُوَ النَّدْبُ، لِأَنَّهُ زَعَمَ أَنَّ ذَلِكَ هُوَ الَّذِي يَلْزَمُ الْأَمْرَ دَائِمًا، فَلَا مَعْنَى لَهُ.

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[89] **89.** Qurʾān, al-Mursalāt 77:46 ↗.

[90] **90.** Translation. The contrast here is between ordinary linguistic usage (جمهورية) and legal usage, not between political regimes.

201. Neither timing nor repetition follows from the form alone

R 201 · BA 247–248

Obligation and recommendation are two distinct meanings. Either the expression is equivocal between them or one is its more apparent meaning. If no established legal convention can be shown for these forms, commands remain indeterminate between recommendation and obligation until evidence indicates one of them.

As for whether their forms signify immediacy or delay, this is not contained in them: the determination depends upon circumstantial indications. Hence, when the person commanded is uncertain, it is appropriate to ask “When?” Nor is repetition of the act required merely by the imperative. It requires at least one performance, and is as it were prima facie in that sense, and it is construed ⟨as repeated⟩ only when a further indication is subsequently supplied.

والوجوب وَالنَّدْبُ مَعْنَيَانِ اثْنَانِ، فَإِمَّا أَنْ يَكُونَ اللَّفْظُ مُشْتَرَكًا بَيْنَهُمَا، أَوْ أَظْهَرَ فِي أَحَدِهِمَا. وَإِمَّا إِنْ لَمْ يَصِحَّ فِيهَا وَضْعٌ شَرْعِيٌّ فَصِيَغُ الْأَوَامِرِ مُجْمَلَةٌ بَيْنَ النَّدْبِ وَالْإِيجَابِ حَتَّى يَدُلَّ الدَّلِيلُ عَلَى أَحَدِهِمَا.

وَأَمَّا هَلْ تَدُلُّ صِيَغُهَا عَلَى الْفَوْرِ أَوِ التَّرَاخِي فَلَيْسَ ذَلِكَ مَوْجُودًا فِيهَا، وَإِنَّمَا يَتَّكِلُ الْأَمْرُ فِي ذَلِكَ عَلَى قَرَائِنِ الْأَحْوَالِ. وَلِذَلِكَ إِذَا أَشْكَلَ عَلَى الْمَأْمُورِ حَسُنَ أَنْ يَسْتَفْهِمَ بِمَتَى، وَكَذَلِكَ لَا يُقْتَضَى تَكْرَارُ الْفِعْلِ، وَإِنَّمَا تَقْتَضِي أَقَلَّ ذَلِكَ مَرَّةً وَاحِدَةً وَهِيَ كَالظَّاهِرَةِ فِيهَا، وَتُحْمَلُ ⟨عَلَى التَّكْرَارِ⟩ بَعْدَ أَنْ تَرِدَ الزِّيَادَةُ.

202. Further questions about command forms

R 202 · BA 249

Several questions attach to this discussion; we shall set them out in their customary manner.

وَقَدْ يَتَعَلَّقُ بِالْكَلَامِ فِي هَذَا مَسَائِلُ نَحْنُ نَرْسُمُهَا عَلَى عَادَتِهِمْ.

203. A command after prohibition may merely remove the restriction

R 203 · BA 250

Question. When a command to do something follows a prohibition, some hold that this circumstance redirects the demand which, standing alone, would signify either [obligation] or recommendation, so that it now signifies permission. Others hold that this is not a contextual indication: the form of demand retains its original understood meaning.

مَسْأَلَةٌ: إِذَا وَرَدَ الْأَمْرُ بِالشَّيْءِ بَعْدَ الْحَظْرِ، ذَهَبَ قَوْمٌ أَنَّ ذَلِكَ قَرِينَةٌ تَصْرِفُ الِاقْتِضَاءَ الَّذِي شَأْنُهُ أَنْ يَقَعَ لَوْ وَرَدَ مُجَرَّدًا، إِمَّا عَلَى جِهَةِ ⟨الْوُجُوبِ⟩ وَإِمَّا عَلَى جِهَةِ النَّدْبِ إِلَى الْإِبَاحَةِ. وَذَهَبَ قَوْمٌ إِلَى أَنَّ ذَلِكَ لَيْسَ بِقَرِينَةٍ بَلْ تَبْقَى صِيغَةُ الِاقْتِضَاءِ عَلَى مَفْهُومِهَا الْأَوَّلِ.

Abū Ḥāmid says: The preferred view is that, when the prohibition arises for a particular ground and the imperative “Do!” is made conditional upon its cessation—as in His exalted saying, “When you leave the state of consecration, hunt”[91]—customary usage indicates the removal of restriction. It may admit recommendation or [obligation], but the meaning just mentioned is more apparent.·[92]

قَالَ أَبُو حَامِدٍ وَالْمُخْتَارُ أَنَّهُ إِذَا كَانَ النَّهْيُ عَارِضًا لِعِلَّةٍ وَعُلِّقَتْ صِيغَةُ اِفْعَلْ بِزَوَالِهِ، كَقَوْلِهِ تَعَالَى: «وَإِذَا حَلَلْتُمْ فَاصْطَادُوا»[91] فَعُرْفُ الِاسْتِعْمَالِ يَدُلُّ عَلَى أَنَّهُ لِرَفْعِ الْحَرَجِ، وَإِنِ احْتَمَلَ أَنْ يَكُونَ نَدْبًا أَوْ ⟨إِيجَابًا⟩، لَكِنَّهُ أَظْهَرُ فِيمَا ذَكَرْنَا.

204. Does making up a timed observance need a new command?

R 204 · BA 251

Question. The jurists’ position is that an obligation to make up a missed observance (قضاء) does not require a [renewed] command. Those who carefully distinguish the issues hold that a command to worship at a specified time does not require making it up. Specifying a time for worship—prayer at midday or fasting in Ramadan—is like specifying a place for pilgrimage or a direction for prayer. If the commanded condition is absent, the command ceases to apply, when it was on account of that condition that the command concerning the act was issued.

مَسْأَلَةٌ: مَذْهَبُ الْفُقَهَاءِ أَنَّ وُجُوبَ الْقَضَاءِ لَا يَفْتَقِرُ إِلَى أَمْرٍ مجد د. وَمَذْهَبُ الْمُحَصِّلِينَ أَنَّ الْأَمْرَ بِعِبَادَةٍ فِي وَقْتٍ مُعَيَّنٍ لَا يَقْتَضِي الْقَضَاءَ، لِأَنَّ تَخْصِيصَ الْعِبَادَةِ بِالزَّمَانِ كَالصَّلَاةِ فِي وَقْتِ الزَّوَالِ وَالصِّيَامِ فِي رَمَضَانَ كَتَخْصِيصِ الْحَجِّ بِالْمَكَانِ وَالصَّلَاةِ بِالْجِهَةِ. وَإِذَا فُقِدَ الشَّرْطُ الْمَأْمُورُ بِهِ ارْتَفَعَ الْأَمْرُ إِذَا كَانَ وُرُودُ الْأَمْرِ بِالشَّيْءِ مِنْ جِهَتِهِ.

205. Compliance discharges a duty only when all its conditions are met

R 205 · BA 252

Question. The jurists hold that a command entails the sufficiency of the commanded act (إجزاء) when it is fulfilled, without an obligation to make it up. Others say that a command does not entail sufficiency: someone who has invalidated his pilgrimage is commanded to complete it, yet this does not suffice, and he must perform it again.

مَسْأَلَةٌ: ذَهَبَ الْفُقَهَاءُ إِلَى أَنَّ الْأَمْرَ يَقْتَضِي وقوع الإجزاء بالمأمور به إِذَا امْتُثِلَ مِنْ غَيْرِ أَنْ يَلْزَمَ قَضَاءٌ. وَقَالَ آخَرُونَ لا يقتضي الإجزاء بِدَلِيلِ أَنَّ مَنْ أَفْسَدَ حَجَّهُ مَأْمُورٌ بِالْإِتْمَامِ وَلَا يُجْزِيهِ بَلْ يَلْزَمُهُ الْقَضَاءُ.

The correct formulation is that a command entails the sufficiency of the commanded act when it is performed completely, with its prescribed character and all its conditions. If a defect affects it, as with an invalidated pilgrimage, the command does not indicate sufficiency. This completes the discussion of command forms.

وَالصَّوَابُ أَنْ يُقَالَ إِنَّ الْأَمْرَ يَقْتَضِي إِجْزَاءَ الْمَأْمُورِ بِهِ إِذَا أُدِّيَ بِكَمَالِهِ وَوَصْفِهِ وَجَمِيعِ شُرُوطِهِ، وَأَمَّا إِنْ تَطَرَّقَ إِلَيْهِ خَلَلٌ كَالْحَجِّ الْفَاسِدِ فَلَا يَدُلُّ الْأَمْرُ عَلَى الْإِجْزَاءِ. فَهَذَا هُوَ الْقَوْلُ فِي صِيَغِ الْأَمْرِ.

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[91] Qurʾān, al-Māʾidah 5:2 ↗.

[92] Translation. The critical crux is at the end of Abū Ḥāmid’s view: both Escorial [أ] and al-ʿAlawī [ع] read إباحةً (“permission”), whereas Bou Akl (2015, BA §250, Arabic p.284, apparatus citing the Mustaṣfā) conjectures إيجابًا (“obligation”). The new reading is therefore ⟨إيجابًا⟩ and [obligation], visibly editorial. The transmitted “permission” remains in the audit; the legal alternatives must not be misrepresented as securely transmitted.

206. Does prohibition entail invalidity?

R 206 · BA 253

Know that the discussion of prohibitive forms parallels that of commands, and its questions correspond to theirs. Whoever construes a command form as imposing obligation construes a prohibitive form as imposing interdiction, and prohibition as indicating the invalidity of the prohibited act. Whether the prohibition concerns the act without qualification or with a description or condition, it renders the underlying act invalid insofar as it bears that qualification or condition.

وَيَنْبَغِي أَنْ تَعْلَمَ أَنَّ الْقَوْلَ فِي صِيَغِ النَّهْيِ كَالْقَوْلِ فِي الْأَمْرِ، وَأَنَّ مَسَائِلَهُ مُعَادِلَةٌ لِتِلْكَ. فَمَنْ يَحْمِلُ صِيغَةَ الْأَمْرِ عَلَى الْإِيجَابِ يَحْمِلُ صِيغَةَ النَّهْيِ عَلَى الْحَظْرِ وَالتَّحْرِيمِ وَعَلَى فَسَادِ الْمَنْهِيِّ. وَسَوَاءٌ كَانَ النَّهْيُ فِي الشَّيْءِ مُطْلَقًا أَوْ مُقَيَّدًا بِصِفَةٍ أَوْ شَرْطٍ، فَإِنَّهُ يَعُودُ النَّهْيُ بِفَسَادِ الْأَصْلِ مِنْ جِهَةِ مَا قُيِّدَ بِهِ وَاشْتُرِطَ.

207. Returning to the earlier account of the forbidden

R 207 · BA 253

This is the question mentioned earlier in Part One, where we said that the present place would be more appropriate for discussing it.

وَهَذِهِ هِيَ الْمَسْأَلَةُ الَّتِي تَقَدَّمَ ذِكْرُهَا فِي الْجُزْءِ الْأَوَّلِ، وَقُلْنَا إِنَّ الْأَلْيَقَ بِالتَّكَلُّمِ فِيهَا هُوَ هَذَا الْمَوْضِعُ.

208. Absolute prohibition and dislike: the need for an indication

R 208 · BA 254

Anyone who considers a command form undecided between obligation and recommendation must likewise consider a prohibitive expression undecided between interdiction and disapproval. This holds whether it concerns the underlying act without qualification or with a description or a cause external to it.

وَأَمَّا مَنْ كَانَ عِنْدَهُ صِيغَةُ الْأَمْرِ مُتَرَدِّدَةً بَيْنَ الْإِيجَابِ وَالنَّدْبِ، فَإِنَّهُ يَلْزَمُهُ أَنْ يَكُونَ لَفْظُ النَّهْيِ أَيْضًا مُتَرَدِّدًا بَيْنَ الْحَظْرِ وَالْكَرَاهَةِ، وَسَوَاءٌ وَرَدَ فِي أَصْلِ الشَّيْءِ مُطْلَقًا أَوْ مُقَيَّدًا بِصِفَةٍ أَوْ سَبَبٍ خَارِجٍ عَنْهُ.

Some who hold that commands and prohibitions have forms requiring obligation and interdiction nevertheless treat their application to an act qualified by an external cause as a contextual indication. On this account the forms cease to convey obligation and interdiction and instead convey recommendation and disapproval. This completes the discussion of evidence received through expressions.

اللَّهُمَّ إِلَّا أَنَّ بَعْضَ النَّاسِ مِمَّنْ يَرَى أَنَّ لِلْأَمْرِ وَالنَّهْيِ صِيغَةً تَقْتَضِي الْإِيجَابَ وَالْحَظْرَ يَجْعَلُ كَوْنَهَا إِذَا وَرَدَتْ فِي شَيْءٍ مُقَيَّدٍ بِسَبَبٍ مَا خَارِجٍ عَنِ الشَّيْءِ، قَرِينَةً تَخْرُجُ بِهَا الصِّيَغُ عَنْ كَوْنِهَا مُفِيدَةً لِلْإِيجَابِ وَالْحَظْرِ إِلَى النَّدْبِ وَالْكَرَاهِيَةِ. فَهَذَا هُوَ الْقَوْلُ فِي الْأَدِلَّةِ الْمُتَلَقَّاةِ مِنْ جِهَةِ الْأَلْفَاظِ.

209. From commands to the contextual indications called qiyās

R 209 · BA 255

It remains for us to discuss signifying contextual indications, such as the Prophet’s silence and tacit approval, God bless him and grant him peace. Before that, however, we must examine the evidence they call qiyās.

وَقَدْ بَقِيَ عَلَيْنَا الْقَوْلُ فِي الْقَرَائِنِ الدَّالَّةِ كَسُكُوتِهِ وَإِقْرَارِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، لَكِنْ قَبْلَ ذَلِكَ يَجِبُ أَنْ نَنْظُرَ فِي الدَّلِيلِ الَّذِي يَعْرِفُونَهُ بِالْقِيَاسِ.

6. On qiyās: analogy and syllogistic inference

6) الْقَوْلُ فِي الْقِيَاسِ

210. The jurists’ definition of analogy: original, derivative and ground

R 210 · BA 256–257

We must examine whether qiyās is legal evidence and, if it is, whether it belongs to the kinds already discussed. Our approach will be to investigate what the term qiyās signifies for them in this discipline. We say:

They describe it as assimilating one of two things to the other in affirming or denying a ruling, when the affirmation or denial is more apparent in one than in the other, because they share a ground or attribute. They call the thing in which the ruling is more apparent the original case (أصل); the thing assigned the ruling because it holds in the original case, the derivative case (فرع); and the shared attribute or cause, the operative ground (علة).

وَيَنْبَغِي أَنْ نَنْظُرَ فِيهِ هَلْ هُوَ دَلِيلٌ شَرْعِيٌّ أَمْ لَا، وَإِنْ كَانَ دَلِيلًا شَرْعِيًّا فَهَلْ هُوَ مِنْ جِنْسِ مَا تَقَدَّمَ أَمْ لَا، وَنَجْعَلَ سَبِيلَنَا فِي الْفَحْصِ عَنْ ذَلِكَ مِمَّا يَدُلُّ عَلَيْهِ اسْمُ الْقِيَاسِ عِنْدَهُمْ فِي هَذِهِ الصِّنَاعَةِ فَنَقُولُ:

إِنَّهُمْ يَرْسُمُونَ هَذَا الْمَعْنَى بِأَنَّهُ حَمْلُ شَيْئَيْنِ أَحَدِهِمَا عَلَى الْآخَرِ فِي إِثْبَاتِ حُكْمٍ أَوْ نَفْيِهِ، إِن كَانَ الْإِثْبَاتُ أَوِ النَّفْيُ فِي أَحَدِهِمَا أَظْهَرَ مِنْهُ فِي الْآخَرِ، وَذَلِكَ لِأَمْرٍ جَامِعٍ بَيْنَهُمَا مِنْ عِلَّةٍ أَوْ صِفَةٍ. وَالشَّيْءَ الَّذِي وُجُودُ الْحُكْمِ فِيهِ أَظْهَرُ يُسَمُّونَهُ الْأَصْلَ، وَالشَّيْءَ الَّذِي يُوجَبُ لَهُ الْحُكْمُ مِنْ أَجْلِ وُجُودِهِ فِي الْأَصْلِ يُسَمُّونَهُ الْفَرْعَ. وَالصِّفَةَ الْجَامِعَةَ بَيْنَهُمَا أَوِ السَّبَبَ يُسَمُّونَهُ الْعِلَّةَ.

211. Nonexistence, negation and the scope of the definition

R 211 · BA 258

One should not object to our saying “two things” rather than, as in their description, “two objects of knowledge,” on the alleged ground that “thing” does not apply to the nonexistent: the nonexistent is scarcely ever made a basis of comparison. Even granting their point, nothing prevents calling the nonexistent a thing insofar as it exists in the soul. Some things are in the soul as they are outside it; others are in the soul without existing outside it. In general, the theologians should not have quibbled with the Muʿtazila over this.

وَيَنْبَغِي أَنْ لَا تَأْخُذَ عَلَيْنَا لِقَوْلِنَا حَمْلُ شَيْئَيْنِ، وَلَمْ نَقُلْ مَعْلُومَيْنِ عَلَى رَسْمِهِمْ، مِنْ قِبَلِ أَنَّ الشَّيْءَ — زَعَمُوا — لَا يَنْطَلِقُ عَلَى الْمَعْدُومِ، فَإِنَّ الْمَعْدُومَ يَكَادُ لَا يُقَاسُ عَلَيْهِ. وَأَيْضًا فَلَوْ سَلَّمْنَا لَهُمْ هَذَا لَمْ يَكُنْ مُمْتَنِعًا أَنْ يُسَمَّى الْمَعْدُومُ شَيْئًا إِذْ كَانَ لَهُ وُجُودٌ فِي النَّفْسِ، لِأَنَّا نَقُولُ مِنَ الْأَشْيَاءِ مَا هُوَ فِي النَّفْسِ كَحَالِهِ خَارِجَ النَّفْسِ، وَمِنْهَا مَا هُوَ فِي النَّفْسِ مِنْ غَيْرِ أَنْ يَكُونَ خَارِجَ النَّفْسِ. وَبِالْجُمْلَةِ فَقَدْ كَانَ يَنْبَغِي لِلْمُتَكَلِّمِينَ أَلَّا يُشَاحُّوا الْمُعْتَزِلَةَ فِي مِثْلِ هَذَا.

Nor should one attend to their saying, “because of a common factor, whether an attribute or a cause, or the negation of these in both.” Negation as negation does not require one ruling for two things—except where negation has the force of privation, and privation follows an attribute that requires a ruling for both things. Our discussion has carried us away from our initial purpose. Let us return to where we were and say:[93]

وَكَذَلِكَ أَيْضًا لَا يُلْتَفَتُ إِلَى قَوْلِهِمْ: لِأَمْرٍ جَامِعٍ بَيْنَهُمَا مِنْ صِفَةٍ أَوْ سَبَبٍ أَوْ نَفْيِهِمَا عَنْهُمَا. فَإِنَّ النَّفْيَ مِنْ جِهَةِ مَا هُوَ نَفْيٌ لَا يُوجِبُ حُكْمًا وَاحِدًا لِشَيْئَيْنِ، اللَّهُمَّ إِلَّا مِنْ جِهَةِ أَنَّ النَّفْيَ فِي مَوَاضِعَ قُوَّتُهُ قُوَّةُ الْعَدَمِ، وَالْعَدَمُ تَابِعٌ لِصِفَةٍ مَا تَقْتَضِي حُكْمًا لِشَيْئَيْنِ. وَقَدْ جَمَحَ بِنَا الْقَوْلُ عَمَّا كُنَّا قَصَدْنَا إِلَيْهِ مِنْ أَوَّلِ الْأَمْرِ فَلْنَرْجِعْ إِلَى حَيْثُ كُنَّا فَنَقُولُ:

212. Most legal qiyās is substitution within an understood meaning

R 212 · BA 259–260

Examining what they mean by qiyās here shows that it is not a syllogism, but belongs to using a particular expression in place of the intended universal. The evidence is that the original case receives its ruling through a text or consensus. If the operative ground requiring the ruling is expressly stated and is more general than the original case, this belongs to general expression. An example is his saying, God bless him and grant him peace, concerning water left by a cat: “[The cat] is not impure, because it is among those that circulate around you, male or female.” This too has degrees; many who reject qiyās allow such cases.

إِنَّهُ إِذَا تُؤُمِّلَ هَذَا الْمَعْنَى الَّذِي يَعْنُونَهُ بِالْقِيَاسِ فِي هَذَا الْمَوْضِعِ ظَهَرَ أَنَّ ذَلِكَ لَيْسَ بِقِيَاسٍ، وَأَنَّهُ مِنْ جِنْسِ إِبْدَالِ الْجُزْئِيِّ مَكَانَ الْكُلِّيِّ. وَالدَّلِيلُ عَلَى ذَلِكَ أَنَّ الْأَصْلَ إِنَّمَا تَعَلَّقَ بِهِ الْحُكْمُ بِالنَّصِّ أَوْ بِالْإِجْمَاعِ، فَإِنْ صُرِّحَ بِالْعِلَّةِ الْمُوجِبَةِ لِلْحُكْمِ، وَكَانَتْ أَعَمَّ مِنَ الْأَصْلِ، فَهَذَا يَلْتَحِقُ بِالْعَامِّ، مِثْلَ قَوْلِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فِي سُؤْرِ الْهِرَّةِ: «إِنَّهَا لَيْسَتْ بِنَجَسٍ لِأَنَّهَا مِنَ الطَّوَّافِينَ عَلَيْكُمْ أَوِ الطَّوَّافَاتِ» وَلَهَا أَيْضًا مَرَاتِبُ، وَقَدْ أَجَازَ مِثْلَ هَذَا كَثِيرٌ مِمَّنْ نَفَى الْقِيَاسَ.

If the ground requiring the ruling is not expressly stated, but the expression’s understood meaning requires it and it is more general than the original case, this is using a particular expression in place of the intended universal. We then assign the ruling to anything shown, through independent inquiry or sense perception, to fall under that universal. An example is his prohibition of drinking from silver vessels, God bless him and grant him peace. Extravagance is understood from it; hence we extend the ruling to gold vessels.[94, 95, 96]

وَأَمَّا إِذَا لَمْ يَكُنْ صَرَّحَ بِالْعِلَّةِ الْمُوجِبَةِ لِلْحُكْمِ وَاقْتَضَاهَا مَفْهُومُ اللَّفْظِ، وَكَانَتْ أَعَمَّ مِنَ الْأَصْلِ، كَانَ مِنْ بَابِ إِبْدَالِ الْجُزْئِيِّ مَكَانَ الْكُلِّيِّ. وَعِنْدَ ذَلِكَ أَيُّمَا صَحَّ بِالِاجْتِهَادِ أَوْ بِالْحِسِّ أَنَّهُ دَاخِلٌ تَحْتَ ذَلِكَ الْكُلِّيِّ أَلْحَقْنَا بِهِ ذَلِكَ الْحُكْمَ. وَمِثَالُهُ نَهْيُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ عَنِ الشُّرْبِ فِي آنِيَةِ الْفِضَّةِ، فَإِنَّ الْمَفْهُومَ مِنْهُ السَّرَفُ، فَلِذَلِكَ أَلْحَقْنَا بِهِ آنِيَةَ الذَّهَبِ.

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93. Translation. The contrast between نفي (negation) and عدم (privation/nonbeing) is retained. Here عدم functions as a privation associated with a positive attribute, not simply as the logical operation of negating.

94. Translation. The Arabic قياس in the denial is rendered “syllogism,” preserving Ibn Rushd’s distinction between actual inference and the jurists’ broader use of qiyās. The editor’s suggestion on p126 that الكلي and الجزئي should be reversed is not adopted: the printed order agrees with §§191 and 221. The particular wording stands in for an intended universal meaning.

95. Translation. سؤر is the liquid remaining after an animal has drunk. The cat hadith’s masculine/feminine alternatives are preserved rather than silently replaced with a different transmitted wording.

96. Interpretation. Strict vs broad analogy. Bou Akl 2015 intro pp.57–70 distinguishes deriving a ruling by recovering an intended universal from a case where a legal relation between two particulars cannot be supported by such an indicated universal. The narrow genuine qiyās is not denied; his reading is a scholarly argument and needs case-by-case Bidaya testing.

213. What warrants substitution: relevant contextual indications

R 213 · BA 261

Since this is so, what they mean by qiyās in this discipline generally comes back to what expressions require through their understood meanings. Expressions require this only through accompanying contextual indications—not just any indications, but those whose kind the Law demonstrably takes into account. The situation is thus like that of ordinary communication.

وَإِذَا كَانَ هَذَا هَكَذَا، وَكَانَ مَا يَعْنُونَهُ بِالْقِيَاسِ فِي هَذِهِ الصِّنَاعَةِ فِي الْأَكْثَرِ رَاجِعًا إِلَى مَا تَقْتَضِيهِ الْأَلْفَاظُ بِمَفْهُومَاتِهَا، وَكَانَتِ الْأَلْفَاظُ إِنَّمَا تَقْتَضِي ذَلِكَ بِالْقَرَائِنِ الَّتِي تَقْتَرِنُ بِهَا، وَلَكِنْ لَيْسَ أَيَّ قَرِينَةٍ اتَّفَقَتْ لَكِنِ الْقَرَائِنَ الَّتِي يَشْهَدُ الشَّرْعُ بِالِالْتِفَاتِ إِلَى جِنْسِهَا، فَإِنَّ الْحَالَ فِي ذَلِكَ كَالْحَالِ فِي الْمُخَاطَبَةِ الْجُمْهُورِيَّةِ.

Just as the contextual indications on which a Bedouin relies when addressing another must be known to the addressee, and the speaker's attention to them in speaking must be known, so it must be in the Law. We shall indicate them individually and arrange them according to the rank of each in clarity.

فَكَمَا أَنَّ الْقَرَائِنَ الَّتِي يُعَوِّلُ عَلَيْهَا الْأَعْرَابِيُّ عِنْدَ مُخَاطَبَةِ غَيْرِهِ تَكُونُ مَعْلُومَةً عِنْدَ الْمُخَاطَبِ، وَقَدْ عَرَفَ الْتِفَاتَ الْمُخَاطِبِ فِي حِينِ مُخَاطَبَتِهِ إِلَيْهَا، كَذَلِكَ يَنْبَغِي أَنْ يَكُونَ فِي الشَّرْعِ. وَنَحْنُ نُشِيرُ إِلَى وَاحِدَةٍ وَاحِدَةٍ مِنْهَا، وَنُرَتِّبُهَا بِحَسَبِ مَرْتَبَتِهَا فِي الْبَيَانِ.

214. Certain, probable and indeterminate extensions

R 214 · BA 262

As we said, contextual indications can make a statement unambiguous through its understood meaning, when they establish its metaphor or substitution decisively; or prima facie through its understood meaning, when they are preponderant rather than decisive; or indeterminate, when they remain undecided. We should therefore indicate their ranks here, although they are difficult to delimit precisely. We say:

وَلِأَنَّ الْقَرَائِنَ كَمَا تَقَدَّمَ مِنْ قَوْلِنَا أَحَدُ مَا يَجْعَلُ الْقَوْلَ كَالنَّصِّ بِمَفْهُومِهِ، وَذَلِكَ إِذَا كَانَتْ قَاطِعَةً فِي اسْتِعَارَتِهِ وَإِبْدَالِهِ، أَوْ كَالظَّاهِرِ بِمَفْهُومِهِ إِذَا لَمْ تَكُنْ قَاطِعَةً بَلْ أَكْثَرِيَّةً، أَوْ كَالْمُجْمَلِ إِذَا كَانَتْ مُتَرَدِّدَةً، فَقَدْ يَنْبَغِي هَهُنَا أَنْ نُشِيرَ إِلَى مَرَاتِبِهَا وَإِنْ كَانَتْ عَسِيرًا مَا تَنْضَبِطُ فَنَقُولُ:

215. The stronger case: a fortiori indication

R 215 · BA 263

The first rank has the status of an unambiguous expression: the ruling applies with greater reason to the unmentioned case than to the stated one. Examples are His exalted saying, “God does not wrong anyone by an atom’s weight,”[97] and His saying, mighty and exalted, “Do not say ‘Uff’ to the two of them”[98]; likewise the Prophet’s saying, peace be upon him, “Hand over the thread and the needle,” and similar expressions. This has a range of clarity. They call it the purport of the discourse (فحوى الخطاب), and most do not call it qiyās.[99]

أَمَّا الْمَرْتَبَةُ الْأُولَى وَهِيَ فِي حُكْمِ النَّصِّ فَأَنْ يَكُونَ الْمَسْكُوتُ عَنْهُ أَحْرَى مِنَ الْمَنْطُوقِ بِهِ فِي تَعَلُّقِ الْحُكْمِ بِهِ كَقَوْلِهِ تَعَالَى: «إِنَّ اللَّهَ لَا يَظْلِمُ مِثْقَالَ ذَرَّةٍ»[97]، وَقَوْلِهِ عَزَّ وَجَلَّ: «وَلَا تَقُلْ لَهُمَا أُفٍّ»[98]. وَمِثْلُ هَذَا قَوْلُهُ عَلَيْهِ السَّلَامُ: «أَدُّوا الْخَائِطَ وَالْمِخْيَطَ»، وَمَا أَشْبَهَهَا، وَلَهَذَا عَرْضٌ فِي الْبَيَانِ. وَهَذَا يُسَمُّونَهُ بِفَحْوَى الْخِطَابِ، وَأَكْثَرُهُمْ لَيْسَ يُسَمِّيهِ قِيَاسًا.

216. Equal extension: the legal meaning beyond a named individual

R 216 · BA 264

The second rank is where the unmentioned case has the same relevant meaning as the stated case with respect to the ruling. An example is his saying, peace be upon him, “Whoever emancipates his share in a slave must have the remainder assessed against him.” The case of a female slave is included with that of a male slave, since it has the same relevant meaning. They call this analogy within the meaning of the original case (القياس في معنى الأصل). This too has a range of greater and lesser clarity.

الْمَرْتَبَةُ الثَّانِيَةُ: أَنْ يَكُونَ الْمَسْكُوتُ عَنْهُ فِي مَعْنَى الْمَنْطُوقِ بِهِ فِي الْحُكْمِ، كَقَوْلِهِ عَلَيْهِ السَّلَامُ: «مَنْ أَعْتَقَ شِرْكًا لَهُ فِي عَبْدٍ قُوِّمَ عَلَيْهِ الْبَاقِي»، فَإِنَّ الْأَمَةَ تَلْتَحِقُ بِالْعَبْدِ وَهِيَ فِي مَعْنَاهُ. وَهَذَا يُسَمُّونَهُ بِالْقِيَاسِ فِي مَعْنَى الْأَصْلِ. وَلَهَذَا أَيْضًا عَرْضٌ فِي الظُّهُورِ وَقِلَّةِ الظُّهُورِ.

217. Suitable grounds, recognised goods and the limit of legislation

R 217 · BA 265–266

The third rank is of the same kind as the second: it is prima facie. In most cases, however, its clarity is weaker, so we have placed it third. Here the unmentioned case is joined to the stated one because of a shared benefit (مصلحة), whose kind the Law has acknowledged as beneficial. They call this analogy from a plausible, suitable ground (القياس المخيل والمناسب).

الْمَرْتَبَةُ الثَّالِثَةُ: وَهَذِهِ الْمَرْتَبَةُ مِنْ جِنْسِ الثَّانِيَةِ، أَعْنِي أَنَّهَا ظَاهِرَةٌ، لَكِنَّهَا فِي أَكْثَرِ الْمَوَاضِعِ تَضْعُفُ عَنْ مرتبته فِي الْبَيَانِ، فَلِذَلِكَ جَعَلْنَاهَا ثَالِثَةً. وَهِيَ أَنْ يَكُونَ الْمَسْكُوتُ عَنْهُ يَلْتَحِقُ بِالْمَنْطُوقِ بِهِ لِمَصْلَحَةٍ جَامِعَةٍ قَدْ شَهِدَ الشَّرْعُ لِجِنْسِهَا بِأَنَّهُ مَصْلَحَةٌ. وَهَذَا يُسَمُّونَهُ الْقِيَاسَ الْمُخَيِّلَ وَالْمُنَاسِبَ.

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[97] Qurʾān, al-Nisāʾ 4:40 ↗.

[98] Qurʾān, al-Isrāʾ 17:23 ↗. The Arabic quotation has wa-lā where the verse has fa-lā; the author’s wording is retained.

[99] Translation. The relation is a fortiori: forbidding the lesser harm indicates the graver harm with greater reason. عرض here means a range or breadth of degrees, not an accidental property.

This kind has degrees of proximity and remoteness. When it is very close, they call it a congruent suitable ground (المناسب الملائم); many proponents of qiyās stop here. When it is intermediate, they do not call it congruent, but suitable and plausible. When it is very remote and completely general, as when we simply say “benefit,” many proponents of qiyās reject it. Some jurists reason in this way when holding that divorce pronounced by a sick man does not cut off inheritance.

وَلِهَذَا الْجِنْسِ مَرَاتِبُ فِي الْقُرْبِ وَالْبُعْدِ، فَمَتَى كَانَ قَرِيبًا جِدًّا سَمَّوْهُ الْمُنَاسِبَ الْمُلَائِمَ، وَهُنَا انْتَهَى كَثِيرٌ مِنَ الْقَائِلِينَ بِالْقِيَاسِ. وَمَتَى كَانَ مُتَوَسِّطًا فِي الْقُرْبِ وَالْبُعْدِ لَمْ يُطْلِقُوا عَلَيْهِ اسْمَ الْمُلَائِمِ، وَسَمَّوْهُ الْمُنَاسِبَ وَالْمُخَيِّلَ. وَمَتَى كَانَ بَعِيدًا جِدًّا وَأَعَمَّ شَيْءٍ، كَقَوْلِنَا مَصْلَحَةٌ، فَإِنَّ كَثِيرًا مِنَ الْقَائِلِينَ بِالْقِيَاسِ لَا يَقُولُ بِهِ. وَمِثْلُ هَذَا يَرَاهُ بَعْضُ الْفُقَهَاءِ فِي طَلَاقِ الْمَرِيضِ أَنَّهُ لَا يَقْطَعُ الْمِيرَاثَ.

This last kind rightly deserves rejection as legal evidence, since benefits often diverge and vary with each time and circumstance. Those who reason this way are in fact legislating, rather than deriving rulings from the Law. An example is someone’s saying, “New rulings arise for people in proportion to the new wickedness they introduce,” or words to that effect. Mālik, God have mercy upon him, has been reproached for this, because he often attends to this kind.[100]

وَحَقٌّ لِهَذَا الصِّنْفِ أَنْ يُرْفَضَ وَلَا يُجْعَلَ دَلِيلًا شَرْعِيًّا لِأَنَّهُ كَثِيرًا مَا تَتَشَعَّبُ الْمَصَالِحُ وَتَخْتَلِفُ، وَذَلِكَ بِحَسَبِ وَقْتٍ وَقْتٍ وَحَالَةٍ حَالَةٍ. وَالْقَائِلُونَ بِمِثْلِ هَذَا لَيْسَ هُمْ فِي الْحَقِيقَةِ مُسْتَنْبِطِينَ عَنِ الشَّرْعِ، بَلْ هُمْ شَارِعُونَ. وَمِنْ هَذَا قَوْلُ بَعْضِهِمْ: يَحْدُثُ لِلنَّاسِ أَحْكَامٌ بِقَدْرِ مَا أَحْدَثُوا مِنَ الْفُجُورِ، أَوْ قَوْلٌ شَبِيهٌ بِهَذَا. وَقَدْ عُذِلَ مَالِكٌ رَحِمَهُ اللَّهُ عَلَى هَذَا، لِأَنَّهُ كَثِيرًا مَا يَلْتَفِتُ إِلَى هَذَا الْجِنْسِ.

218. Resemblance and uncertainty about the operative ground

R 218 · BA 267

The fourth rank is what they call analogy by resemblance (قياس الشبه). The unmentioned case is joined to the stated one neither because it has a stronger claim, nor because it shares the same relevant meaning, nor because of a suitable operative ground. Rather, a resemblance between them suggests that it contains a ground common to both cases and appropriate to the ruling, although that ground has not been identified.

الْمَرْتَبَةُ الرَّابِعَةُ: وَهِيَ الَّتِي يَعْرِفُونَهَا بِقِيَاسِ الشَّبَهِ وَهُوَ أَنْ يَلْحَقَ الْمَسْكُوتُ عَنْهُ بِالْمَنْطُوقِ بِهِ، لَا لِأَنَّهُ أَوْلَى، وَلَا لِأَنَّهُ فِي مَعْنَاهُ، وَلَا لِعِلَّةٍ مُنَاسِبَةٍ، بَلْ يَلْحَقُ الْمَسْكُوتُ عَنْهُ بِالْمَنْطُوقِ بِهِ لِشَبَهٍ بَيْنَهُمَا يُظَنُّ بِهِ أَنَّهُ يَحْتَوِي عَلَى عِلَّةٍ جَامِعَةٍ بَيْنَهُمَا مُنَاسِبَةٍ لِلْحُكْمِ مِنْ غَيْرِ أَنْ يُوقَفَ عَلَيْهَا.

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[100] Translation. The rejection concerns the last, remote and unrestricted appeal to benefit; it should not be expanded into rejection of every legally grounded consideration of maṣlaḥa. The inheritance example concerns the effect of a sick husband’s divorce on the wife’s claim.

Most cases of this kind seem indeterminate, unless they join the second rank, which is within the meaning of the original case. An example is his saying, God bless him and grant him peace, “Do not sell wheat for wheat—the four known commodities—except hand to hand.” Some say he intended staple nourishment, some food, and some goods measured by volume. All this is their probable judgement: nourishment, measure, or edibility circumscribes the suitable factor requiring prohibition. To me this seems the remotest contextual indication used to understand a universal meaning from a particular expression. Many therefore confine such a report to what its wording requires.

وَيُشْبِهُ أَنْ يَكُونَ جُلُّ مَا يَقَعُ فِي هَذَا الْجِنْسِ مُجْمَلًا، إِلَّا أَنْ يَلْتَحِقَ بِالْمَرْتَبَةِ الثَّانِيَةِ وَهِيَ الَّتِي فِي مَعْنَى الْأَصْلِ. وَمِثْلُ هَذَا قَوْلُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ: «لَا تَبِيعُوا الْبُرَّ بِالْبُرِّ الْأَرْبَعَةَ الْمَعْلُومَةَ إِلَّا هَاءَ بِهَاءَ»، فَإِنَّ قَوْمًا قَالُوا أَرَادَ بِذَلِكَ الْمُقْتَاتَ، وَقَوْمًا قَالُوا الْمَطْعُومَ، وَقَوْمًا قَالُوا الْمَكِيلَ. وَهَذَا كُلُّهُ ظَنٌّ مِنْهُمْ، فَإِنَّ الِاقْتِيَاتَ أَوِ الْكَيْلَ أَوِ الطَّعْمَ صِفَةٌ حَاصِرَةٌ لِلْأَمْرِ الْمُنَاسِبِ الْمُوجِبِ لِلتَّحْرِيمِ، وَهِيَ بِالْجُمْلَةِ فِيمَا يَظْهَرُ لِي أَبْعَدُ قَرِينَةٍ يُصَارُ إِلَيْهَا إِلَى أَنْ يُفْهَمَ عَنِ اللَّفْظِ الْجُزْئِيِّ الْمَعْنَى الْكُلِّيُّ، وَلِذَلِكَ كَثِيرٌ مِنَ النَّاسِ اقْتَصَرَ بِمِثْلِ هَذَا الْحَدِيثِ عَلَى مُقْتَضَى اللَّفْظِ.

219. Analogy in fixed penalties and expiations

R 219 · BA 268–269

Know that the classes of prescribed matters differ in how clearly these contextual indications appear within them. Hence Abū Ḥanīfa did not permit qiyās in fixed penalties and expiations. It is clearer in matters of necessity, such as sale, marriage, and the like. As we said before, when an expression first appears it may be unknown whether it is a specific expression substituted for a general one. In some cases that is known, but the universal for which it has been substituted is unknown.

وَيَنْبَغِي أَنْ تَعْلَمَ أَنَّ أَجْنَاسَ الْمَفْرُوضَاتِ تَتَفَاوَتُ فِي ظُهُورِ هَذِهِ الْقَرَائِنِ فِيهَا، وَلِذَلِكَ لَمْ يُجِزْ أَبُو حَنِيفَةَ الْقِيَاسَ فِي الْحُدُودِ وَالْكَفَّارَاتِ وَهُوَ فِي الْأُمُورِ الضَّرُورِيَّةِ أَبْيَنُ كَالْبَيْعِ وَالنِّكَاحِ وَمَا شَاكَلَهُمَا. وَرُبَّمَا كَانَ اللَّفْظُ، كَمَا تَقَدَّمَ مِنْ قَوْلِنَا، أَوَّلَ مَا يَرِدُ لَا يُعْلَمُ هَلْ هُوَ خَاصٌّ أُبْدِلَ بَدَلَ الْعَامِّ، وَفِي بَعْضِهَا يُعْلَمُ ذَلِكَ، وَلَكِنْ لَا يُعْلَمُ أَيُّ كُلِّيٍّ أُبْدِلَ بَدَلَهُ.

220. Testing, division and concomitance

R 220 · BA 269

Here proponents of qiyās employ the kind of inference called testing and division (السبر والتقسيم). Some, though fewer, also employ positive and negative concomitance (الطرد والعكس). We must explain how they use these.

وَالْقَائِلُونَ بِالْقِيَاسِ يَسْتَعْمِلُونَ فِي هَذَا الْمَوْضِعِ مِنْ أَجْنَاسِ الْقِيَاسِ النَّوْعَ الَّذِي يَعْرِفُونَهُ بِالسَّبْرِ وَالتَّقْسِيمِ وَرُبَّمَا اسْتَعْمَلَ بَعْضُهُمْ، لَكِنْ هُمُ الْأَقَلُّ، الطَّرْدَ وَالْعَكْسَ. وَيَنْبَغِي أَنْ نُبَيِّنَ كَيْفَ يَسْتَعْمِلُونَ ذَلِكَ.

221. Eliminating candidates for the universal meaning

R 221 · BA 270

When it is unknown whether a particular expression has been used to express a universal meaning, testing and division proceeds as follows. We say: either this particular expression is used to express a universal meaning or it retains its original meaning. We then show that it does not retain that meaning. Next we must determine which universal is intended. We enumerate all the universal meanings probably intended by the particular expression, eliminate them one by one until only one remains, and judge that this is the universal intended by that particular.

أَمَّا السَّبْرُ وَالتَّقْسِيمُ فِيمَا لَمْ يُعْلَمْ هَلْ هُوَ لَفْظٌ جُزْئِيٌّ أُخْرِجَ مَخْرَجَ الْكُلِّيِّ أَمْ لَا، فَهُوَ أَنْ نَقُولَ: لَا يَخْلُو أَنْ يَكُونَ هَذَا اللَّفْظُ الْجُزْئِيُّ أُخْرِجَ مَخْرَجَ الْكُلِّيِّ أَمْ هُوَ عَلَى أَصْلِهِ، ثُمَّ نُبَيِّنَ أَنَّهُ لَيْسَ عَلَى أَصْلِهِ، فَيَنْبَغِي بَعْدَ ذَلِكَ أَنْ نَسْتَنْبِطَ أَيَّ كُلِّيٍّ أُرِيدَ بِهِ، وَذَلِكَ بِأَنْ نُقَسِّمَ جَمِيعَ الْمَعَانِي الْكُلِّيَّةِ الَّتِي يَغْلِبُ عَلَى الظَّنِّ أَنَّهُ أُرِيدَ بِذَلِكَ اللَّفْظِ الْجُزْئِيِّ، وَنُبْطِلَ وَاحِدًا وَاحِدًا مِنْهَا، حَتَّى يَبْقَى وَاحِدًا، فَنَحْكُمَ أَنَّ ذَلِكَ هُوَ الْكُلِّيُّ الْمُرَادُ بِذَلِكَ الْجُزْئِيِّ.

If it is apparent from the outset that a particular expression has been substituted for a universal, but not apparent which universal, we employ testing and division to determine it.

وَإِنْ كَانَ ظَاهِرًا مِنْ أَوَّلِ الْأَمْرِ أَنَّهُ لَفْظٌ جُزْئِيٌّ أُبْدِلَ بَدَلَ الْكُلِّيِّ، وَلَمْ يَكُنْ ظَاهِرًا أَيُّ كُلِّيٍّ هُوَ، اسْتَعْمَلْنَا السَّبْرَ وَالتَّقْسِيمَ فِي اسْتِنْبَاطِهِ.

222. Positive and negative concomitance are not enough

R 222 · BA 271

Positive concomitance (طرد) occurs when a ruling is given concerning something and we assign it to another thing because of a resemblance we find between them, applying it uniformly to the latter. On this basis we judge that the expression has been cast in particular form while intending the universal in which the two resemble one another.

فَأَمَّا الطَّرْدُ فَهُوَ أَنْ يَرِدَ الْحُكْمُ مُتَعَلِّقًا بِأَمْرٍ مَا فَنَحْكُمَ بِوُجُودِهِ لِأَمْرٍ آخَرَ لِلتَّشَابُهِ الَّذِي نَجِدُهُ بَيْنَهُمَا وَنَطْرُدَهُ فِيهِ، وَنَحْكُمَ لِأَجْلِ ذَلِكَ بِأَنَّهُ لَفْظٌ أُخْرِجَ مَخْرَجَ الْجُزْئِيِّ وَالْمُرَادُ بِهِ ذَلِكَ الْكُلِّيُّ الَّذِي تَشَابَهَا بِهِ.

This procedure may be strengthened by considering both presence and absence: any universal whose presence brings the ruling and whose absence removes it is taken as the ground on which the ruling depends (مناط الحكم). This is what they call negative concomitance (عكس). Most proponents of qiyās agree in rejecting the determination of a ruling's ground through positive and negative concomitance.[101]

وَقَدْ يُشَدُّ هَذَا الْمَوْضِعُ بِأَنْ يُسْتَعْمَلَ فِيهِ الْوُجُودُ وَالِارْتِفَاعُ، وَذَلِكَ أَنَّ أَيَّ كُلِّيٍّ وُجِدَ الْحُكْمُ بِوُجُودِهِ وَارْتَفَعَ بِارْتِفَاعِهِ فَهُوَ مَنَاطُ الْحُكْمِ وَهَذَا هُوَ الَّذِي يُسَمُّونَهُ الْعَكْسَ، وَأَكْثَرُ الْقَائِلِينَ بِالْقِيَاسِ مُجْمِعُونَ عَلَى إِبْطَالِ اسْتِنْبَاطِ مَنَاطِ الْحُكْمِ بِالطَّرْدِ وَالْعَكْسِ.

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[101] **101.** Translation. Ṭard and ʿaks here refer to alleged concomitance of a property and a ruling in presence and absence. They do not mean logical conversion of a categorical proposition in this passage. Ibn Rushd reports the rejection of using such correlation alone to identify the operative ground.

223. Why much juristic qiyās is not a syllogism

R 223 · BA 272–273

In general, it appears that in most cases proponents of qiyās in the Law do not use it to derive an unknown ruling from a known one, in the way an unknown conclusion is derived from intellectually apprehended premises. They use it to establish the correctness of substituting expressions in each context and case. What they call analogy from a plausible, suitable ground and analogy by resemblance are contextual indications of verbal substitution. They are not syllogisms and perform no syllogistic operation, although those studying this discipline have not clearly recognised the distinction.

وَبِالْجُمْلَةِ فَإِنَّهُ مِمَّا يَظْهَرُ أَنَّ أَكْثَرَ الْمَوَاضِعِ الَّتِي يَسْتَعْمِلُ الْقِيَاسَ فِيهَا الْقَائِلُونَ بِالْقِيَاسِ فِي الشَّرْعِ لَيْسَ يَسْتَعْمِلُونَهُ فِي اسْتِنْبَاطِ حُكْمٍ مَجْهُولٍ عَنْ مَعْلُومٍ، عَلَى جِهَةِ مَا يُسْتَنْبَطُ عَنِ الْمُقَدِّمَاتِ الْمَعْقُولَةِ مَطْلَبٌ مَجْهُولٌ، لَكِنْ فِي تَصْحِيحِ إِبْدَالِ الْأَلْفَاظِ فِي مَكَانٍ مَكَانٍ وَنَازِلَةٍ نَازِلَةٍ، فَإِنَّ الْأَنْوَاعَ الَّتِي يُسَمُّونَهَا بِالْقِيَاسِ الْمُخَيِّلِ وَالْمُنَاسِبِ وَقِيَاسِ الشَّبَهِ هِيَ قَرَائِنُ تَدُلُّ عِنْدَهُمْ عَلَى إِبْدَالِ الْأَلْفَاظِ، وَلَيْسَتْ أَقْيِسَةً، وَلَا يُوجَدُ لَهَا فِعْلُ الْقِيَاسِ، وَإِنْ كَانَ لَمْ يَتَمَيَّزْ لِلنَّاظِرِينَ فِي هَذِهِ الصِّنَاعَةِ أَمْرُ هَذَا التَّمْيِيزِ،

This is evident from their arguments against those who reject qiyās, whom they call the Ẓāhirīs (أهل الظاهر, “People of the Apparent”). The latter confronted them with a difficulty they could not escape: where knowledge comes through revelation and God’s command, intellects have no part in affirming or denying anything of it. Moreover, rulings are not attributes of things’ essences that intellects can apprehend. In general, qiyās has no part in whatever depends upon authoritative instruction (توقيف); its means of knowledge is transmitted communication (سمع), as with languages and similar things.

وَذَلِكَ ظَاهِرٌ مِنْ أَقَاوِيلِهِمُ الَّتِي يَسْتَعْمِلُونَهَا فِي مُنَاقَضَةِ الْقَائِلِينَ بِرَدِّ الْقِيَاسِ، وَهُمُ الْمُسَمَّوْنَ عِنْدَهُمْ أَهْلَ الظَّاهِرِ، لِأَنَّ هَؤُلَاءِ الْقَوْمَ أَلْزَمُوا الْقَائِلِينَ بِالْقِيَاسِ أَمْرًا لَمْ يَجِدُوا عَنْهُ مَحِيصًا، وَهُوَ أَنَّ مَا سَبِيلُ الْمَعْرِفَةِ بِهِ الْوَحْيُ وَالْأَمْرُ مِنَ اللَّهِ فَإِنَّهُ لَيْسَ لِلْعُقُولِ فِي إِثْبَاتِ شَيْءٍ مِنْ ذَلِكَ وَإِبْطَالِهِ مَدْخَلٌ، وَأَيْضًا فَإِنَّ الْأَحْكَامَ لَيْسَتْ صِفَاتِ ذَوَاتٍ فَتُدْرِكَهَا الْعُقُولُ. وَبِالْجُمْلَةِ كُلُّ مَا ثبوته التَّوْقِيفُ لَا مَدْخَلَ لِلْقِيَاسِ فِيهِ، وَإِنَّمَا طَرِيقُ الْمَعْرِفَةِ بِهِ السَّمْعُ كَاللُّغَاتِ وَغَيْرِ ذَلِكَ.

This objection applies only to someone who reasons from an original case whose wording contains no indication pointing to the underlying ground—for example, analogising the penalty for wine drinking to that for an unsubstantiated accusation of illicit intercourse (قذف). It does not apply to someone whose original case includes its operative ground in the understood meaning, even if the verbal form does not contain it. Most legal instances of qiyās belong to this kind. Had they understood this point, they could have answered their opponents.[102, 103]

وَهَذَا إِنَّمَا هُوَ لَازِمٌ لِمَنْ يَقِيسُ عَلَى أَصْلٍ لَمْ يَتَضَمَّنْ بِاللَّفْظِ قَطُّ التَّنْبِيهَ عَلَى الْأَصْلِ، مِثْلَ قِيَاسِ حَدِّ الْخَمْرِ عَلَى الْقَذْفِ. وَأَمَّا مَنْ يَقِيسُ عَلَى أَصْلٍ يَتَضَمَّنُ بِمَفْهُومِهِ عِلَّةَ الْأَصْلِ، وَإِنْ لَمْ يَتَضَمَّنْ ذَلِكَ بِصِيغَةِ اللَّفْظِ، فَلَيْسَ يَلْزَمُهُ هَذَا الِاعْتِرَاضُ. وَأَكْثَرُ مَقَايِيسِ الشَّرْعِ هِيَ مِنْ هَذَا الْبَابِ، وَلِذَلِكَ لَوْ فَهِمُوا هَذَا الْمَعْنَى لَأَمْكَنَهُمُ الِانْفِصَالُ عَنْهُمْ.

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102. Translation. The Arabic repeats الأصل in the phrase التنبيه على الأصل. “Underlying ground” conveys its function without silently supplying a new Arabic word. The relevant contrast is an extension indicated by the source’s meaning versus a comparison unsupported by that source’s signification.

103. Interpretation. Juristic inference and Farabi. Bou Akl 2015 pp.57–70 compares the classification with al-Fārābī’s exemplum (mithāl) and the rhetorical particular-to-particular inference. Ibn Rushd’s “in most cases” qualification matters: treating all legal qiyās as linguistic substitution would erase the limited residual genuine analogy.

224. Meaning can be apparent without an apparent verbal form

R 224 · BA 273

The Ẓāhirīs, and anyone allowing inference from expressions’ prima facie forms, should therefore not deny analogy within the original case’s meaning, or analogy from a plausible and congruently suitable ground, when the Law demonstrably attends to its proximate kind. These are all contextual indications that [make] expressions prima facie through their understood meanings, even when they are not so through their forms. There is no sense in recognising prima facie signification only in verbal form.

وَأَمَّا أَهْلُ الظَّاهِرِ وَمَنْ يُجَوِّزُ الِاسْتِدْلَالَ بِظَوَاهِرِ الْأَلْفَاظِ مِنْ جِهَةِ صِيَغِهَا، فَقَدْ يَنْبَغِي لَهُ أَلَّا يُنْكِرَ الْقِيَاسَ الَّذِي فِي مَعْنَى الْأَصْلِ، وَالْمُخَيِّلَ وَالْمُنَاسِبَ الْمُلَائِمَ إِذَا شَهِدَ الشَّرْعُ بِالِالْتِفَاتِ إِلَى جِنْسِهِ الْقَرِيبِ. فَإِنَّ هَذِهِ كُلَّهَا قَرَائِنُ نَظِيرَ الْأَلْفَاظِ ظَاهِرَةً بِمَفْهُومَاتِهَا، وَإِنْ لَمْ تَكُنْ بِصِيَغِهَا، وَلَا مَعْنَى لِقَوْلِ مَنْ لَا يَرَى الظَّاهِرَ إِلَّا فِي الصِّيغَةِ.

225. The disputed claim of Companion consensus on qiyās

R 225 · BA 274

Proponents of qiyās have sought to establish it through the Companions’ consensus. They transmitted statements from many Companions which, they claimed, support qiyās. The Ẓāhirīs challenged them on two grounds. First, consensus itself was unestablished: such statements were not transmitted from all the Companions, and, as explained earlier, a speaker’s statement cannot be attributed to someone silent. Second, had consensus occurred, disagreement would not have been transmitted from the Successors. They also cited reports from the Companions rejecting qiyās. In general, its proponents could not establish their claimed consensus.

وَقَدْ رَامَ الْقَائِلُونَ بِالْقِيَاسِ أَنْ يُثْبِتُوهُ مِنْ جِهَةِ إِجْمَاعِ الصَّحَابَةِ عَلَى ذَلِكَ، فَنَقَلُوا عَنْ كَثِيرٍ مِنْهُمْ أَقَاوِيلَ تَدُلُّ فِيمَا زَعَمُوا عَلَى الْقَوْلِ بِالْقِيَاسِ، فَعَانَدَهُمْ أَهْلُ الظَّاهِرِ فِي مَوْضِعَيْنِ: أَحَدُهُمَا: فِي نَفْسِ الْإِجْمَاعِ، وَذَلِكَ أَنَّهُ لَمْ يُنْقَلْ ذَلِكَ عَنْ جَمِيعِهِمْ، وَلَيْسَ يُنْسَبُ إِلَى سَاكِتٍ قَوْلُ قَائِلٍ كَمَا تَقَدَّمَ. وَالثَّانِي: أَنَّهُ لَوْ وَقَعَ مِنْهُمْ فِي ذَلِكَ إِجْمَاعٌ لَمَا وَرَدَ عَنِ التَّابِعِينَ فِي ذَلِكَ خِلَافٌ. وَأَيْضًا فَقَدْ تَمَسَّكَ أَهْلُ الظَّاهِرِ بِأَحَادِيثَ نُقِلَتْ عَنِ الصَّحَابَةِ فِي دَفْعِ الْقِيَاسِ. وَبِالْجُمْلَةِ فَلَمْ يَقْدِرِ الْقَائِلُونَ بِالْقِيَاسِ أَنْ يُصَحِّحُوا الْإِجْمَاعَ الَّذِي ادَّعَوْهُ فِي ذَلِكَ.

Moreover, the Companions’ transmitted expressions about qiyās admit several interpretations. On examination they seem likely to disclose the meaning we have assigned to qiyās: the Companions were exercising independent inquiry into expressions’ understood meanings. What the Ẓāhirīs seem entitled to resist is deriving substitution or metaphor through testing and division, or through other procedures, when none of the contextual indications we have enumerated is present.

وَأَيْضًا فَإِنَّ الْأَلْفَاظَ الْوَارِدَةَ عَنِ الصَّحَابَةِ فِي الْقِيَاسِ مُحْتَمِلَةٌ، وَيُشْبِهُ إِذَا تُؤُمِّلَتْ أَنْ يَظْهَرَ مِنْ أَمْرِهَا هَذَا الْمَعْنَى الَّذِي قُلْنَاهُ فِي الْقِيَاسِ، وَإِنَّ ذَلِكَ إِنَّمَا كَانَ مِنْهُمُ اجْتِهَادًا فِي مَفْهُومِ الْأَلْفَاظِ. وَالَّذِي يُشْبِهُ أَنْ يَكُونَ لِأَهْلِ الظَّاهِرِ فِيهِ مَدْفَعٌ اسْتِنْبَاطُ الْإِبْدَالِ أَوِ الِاسْتِعَارَةِ بِطَرِيقِ السَّبْرِ وَالتَّقْسِيمِ أَوْ بِغَيْرِهَا مِنَ الطُّرُقِ، إِذَا لَمْ يَكُنْ هُنَالِكَ إحدى الْقَرَائِنِ الَّتِي عَدَدْنَاهَا.

Anyone who permits that procedure should permit it for all expressions involving substitution, metaphor, omission, or, generally, alteration. Just as these contextual indications can generalise a specific expression, they can also restrict a general one.

وَيَنْبَغِي لِمَنْ أَجَازَ ذَلِكَ أَنْ يُجِيزَهُ فِي جَمِيعِ الْأَلْفَاظِ الْمُبْدَلَةِ أَوِ الْمُسْتَعَارَةِ وَالْمَحْذُوفَةِ، وَبِالْجُمْلَةِ الْمُغَيَّرَةِ. وَكَمَا أَنَّ هَذِهِ الْقَرَائِنَ قَدْ يُعَمَّمُ بِهَا الْخَاصُّ كَذَلِكَ قَدْ يُخَصَّصُ بِهَا الْعَامُّ.

226. The class and limits of qiyās; action and approval remain

R 226 · BA 275

This discussion has shown what the term qiyās signifies in this discipline, which class of legal evidence it belongs to, and where it may and may not be used. Among the ways of legal evidence, there remain the Prophet’s action and tacit approval, God bless him and grant him peace. These are evidence through their character as contextual indications, rather than through verbal forms or understood meanings. We shall discuss each of them and its force.

فَقَدْ ظَهَرَ مِنْ هَذَا الْقَوْلِ مَا هُوَ الْمَعْنَى الْمَدْلُولُ عَلَيْهِ بِاسْمِ الْقِيَاسِ فِي هَذِهِ الصِّنَاعَةِ، وَفِي أَيِّ جِنْسٍ دُخُولُهُ مِنْ أَجْنَاسِ الْأَدِلَّةِ الشَّرْعِيَّةِ، وَفِي أَيِّ الْمَوَاضِعِ يُسْتَعْمَلُ، وَفِي أَيِّهَا لَا. وَقَدْ بَقِيَ عَلَيْنَا مِنْ طُرُقِ الْأَدِلَّةِ الشَّرْعِيَّةِ الدَّلِيلُ الَّذِي هُوَ فِعْلُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ وَإِقْرَارُهُ. وَهَذَانِ الصِّنْفَانِ لَيْسَ هُمَا أَدِلَّةً مِنْ جِهَةِ صِيَغِ الْأَلْفَاظِ أَوْ مَفْهُومِهَا، بَلْ مِنْ جِهَةِ مَا هِيَ قَرَائِنُ. وَنَحْنُ نَقُولُ فِي وَاحِدٍ وَاحِدٍ مِنْهَا، وَمَا قُوَّتُهُ.

7. On tacit approval

7) الْقَوْلُ فِي الْإِقْرَارِ

227. What tacit approval establishes

R 227 · BA 276

As for his tacit approval, God bless him and grant him peace: when an act is done in his presence and it is certainly known that he saw and approved it, this shows that the act may occur in that manner and—if it is a legal judgement—that it is binding. Or it shows permissibility when the act had been supposed forbidden. This follows from his established protection from error in what he called people to and in what he approved, God bless him and grant him peace.[104]

أَمَّا إِقْرَارُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ عَلَى فِعْلٍ فُعِلَ بِمُشَاهَدَتِهِ وَعُلِمَ قَطْعًا أَنَّهُ رَآهُ فَأَقَرَّهُ، فَإِنَّهُ يَدُلُّ عَلَى جَوَازِ وُقُوعِ ذَلِكَ الْفِعْلِ عَلَى تِلْكَ الصِّفَةِ وَإِيجَابِهِ إِنْ كَانَ حُكْمًا شَرْعِيًّا، أَوْ عَلَى إِبَاحَةِ ذَلِكَ إِنْ تُخُيِّلَ فِيهِ أَنَّهُ مَحْظُورٌ لِثُبُوتِ عِصْمَتِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فِيمَا دَعَا إِلَيْهِ، وَفِيمَا أَقَرَّ عَلَيْهِ.

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104. Translation. The clause إن كان حكما شرعيا qualifies the reference to binding force; the passage is not translated as making every tacitly approved act obligatory.

8. On action

8) الْقَوْلُ فِي الْفِعْلِ

228. Actions that explain a revealed command

R 228 · BA 277

His actions, God bless him and grant him peace, are of several kinds. One explains a general or indeterminate expression. Such an action by him, God bless him and grant him peace, bears the ruling of the general expression: if that is recommended, the action is recommended; if obligatory, the action is obligatory. The evidence is his saying, peace be upon him, “Pray as you have seen me pray, and take your pilgrimage rites from me.”

وَأَمَّا أَفْعَالُهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَعَلَى ضُرُوبٍ: أَحَدُهَا مَا كَانَ بَيَانًا لِعَامٍّ أَوْ مُجمَلٍ، فَذَلِكَ مِنْهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مَحْمُولٌ عَلَى حُكْمِ ذَلِكَ الْعَامِّ، إِنْ كَانَ مَنْدُوبًا إِلَيْهِ فَالْفِعْلُ مَنْدُوبٌ إِلَيْهِ، وَإِنْ كَانَ وَاجِبًا فَوَاجِبٌ. وَذَلِكَ بِدَلِيلِ قَوْلِهِ عَلَيْهِ السَّلَامُ: «صَلُّوا كَمَا رَأَيْتُمُونِي أُصَلِّي وَخُذُوا عَنِّي مَنَاسِكَكُمْ».

229. Peculiar, unexplained and conflicting Prophetic actions

R 229 · BA 278–279

The second kind is the opposite: it is known through a circumstantial or verbal indicator ⟨that the action is peculiar to him. The third is⟩ intermediate between these two: actions of his, God bless him and grant him peace, for which it is unknown whether they explain an indeterminate expression, clarify a general one, or are peculiar to him. Here people disagree. Some construe them as obligatory, others as recommended, and others withhold judgement. This is Abū Ḥāmid’s preferred view, because an action has no verbal form.

وَالثَّانِي فِي مُقَابِلِ هَذَا وَهُوَ أَنْ يُعْلَمَ بِقَرِينَةِ حَالٍ أَوْ لَفْظٍ ⟨أَنَّهُ مُخْتَصٌّ. وَالثَّالِثُ هُوَ⟩ كَالْمُتَوَسِّطِ بَيْنَ هَذَيْنِ، وَهُوَ مَا وَرَدَ مِنْ أَفْعَالِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مِنْ غَيْرِ أَنْ يُعْلَمَ أَنَّ ذَلِكَ تَفْسِيرٌ مِنْهُ لِمُجْمَلٍ أَوْ بَيَانٌ لِعَامٍّ أَوْ مُخْتَصٌّ بِهِ. وَهُنَا اخْتَلَفَ النَّاسُ فَقَوْمٌ رَأَوْا حَمْلَهَا عَلَى الْوُجُوبِ، وَقَوْمٌ عَلَى النَّدْبِ، وَقَوْمٌ رَأَوُا التَّوْقِيفَ، وَهُوَ الْمُخْتَارُ عِنْدَ أَبِي حَامِدٍ، لِأَنَّ الْفِعْلَ لَا صِيغَةَ لَهُ.

Those construing the action as obligatory cite prima facie expressions that nevertheless admit other meanings, such as His exalted saying, “In God’s Messenger you have a good example.”[105] Those construing it as recommended appeal to the Companions’ imitation of his actions, God bless him and grant him peace: removing their sandals in prayer when he removed his, and refraining from shaving in the year of al-Ḥudaybiyya until he shaved. Proponents of obligation can also appeal to these actions of the Companions, may God be pleased with them.

وَأَمَّا مَنْ حَمَلَهُ عَلَى الْوُجُوبِ فَقَدِ اسْتَشْهَدَ عَلَى ذَلِكَ بِظَوَاهِرَ، لَكِنَّهَا مُحْتَمِلَةٌ، مِثْلَ قَوْلِهِ تَعَالَى: «لَقَدْ كَانَ لَكُمْ فِي رَسُولِ اللَّهِ أُسْوَةٌ حَسَنَةٌ»[105]. وَأَمَّا مَنْ رَأَى أَنَّهَا عَلَى النَّدْبِ فَتَمَسُّكًا بِاقْتِدَاءِ الصَّحَابَةِ بِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فِي أَفْعَالِهِ، لِخَلْعِهِمْ نِعَالَهُمْ فِي الصَّلَاةِ لَمَّا خَلَعَ، وَتَوَقُّفِهِمْ عَنِ الْحَلْقِ عَامَ الْحُدَيْبِيَةِ حَتَّى حَلَقَ. وَلِلْقَائِلِينَ بِالْوُجُوبِ أَيْضًا التَّمَسُّكُ بِمِثْلِ هَذَا مِنْ أَفْعَالِ الصَّحَابَةِ رَضِيَ اللَّهُ عَنْهُمْ.

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105. Qurʾān, al-Aḥzāb 33:21 ↗.

In reply, someone who holds that an action establishes no ruling may say: the Companions acted this way only where they knew, from either circumstantial indications or a statement, that he, God bless him and grant him peace, was explaining obligations or recommendations through his action. In general, the question admits independent judgement. The more apparent view is that no ruling can be assigned on the basis of this kind of action by him, God bless him and grant him peace, since it remains undecided between obligation, recommendation, permission, and being peculiar to him.

When his actions, peace be upon him, explain [an indeterminate expression] or clarify a general one and conflict, they have the same status as two conflicting statements. We shall discuss this later, as also the conflict of an action with a statement. Here ends the discussion in Part Three of this book.[106]

وَيُمْكِنُ أَنْ نَقُولَ رَدًّا عَلَى هَؤُلَاءِ مِمَّنْ لَا يَرَى لِلْفِعْلِ حُكْمًا بِأَنَّ هَذَا إِنَّمَا كَانَ مِنْ فِعْلِ الصَّحَابَةِ فِيمَا عَلِمُوا أَنَّهُ بَيَانٌ مِنْهُ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ لِلْمَفْرُوضَاتِ أَوِ الْمَنْدُوبَاتِ، وَذَلِكَ إِمَّا بِقَرَائِنِ أَحْوَالٍ أَوْ بِقَوْلٍ. وَبِالْجُمْلَةِ فَالْمَسْأَلَةُ اجْتِهَادِيَّةٌ. وَالْأَظْهَرُ أَلَّا يَكُونَ لِهَذَا النَّوْعِ مِنْ فِعْلِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ حُكْمٌ لِتَرَدُّدِهِ بَيْنَ الْإِيجَابِ وَالنَّدْبِ وَالْإِبَاحَةِ، وَكَوْنِهِ مُخْتَصًّا بِهِ.

وَإِذَا وَرَدَتْ أَفْعَالُهُ عَلَيْهِ السَّلَامُ تَفْسِيرًا أَوْ بَيَانًا لِعَامٍّ وَتَعَارَضَتْ، كَانَ حُكْمُهَا حُكْمَ الْقَوْلَيْنِ إِذَا تَعَارَضَا، وَسَيَأْتِي الْقَوْلُ فِي هَذَا وَكَذَلِكَ إِذَا تَعَارَضَ الْفِعْلُ وَالْقَوْلُ. وَهُنَا انْتَهَى الْقَوْلُ فِي الْجُزْءِ الثَّالِثِ مِنْ هَذَا الْكِتَابِ.

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106. Translation. “Withhold judgement” renders the printed التوقيف in this context.

Part Four

الْقَوْلُ فِي الْجُزْءِ الرَّابِعِ

230. Inquiry, authority and weighing evidence

R 230 · BA 281

It comprises three chapters: one on independent juristic inquiry, one on following authority, and one on weighing the evidence.

وَهُوَ يَشْتَمِلُ عَلَى ثَلَاثَةِ فُصُولٍ: فَصْلٍ فِي الِاجْتِهَادِ، وَفَصْلٍ فِي التَّقْلِيدِ، وَفَصْلٍ فِي تَرْجِيحِ الْأَدِلَّةِ.

Chapter One. On independent juristic inquiry

الْفَصْلُ الْأَوَّلُ: فِي الِاجْتِهَادِ

231. The jurist, the question and the act of inquiry

R 231 · BA 282

Its discussion divides into examination of the independent jurist (مجتهد), the subject of his inquiry, and independent inquiry itself (اجتهاد). Independent inquiry is the jurist's exertion of his utmost capacity in seeking an answer by means of the instruments required of him.

وَيَنْقَسِمُ الْقَوْلُ فِيهِ إِلَى النَّظَرِ فِي الْمُجْتَهِدِ، وَالْمُجْتَهَدِ فِيهِ، وَنَفْسِ الِاجْتِهَادِ. أَمَّا الِاجْتِهَادُ فَهُوَ بَذْلُ الْمُجْتَهِدِ وُسْعَهُ فِي الطَّلَبِ بِالْآلَاتِ الَّتِي تُشْتَرَطُ فِيهِ.

The definition of the independent jurist is that he knows the sources from which he derives rulings and possesses the rules and requisite conditions by which he derives them. Since the sources are three —the Book, the Sunna, and consensus—we must state how much knowledge of each suffices for him.

وَأَمَّا حَدُّ الْمُجْتَهِدِ فَهُوَ أَنْ يَكُونَ عَارِفًا بِالْأُصُولِ الَّتِي يُسْتَنْبَطُ عَنْهَا، وَأَنْ تَكُونَ عِنْدَهُ الْقَوَانِينُ وَالْأَحْوَالُ الَّتِي بِهَا يَسْتَنْبِطُ. وَلِأَنَّ الْأُصُولَ ثَلَاثَةٌ الْكِتَابُ وَالسُّنَّةُ وَالْإِجْمَاعُ فَقَدْ يَنْبَغِي أَنْ نَقُولَ فِيمَا يَكْفِيهِ مِنْ مَعْرِفَةِ وَاحِدٍ وَاحِدٍ مِنْهَا.

232. How much Qurʾānic knowledge is required?

R 232 · BA 283

Sufficient knowledge of the Book consists in knowing the verses containing rulings and distinguishing the abrogating from the abrogated among them; they number about five hundred verses. This is a concession: knowing the whole Book is preferable. He is also excused from memorising the verses containing rulings if he knows where they occur, so that when a question arises he knows where to look for them.

أَمَّا مَا يَكْفِيهِ مِنْ مَعْرِفَةِ الْكِتَابِ فَمَعْرِفَةُ الْآيَاتِ الْمُتَضَمِّنَةِ لِلْأَحْكَامِ، وَمَعْرِفَةُ النَّاسِخِ مِنْهَا مِنَ الْمَنْسُوخِ، وَهِيَ نَحْوُ خَمْسِ مِئَةِ آيَةٍ، هَذَا عَلَى وَجْهِ التَّخْفِيفِ، وَالْأَفْضَلُ لَهُ مَعْرِفَةُ الْكِتَابِ كُلِّهِ. وَقَدْ رُخِّصَ لَهُ فِي حِفْظِ الْآيَاتِ الْمُتَضَمِّنَةِ لِلْأَحْكَامِ إِذَا كَانَتْ مَوَاضِعُهَا مَعْلُومَةً عِنْدَهُ بِحَيْثُ إِذَا وَرَدَتْ مَسْأَلَةٌ فِي أَمْرٍ مَا عَلِمَ أَيْنَ يَطْلُبُهَا.

233. Hadith competence, collections and transmitter evaluation

R 233 · BA 284

Sufficient knowledge of the Sunna consists in knowing the reports that contain rulings. He may be excused from memorising them: it is enough to possess a corrected collection of all the reports containing rulings, to which he can refer when a legal opinion is needed. Memorizing them is preferable.

وَأَمَّا مَا يَكْفِيهِ مِنْ مَعْرِفَةِ السُّنَّةِ، فَمَعْرِفَةُ الْأَحَادِيثِ الَّتِي تَتَضَمَّنُ الْأَحْكَامَ. وَقَدْ يُخَفَّفُ عَنْهُ فِي أَنْ لَا يَحْفَظَهَا، بَلْ يَكْفِيهِ أَنْ يَكُونَ عِنْدَهُ أَصْلٌ مُصَحَّحٌ لِجَمِيعِ الْأَحَادِيثِ الْمُتَضَمِّنَةِ لِلْأَحْكَامِ يَرْجِعُ إِلَيْهِ وَقْتَ الْحَاجَةِ إِلَى الْفَتْوَى، وَالْأَفْضَلُ لَهُ أَنْ يَحْفَظَهَا.

As for knowing the soundness of their transmission chains, if he relies on someone he trusts, such as al-Bukhārī or Muslim, he is following authority. Yet if he must himself establish the transmitters' uprightness and investigate their biographies, circumstances, and dates, the task becomes protracted and immensely intricate, especially as time grows distant. The concession is to accept a leading scholar's accreditation, provided he knows that scholar's approach to discrediting and accrediting transmitters and it agrees with his own.

وَأَمَّا مَعْرِفَةُ صِحَّةِ أَسَانِيدِهَا، فَإِنْ هُوَ عَوَّلَ فِي صِحَّتِهَا عَلَى مَنْ يُحْسِنُ ظَنَّهُ بِهِ كَالْبُخَارِيِّ وَمُسْلِمٍ كَانَ مُقَلِّدًا، وَإِنْ هُوَ أَيْضًا احْتَاجَ أَنْ يُعَدِّلَ الرُّوَاةَ وَيَتَّبِعَ سِيَرَهُمْ وَأَحْوَالَهُمْ وَأَوْقَاتَهُمْ طَالَ عَلَيْهِ وَتَشَعَّبَ جِدًّا، وَلَا سِيَّمَا مَا تَبَاعَدَ الزَّمَانُ. وَالتَّخْفِيفُ عَنْهُ فِي ذَلِكَ أَنْ يَكْتَفِيَ بِتَعْدِيلِ الْإِمَامِ فِي ذَلِكَ إِذَا عَلِمَ مَذْهَبَهُ فِي التَّجْرِيحِ وَالتَّعْدِيلِ، وَكَانَ ذَلِكَ مُوَافِقًا لِمَذْهَبِهِ.

234. Consensus and the indispensable knowledge of Arabic

R 234 · BA 285

As for consensus, he should know all the questions on which consensus has been reached. It may suffice that he knows his opinion on the question he is answering does not oppose consensus, by knowing that it agrees with an opinion someone has held. Before all this, he must possess enough knowledge of vocabulary and language to understand the Book of God, exalted is He, and the Sunna of His Prophet, God bless him and grant him peace, without linguistic error.

وَأَمَّا الْإِجْمَاعُ فَأَنْ يَعْرِفَ جَمِيعَ الْمَسَائِلِ الْمُجْمَعِ عَلَيْهَا، وَقَدْ يَكْفِيهِ أَنْ يَعْلَمَ أَنَّ قَوْلَهُ فِي الْمَسْأَلَةِ الَّتِي يُفْتِي فِيهَا لَيْسَ هُوَ مُخَالِفًا لِلْإِجْمَاعِ بِأَنْ يَعْلَمَ أَنَّ قَوْلَهُ يُوَافِقُ قَوْلَ قَائِلٍ. وَقَبْلَ هَذَا كُلِّهِ فَيَنْبَغِي أَنْ يَكُونَ عِنْدَهُ مِنْ عِلْمِ اللُّغَةِ وَاللِّسَانِ مَا يَفْهَمُ بِهِ كِتَابَ اللَّهِ تَعَالَى وَسُنَّةَ نَبِيِّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ وَلَا يَلْحَنُ.

235. Theology and detailed fiqh: what is actually required?

R 235 · BA 286

They also require knowledge of theology (علم الكلام): possession of the evidence giving knowledge of God and His attributes, leading to knowledge of the world's origination, and the other matters theology contains. This is required only on the view that the first obligation is rational examination and inference. On the other view, faith based simply on the Law suffices without rational examination. As for the derived details of jurisprudence, he has no need of them, because it is the independent jurist who generates them.

وَقَدِ اشْتَرَطُوا مَعَ هَذَا أَنْ يَكُونَ عَالِمًا بِعِلْمِ الْكَلَامِ، وَذَلِكَ أَنْ تَكُونَ عِنْدَهُ الْأَدِلَّةُ الْمُعَرِّفَةُ بِاللَّهِ وَبِصِفَاتِهِ، وَالْمُوصِلَةُ إِلَى الْعِلْمِ بِحَدَثِ الْعَالَمِ، وَغَيْرِ ذَلِكَ مِمَّا يَتَضَمَّنُ عِلْمُ الْكَلَامِ. وَهَذَا إِنَّمَا يَلْزَمُ عَلَى رَأْيِ مَنْ يَرَى أَنَّ أَوَّلَ الْوَاجِبَاتِ النَّظَرُ وَالِاسْتِدْلَالُ، وَأَمَّا مَنْ لَا يَرَى ذَلِكَ فَيَكْفِيهِ الْإِيمَانُ بِمُجَرَّدِ الشَّرْعِ دُونَ نَظَرِ الْعَقْلِ. وَأَمَّا تَفَارِيعُ الْفِقْهِ فَلَا حَاجَةَ بِهِ إِلَيْهَا، لِأَنَّ الْمُجْتَهِدَ هُوَ الَّذِي يُوَلِّدُهَا.

236. Issue-specific independent inquiry

R 236 · BA 287

These requirements as a whole apply to the independent jurist in the unrestricted sense, who can give a legal opinion in every case. Someone who possesses only some of them may exercise independent inquiry in a question for which the requirements he possesses are sufficient. His relation to that question is the same as that of the unrestricted independent jurist to all questions.

وَهَذِهِ الشَّرَائِطُ بِالْجُمْلَةِ إِنَّمَا هِيَ فِي حَقِّ الْمُجْتَهِدِ بِإِطْلَاقٍ الَّذِي تُمْكِنُهُ الْفَتْوَى فِي كُلِّ نَازِلَةٍ، وَأَمَّا مَنْ لَمْ تَكُنْ عِنْدَهُ كُلُّ هَذِهِ الشَّرَائِطِ، وَكَانَ عِنْدَهُ بَعْضُهَا، وَكَانَتِ الْمَسْأَلَةُ الْمَنْظُورُ فِيهَا يَكْفِي فِيهَا مَا عِنْدَهُ مِنْ تِلْكَ الشَّرَائِطِ، جَازَ لَهُ الِاجْتِهَادُ فِيهَا، لِأَنَّ نِسْبَتَهُ إِلَى هَذِهِ الْمَسْأَلَةِ نِسْبَةُ الْمُجْتَهِدِ بِإِطْلَاقٍ إِلَى جَمِيعِ الْمَسَائِلِ.

237. Is there a determinate ruling to be found?

R 237 · BA 288

The subject of independent inquiry is every legal ruling for which there is no decisive evidence. We must consider whether the ruling sought is determinate in itself and one is charged with attaining it, or whether no determinate ruling exists toward which the inquiry is directed, the obligation resting solely on attaining a preponderant judgement. On the latter account, every independent jurist would be correct, even when their opinions on the same thing contradict one another. We say:[107]

وَأَمَّا الْمُجْتَهَدُ فِيهِ فَهُوَ كُلُّ حُكْمٍ شَرْعِيٍّ لَيْسَ فِيهِ دَلِيلٌ قَطْعِيٌّ. وَقَدْ يَنْبَغِي أَنْ نَنْظُرَ هَهُنَا فِي هَذَا الْحُكْمِ الْمَطْلُوبِ: هَلْ هُوَ مُتَعَيِّنٌ فِي نَفْسِهِ وَمُكَلَّفٌ إِصَابَتُهُ أَمْ لَيْسَ هَهُنَا حُكْمٌ مُتَعَيِّنٌ يَتَوَجَّهُ الطَّلَبُ إِلَيْهِ، وَإِنَّمَا مَنَاطُ التَّكْلِيفِ فِي طَلَبِهِ غَلَبَةُ الظَّنِّ، فَيَكُونَ عَلَى هَذَا كُلُّ مُجْتَهِدٍ مُصِيبًا، وَإِنْ تَضَادَّتْ آرَاؤُهُمْ فِي الشَّيْءِ الْوَاحِدِ، فَنَقُولُ:

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[107] **107.** Interpretation. Fallibilism with a determinate object. Bou Akl 2015 intro pp.88–99 argues that Ibn Rushd's consistent juristic fallibilism presupposes a determinate intended legal judgement even when evidence remains probable; this is different from a claim that the individual's knowledge is infallible.

238. Essential attributes, Ẓāhirī restraint and determinate rulings

R 238 · BA 289

Whoever holds that rulings are attributes of things’ essences—whether known when the Law is added, or beforehand, or with both kinds among them, as the Muʿtazila hold—cannot declare every independent jurist correct. The same applies to those rejecting qiyās in the Law. They too hold that whatever has received no legal discourse remains under original freedom from obligation, as permissible; whereas something receiving legal discourse has a determinate ruling.

أَمَّا مَنْ يَرَى أَنَّ الْأَحْكَامَ صِفَاتُ ذَوَاتٍ، سَوَاءٌ عُلِمَتْ بِانْضِمَامِ الشَّرْعِ إِلَيْهَا أَوْ قَبْلَهُ، أَوْ كَانَ فِيهَا الصِّنْفَانِ جَمِيعًا عَلَى مَا تَرَاهُ الْمُعْتَزِلَةُ، فَلَيْسَ يُمْكِنُهُ تَصْوِيبُ كُلِّ مُجْتَهِدٍ. وَكَذَلِكَ يَلْزَمُ مَنْ لَا يَرَى الْقِيَاسَ فِي الشَّرْعِ، فَإِنَّ هَؤُلَاءِ أَيْضًا يَرَوْنَ أَنَّ مَا لَمْ يَرِدْ فِيهِ خِطَابٌ شَرْعِيٌّ فَهُوَ عَلَى الْبَرَاءَةِ الْأَصْلِيَّةِ مِنَ الْإِبَاحَةِ، وَمَا كَانَ بِهَذِهِ الصِّفَةِ، أَعْنِي مَا وَرَدَ فِيهِ خِطَابٌ شَرْعِيٌّ، فَفِيهِ حُكْمٌ مُتَعَيِّنٌ.

239. Ibn Rushd’s answer: discourse determines the ruling

R 239 · BA 290

Our own position has already been stated: legal rulings are apprehended through discourse, which sometimes requires a ruling through its form and sometimes through its understood meaning. What they mean by qiyās falls within this class. Both kinds divide, with respect to the obligation to act on them, into unambiguous and prima facie indications. Consequently, one cannot maintain that every independent jurist is correct, since rulings are received through the given discourse in all the kinds we have enumerated, whether verbal expression or contextual indication.

وَأَمَّا نَحْنُ فَقَدْ سَلَفَ مِنْ قَوْلِنَا أَنَّ مَدَارِكَ أَحْكَامِ الشَّرْعِ الْخِطَابُ، وَأَنَّ الْخِطَابَ مِنْهُ مَا يُوجِبُ الْحُكْمَ بِصِيغَتِهِ، وَمِنْهُ بِمَفْهُومِهِ. وَأَنَّ الَّذِي يَعْنُونَ بِالْقِيَاسِ دَاخِلٌ فِي هَذَا الْجِنْسِ، وَأَنَّ كِلَا هَذَيْنِ الصِّنْفَيْنِ يَنْقَسِمَانِ فِي وُجُوبِ الْعَمَلِ بِهِمَا إِلَى نَصٍّ وَإِلَى ظَاهِرٍ. وَإِذَا كَانَ هَذَا هَكَذَا لَمْ يَتَصَوَّرْ أَنْ يُقَالَ كُلُّ مُجْتَهِدٍ مُصِيبٌ، إِذْ كَانَتْ سَبِيلُ تَلَقِّي الْأَحْكَامِ الْخِطَابَ الْوَارِدَ، وَذَلِكَ فِي جَمِيعِ أَصْنَافِهِ الَّتِي عُدِّدَتْ مِنْ لَفْظٍ أَوْ قَرِينَةٍ.

Where knowledge comes through discourse, there is undoubtedly a determinate ruling: that to which the discourse relates. What the given discourse does not contain, and no contextual indication signifies, remains under original freedom from obligation and is excused. This is one kind of permission ascribed to the Law. This is the meaning of His saying, mighty and exalted, “We have neglected nothing in the Book”[108]: nothing bearing a ruling is left uncontained there; whatever it does not contain through any of the forms of legal evidence is passed over.[109, 110]

وَمَا كَانَ سَبِيلُ الْمَعْرِفَةِ بِهِ الْخِطَابَ فَثَمَّ لَا شَكَّ حُكْمٌ مُتَعَيِّنٌ، وَهُوَ الَّذِي تَعَلَّقَ بِهِ الْخِطَابُ. وَمَا لَمْ يَتَضَمَّنْهُ الْخِطَابُ الْوَارِدُ، وَلَا دَلَّتْ عَلَيْهِ قَرِينَةٌ، فَهُوَ عَلَى الْبَرَاءَةِ الْأَصْلِيَّةِ مَعْفُوٌّ عَنْهُ، وَهُوَ أَحَدُ أَصْنَافِ الْمُبَاحِ الْمَنْسُوبِ إِلَى الشَّرْعِ. وَهَذَا مَعْنَى قَوْلِهِ عَزَّ وَجَلَّ: «مَا فَرَّطْنَا فِي الْكِتَابِ مِنْ شَيْءٍ»[108] كَانَ فِيهِ حُكْمٌ إِلَّا وَضَمَّنَّاهُ إِيَّاهُ وَمَا لَمْ يَتَضَمَّنْهُ بِأَحَدِ الْأَدِلَّةِ الشَّرْعِيَّةِ فَهُوَ مَصْفُوحٌ عَنْهُ.

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[108] Qurʾān, al-Anʿām 6:38 ↗. The quotation ends here; what follows is Ibn Rushd’s explanation.

[109] Translation. The Qurʾānic quotation ends at “the Book” in the English translation of ما فرطنا في الكتاب من شيء. The following explanation about things bearing rulings is Ibn Rushd’s gloss, not additional Qurʾānic wording.

[110] Translation. “Original freedom from obligation” renders البراءة الأصلية. The paragraph distinguishes an issue on which the discourse determines a ruling from an issue left without an imposed obligation; it does not identify all legal certainty with literal wording alone.

240. Al-Ghazālī’s first argument for universal correctness

R 240 · BA 291–292

Abū Ḥāmid holds here that every independent jurist is correct. He has enumerated and rejected the objections to that claim, but has not included the argument we have given. He follows two routes in establishing that every independent jurist is correct. We shall show that his alleged consequences do not follow.

His first route is this. He says: if there were a determinate ruling in matters whose path is independent inquiry, the obligation would concern attaining it. In that case there would be decisive evidence leading to it; otherwise this would impose an obligation beyond one’s capacity, which has already been shown impossible.

He then attempts to show that the indications used in independent inquiry are probable, yield the two contradictories equally, and acquire preponderance only according to each person’s natural inclination in each ruling and each case.

وَأَبُو حَامِدٍ يَرَى هُنَا أَنَّ كُلَّ مُجْتَهِدٍ مُصِيبٌ، وَقَدْ عَدَّدَ الْأُمُورَ الَّتِي نُوقِضَ بِهَا أَنَّ كُلَّ مُجْتَهِدٍ مُصِيبٌ وَزَيَّفَهَا، إِلَّا أَنَّهُ لَمْ يُعَدِّدْ فِي ذَلِكَ هَذَا الَّذِي قُلْنَاهُ. وَقَدْ سَلَكَ هُوَ فِي تَثْبِيتِ أَنَّ كُلَّ مُجْتَهِدٍ مُصِيبٌ طَرِيقَيْنِ، وَنَحْنُ نُوقِفُ عَلَى أَنَّ مَا أَلْزَمَ مِنْ ذَلِكَ غَيْرُ لَازِمٍ:

إِحْدَاهُمَا أَنَّهُ قَالَ: لَوْ كَانَ هَهُنَا حُكْمٌ مُتَعَيِّنٌ فِيمَا طَرِيقُهُ الِاجْتِهَادُ لَكَانَ التَّكْلِيفُ مُتَعَلِّقًا بِإِصَابَتِهِ، وَلَوْ كَانَ ذَلِكَ لَكَانَ عَلَيْهِ دَلِيلٌ قَطْعِيٌّ يُفْضِي إِلَيْهِ، وَإِلَّا كَانَ مِنْ بَابِ تَكْلِيفِ مَا لَا يُطَاقُ، وَقَدْ تَقَدَّمَ امْتِنَاعُهُ.

ثُمَّ أَخَذَ يُبَيِّنُ أَنَّ الدَّلَائِلَ الْمُسْتَعْمَلَةَ فِي الِاجْتِهَادِ ظَنِّيَّةٌ يَحْصُلُ عَنْهَا النَّقِيضَانِ بِالسَّوَاءِ، وَأَنَّ التَّرَجُّحَ فِيهَا إِنَّمَا هُوَ بِحَسَبِ مَا طُبِعَ عَلَيْهِ شَخْصٌ شَخْصٌ مِنَ الْمَيْلِ فِي حُكْمٍ حُكْمٍ، وَنَازِلَةٍ نَازِلَةٍ.

241. Evidence signifies; inclination does not make a ruling

R 241 · BA 293

To say such a thing is a grave offence and a resort to arbitrary judgement in the Law through desires and inclinations; we seek God’s protection from it. Legal evidence, as we said, is either decisive or preponderantly probable, with action on the latter required by a certainly established principle. In either case the ruling undoubtedly follows from the evidence itself, according to its signification, not according to each person’s natural disposition.

وَالْقَوْلُ بِمِثْلِ هَذَا كَبِيرَةٌ وَمَصِيرٌ إِلَى التَّحَكُّمِ فِي الشَّرْعِ بِالْأَهْوَاءِ وَالْإِرَادَاتِ، نَعُوذُ بِاللَّهِ مِنْ ذَلِكَ. بَلِ الْأَدِلَّةُ الشَّرْعِيَّةُ، كَمَا تَقَدَّمَ مِنْ قَوْلِنَا، إِمَّا قَطْعِيَّةٌ، وَإِمَّا ظَنِّيَّةٌ أَكْثَرِيَّةٌ وَجَبَ الْعَمَلُ بِهَا بِالْأَصْلِ الْمَقْطُوعِ بِهِ. وَمَا كَانَ هَكَذَا فَالْحُكْمُ لَا شَكَّ يَحْصُلُ عَنْهَا بِذَاتِهَا، لَا بِحَسَبِ مَا طُبِعَ عَلَيْهِ إِنْسَانٌ، بَلْ بِحَسَبِ دَلَالَتِهَا،

Hence an indication undecided equally between contradictories is called indeterminate in this discipline and is not accepted as legal evidence at all. In general, denying that evidence itself yields what is sought—whether the evidence is rational or legal—is a thoroughly sophistical claim, to be avoided because of its great harm to the Law. Since evidence leading to the object sought exists, requiring one to attain it is not an obligation beyond one's capacity.[111]

وَلِذَلِكَ مَا كَانَ مِنَ الْأَدِلَّةِ مُتَرَدِّدًا بَيْنَ النَّقِيضَيْنِ عَلَى السَّوَاءِ سُمِّيَ فِي هَذِهِ الصِّنَاعَةِ مُجْمَلًا، وَلَمْ يُجْعَلْ دَلِيلًا شَرْعِيًّا أَصْلًا. وَبِالْجُمْلَةِ الْقَوْلُ بِأَنْ لَيْسَ هُنَا أَدِلَّةٌ يَحْصُلُ عَنْهَا بِذَاتِهَا الطَّلَبُ، وَسَوَاءٌ كَانَتِ الْأَدِلَّةُ عَقْلِيَّةً أَوْ شَرْعِيَّةً، هُوَ قَوْلٌ سُوفَسْطَائِيٌّ جِدًّا، وَيَنْبَغِي أَنْ يُتَجَنَّبَ، فَإِنَّهُ عَظِيمُ الضَّرَرِ فِي الشَّرِيعَةِ. وَإِذَا كَانَ هَذَا هَكَذَا، وَكَانَ هَهُنَا أَدِلَّةٌ تُفْضِي إِلَى الْمَطْلُوبِ، لَمْ يَكُنْ تَكْلِيفُ إِصَابَتِهِ مِنْ بَابِ مَا لَا يُطَاقُ.

242. Al-Ghazālī's second argument: absence of sin

R 242 · BA 294

His other argument is drawn from obligation. Since the obligatory was defined as that whose omission incurs punishment, he argues: if the obligation concerning a thing were a determinate ruling, failure to attain it would incur sin. But consensus establishes that independent jurists are not charged with sin. Therefore, the absence of sin entails the absence of error.

وَأَمَّا الطَّرِيقَةُ الْأُخْرَى الَّتِي احْتَجَّ بِهَا فَأَخَذَهَا مِنَ الْوَاجِبِ، وَذَلِكَ أَنَّهُ كَمَا قِيلَ فِيهِ هُوَ مَا فِي تَرْكِهِ عِقَابٌ قَالَ: فَلَوْ كَانَ الْوَاجِبُ فِي الشَّيْءِ حُكْمًا مُتَعَيِّنًا لَكَانَ فِي تَرْكِ إِصَابَتِهِ إِثْمٌ، وَالْإِجْمَاعُ قَدِ انْعَقَدَ عَلَى سُقُوطِ التَّأْثِيمِ عَنِ الْمُجْتَهِدِينَ، فَلِذَلِكَ يَلْزَمُ عَنِ انْتِفَاءِ التَّأْثِيمِ انْتِفَاءُ الْخَطَإِ.

243. An error can be pardoned without becoming correct

R 243 · BA 295

We say that exemption from sin does not entail absence of error. Unintentional error is pardoned in the Law; it occurs through forgetfulness, inattention, and inadvertence. We have repeatedly said that legal evidence is either decisive or preponderant. The path to decisive evidence is plainly accessible, and inadvertence and mistake are rare in it; hence error there seems to entail sin. With probable evidence, however, mistake and inadvertence occur often, so error does not entail sin.

وَنَحْنُ نَقُولُ إِنَّهُ لَيْسَ يَلْزَمُ عَنْ سُقُوطِ التَّأْثِيمِ انْتِفَاءُ الْخَطَإِ، إِذِ الْخَطَأُ الغير متعم د مَصْفُوحٌ عَنْهُ فِي الشَّرْعِ، وَهُوَ يَقَعُ بالنسيان وَالْغَفْلَةُ وَالسَّهْوُ. وَقَدْ قُلْنَا غَيْرَ مَا مَرَّةٍ إِنَّ الْأَدِلَّةَ الشَّرْعِيَّةَ إِمَّا قَطْعِيَّةٌ، وَإِمَّا أَكْثَرِيَّةٌ. أَمَّا الْقَطْعِيَّةُ فَالطَّرِيقُ إِلَيْهَا مَهْيَعٌ، وَوُقُوعُ السَّهْوِ فِيهَا وَالْغَلَطِ يَقِلُّ، فَلِذَلِكَ يُشْبِهُ أَنْ يَلْزَمَ التَّأْثِيمُ فِيهَا بِلُزُومِ الْخَطَإِ. وَأَمَّا الظَّنِّيَّةُ فَالْغَلَط كَثِيرًا مَا يَقَعُ فِيهَا وَالسَّهْوُ، فَلِذَلِكَ لَمْ يَلْزَمْ مِنَ الْخَطَإِ فِيهَا التَّأْثِيمُ.

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[111] Translation. The author's sharp criticism is directed at the account of evidence just reported from Abū Ḥāmid. The editor's separate comparison with the more flexible treatment in Bidāyat al-mujtahid is not merged into Ibn Rushd's authorial voice.

The definition of the obligatory as that whose omission incurs punishment means that punishment attaches to omission after its obligatory status has become known, where decisive evidence leads to that knowledge. If someone errs or is inadvertent in a matter liable to error and thus has no way to know its obligatory status, how could he incur sin? The Prophet, peace be upon him, has said, “Error and forgetfulness have been lifted from my community.”[112]

وَالَّذِي أُخِذَ فِي حَدِّ الْوَاجِبِ بِأَنَّهُ الَّذِي فِي تَرْكِهِ عِقَابٌ، إِنَّمَا مَعْنَى ذَلِكَ أَنَّ الْعِقَابَ متعلق بِتَرْكِهِ بَعْدَ الْمَعْرِفَةِ بِوُجُوبِهِ، فِيمَا كَانَ إِلَى الْمَعْرِفَةِ بِوُجُوبِهِ دَلِيلٌ قَطْعِيٌّ. وَأَمَّا مَنْ غَلِطَ أَوْ سَهَا فِيمَا الْغَلَطُ فِيهِ مُعَرَّضٌ فَلَمْ يَكُنْ لَهُ سَبِيلٌ إِلَى مَعْرِفَةِ وُجُوبِهِ، فَكَيْفَ يَلْحَقُ بِمِثْلِ هَذَا تَأْثِيمٌ. وَقَدْ قَالَ عَلَيْهِ السَّلَامُ: «رُفِعَ عَنْ أُمَّتِيَ الْخَطَأُ وَالنِّسْيَانُ».

244. Degrees of culpability and the clarity of evidence

R 244 · BA 296

If it is said that this entails freedom from sin even when a jurist unintentionally misses something established by decisive evidence, we reply: this requires examination. The difference is clear. Decisive evidence is seldom hidden from someone who has attained the rank of independent inquiry. Its being hidden is conceivable only through desire, partiality, something opposing it, or other psychological impediments. This has degrees corresponding to the degrees of evidence. Hence some cases incur a judgement of unbelief and others a charge of sin; the Law determines these differences.

فَإِنْ قِيلَ فَسَيَلْزَمُ عَلَى هَذَا أَنَّ مَا كَانَ عَلَيْهِ دَلِيلٌ قَطْعِيٌّ فَأَخْطَأَهُ الْمُجْتَهِدُ عَلَى غَيْرِ عَمْدٍ أَنَّهُ لَا يَأْثَمُ. قِيلَ فِي هَذَا نَظَرٌ. وَالْفَرْقُ بَيْنَهُمَا بَيِّنٌ. فَإِنَّ الدَّلِيلَ الْقَطْعِيَّ قَلَّمَا يَخْفَى عَلَى أَحَدٍ مِمَّنْ بَلَغَ رُتْبَةَ الِاجْتِهَادِ، وَإِنَّمَا يُتَصَوَّرُ خَفَاؤُهُ لِهَوًى أَوْ هَوَادَةٍ أَوْ لِشَيْءٍ عَلَى خِلَافِهِ أَوْ غَيْرِ ذَلِكَ مِنَ الْعَوَارِضِ النَّفْسِيَّةِ. وَلِهَذَا مَرَاتِبُ بِحَسَبِ مَرَاتِبِ الْأَدِلَّةِ، وَلِذَلِكَ يُكَفَّرُ فِي بَعْضِهَا، وَيُؤَثَّمُ فِي بَعْضٍ، وَمُدْرَكُ هَذَا التَّفَاوُتِ الشَّرْعُ.

245. Attainable truth and merciful pardon

R 245 · BA 297

Our discussion has shown that not every independent jurist is correct, in what respect he is free from sin when he errs, and that he is charged with attaining something that is itself attainable. When he errs, he is forgiven out of mercy and pardon.

فَقَدْ تَبَيَّنَ مِنْ قَوْلِنَا أَنْ لَيْسَ كُلُّ مُجْتَهِدٍ مُصِيبًا، وَإِنَّهُ إِنْ أَخْطَأَ فَعَلَى أَيِّ جِهَةٍ لَا يَأْثَمُ، وَإِنَّ الْمُجْتَهِدَ كُلِّفَ إِصَابَةَ مَا هُوَ فِي نَفْسِهِ مُمْكِنُ الْإِصَابَةِ، وَعُفِيَ عَنْهُ عِنْدَ الْخَطَإِ رَحْمَةً لَهُ وَصَفْحًا عَنْهُ.

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[112] **112.** Interpretation. Wrong vs blameworthy. Bou Akl 2015 intro pp.93–99 distinguishes an incorrect proposition from a culpable error. Unintentional error after qualified effort may be excused even though an objectively correct answer exists. The parallel with philosophy in the Decisive Treatise is explored in Bou Akl 2019.

246. Conflict: suspension, caution or free choice?

R 246 · BA 298

It remains to consider the jurist’s position when evidence conflicts for him on a question, and what course he should take. Abū Ḥāmid reports three views: suspending judgement, adopting the more cautious course, and the Judge’s view that the jurist may choose. This last view is weak, because granting a choice is permission, whereas contradictory evidence concerning the command about a single matter is more apt to produce doubt and perplexity than to be thought to establish such permission.

وَقَدْ بَقِيَ عَلَيْنَا مِنْ هَذَا الْبَابِ كَيْفَ حَالَةُ الْمُجْتَهِدِ، إِذَا تَعَارَضَتْ عِنْدَهُ الْأَدِلَّةُ فِي مَسْأَلَةٍ مَا، وَإِلَى أَيِّ شَيْءٍ يَصِيرُ فَنَقُولُ: إِنَّ الَّذِي حَكَى فِي ذَلِكَ أَبُو حَامِدٍ ثَلَاثَةُ آرَاءٍ: أَحَدُهَا رَأْيُ مَنْ يَرَى التَّوَقُّفَ وَالثَّانِي الْأَخْذُ بِالْأَحْوَطِ وَالثَّالِثُ رَأْيُ الْقَاضِي وَهُوَ أَنْ يَتَخَيَّرَ الْمُجْتَهِدُ، وَهَذَا رَأْيٌ ضَعِيفٌ لِأَنَّ التَّخْيِيرَ إِبَاحَةٌ، وَالْأَدِلَّةُ الْمُتَنَاقِضَةُ فِي الْأَمْرِ بِالشَّيْءِ الْوَاحِدِ هِيَ أَوْلَى أَنْ تُوقِعَ الشَّكَّ وَالْحَيْرَةَ مِنْ أَنْ يُظَنَّ بِهَا أَنَّهَا تُنْتِجُهُ.

Suspending judgement likewise makes no sense, since it leaves rulings inoperative. It is also impossible where a person must do one of two opposite things. Consider the reports about ritual bathing because of the emission of fluid, and bathing because of the meeting of the circumcised parts. When such reports conflict, suspension is impossible: one must adopt one or the other.

وَكَذَلِكَ التَّوَقُّفُ لَا مَعْنَى لَهُ، فَإِنَّ فِي ذَلِكَ تَعْطِيلًا لِلْأَحْكَامِ. وَأَيْضًا فَإِنَّهُ غَيْرُ مُمْكِنٍ فِي الْأَشْيَاءِ الَّتِي لَيْسَ يُمْكِنُ الْإِنْسَانَ فِيهَا إِلَّا أَنْ يَأْتِيَ أَحَدَ الضِّدَّيْنِ، كَالْأَحَادِيثِ الْوَارِدَةِ مَثَلًا فِي الْغُسْلِ مِنَ الْمَاءِ، وَالْغُسْلِ مِنِ الْتِقَاءِ الْخِتَانَيْنِ، فَإِنَّ مِثْلَ هَذِهِ الْأَحَادِيثِ إِذَا تَعَارَضَتْ لَمْ يُمْكِنْ فِيهَا التَّوَقُّفُ، فَإِنَّهُ لَا بُدَّ مِنَ الْمَصِيرِ إِلَى أَحَدِهِمَا.

In such a case, adopting the more cautious course appears plausible. Although it may seem preferable because it avoids blame, one must equally fear blame for adding to the Law something that does not belong to it.[113]

وَفِي مِثْلِ هَذَا يُخَيَّلُ الْمَصِيرُ إِلَى الْأَخْذِ بِالْأَحْوَطِ. وَهُوَ وَإِنْ كَانَ يُخَيَّلُ فِيهِ أَنَّهُ أَوْلَى لِمَكَانِ النَّجَاةِ مِنَ الذَّمِّ، فَكَذَلِكَ يُخَافُ لُحُوقُ الذَّمِّ بِزِيَادَةِ مَا لَيْسَ مِنَ الشَّرْعِ فِي الشَّرْعِ.

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113. Translation. The compressed bathing examples concern whether emission is required or whether intercourse itself requires the ritual bath. The Arabic formulations are retained. The “Judge” is left as the author’s designation; no unsupported personal identification is inserted.

247. The Ẓāhirī response: return to original nonliability

R 247 · BA 299

The Ẓāhirīs have a fourth view: when the evidence is equally balanced, the independent jurist returns to original freedom from obligation. An obligation imposed through contradictory evidence exceeds one's capacity and is like an obligation lacking evidence. Just as original freedom from obligation is presumed to continue where there is no evidence—or where evidence exists but cannot be reached—it likewise continues where available proofs appear to conflict. And just as a ruling supported by evidence does not bind someone whom that evidence has not reached, so apparently opposed proofs cease to bind the person for whom they conflict.

وَلِلظَّاهِرِيَّةِ فِي هَذَا قَوْلٌ رَابِعٌ، وَهُوَ أَنْ يَرْجِعَ الْمُجْتَهِدُ عِنْدَ تَكَافُؤِ الْأَدِلَّةِ إِلَى الْبَرَاءَةِ الْأَصْلِيَّةِ، لِأَنَّ التَّكْلِيفَ بِالْأَدِلَّةِ الْمُتَنَاقِضَةِ تَكْلِيفُ مَا لَا يُطَاقُ، وَهُوَ فِي ذَلِكَ بِمَنْزِلَةِ التَّكْلِيفِ بِمَا لَيْسَ عَلَيْهِ دَلِيلٌ. فَكَمَا أَنَّ مَا لَيْسَ عَلَيْهِ دَلِيلٌ تُسْتَصْحَبُ فِيهِ الْبَرَاءَةُ الْأَصْلِيَّةُ، أَوْ مَا كَانَ عَلَيْهِ دَلِيلٌ إِلَّا أَنَّهُ لَمْ يُمْكِنْ بُلُوغُهُ، كَذَلِكَ مَا تَضَادَّتْ فِيهِ الدَّلَائِلُ، وَكَمَا أَنَّ مَا عَلَيْهِ دَلِيلٌ سَاقِطٌ فِي حَقِّ مَنْ لَمْ يَبْلُغْهُ، كَذَلِكَ مَنْ تَعَارَضَتْ عِنْدَهُ الْأَدِلَّةُ فِي شَيْءٍ مَا سَاقِطَةٌ فِي حَقِّهِ.

These two conditions occur only relative to particular people or people of a particular period: those whom the legal evidence has not reached, or who have not distinguished the abrogating from the abrogated, or other matters producing conflict. For contradictory evidence cannot occur within the Law itself.[114, 115, 116]

وَإِنَّمَا يَقَعُ هَذَانِ الصِّنْفَانِ فِي حَقِّ قَوْمٍ وَأَهْلِ زَمَانٍ مَا مِمَّنْ لَمْ يَصِلْهُمُ الدَّلِيلُ الشَّرْعِيُّ، أَوْ مِمَّنْ لَمْ يَتَمَيَّزْ لَهُمُ النَّاسِخُ فِي ذَلِكَ وَالْمَنْسُوخُ وَغَيْرُ ذَلِكَ مِمَّا يُوجِبُ التَّعَارُضَ، إِذْ كَانَ لَيْسَ يَجُوزُ وُقُوعُ دَلَائِلَ مُتَضَادَّةٍ فِي الشَّرْعِ.

248. From independent inquiry to following authority

R 248 · BA 300

Having completed the discussion of independent inquiry and its subject matter, let us discuss following authority and the person who does so.

وَإِذْ قَدْ فَرَغْنَا مِنَ الْقَوْلِ فِي الِاجْتِهَادِ وَالْمُجْتَهَدِ فِيهِ، فَلْنَقُلْ فِي التَّقْلِيدِ وَالْمُقَلِّدِ.

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[114] **114.** Translation. The opening explicitly reports a Ẓāhirī position. The final sentence distinguishes conflict as it appears to particular inquirers from contradiction in the Law itself; the translation does not erase that distinction.

[115] **115.** Interpretation. Contradictory evidence. Bou Akl 2015 intro pp.99–106 relates equal evidential balance (takāfuʾ) to preference (tarjīḥ). Ibn Rushd's view that unreconciled opposition can reflect missing historical information is not a license to choose arbitrary rulings.

[116] **116.** Translation. Bou Akl (2015), Arabic p. 318, §299, preserves «كذلك ما تضادت فيه الدلائل، وكما أن ما عليه دليل ساقط في حق من لم يبلغه» (Escorial reading [أ]), omitted by al-ʿAlawī [ع]. The first comparison concerns original nonliability where proof is absent, unreachable, or in apparent conflict; the second concerns the non-binding status of proof not received or of opposition not resolved. Ibn Rushd denies that contradictory proofs occur within the Law itself. The English already distinguished both comparisons.

Chapter Two. On following authority

الْفَصْلُ الثَّانِي: الْقَوْلُ فِي التَّقْلِيدِ

249. Trust, probability and following the Prophet

R 249 · BA 301

Following authority (تقليد) is accepting someone’s statement whose truth is judged preponderantly probable because of confidence in that person. It differs from following the Prophet, God bless him and grant him peace: following him is accepting a statement of which one attains certainty, because the miracle indicates his truthfulness, God bless him and grant him peace.

وَالتَّقْلِيدُ هُوَ قَبُولُ قَوْلِ قَائِلٍ يَغْلِبُ عَلَى الظَّنِّ صِدْقُهُ لِحُسْنِ الثِّقَةِ فِيهِ. وَالْفَرْقُ بَيْنَ هَذَا وَبَيْنَ تَقْلِيدِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، أَنَّ تَقْلِيدَهُ هُوَ قَبُولُ قَوْلٍ يَقَعُ لِلْإِنْسَانِ الْيَقِينُ بِهِ لِدَلَالَةِ الْمُعْجِزَةِ عَلَى صِدْقِهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ.

250. Why juristic expertise is a collective obligation

R 250 · BA 302

Those permitted to follow authority are ordinary people. The proof is that people must fall under one of three arrangements. Either all are independent jurists; this is impossible both in practice and as an obligation, since, even if everyone could attain that rank, it would bring the means of livelihood to a halt.

وَأَمَّا مَنْ يَجُوزُ لَهُ التَّقْلِيدُ، فَهُمُ الْعَوَامُّ، بِدَلِيلِ أَنَّ النَّاسَ لَا يَخْلُونَ مِنْ ثَلَاثَةِ أَقْسَامٍ: إِمَّا أَنْ يَكُونُوا كُلُّهُمْ مُجْتَهِدِينَ، وَهَذَا مُحَالٌ وُقُوعُهُ وَالتَّكْلِيفُ بِهِ، لِأَنَّهُ كَانَ يُؤَدِّي إِلَى انْقِطَاعِ الْمَعَايِشِ لَوْ كَانَ مُمْكِنًا أَنْ تحصل لِكُلِّ أَحَدٍ رُتْبَةُ الِاجْتِهَادِ.

Or all lack the qualifications for independent inquiry. This too is impossible, because it would lead to the neglect of most rulings: independent jurists are those who discharge the obligation of knowing most prescribed duties and practices and teaching them to people.

وَإِمَّا أَنْ تُفْقَدَ فِي جَمِيعِهِمْ شُرُوطُ الِاجْتِهَادِ، وَهَذَا أَيْضًا مُمْتَنِعٌ، لِأَنَّهُ كَانَ يُؤَدِّي إِلَى إِهْمَالِ أَكْثَرِ الْأَحْكَامِ، إِذْ أَكْثَرُ الْفَرَائِضِ وَالسُّنَنِ إِنَّمَا يَقُومُ بِفَرْضِ مَعْرِفَتِهَا وَتَعْلِيمِهَا لِلنَّاسِ الْمُجْتَهِدُونَ.

Or both classes exist: one group preserves the prescribed duties and practices for the public, lays them upon people, requires their observance, and derives what may be derived from them at each time and in each case. Another group, ordinary people, follows the authority of the first because of confidence in them and a preponderant judgement of their truthfulness.

وَإِمَّا أَنْ يُوجَدَ فِي النَّاسِ الصِّنْفَانِ جَمِيعًا، وَهُوَ أَنْ تَكُونَ فِيهِمْ طَائِفَةٌ تَقُومُ لِلْجُمْهُورِ بِضَبْطِ الْفَرَائِضِ وَالسُّنَنِ، وحفظها عَلَيْهِمْ، وَأَخْذِهِمْ بِهَا، وَاسْتِنْبَاطِ مَا شَأْنُهُ أَنْ يُسْتَنْبَطَ مِنْهَا فِي وَقْتٍ وَقْتٍ وَنَازِلَةٍ نَازِلَةٍ. وَتَكُونَ فِيهِمْ طَائِفَةٌ أُخْرَى، وَهُمُ الْعَوَامُّ، شَأْنُهُمْ تَقْلِيدُ هَؤُلَاءِ لِحُسْنِ الثِّقَةِ بِهِمْ، وَغَلَبَةِ الظَّنِّ فِي صِدْقِهِمْ.

Here it is as though preponderant judgement based on confidence has been made a sign that the rulings bind them, just as the independent jurist’s preponderant judgement is a sign that a ruling binds him. This is rightly called a collective obligation (فرض كفاية), since its performance by some suffices on behalf of others.

وَكَأَنَّ غَلَبَةَ الظَّنِّ لِحُسْنِ الثِّقَةِ جُعِلَتْ هَهُنَا أَمَارَةً لِلُزُومِ الْأَحْكَامِ لَهُمْ، كَمَا جُعِلَتْ غَلَبَةُ الظَّنِّ لِلْمُجْتَهِدِ أَمَارَةً لِلُزُومِ الْحُكْمِ لَهُ. وَبِالْوَاجِبِ مَا سُمِّيَ هَذَا فَرْضَ كِفَايَةٍ، إِذْ يَكْفِي فِي الْقِيَامِ بِهِ الْبَعْضُ عَنِ الْبَعْضِ.

251. May a mujtahid follow a more knowledgeable jurist?

R 251 · BA 303–304

It is therefore clear that people are of two classes. One is obliged to follow authority: ordinary people who have not attained the rank of independent inquiry defined earlier. The second comprises independent jurists who fully possess its qualifications.

فَقَدْ تَبَيَّنَ مِنْ هَذَا أَنَّ النَّاسَ صِنْفَانِ: صِنْفٌ فَرْضُهُ التَّقْلِيدُ، وَهُمُ الْعَوَامُّ الَّذِينَ لَمْ يَبْلُغُوا رُتْبَةَ الِاجْتِهَادِ الَّتِي حُدِّدَتْ فِيمَا قَبْلُ. وَصِنْفٌ ثَانٍ وَهُمُ الْمُجْتَهِدُونَ الَّذِينَ كَمُلَتْ لَهُمْ شُرُوطُ الِاجْتِهَادِ.

Whether those in the second class may follow one another’s authority requires examination. Ordinary people’s following authority is required by necessity and established by consensus. Nevertheless, one should say that an independent jurist may follow another who is more knowledgeable than he, when his confidence in the other’s judgement outweighs the probable judgement he himself reaches through independent inquiry into the matter.

وَأَمَّا هَلْ لِهَذَا الصِّنْفِ الثَّانِي وَهُمُ الْمُجْتَهِدُونَ أَنْ يُقَلِّدَ بَعْضُهُمْ بَعْضًا، فَفِيهِ نَظَرٌ. فَإِنَّ تَقْلِيدَ الْعَوَامِّ شَيْءٌ أَدَّتْ إِلَيْهِ الضَّرُورَةُ، وَوَقَعَ عَلَيْهِ الْإِجْمَاعُ. لَكِنْ يَنْبَغِي أَنْ يُقَالَ: يَجُوزُ لِلْمُجْتَهِدِ تَقْلِيدُ الْمُجْتَهِدِ إِذَا كَانَ أَعْلَمَ مِنْهُ، وَتَرَجَّحَ عِنْدَهُ حُسْنُ الظَّنِّ بِهِ تَرَجُّحًا يَفْضُلُ عِنْدَهُ الظَّنَّ الْوَاقِعَ لَهُ فِي الشَّيْءِ عَنِ اجْتِهَادِهِ.

Section

فَصْلٌ

252. Memorised school doctrine is not an independent source

R 252 · BA 305

There is a group resembling ordinary people in one respect and independent jurists in another: those mostly called jurists in our time. We should examine to which class they more properly belong. Their condition plainly shows that their rank is that of ordinary people and that they are followers of authority.

وَلِأَنَّ هَهُنَا طَائِفَةً تُشْبِهُ الْعَوَامَّ مِنْ جِهَةٍ، وَالْمُجْتَهِدِينَ مِنْ جِهَةٍ، وَهُمُ الْمُسَمَّوْنَ فِي زَمَانِنَا هَذَا أَكْثَرَ ذَلِكَ بِالْفُقَهَاءِ، فَيَنْبَغِي أَنْ نَنْظُرَ فِي أَيِّ الصِّنْفَيْنِ أَوْلَى أَنْ نُلْحِقَهُمْ. وَهُوَ ظَاهِرٌ مِنْ أَمْرِهِمْ أَنَّ مَرْتَبَتَهُمْ مَرْتَبَةُ الْعَوَامِّ، وَأَنَّهُمْ مُقَلِّدُونَ.

They differ from ordinary people by memorising independent jurists’ opinions and reporting them to others, without themselves possessing the qualifications for independent inquiry. Their rank is thus like that of transmitters from independent jurists. Had they stopped there, matters would have been more fitting. Instead, they go beyond it, analogising cases for which no ruling has been transmitted from their authorities to cases for which one has. They make a source of what is not a source, turning independent jurists’ statements into sources for their own inquiry. That is sufficient error and innovation!

وَالْفَرْقُ بَيْنَ هَؤُلَاءِ وَبَيْنَ الْعَوَامِّ، أَنَّهُمْ يَحْفَظُونَ الْآرَاءَ الَّتِي لِلْمُجْتَهِدِينَ فَيُخْبِرُونَ عَنْهَا الْعَوَامَّ، مِنْ غَيْرِ أَنْ تَكُونَ عِنْدَهُمْ شُرُوطُ الِاجْتِهَادِ، فَكَأَنَّ مَرْتَبَتَهُمْ فِي ذَلِكَ مَرْتَبَةُ النَّاقِلِينَ عَنِ الْمُجْتَهِدِينَ. وَلَوْ وَقَفُوا فِي هَذَا لَكَانَ الْأَمْرُ أَشْبَهَ، لَكِنْ يَتَعَدَّوْنَ فَيَقِيسُونَ أَشْيَاءَ لَمْ يُنْقَلْ فِيهَا عَنْ مقلدهم حُكْمٌ عَلَى مَا نُقِلَ عَنْهُ فِي ذَلِكَ حُكْمٌ، فَيَجْعَلُونَ أَصْلًا مَا لَيْسَ بِأَصْلٍ، وَيُصَيِّرُونَ أَقَاوِيلَ الْمُجْتَهِدِينَ أُصُولًا لِاجْتِهَادِهِمْ، وَكَفَى بِهَذَا ضَلَالًا وَبِدْعَةً.

253. Why inherited opinions cannot replace living inquiry

R 253 · BA 306

May they, however, remain in the first condition: transmitting from an independent jurist whom they judge probably correct, with successors carefully transmitting from predecessors, so that, for example, no one in our time discharges the obligation of independent inquiry, apart from those of the past? Would it suffice that someone in the earliest period discharged it, even one man or more, as we find among these groups—the Mālikīs, Shāfiʿīs, and Ḥanafīs?

فَأَمَّا هَلْ تَجُوزُ لَهُمُ الْحَالُ الْأُولَى، وَهِيَ أَنْ يَكُونُوا فِي ذَلِكَ نَاقِلِينَ عَنْ مُجْتَهِدٍ غَلَبَ عَلَى ظَنِّهِمْ إِصَابَتُهُ وَيَتَحَرَّى ذَلِكَ خَلَفُهُمْ عَنْ سَلَفِهِمْ فِي النَّقْلِ حَتَّى يَكُونَ الْقَائِمُونَ بِفَرْضِ الِاجْتِهَادِ غَيْرَ مَوْجُودِينَ فِي زَمَانِنَا هَذَا مَثَلًا، إِلَّا مَا قَدْ سَلَفَ وَيَكْفِيَ فِي ذَلِكَ مَثَلًا أَنْ كَانَ فِي الصَّدْرِ الْأَوَّلِ مَنْ قَامَ بِهَذَا الْفَرْضِ وَلَوْ رَجُلٌ وَاحِدٌ أَوْ أَكْثَرُ مِنْ وَاحِدٍ، عَلَى مِثَالِ مَا أَدْرَكْنَا عَلَيْهِ هَذِهِ الطَّوَائِفَ، أَعْنِي الْمَالِكِيَّةَ وَالشَّافِعِيَّةَ وَالْحَنَفِيَّةَ،

By my life, consensus proves that this is impermissible: for every collective obligation there must be someone in every period who performs it; only then does it cease to bind the others. Moreover, the cases that arise are without limit. It is impossible to transmit from earlier independent jurists a separate pronouncement for every case.

فَيَدُلُّ لَعَمْرِي عَلَى امْتِنَاعِ ذَلِكَ انْعِقَادُ الْإِجْمَاعِ عَلَى أَنَّ جَمِيعَ فُرُوضِ الْكِفَايَاتِ يَنْبَغِي أَنْ يَكُونَ فِي زَمَانٍ زَمَانٍ مَنْ يَقُومُ بِهَا، وَحِينَئِذٍ تَسْقُطُ عَنِ الْغَيْرِ. وَأَيْضًا فَإِنَّ النَّوَازِلَ الْوَاقِعَةَ غَيْرُ مُتَنَاهِيَةٍ، وَلَيْسَ يُمْكِنُ نَقْلُ قَوْلٍ قَوْلٍ عَنْ مَنْ سَلَفَ مِنَ الْمُجْتَهِدِينَ فِي نَازِلَةٍ نَازِلَةٍ، فَإِنَّ ذَلِكَ مُمْتَنِعٌ.

254. No period should lack an active mujtahid

R 254 · BA 307

This leaves only three possibilities: to make earlier independent jurists' legal opinions into sources from which rulings are derived; to leave many rulings inoperative; or, since both alternatives are impermissible, to accept the third—that no period should be without an independent jurist.

وَإِذَا كَانَ ذَلِكَ كَذَلِكَ فَلَمْ يَبْقَ إِلَّا وَاحِدٌ مِنْ ثَلَاثَةٍ: إِمَّا أَنْ نَجْعَلَ أَقَاوِيلَ مَنْ سَلَفَ مِنَ الْمُجْتَهِدِينَ فِيمَا أَفْتَوْا فِيهِ أُصُولًا يُسْتَنْبَطُ عَنْهَا. وَإِمَّا أَنْ يَتَعَطَّلَ كَثِيرٌ مِنَ الْأَحْكَامِ. وَكِلَا الْوَجْهَيْنِ مُمْتَنِعٌ، فَلَمْ يَبْقَ إِلَّا الْوَجْهُ الثَّالِثُ وَهُوَ أَلَّا يَخْلُوَ زَمَانٌ مِنْ مُجْتَهِدٍ.

You know that the period just past was in this condition: it had no practising independent jurist. Although it cannot be denied that someone in it had attained the rank of independent inquiry, he nevertheless acted only as a follower of authority.[117]

وَأَنْتَ تَعْلَمُ أَنَّ الزَّمَانَ الَّذِي سَلَفَ هَكَذَا كَانَتْ حَالُهُ، أَعْنِي أَنَّهُ لَمْ يَكُنْ فِيهِ مُجْتَهِدٌ. وَإِنْ كَانَ لَا يُدْفَعُ أَنَّهُ قَدْ كَانَ فِيهِ مَنْ بَلَغَ رُتْبَةَ الِاجْتِهَادِ. لَكِنْ مَعَ هَذَا فَإِنَّمَا كَانَ مُقَلِّدًا.

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[117] **117.** Translation. "Practicing" makes explicit the distinction in the Arabic between possessing the rank of ijtihād and actually exercising it. The criticism concerns the author's own preceding period; it is not a claim that independent juristic inquiry historically ceased in every place.

255. The valid and invalid uses of following authority

R 255 · BA 308

This discussion has clarified who follows authority, what following authority is, and where it is and is not valid.

فَقَدْ تَبَيَّنَ مِنْ هَذَا الْقَوْلِ مَنِ الْمُقَلِّدُ، وَمَا التَّقْلِيدُ، وَفِي أَيِّ الْمَوَاضِعِ يَصِحُّ وَفِي أَيِّهَا لَا.

Chapter Three. On weighing transmission routes

الْفَصْلُ الثَّالِثُ: فِي تَرْجِيحِ طُرُقِ النَّقْلِ

256. Why an exhaustive catalogue of preferences is unnecessary

R 256 · BA 309

There remains the third chapter, concerning the comparative weight of transmission routes and of what expressions signify through their understood meanings. This concerns evidence of the same kind, since the relative weight of different kinds has already been established. The relevant rules attach to particular items of evidence and particular chains of transmission, and are virtually without limit.

وَبَقِيَ الْقَوْلُ فِي الْفَصْلِ الثَّالِثِ وَهُوَ يَتَضَمَّنُ الْقَوْلَ فِي تَرْجِيحِ طُرُقِ النَّقْلِ، وَتَرْجِيحِ مَا تَدُلُّ عَلَيْهِ الْأَلْفَاظُ بِمَفْهُومَاتِهَا، وَذَلِكَ فِيمَا كَانَ مِنْ ذَلِكَ مِنْ نَوْعٍ وَاحِدٍ، لِأَنَّ الْأَدِلَّةَ الَّتِي أَنْوَاعُهَا مُخْتَلِفَةٌ قَدْ تَبَيَّنَ تَرَجُّحُ بَعْضِهَا عَلَى بَعْضٍ فِيمَا سَلَفَ، وَهِيَ قَوَانِينُ تَقْتَرِنُ بِدَلِيلٍ دَلِيلٍ وسند سند وَتَكَادُ لَا تَتَنَاهَى.

Practitioners of this discipline have attempted to enumerate them. We have no need to do so, since a person can determine for himself which produce a preponderant judgement and which do not. Anyone with leisure who wishes to record them here may do so. However, the contextual indications establishing the superiority of transmission routes should be placed in the discussion of reports, and those establishing the superiority of an understood meaning in Part Three of this book.

وَقَدْ رَامَ أَهْلُ هَذِهِ الصِّنَاعَةِ حَصْرَهَا، لَكِنْ أَمَّا نَحْنُ فَلَا حَاجَةَ لَنَا إِلَى تَعْدِيدِهَا، إِذْ كَانَ الْإِنْسَانُ يُمْكِنُهُ مِنْ تِلْقَاءِ نَفْسِهِ الْوُقُوفُ عَلَى مَا فِيهَا يُفِيدُ غَلَبَةَ ظَنٍّ مِمَّا لَيْسَ يُفِيدُ. فَأَمَّا مَنْ كَانَ لَهُ فَرَاغٌ، وَأَحَبَّ أَنْ يُثْبِتَهَا هَهُنَا فَلْيَفْعَلْ، لَكِنْ يَجِبُ أَنْ تُثْبَتَ الْقَرَائِنُ الَّتِي يَقَعُ بِهَا تَرْجِيحُ طُرُقِ النَّقْلِ فِي كِتَابِ الْأَخْبَارِ، وَالَّتِي يَقَعُ بِهَا تَرْجِيحُ الْمَفْهُومِ فِي الْجُزْءِ الثَّالِثِ مِنْ هَذَا الْكِتَابِ.

257. The obligation to follow the stronger judgement

R 257 · BA 310

That adopting and acting upon the stronger of two probable judgements constitutes legal evidence is shown by the Companions’ consensus on this, and by what a person finds in himself: he turns to the stronger of two probable judgements when they conflict.

فَأَمَّا أَنَّ الْمَصِيرَ إِلَى الْعَمَلِ بِأَرْجَحِ الظَّنَّيْنِ دَلِيلٌ شَرْعِيٌّ، فَيَدُلُّ عَلَيْهِ إِجْمَاعُ الصَّحَابَةِ عَلَى ذَلِكَ، وَمَا يَجِدُهُ الْإِنْسَانُ فِي نَفْسِهِ مِنَ الْمَصِيرِ إِلَى أَرْجَحِ الظَّنَّيْنِ عِنْدَ تَعَارُضِهِمَا.

258. An abridgement completed and supplemented: 552 AH

R 258 · BA 311

Here our purpose in this abridgement is complete. It resembles an abridgement in removing prolixity, and an original work in its additions and completions. This was during the middle ten days of Dhū al-Ḥijja in the year five hundred and fifty-two.[118]

وَهُنَا انْتَهَى غَرَضُنَا فِي هَذَا الِاخْتِصَارِ. وَهُوَ يُشْبِهُ الْمُخْتَصَرَ مِنْ جِهَةِ حَذْفِ التَّطْوِيلِ، وَالْمُخْتَرَعَ مِنْ جِهَةِ التَّتْمِيمِ وَالتَّكْمِيلِ. وَذَلِكَ فِي الْعَشْرِ الْوُسْطِ مِنْ ذِي الْحِجَّةِ مِنْ سَنَةِ اثْنَتَيْنِ وَخَمْسِينَ وَخَمْسِ مِائَةٍ.

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[118] **118.** Translation. This is Ibn Rushd’s authorial conclusion and date, 552 AH. The following 606 AH copying notice and ownership statement belong to later manuscript voices and are presented separately.

Later copyist’s colophon and ownership notice

Copyist’s colophon and ownership note

Later copyist and owner · separate from Ibn Rushd’s authorial conclusion

The copying of the abridgement was completed on the tenth of Rajab, the solitary sacred month, in the year six hundred and six, by the hand of Muḥammad ibn ʿAlī ibn ʿAfīf. Praise belongs to God, Lord of the worlds, and blessings upon Muḥammad, the Seal of the Prophets.

Owned by the servant of his Lord, Aḥmad ibn Aḥmad al-Muṭarrifī. May God treat all with His hidden kindness.

خَاتِمَةُ النَّاسِخِ وَقَيْدُ الْمِلْكِيَّةِ

خَلَصَ الْمُخْتَصَرُ بِالنَّسْخِ فِي الْعَاشِرِ مِنْ رَجَبٍ الْفَرْدِ مِنْ سَنَةِ سِتٍّ وَسِتِّمِائَةٍ عَلَى يَدِ مُحَمَّدِ بْنِ عَلِيِّ بْنِ عَفِيفٍ وَالْحَمْدُ لِلَّهِ رَبِّ الْعَالَمِينَ وَالصَّلَاةُ عَلَى مُحَمَّدٍ خَاتَمِ النَّبِيئِينَ.

مِلْكٌ لِعَبْدِ رَبِّهِ أَحْمَدَ بْنِ أَحْمَدَ الْمُطَرِّفِيِّ عَامَلَ اللَّهُ الْجَمِيعَ بِلُطْفِهِ الْخَفِيِّ.

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R 076 · BA 96–97 · Arabic 1994 p. 68, 69 / 2015 p. 174
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R 078 · BA 99 · Arabic 1994 p. 70 / 2015 p. 178

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R 081 · BA 102–104 · Arabic 1994 p. 71 / 2015 p. 178

R 082 · BA 105–106 · Arabic 1994 p. 72 / 2015 p. 182

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R 094 · BA 117 · Arabic 1994 p. 75 / 2015 p. 190

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R 096 · BA 118 · Arabic 1994 p. 75, 76 / 2015 p. 190

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R 118 · BA 143 · Arabic 1994 p. 85 / 2015 p. 208

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R 124 · BA 149 · Arabic 1994 p. 87 / 2015 p. 214

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R 162 · BA 190 · Arabic 1994 p. 105 / 2015 p. 244

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R 170 · BA 205–206 · Arabic 1994 p. 109 / 2015 p. 256
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R 238 · BA 289 · Arabic 1994 p. 138, 139 / 2015 p. 310
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R 240 · BA 291–292 · Arabic 1994 p. 139, 140 / 2015 p. 312
R 241 · BA 293 · Arabic 1994 p. 140, 141 / 2015 p. 312
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R 243 · BA 295 · Arabic 1994 p. 141 / 2015 p. 314
R 244 · BA 296 · Arabic 1994 p. 141, 142 / 2015 p. 314
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R 246 · BA 298 · Arabic 1994 p. 142 / 2015 p. 316
R 247 · BA 299 · Arabic 1994 p. 142, 143 / 2015 p. 318
R 248 · BA 300 · Arabic 1994 p. 143 / 2015 p. 318
R 249 · BA 301 · Arabic 1994 p. 143 / 2015 p. 318
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R 251 · BA 303–304 · Arabic 1994 p. 144 / 2015 p. 320
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R 255 · BA 308 · Arabic 1994 p. 146 / 2015 p. 324
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R 258 · BA 311 · Arabic 1994 p. 146 / 2015 p. 326

Applications in the Bidāyat al-mujtahid

Editorial comparisons, not Ibn Rushd’s text. These examples do not constitute a complete legal commentary.

18 · Marriage: one form of act, different legal rulings

Marriage · ch. 1, preliminaries, issue 1: the legal status of marriage

The majority recommend marriage; the Ẓāhirīs require it; later Mālikīs distinguish obligatory, recommended and permitted marriage according to the person’s circumstances. Ibn Rushd identifies both the interpretation of imperative expressions and an appeal to welfare as causes of the disagreement. This illustrates the distinction between an act’s general description and the ruling applicable to a situated agent. It does not prove that an imperative by itself encodes all those contextual differences. The welfare argument reported here should also be compared with the stricter controls of Darūrī §§146 and 217.

§18 · §197 · §200 · §217

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23 · Wiping the head: a minimum performance and a contested particle

Purification from ritual impurity · Book of Wuḍūʾ, ch. 2, issue 6: the extent of wiping the head

Mālik requires the whole head, al-Shāfiʿī allows part, and Abū Ḥanīfa specifies a quarter. Ibn Rushd relates the disagreement to the bāʾ in Q 5:6—whether emphatic or partitive—and to reports describing the Prophet’s wiping. Even on the emphatic reading, the amount satisfying the name of the act remains disputed. This is a representative application of the Darūrī’s minimum-sufficiency problem, but one in which grammar and transmitted practice jointly determine the legally adequate minimum.

§23 · §165 · §205

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28 · Proposing over another proposal: prohibition and contractual effect

Marriage · ch. 1, preliminaries, issue 3: proposing over another man’s proposal

Jurists distinguish the prohibition of intervening in an existing proposal from the validity of the ensuing marriage. Ibn Rushd records invalidation by Dāwūd, validity according to al-Shāfiʿī and Abū Ḥanīfa, and differing Mālikī outcomes. The question is whether the forbidden preliminary act vitiates the contract or is an independently culpable circumstance. Read this alongside the Darūrī’s distinctions of aspect and the later question whether prohibition entails invalidity; the note identifies a legal parallel, not an explicit cross-citation between the books.

§28 · §56 · §206

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38 · Zakāt on a child’s property: worship or a claim upon wealth?

Zakāt · first division: those liable; property belonging to minors

Mālik, al-Shāfiʿī and others impose zakāt on a minor’s property; other views exempt it or distinguish agricultural produce. Ibn Rushd identifies the underlying question: is zakāt principally worship requiring adult responsibility, or a financial right of the poor in wealth? The latter need not depend on the owner’s puberty. This demonstrates why exemption from direct moral obligation does not automatically remove every legal consequence affecting a child’s property.

§38 · §42 · §55

43 · Intention in ablution: devotional act and intelligible cleansing

Purification from ritual impurity · Book of Wuḍūʾ, ch. 2, issue 1: intention as a condition of validity

Mālik, al-Shāfiʿī and others require intention; Abū Ḥanīfa and al-Thawrī do not. Ibn Rushd locates ablution between pure devotion and an act whose cleansing purpose is intelligible. The relevant inquiry is which resemblance governs its legal classification. Read beside Darūrī §43, this shows that intending obedience and performing an objectively effective act are distinguishable questions, and that a condition of worship cannot simply be transferred to every act associated with worship.

§43 · §56 · §218

47 · Coerced divorce: voluntary utterance is not sufficient freedom

Divorce · second division, ch. 2: the person whose divorce is legally effective; coerced divorce

Abū Ḥanīfa treats the coerced utterance as effective, whereas Mālik, al-Shāfiʿī and others do not. Ibn Rushd locates the dispute in the sense of choice: the speaker chooses the words, but the threat may still make him “coerced” in the Law’s usage. He invokes Q 16:106 against identifying every chosen utterance with unqualified freedom. This sharpens Darūrī §47: physical possibility, intention, legal coercion and the effect of an act must be distinguished.

§47 · §43 · §45

55 · Financial maturity: an operative condition or its official recognition?

Interdiction · ch. 2: release of minors from interdiction; those under an executor

Some Mālikī positions continue to invalidate transactions until an executor or judge formally releases the ward. Ibn al-Qāsim gives decisive weight to actual maturity or improvidence. Ibn Rushd criticizes treating the continued formal status as controlling when maturity is established: the operative consideration is maturity, not the judge’s declaration. This provides an institutional illustration of the difference between a condition’s existence and a procedure which establishes or announces it, without reducing all judicial acts to mere factual reports.

§55 · §42 · §56

56 · A remoter guardian: invalidity, permission, or ratification

Marriage · ch. 2; conditions of contract; guardians, third topic, issue 1: a remoter guardian contracts while the nearer is present

For the cases under discussion, Mālik’s transmitted positions include invalidity, validity and dependence on the nearer guardian’s approval. Ibn Rushd explains the alternatives through three questions: is priority a rule of revelation at all; if so, is it the nearer guardian’s right; or is it a right of God? These yield, respectively, validity, a ratifiable contract, or invalidity. The ruling is not produced simply by attaching the word “condition” to priority. The discussion excludes certain father–virgin-daughter and executor cases from that threefold variation.

§56 · §36 · §54

58 · A traveller who fasts: an implied condition in the verse

Fasting · ch. on those permitted to break the fast; the traveller's performance of the fast

A minority requires the travelling person to make up the days even if he fasts; the majority accepts his fast. Ibn Rushd connects the disagreement to whether Q 2:184 implicitly says "and breaks the fast" before requiring other days, alongside reports allowing travelling Companions to fast or refrain. This illustrates both the classification of a concession and the interpretation of an omitted condition. It must not be read as though the mere grammatical form settled the whole dispute.

§58 · §155 · §194

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64 · The basmala: Qurʾānic wording and membership in a sūra

Prayer · third division, verbal constituents, issue 4: reciting the basmala

The practical disagreement concerns reciting the basmala and whether aloud or silently. Ibn Rushd separates uncertainty about its status as a verse of al-Fātiḥa from denying that the wording is Qurʾānic at all. He also analyses conflicting reports of the Companions' practice. This parallels Darūrī §64, while warning against an over-simple appeal to mass transmission: the identity of transmitted words and their structural membership in a particular sūra are distinct propositions.

§64 · §75 · §112

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146 · An absent father: welfare within a structured legal situation

Marriage · ch. 2; guardians, third topic, issue 3: the father's absence

The Mālikī distinctions turn on distance, knowledge of the father's whereabouts, maintenance, protection and the woman's need to marry. Ibn Rushd then suggests that urgent risk might justify the ruler's intervention even when the father is relatively near. This is a concrete use of welfare-oriented reasoning, not an unrestricted power to legislate. Its relation to the Darūrī's demand for an acknowledged warrant remains a question of interpretation: the later case develops an existing institution's purpose, but does not expressly cite that earlier restriction.

§146 · §217

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158 · Touching women: equivocation, generality and counterevidence

Purification from ritual impurity · Book of Wuḍūʾ, ch. 4, issue on touching women

Ibn Rushd explains that touching in Arabic can mean contact by the hand or signify intercourse. Among those taking bodily contact, some require pleasure and others do not; reports about contact between the Prophet and ʿĀʾisha enter the assessment. The first disagreement concerns competing meanings, the second the scope of a selected meaning. This clarifies why the Darūrī distinguishes equivocation from generality: collecting two possible meanings is not the same operation as including all instances under one universal.

§158 · §167 · §177

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160 · Minimum dower: clarification cannot be postponed beyond need

Marriage · ch. 2; conditions of contract; dower, first topic, issue 2: its amount

In Sahl's marriage report, the request for even an iron ring is taken against a fixed minimum. Ibn Rushd expressly argues that a required threshold would have needed explanation at that moment. He also disputes the premises that dower is purely worship and that worship must always be quantitatively fixed. This is a direct application of the rule against delaying clarification beyond need, rather than a merely suggestive similarity supplied by the present editor.

§160 · §23 · §166

167 · The sales-session option: what counts as “separation”?

Sales · part 3, conditions of validity, ch. 1: the contract and the parties’ option before separation

Mālik and Abū Ḥanīfa make the completed exchange binding without physical separation; al-Shāfiʿī and others retain the session option. Ibn Rushd examines whether the report concerns bodily separation or completion of bargaining. He weighs the strong Ibn ʿUmar report against Medinan practice, another report’s weakness, analogies to other contracts, and the general command to fulfil contracts. The case joins semantic interpretation to evidential preference: a plausible lexical reinterpretation is not enough unless proportionate evidence supports it.

§167 · §138 · §166 · §256

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171 · Guardianship: a disputed condition cannot be established by ambiguity alone

Marriage · ch. 2, conditions of validity; guardians, first topic: whether guardianship is a condition

In examining marriage guardianship, Ibn Rushd tests the scope of Qurʾānic expressions and the guardian-permission reports rather than treating every apparent address to guardians as a decisive condition of validity. He also considers whether such a widespread requirement could have remained insufficiently explained. The case exemplifies the evidential burden for a restrictive interpretation. It is especially pertinent to Darūrī §171, which rejects an excessively remote narrowing of the permission report; the Bidāya’s fuller argument must not be reduced to that single objection.

§171 · §160 · §166

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201 · Pilgrimage now or later: a control against a simplistic application

Pilgrimage · first kind of inquiry: when the pilgrimage obligation falls due

Ibn Rushd explicitly denies that the dispute is merely whether an unrestricted command demands immediacy. The competing arguments compare the first available pilgrimage season with the beginning or end of prayer-time, consider the interval when pilgrimage cannot be performed, and assess the risk of death before another year. This is a useful counterexample to a mechanical concordance: Darūrī §201 supplies distinctions, but the Bidāya warns that the applied dispute has additional temporal structure.

§201 · §21 · §25

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204 · Completing ʿumra does not by itself prove an initial duty to begin it

Pilgrimage · first kind of inquiry: the legal status of ʿumra

One argument for obligation invokes Q 2:196’s command to complete pilgrimage and ʿumra. The opposing reading takes completion to govern an observance once begun, whether its initiation was obligatory or voluntary. Ibn Rushd also records conflicting reports. The lesson is the distinct scope of commands: an obligation to complete an undertaking need not establish an obligation to undertake it. Compare the Darūrī’s insistence that a further performance needs its own warrant, rather than extending a command beyond its demonstrated conditions.

§204 · §49 · §205

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206 · Menstrual divorce: a forbidden act may still have legal effect

Divorce · first division, ch. 2: Sunnī and irregular divorce; divorce during menstruation

The majority count a divorce pronounced during menstruation, while another position does not. Ibn Rushd distinguishes conditions of validity from conditions of proper or complete performance and examines the command that Ibn ʿUmar take his wife back. This provides an especially clear application of the Darūrī's question about prohibition and invalidity. Whether an act is forbidden and whether it produces a legal consequence are different inquiries; their relation must be demonstrated from the relevant address and reports.

§206 · §28 · §56

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211 · Foetal compensation: the identity of the right-holder matters

Offences and injuries · second part, compensation; accidental loss of a foetus, question "to whom is it due?"

Mālik, al-Shāfiʿī and Abū Ḥanīfa treat the compensation as inheritable by the foetus's heirs. Rabīʿa and al-Layth assign it to the mother, comparing the foetus with one of her bodily parts. The dispute illustrates that identifying the legal subject precedes assigning a consequence. It is related to Darūrī §211's caution about the original and derivative terms of an analogy, not a textual claim that the two passages explicitly cross-reference each other.

§211 · §218 · §238

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214 · Jewellery: resemblance to usable possessions or to monetary wealth?

Zakāt · second division: assets subject to zakāt; gold and silver jewellery

The Ḥijāzī jurists exempt jewellery intended for adornment; Abū Ḥanīfa includes it. Ibn Rushd attributes the disagreement chiefly to its double resemblance: usable possessions on one side, gold and silver serving exchange on the other. Conflicting reports matter, but he regards them as weak, especially the exemption report. This is a particularly accessible example of competing analogical descriptions; disagreement about the case's legally relevant likeness need not amount to disagreement about the underlying commodity itself.

§214 · §218 · §238

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217 · Deathbed divorce: blocking an evasion without erasing doctrinal difficulty

Divorce · second division, ch. 2: irrevocable divorce during fatal illness

Some jurists preserve the divorced woman's inheritance because the husband may be evading her entitlement; others apply divorce's ordinary consequences. Ibn Rushd expressly identifies blocking the means (sadd al-dharāʾiʿ) as the issue, but also questions a hybrid status retaining only selected effects of marriage. He rejects a claim of Companion consensus because Ibn al-Zubayr's disagreement is known. Thus purposive prevention and proof of consensus require distinct warrants; the case is not evidence that every welfare argument is self-validating. The Darūrī itself cites this case in §217 while rejecting excessively remote welfare arguments; the difference of framing is therefore substantive.

§217 · §135 · §137

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218 · Ribā in foodstuffs: competing identifications of the operative feature

Sales · part 2, causes of invalidity; ribā in the named foodstuffs and their analogues

Mālikī analysis emphasizes staple, storable food; al-Shāfiʿī emphasizes edibility; Ḥanafī reasoning emphasizes weight or measure. Ibn Rushd treats the dispute as identifying the meaning behind the named commodities, while also evaluating the rival rationales. This corresponds closely to the Darūrī's account of resemblance and uncertain grounds. Yet the Bidāya's comparative assessment is more developed than a blanket dismissal: no uniform verdict on all "analogy" should be imported from either book into the other.

§218 · §212 · §214 · §238

223 · Dower and the theft threshold: verbal resemblance is not one legal meaning

Marriage · ch. 2; dower, first topic, issue 2: critique of the minimum-dower analogy

The proposed analogy sets the minimum dower by the monetary threshold for theft. Ibn Rushd objects that the shared description of bodily "authorization" masks different meanings: punishment and injury differ from lawful marital enjoyment and affection. The relevant similarity must be one in meaning, not merely words, and must ground the original ruling. He distinguishes using this weak analogy to select an amount from establishing that a minimum exists at all.

§223 · §158 · §218

227 · Triple divorce after mutual imprecation: the limits of tacit approval

Divorce · first division, ch. 2: whether three divorces may be pronounced together; the report of ʿUwaymir

One argument relies on the Prophet's not objecting when ʿUwaymir pronounced three divorces after mutual imprecation (liʿān). The counterargument is that liʿān had already severed the marriage: the utterance then effected no further divorce. Silence cannot establish permissibility for an act whose legally relevant object was absent. This is a precise application of Darūrī §227's contextual restriction: approval must concern the very act and circumstances for which authority is being claimed.

§227 · §150 · §229

237 · A mistaken qibla: required success or adequately conducted inquiry?

Prayer · second division, conditions; facing the qibla, second issue

Al-Shāfiʿī requires repetition when an error in direction becomes known; Mālik and Abū Ḥanīfa do not impose the same unconditional repetition after due inquiry. Ibn Rushd identifies disagreement about whether correct orientation or the act of inquiry is required, and weighs a report against analogy with prayer before its time. The case illuminates Darūrī §§237–245 without proving that every mujtahid's conclusion is true: excusing an error and making its conclusion correct remain different claims.

§237 · §204 · §243

243 · A physician's mistake: compensation need not imply moral wrongdoing

Offences and injuries · second part, compensation; accidental injury caused in medical treatment

Ibn Rushd reports compensation for a treatment error, while also recording a Mālikī exemption for a qualified practitioner and agreement on liability for an unqualified intruder. The analogy is with accidental injury; there is further disagreement about which fund bears payment. This is an illustrative legal parallel to the Darūrī's distinction between error and sin. It does not assimilate medical judgement to every form of juristic inquiry, nor does compensation alone establish culpability.

§243 · §38 · §244

246 · Cupping while fasting: three ways of treating conflicting reports

Fasting · ch. on acts from which the fasting person abstains; cupping

A report invalidating the fast of cupper and cupped is set beside the report that the Prophet was cupped while fasting. Ibn Rushd describes disagreement over prohibition, dislike and permissibility, and examines preference, reconciliation and relinquishing the conflicting proofs. This makes concrete the Darūrī’s alternatives when evidence appears equipollent. Returning to an original rule is itself a reasoned response to evidential failure; it is not the same as choosing whichever report one happens to prefer.

§246 · §214 · §247

256 · Deferred animal barter: conflict can concern scope as well as authenticity

Sales · part 2, ribā; exchanging animals with deferred delivery

Reports allowing an animal to be exchanged for more animals with later delivery stand against a prohibition of deferred animal-for-animal exchange. Ibn Rushd records different evaluations and reconciliations, including Mālikī attention to whether the animals have distinct uses. The disagreement is not only over which chain is stronger: a proposed distinction of legal purposes may reconcile reports which otherwise conflict. This illustrates why Darūrī §§256–257 insist on a stronger judgement rather than an exhaustive mechanical list of preference rules.

§256 · §213 · §257